

# MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

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## APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(August 1, 2015 through August 31, 2015)

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| People v Guerin | County Ct, 5/30/14<br>(Cattaraugus) | 8/21/15 |
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## APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2015 through August 31, 2015)

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| People v Acevedo  | 3d Dept: 118 AD3d 1103 (Albany)                                               | denied 8/10/15<br>(Rivera, J.)         |
| People v Adon     | 1st Dept: 128 AD3d 605 (NY)                                                   | denied 8/28/15<br>(Fahey, J.)          |
| People v Alimase  | App Div, 1st Dept: 2015 NY Slip Op<br>69610(U) (NY)                           | dismissed 8/17/15<br>(Lippman, Ch. J.) |
| People v Alvarez  | 1st Dept: 128 AD3d 624 (NY)                                                   | denied 8/11/15<br>(Pigott, J.)         |
| People v Armstead | 2d Dept: 122 AD3d 640 (Nassau)                                                | denied 8/10/15<br>(Rivera, J.)         |
| People v Arpino   | 2d Dept: 128 AD3d 1082 (Queens)                                               | denied 8/10/15<br>(Rivera, J.)         |
| People v Arroyo   | 2d Dept: 128 AD3d 843 (Westchester)                                           | denied 8/14/15<br>(Read, J.)           |
| People v Baksh    | 2d Dept: 125 AD3d 988 (Kings)                                                 | denied 8/10/15<br>(Rivera, J.)         |
| People v Ball     | 2d Dept: 129 AD3d 739 (Nassau)                                                | denied 8/28/15<br>(Fahey, J.)          |
| People v Ballard  | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 46 Misc 3d 145(A) (Richmond) | denied 8/28/15<br>(Fahey, J.)          |
| People v Bank     | 4th Dept: 129 AD3d 1445 (Monroe)                                              | granted 8/13/15<br>(Lippman, Ch. J.)   |
| People v Banks    | 3d Dept: 122 AD3d 953 (Schenectady)                                           | denied 8/10/15<br>(Rivera, J.)         |
| People v Barbieri | 2d Dept: 128 AD3d 1082 (Nassau)                                               | denied 8/28/15<br>(Fahey, J.)          |

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| People v Barksdale          | 4th Dept: 129 AD3d 1497 (Erie)                                             | denied 8/20/15<br>(Stein, J.)                    |
| People v Barrera            | 1st Dept: 129 AD3d 487 (NY)                                                | denied 8/17/15<br>(Read, J.)                     |
| People v Barsukov           | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 47 Misc 3d 152(A) (Kings) | denied 8/4/15<br>(Lippman, Ch. J.)               |
| People v Battles            | 2d Dept: 127 AD3d 984 (Kings)                                              | denied 8/3/15<br>(Read, J.)                      |
| People v Beblowski          | 3d Dept: 127 AD3d 1505 (Schenectady)                                       | denied 8/14/15<br>(Read, J.)                     |
| People v Bedeau             | 2d Dept: 129 AD3d 853 (Kings)                                              | denied 8/28/15<br>(Fahey, J.)                    |
| People v Bell               | 2d Dept: 126 AD3d 993 (Richmond)                                           | denied 8/6/15<br>(Fahey, J.)                     |
| People v Bellet             | County Ct, 5/5/15 (Erie)                                                   | denied 8/14/15<br>(Read, J.)                     |
| People v Bhagwandin         | 2d Dept: 119 AD3d 810 (Westchester)                                        | denied 8/10/15<br>(Rivera, J.)                   |
| People v Biondo             | App Term, 2d Dept, 9th & 10th Jud Dists:<br>47 Misc 3d 154(A) (Suffolk)    | denied 8/3/15<br>(Lippman, Ch. J.)               |
| People v Black              | 4th Dept: 124 AD3d 1365 (Erie)                                             | denied 8/14/15<br>(Rivera, J.)                   |
| People v Blackledge         | 1st Dept: 129 AD3d 412 (Bronx)                                             | denied 8/3/15<br>(Fahey, J.)                     |
| People v Blackwell          | 4th Dept: 129 AD3d 1690 (Monroe)                                           | denied 8/20/15<br>(Stein, J.)                    |
| People v Blocker            | 4th Dept: 128 AD3d 1483 (Monroe)                                           | denied 8/14/15<br>(Read, J.)                     |
| People v Bloomfield         | 1st Dept: 129 AD3d 504 (NY)                                                | denied 8/4/15<br>(Lippman, Ch. J.)               |
| People v Bonds              | 2d Dept: 128 AD3d 1083 (Queens)                                            | denied 8/28/15<br>(Pigott, J.)                   |
| People v Bowens             | App Term, 1st Dept: 46 Misc 3d 140(A)<br>(Bronx)                           | denied 8/10/15<br>(Rivera, J.)                   |
| People v Bradford           | 4th Dept: 126 AD3d 1374 (Jefferson)                                        | denied 8/10/15<br>(Rivera, J.)                   |
| People v Branch             | 1st Dept: 129 AD3d 495 (NY)                                                | denied 8/28/15<br>(Fahey, J.)                    |
| People v Briglin            | 4th Dept: 125 AD3d 1518 (Steuben)                                          | denied 8/10/15<br>(Rivera, J.)<br>(Appeal No. 1) |
| People v Brims              | App Div, 2d Dept: 2015 NY Slip Op<br>71648(U) (Rockland)                   | dismissed 8/28/15<br>(Fahey, J.)                 |
| People v Brown<br>(Darlene) | 1st Dept: 129 AD3d 527 (NY)                                                | denied 8/28/15<br>(Fahey, J.)                    |
| People v Brown (Kendel)     | 1st Dept: 129 AD3d 426 (NY)                                                | denied 8/28/15<br>(Fahey, J.)                    |
| People v Brown (Robert)     | 1st Dept: 127 AD3d 640 (NY)                                                | denied 8/28/15<br>(Fahey, J.)                    |
| People v Bryant             | 3d Dept: 128 AD3d 1223 (Ulster)                                            | denied 8/13/15<br>(Lippman, Ch. J.)              |

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| People v Buie              | App Div, 4th Dept: 2015 NY Slip Op 62444(U) (Monroe) | denied 8/10/15 (Rivera, J.)               |
| People v Burns             | 4th Dept: 122 AD3d 1435 (Cayuga)                     | denied 8/18/15 (Abdus-Salaam, J.)         |
| People v Bynum             | 4th Dept: 125 AD3d 1278 (Onondaga)                   | denied 8/3/15 (Lippman, Ch. J.)           |
| People v Campbell          | 4th Dept: 128 AD3d 1401 (Erie)                       | denied 8/11/15 (Pigott, J.)               |
| People v Campos            | 1st Dept: 124 AD3d 434 (NY)                          | denied 8/10/15 (Rivera, J.)               |
| People v Carson            | 4th Dept: 126 AD3d 1537 (Monroe)                     | denied 8/20/15 (Stein, J.)                |
| People v Castor            | 4th Dept: 128 AD3d 1357 (Onondaga)                   | denied 8/10/15 (Pigott, J.)               |
| People v Chapman           | App Div, 1st Dept: 2014 NY Slip Op 86014(U) (NY)     | denied reconsideration 8/3/15 (Fahey, J.) |
| People v Chin              | 3d Dept: 128 AD3d 1270 (Broome)                      | denied 8/28/15 (Fahey, J.)                |
| People v Codner            | 2d Dept: 128 AD3d 715 (Suffolk)                      | denied 8/10/15 (Rivera, J.)               |
| People v Coello            | 1st Dept: 129 AD3d 442 (Bronx)                       | denied 8/11/15 (Pigott, J.)               |
| People v Coker             | 3d Dept: 121 AD3d 1305 (Schenectady)                 | denied 8/10/15 (Rivera, J.)               |
| People v Coleman (Dawson)  | App Div, 2d Dept: 2015 NY Slip Op 73460(U) (Kings)   | denied 8/14/15 (Read, J.)                 |
| People v Coleman (Trevell) | 1st Dept: 126 AD3d 432 (NY)                          | denied 8/10/15 (Rivera, J.)               |
| People v Coles             | 4th Dept: 117 AD3d 1468 (Ontario)                    | denied 8/10/15 (Rivera, J.)               |
| People v Coley             | 3d Dept: 129 AD3d 1327 (Ulster)                      | denied 8/28/15 (Fahey, J.)                |
| People v Collier           | App Div, 3d Dept: 2015 NY Slip Op 74475(U) (Albany)  | dismissed 8/18/15 (Abdus-Salaam, J.)      |
| People v Concepcion        | 1st Dept: 128 AD3d 612 (Bronx)                       | denied 8/14/15 (Pigott, J.)               |
| People v Cooper            | 2d Dept: 129 AD3d 1101 (Kings)                       | denied 8/21/15 (Stein, J.)                |
| People v Costello          | 2d Dept: 128 AD3d 848 (Queens)                       | denied 8/3/15 (Read, J.)                  |
| People v Craft             | 1st Dept: 128 AD3d 597 (NY)                          | denied 8/13/15 (Lippman, Ch. J.)          |
| People v Cummings          | 2d Dept: 127 AD3d 988 (Kings)                        | denied 8/14/15 (Rivera, J.)               |
| People v D'Antuono         | 4th Dept: 126 AD3d 1425 (Niagara)                    | denied reconsideration 8/14/15 (Read, J.) |

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| People v Daniels        | 4th Dept: 125 AD3d 1432 (Erie)                                                          | denied<br>reconsideration<br>8/14/15<br>(Pigott, J.)  |
| People v Davis (George) | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 2015 NY Slip Op 50817(U)<br>(Richmond) | denied 8/20/15<br>(Stein, J.)                         |
| People v Davis (Melvin) | 1st Dept: 127 AD3d 614 (NY)                                                             | denied 8/10/15<br>(Pigott, J.)                        |
| People v DeBose         | 2d Dept: 128 AD3d 1085 (Kings)                                                          | denied 8/10/15<br>(Pigott, J.)                        |
| People v DeJesus        | 1st Dept: 127 AD3d 589 (NY)                                                             | denied 8/4/15<br>(Stein, J.)                          |
| People v Delsol         | 1st Dept: 127 AD3d 458 (Bronx)                                                          | denied 8/3/15<br>(Lippman, Ch. J.)                    |
| People v Derrell A.E.   | 4th Dept: 128 AD3d 1536 (Ontario)                                                       | denied 8/21/15<br>(Lippman, Ch. J.)<br>(Appeal No. 1) |
| People v Derrell A.E.   | 4th Dept: 128 AD3d 1537 (Ontario)                                                       | denied 8/21/15<br>(Lippman, Ch. J.)<br>(Appeal No. 2) |
| People v Devaughn       | 2d Dept: 127 AD3d 1104 (Queens)                                                         | denied 8/4/15<br>(Stein, J.)                          |
| People v Dingle         | App Div, 1st Dept: 2015 NY Slip Op<br>74384(U) (Bronx)                                  | dismissed 8/26/15<br>(Pigott, J.)                     |
| People v Dixon          | 1st Dept: 129 AD3d 549 (NY)                                                             | denied 8/14/15<br>(Pigott, J.)                        |
| People v DJ             | 3d Dept: 124 AD3d 1062 (Sullivan)                                                       | denied 8/10/15<br>(Pigott, J.)                        |
| People v Dorfeuille     | 3d Dept: 127 AD3d 1414 (St. Lawrence)                                                   | denied 8/10/15<br>(Rivera, J.)                        |
| People v Dukes          | 4th Dept: 122 AD3d 1370 (Yates)                                                         | denied 8/10/15<br>(Pigott, J.)                        |
| People v Duryee         | 4th Dept: 126 AD3d 1401 (Monroe)                                                        | denied 8/14/15<br>(Rivera, J.)                        |
| People v Edens          | 1st Dept: 128 AD3d 528 (NY)                                                             | denied 8/10/15<br>(Pigott, J.)                        |
| People v Eight-Ball     | 4th Dept: 129 AD3d 1515 (Monroe)                                                        | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 1)      |
| People v Eight-Ball     | 4th Dept: 129 AD3d 1515 (Monroe)                                                        | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 2)      |
| People v Eleby          | 2d Dept: 128 AD3d 849 (Kings)                                                           | denied 8/28/15<br>(Pigott, J.)                        |
| People v Elliot         | 2d Dept: 127 AD3d 779 (Kings)                                                           | denied 8/4/15<br>(Stein, J.)                          |
| People v Evans          | 2d Dept: 127 AD3d 989 (Kings)                                                           | denied 8/10/15<br>(Rivera, J.)                        |
| People v Fagen          | 2d Dept: 127 AD3d 990 (Nassau)                                                          | denied 8/11/15<br>(Pigott, J.)                        |

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| People v Feliciano           | 2d Dept: 127 AD3d 1228 (Queens)                         | denied 8/13/15<br>(Lippman, Ch. J.)                      |
| People v Fencerilla          | 1st Dept: 128 AD3d 601 (NY)                             | denied 8/10/15<br>(Pigott, J.)                           |
| People v Fontanetta          | 1st Dept: 128 AD3d 462 (NY)                             | denied 8/14/15<br>(Read, J.)                             |
| People v Foskey              | 1st Dept: 123 AD3d 630 (Bronx)                          | denied 8/10/15<br>(Rivera, J.)                           |
| People v Garcia<br>(Antonio) | App Div, 2d Dept: 2015 NY Slip Op<br>72534(U) (Queens)  | dismissed 8/12/15<br>(Stein, J.)                         |
| People v Garcia (Carlos)     | 2d Dept: 129 AD3d 988 (Suffolk)                         | denied 8/12/15<br>(Stein, J.)                            |
| People v Garcia (Nancy)      | 1st Dept: 129 AD3d 453 (NY)                             | denied 8/11/15<br>(Pigott, J.)                           |
| People v Gelin               | 2d Dept: 128 AD3d 717 (Westchester)                     | denied 8/4/15<br>(Stein, J.)                             |
| People v Goelz               | 2d Dept: 126 AD3d 724 (Suffolk)                         | denied 8/10/15<br>(Rivera, J.)                           |
| People v Golb                | 1st Dept: 126 AD3d 401 (NY)                             | denied 8/10/15<br>(Pigott, J.)                           |
| People v Gousse              | 2d Dept: 123 AD3d 848 (Nassau)                          | denied<br>reconsideration<br>8/3/15<br>(Lippman, Ch. J.) |
| People v Gratereaux          | App Div, 2d Dept: 2015 NY Slip Op<br>73135(U) (Suffolk) | dismissed 8/6/15<br>(Fahey, J.)                          |
| People v Guzman              | 1st Dept: 121 AD3d 414 (NY)                             | denied 8/10/15<br>(Rivera, J.)                           |
| People v Hailey              | 4th Dept: 128 AD3d 1415 (Erie)                          | denied 8/10/15<br>(Rivera, J.)                           |
| People v Hall                | 2d Dept: 124 AD3d 795 (Suffolk)                         | denied 8/10/15<br>(Rivera, J.)                           |
| People v Haney               | 2d Dept: 126 AD3d 724 (Kings)                           | denied 8/10/15<br>(Rivera, J.)                           |
| People v Hare                | 3d Dept: 124 AD3d 1148 (Saratoga)                       | denied 8/14/15<br>(Rivera, J.)                           |
| People v Harris<br>(Anthony) | 4th Dept: 125 AD3d 1506 (Orleans)                       | denied 8/10/15<br>(Rivera, J.)                           |
| People v Harris (John)       | App Div, 4th Dept, 5/27/15 (Erie)                       | dismissed 8/21/15<br>(Lippman, Ch. J.)                   |
| People v Harris (Kevin)      | 4th Dept: 117 AD3d 1468 (Ontario)                       | denied 8/10/15<br>(Rivera, J.)                           |
| People v Harris (Robert)     | App Div, 1st Dept: 2015 NY Slip Op<br>73738(U) (Bronx)  | dismissed 8/4/15<br>(Stein, J.)                          |
| People v Harrison<br>(Abdul) | 1st Dept: 129 AD3d 540 (NY)                             | denied 8/18/15<br>(Lippman, Ch. J.)                      |
| People v Harrison<br>(Jamie) | 4th Dept: 128 AD3d 1410 (Oneida)                        | denied 8/10/15<br>(Pigott, J.)                           |
| People v Harvey              | App Div, 2d Dept: 2015 NY Slip Op<br>65316(U) (Queens)  | dismissed 8/28/15<br>(Pigott, J.)                        |

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| People v Haydock                                 | County Ct, 12/17/14 (Schenectady)                                       | denied 8/10/15<br>(Rivera, J.)                            |
| People v Haywood                                 | 1st Dept: 128 AD3d 560 (NY)                                             | denied 8/10/15<br>(Rivera, J.)                            |
| People v Henry                                   | 3d Dept: 129 AD3d 1334 (Ulster)                                         | denied 8/14/15<br>(Pigott, J.)                            |
| People v Hernandez<br>(Jonathan)                 | 1st Dept: 120 AD3d 1141 (NY)                                            | denied 8/10/15<br>(Rivera, J.)                            |
| People v Hernandez<br>(Rodolfo)                  | 2d Dept: 127 AD3d 991 (Richmond)                                        | granted 8/14/15<br>(Pigott, J.)                           |
| People v Hicks (Josh)                            | 4th Dept: 125 AD3d 1330 (Erie)                                          | denied 8/10/15<br>(Rivera, J.)                            |
| People v Hicks (Wayne)                           | 3d Dept: 128 AD3d 1221 (Broome)                                         | denied 8/14/15<br>(Pigott, J.)                            |
| People v Hill                                    | 4th Dept: 128 AD3d 1479 (Monroe)                                        | denied 8/7/15<br>(Lippman, Ch. J.)                        |
| People v Hodge                                   | 1st Dept: 125 AD3d 443 (NY)                                             | denied 8/26/15<br>(Abdus-Salaam,<br>J.)                   |
| People v Hoskins                                 | County Ct, 4/27/15 (Erie)                                               | denied 8/10/15<br>(Abdus-Salaam,<br>J.)                   |
| People v Hunter Sports<br>Shooting Grounds, Inc. | App Term, 2d Dept, 9th & 10th Jud Dists:<br>47 Misc 3d 139(A) (Suffolk) | denied 8/14/15<br>(Read, J.)                              |
| People v Ike                                     | 3d Dept: 128 AD3d 1275 (Ulster)                                         | denied 8/17/15<br>(Lippman, Ch. J.)                       |
| People v Ingram                                  | 1st Dept: 125 AD3d 558 (Bronx)                                          | granted 8/14/15<br>(Read, J.)                             |
| People v Irvin                                   | 4th Dept: 111 AD3d 1294 (Cattaraugus)                                   | denied<br>reconsideration<br>8/10/15<br>(Lippman, Ch. J.) |
| People v Jackson                                 | 3d Dept: 128 AD3d 1279 (Warren)                                         | denied 8/28/15<br>(Fahey, J.)                             |
| People v Jagota (Parveen)                        | 2d Dept: 128 AD3d 1091 (Rockland)                                       | denied 8/28/15<br>(Fahey, J.)                             |
| People v Jagota (Rajani)                         | 2d Dept: 128 AD3d 1092 (Rockland)                                       | denied 8/28/15<br>(Fahey, J.)                             |
| People v Jakubek                                 | 1st Dept: 128 AD3d 462 (NY)                                             | denied 8/14/15<br>(Read, J.)                              |
| People v Jamison                                 | App Div, 1st Dept: 2014 NY Slip Op<br>93698(U) (NY)                     | denied 8/14/15<br>(Rivera, J.)                            |
| People v Johnson<br>(Darrin)                     | App Div, 2d Dept: 2015 NY Slip Op<br>62804(U) (Kings)                   | denied<br>reconsideration<br>8/21/15<br>(Lippman, Ch. J.) |
| People v Johnson (David)                         | County Ct, 5/8/15 (Erie)                                                | denied 8/20/15<br>(Stein, J.)                             |
| People v Johnson (Jason)                         | 1st Dept: 117 AD3d 637 (NY)                                             | denied 8/10/15<br>(Rivera, J.)                            |
| People v Johnson<br>(Kevin)                      | App Div, 4th Dept: 2015 NY Slip Op<br>65837(U) (Monroe)                 | denied 8/10/15<br>(Rivera, J.)                            |

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| People v Johnson (Todd)      | County Ct, 4/30/15 (Monroe)                           | denied 8/17/15<br>(Read, J.)                         |
| People v Jones (Daniel)      | 4th Dept: 117 AD3d 1499 (Erie)                        | denied<br>reconsideration<br>8/14/15<br>(Rivera, J.) |
| People v Jones (Donnie)      | 1st Dept: 129 AD3d 477 (NY)                           | denied 8/31/15<br>(Fahey, J.)                        |
| People v Jones (Earl)        | 1st Dept: 127 AD3d 517 (NY)                           | granted 8/10/15<br>(Lippman, Ch. J.)                 |
| People v Jones<br>(Keymani)  | 1st Dept: 128 AD3d 596 (NY)                           | denied 8/28/15<br>(Fahey, J.)                        |
| People v Juliano             | 4th Dept: 128 AD3d 1521 (Herkimer)                    | denied 8/18/15<br>(Stein, J.)                        |
| People v June                | 4th Dept: 128 AD3d 1353 (Erie)                        | denied 8/10/15<br>(Pigott, J.)                       |
| People v Keeley              | 1st Dept: 128 AD3d 451 (NY)                           | denied 8/3/15<br>(Lippman, Ch. J.)                   |
| People v Keitt               | 1st Dept: 127 AD3d 656 (NY)                           | denied 8/10/15<br>(Rivera, J.)                       |
| People v King                | App Div, 4th Dept: 2015 NY Slip Op<br>73813(U) (Erie) | denied 8/20/15<br>(Stein, J.)                        |
| People v Labaff              | 3d Dept: 127 AD3d 1471 (St. Lawrence)                 | denied 8/4/15<br>(Lippman, Ch. J.)                   |
| People v Lebron              | 2d Dept: 128 AD3d 851 (Queens)                        | denied 8/3/15<br>(Lippman, Ch. J.)                   |
| People v Leighton            | 4th Dept: 129 AD3d 1515 (Niagara)                     | denied 8/12/15<br>(Stein, J.)                        |
| People v Leon                | 2d Dept: 129 AD3d 867 (Kings)                         | denied 8/14/15<br>(Read, J.)                         |
| People v Lewis<br>(Chevelle) | 4th Dept: 124 AD3d 1389 (Erie)                        | denied 8/10/15<br>(Rivera, J.)                       |
| People v Lewis<br>(Raymond)  | 1st Dept: 127 AD3d 569 (NY)                           | denied 8/14/15<br>(Rivera, J.)                       |
| People v Lindsey             | 1st Dept: 124 AD3d 511 (NY)                           | denied 8/10/15<br>(Rivera, J.)                       |
| People v Lizaldo             | 1st Dept: 124 AD3d 432 (Bronx)                        | denied 8/10/15<br>(Rivera, J.)                       |
| People v Lovenia V.          | 1st Dept: 128 AD3d 537 (Bronx)                        | denied 8/5/15<br>(Read, J.)                          |
| People v Lowe                | 2d Dept: 129 AD3d 868 (Kings)                         | denied 8/28/15<br>(Pigott, J.)                       |
| People v Luckerson           | 1st Dept: 128 AD3d 522 (NY)                           | denied 8/18/15<br>(Stein, J.)                        |
| People v Lyons               | 2d Dept: 113 AD3d 797 (Queens)                        | denied<br>reconsideration<br>8/14/15<br>(Rivera, J.) |
| People v Manchester          | 3d Dept: 123 AD3d 1285 (Otsego)                       | denied 8/10/15<br>(Rivera, J.)                       |
| People v Marks               | 2d Dept: 128 AD3d 852 (Kings)                         | denied 8/10/15<br>(Rivera, J.)                       |

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| People v Martin                     | 3d Dept: 125 AD3d 1054 (Washington)                 | denied 8/26/15<br>(Abdus-Salaam, J.)                      |
| People v McCorkle                   | App Div, 1st Dept: 2015 NY Slip Op 65496(U) (Bronx) | dismissed 8/10/15<br>(Pigott, J.)                         |
| People v McCormack                  | 1st Dept: 127 AD3d 591 (NY)                         | denied 8/10/15<br>(Rivera, J.)                            |
| People v McFadden                   | 3d Dept: 127 AD3d 1340 (Sullivan)                   | denied 8/14/15<br>(Rivera, J.)                            |
| People v McKnight<br>(Steven)       | 4th Dept: 129 AD3d 1459 (Genesee)                   | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 1)          |
| People v McKnight<br>(Steven)       | 4th Dept: 129 AD3d 1461 (Genesee)                   | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 2)          |
| People v McNight<br>(Steven)        | 4th Dept: 129 AD3d 1459 (Genesee)                   | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 1)          |
| People v McNight<br>(Steven)        | 4th Dept: 129 AD3d 1461 (Genesee)                   | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 2)          |
| People v Mendez<br>(Rafael)         | App Div, 1st Dept: 2015 NY Slip Op 62548(U) (Bronx) | denied 8/26/15<br>(Abdus-Salaam, J.)                      |
| People v Mendez<br>(Ruben)          | App Div, 1st Dept: 2015 NY Slip Op 62548(U) (Bronx) | denied 8/26/15<br>(Abdus-Salaam, J.)                      |
| People v Mike                       | 4th Dept: 124 AD3d 1325 (Onondaga)                  | denied 8/10/15<br>(Rivera, J.)                            |
| People v Mitchell<br>(James)        | 2d Dept: 128 AD3d 855 (Queens)                      | denied 8/4/15<br>(Stein, J.)                              |
| People v Mitchell<br>(Mannix)       | 4th Dept: 128 AD3d 1392 (Monroe)                    | denied 8/10/15<br>(Pigott, J.)                            |
| People v Molina                     | 1st Dept: 129 AD3d 501 (NY)                         | denied 8/28/15<br>(Fahey, J.)                             |
| People v Morgan                     | 2d Dept: 125 AD3d 791 (Kings)                       | denied 8/10/15<br>(Rivera, J.)                            |
| People v Morris                     | 4th Dept: 126 AD3d 1370 (Jefferson)                 | denied 8/14/15<br>(Rivera, J.)                            |
| People v Morrison                   | 3d Dept: 127 AD3d 1341 (Albany)                     | denied 8/10/15<br>(Rivera, J.)                            |
| People v Nelson (Brent)             | 4th Dept: 125 AD3d 1477 (Onondaga)                  | denied 8/10/15<br>(Rivera, J.)                            |
| People v Nelson<br>(Nakwan)         | App Div, 2d Dept: 2015 NY Slip Op 60539(U) (Kings)  | denied<br>reconsideration<br>8/17/15<br>(Lippman, Ch. J.) |
| People v Nicholson<br>(Christopher) | App Div, 4th Dept, 3/1/12 (Monroe)                  | dismissed 8/26/15<br>(Abdus-Salaam, J.)                   |
| People v Nicholson<br>(Christopher) | App Div, 4th Dept, 5/17/12 (Monroe)                 | dismissed 8/26/15<br>(Abdus-Salaam, J.)                   |



## MEMORANDA

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|                                     |                                                                            |                                                      |
|-------------------------------------|----------------------------------------------------------------------------|------------------------------------------------------|
| People v Nicholson<br>(Christopher) | App Div, 4th Dept, 9/6/12 (Monroe)                                         | dismissed 8/26/15<br>(Abdus-Salaam,<br>J.)           |
| People v Nicholson<br>(Christopher) | App Div, 4th Dept, 5/29/15 (Monroe)                                        | dismissed 8/26/15<br>(Abdus-Salaam,<br>J.)           |
| People v Odle                       | 4th Dept: 122 AD3d 1326 (Jefferson)                                        | denied 8/10/15<br>(Pigott, J.)                       |
| People v Oglesby                    | 2d Dept: 121 AD3d 818 (Kings)                                              | denied 8/10/15<br>(Rivera, J.)                       |
| People v Olsen                      | 3d Dept: 124 AD3d 1084 (Washington)                                        | denied 8/26/15<br>(Abdus-Salaam,<br>J.)              |
| People v Ozorio                     | 2d Dept: 129 AD3d 868 (Kings)                                              | denied 8/4/15<br>(Stein, J.)                         |
| People v Palmer                     | 2d Dept: 125 AD3d 793 (Richmond)                                           | denied 8/14/15<br>(Rivera, J.)                       |
| People v Paris                      | App Div, 1st Dept: 2014 NY Slip Op<br>86014(U) (NY)                        | denied<br>reconsideration<br>8/3/15 (Fahey, J.)      |
| People v Parker                     | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 47 Misc 3d 151(A) (Kings) | denied 8/18/15<br>(Stein, J.)                        |
| People v Parrilla                   | 1st Dept: 112 AD3d 517 (NY)                                                | granted 8/17/15<br>(Read, J.)                        |
| People v Pelosi                     | 2d Dept: 128 AD3d 733 (Suffolk)                                            | denied 8/25/15<br>(Stein, J.)                        |
| People v Pena                       | 1st Dept: 129 AD3d 600 (Bronx)                                             | denied 8/17/15<br>(Lippman, Ch. J.)                  |
| People v Perkins                    | 3d Dept: 124 AD3d 1062 (Sullivan)                                          | denied 8/10/15<br>(Pigott, J.)                       |
| People v Petitbrun                  | 2d Dept: 123 AD3d 1057 (Queens)                                            | denied 8/10/15<br>(Rivera, J.)                       |
| People v Pettus                     | App Div, 1st Dept: 2015 NY Slip Op<br>70989(U) (NY)                        | dismissed 8/10/15<br>(Abdus-Salaam,<br>J.)           |
| People v Pickett                    | 3d Dept: 128 AD3d 1275 (Ulster)                                            | denied 8/17/15<br>(Lippman, Ch. J.)                  |
| People v Pinchupa                   | 2d Dept: 128 AD3d 1099 (Queens)                                            | denied 8/3/15<br>(Read, J.)                          |
| People v Poinvil                    | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 47 Misc 3d 79 (Kings)     | denied 8/10/15<br>(Rivera, J.)                       |
| People v Portes                     | 2d Dept: 125 AD3d 794 (Kings)                                              | denied 8/14/15<br>(Rivera, J.)                       |
| People v Prince                     | 2d Dept: 128 AD3d 987 (Kings)                                              | denied 8/28/15<br>(Fahey, J.)                        |
| People v Rahman                     | 1st Dept: 129 AD3d 553 (NY)                                                | denied 8/28/15<br>(Fahey, J.)                        |
| People v Ramos                      | 4th Dept: 124 AD3d 1286 (Erie)                                             | denied<br>reconsideration<br>8/10/15<br>(Pigott, J.) |

|                                 |                                                                            |                                                      |
|---------------------------------|----------------------------------------------------------------------------|------------------------------------------------------|
| People v Rawson                 | 4th Dept: 125 AD3d 1323 (Genesee)                                          | denied 8/26/15<br>(Abdus-Salaam, J.)                 |
| People v Reardon                | 2d Dept: 124 AD3d 681 (Richmond)                                           | denied 8/10/15<br>(Pigott, J.)                       |
| People v Reed                   | 2d Dept: 128 AD3d 734 (Suffolk)                                            | denied 8/10/15<br>(Rivera, J.)                       |
| People v Reitz                  | 4th Dept: 125 AD3d 1425 (Oswego)                                           | denied 8/10/15<br>(Rivera, J.)                       |
| People v Rhodes                 | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 47 Misc 3d 151(A) (Kings) | denied 8/18/15<br>(Stein, J.)                        |
| People v Ricco                  | App Div, 1st Dept: 2015 NY Slip Op<br>71749(U) (Bronx)                     | denied 8/17/15<br>(Read, J.)                         |
| People v Richardson             | App Div, 3d Dept: 2015 NY Slip Op<br>63273(U) (Rensselaer)                 | denied<br>reconsideration<br>8/26/15<br>(Pigott, J.) |
| People v Rico                   | App Div, 1st Dept: 2015 NY Slip Op<br>71749(U) (Bronx)                     | denied 8/17/15<br>(Read, J.)                         |
| People v Rivera                 | 2d Dept: 124 AD3d 917 (Kings)                                              | denied 8/10/15<br>(Rivera, J.)                       |
| People v Roberts                | App Div, 3d Dept: 2015 NY Slip Op<br>69030(U) (Albany)                     | denied 8/14/15<br>(Rivera, J.)                       |
| People v Robinson               | App Div, 1st Dept: 2015 NY Slip Op<br>75596(U) (Bronx)                     | dismissed 8/12/15<br>(Stein, J.)                     |
| People v Rodriguez<br>(Roberto) | App Div, 1st Dept: 2014 NY Slip Op<br>93723(U) (NY)                        | denied 8/10/15<br>(Rivera, J.)                       |
| People v Rodriguez<br>(Wilson)  | App Div, 1st Dept: 2015 NY Slip Op<br>63534(U) (Bronx)                     | dismissed 8/14/15<br>(Pigott, J.)                    |
| People v Rojas                  | 2d Dept: 129 AD3d 747 (Kings)                                              | denied 8/6/15<br>(Fahey, J.)                         |
| People v Romero                 | 1st Dept: 128 AD3d 604 (NY)                                                | denied 8/28/15<br>(Fahey, J.)                        |
| People v Romero-Flores          | 2d Dept: 128 AD3d 1102 (Suffolk)                                           | denied 8/10/15<br>(Rivera, J.)                       |
| People v Rosales                | App Div, 1st Dept: 2015 NY Slip Op<br>66392(U) (NY)                        | dismissed 8/17/15<br>(Lippman, Ch. J.)               |
| People v Rosario (Angel)        | App Div, 1st Dept: 2014 NY Slip Op<br>89532(U) (Bronx)                     | dismissed 8/3/15<br>(Read, J.)                       |
| People v Rosario<br>(Miguel)    | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 47 Misc 3d 141(A) (Kings) | denied 8/4/15<br>(Stein, J.)                         |
| People v Roseboro               | 2d Dept: 127 AD3d 998 (Kings)                                              | denied 8/10/15<br>(Rivera, J.)                       |
| People v Ross                   | 1st Dept: 123 AD3d 454 (NY)                                                | denied 8/10/15<br>(Rivera, J.)                       |
| People v Royster                | App Div, 3d Dept: 2015 NY Slip Op<br>74022(U) (Albany)                     | denied 8/6/15<br>(Fahey, J.)                         |
| People v Samo                   | 1st Dept: 124 AD3d 412 (Bronx)                                             | denied 8/26/15<br>(Abdus-Salaam, J.)                 |
| People v Sancho                 | 2d Dept: 124 AD3d 806 (Queens)                                             | denied 8/10/15<br>(Rivera, J.)                       |

## MEMORANDA

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|--------------------------|-----------------------------------------------------------------------------|-----------------------------------------------------------|
| People v Sanders         | 2d Dept: 118 AD3d 1029 (Richmond)                                           | denied 8/18/15<br>(Read, J.)                              |
| People v Sarantakis      | 2d Dept: 121 AD3d 1024 (Queens)                                             | denied 8/10/15<br>(Rivera, J.)                            |
| People v Sasson          | App Term, 1st Dept: 47 Misc 3d 147(A)<br>(NY)                               | denied 8/10/15<br>(Pigott, J.)                            |
| People v Saunders        | 3d Dept: 127 AD3d 1420 (Rensselaer)                                         | denied 8/10/15<br>(Rivera, J.)                            |
| People v Scott           | 4th Dept: 126 AD3d 1425 (Erie)                                              | denied<br>reconsideration<br>8/10/15<br>(Lippman, Ch. J.) |
| People v Seymore         | 1st Dept: 126 AD3d 635 (Bronx)                                              | denied 8/14/15<br>(Rivera, J.)                            |
| People v Siders          | 1st Dept: 123 AD3d 408 (NY)                                                 | denied 8/10/15<br>(Rivera, J.)                            |
| People v Simmons         | 4th Dept: 128 AD3d 1379 (Monroe)                                            | denied 8/10/15<br>(Pigott, J.)                            |
| People v Simon           | 1st Dept: 128 AD3d 433 (NY)                                                 | denied 8/10/15<br>(Rivera, J.)                            |
| People v Sims            | 4th Dept: 129 AD3d 1509 (Monroe)                                            | denied 8/28/15<br>(Pigott, J.)                            |
| People v Smith (Jamal)   | 3d Dept: 123 AD3d 1375 (Albany)                                             | denied 8/3/15<br>(Fahey, J.)                              |
| People v Smith (Kendal)  | 2d Dept: 127 AD3d 790 (Kings)                                               | denied 8/14/15<br>(Rivera, J.)                            |
| People v Smith (Michael) | 1st Dept: 126 AD3d 534 (NY)                                                 | denied<br>reconsideration<br>8/3/15<br>(Read, J.)         |
| People v Smith (Nancy)   | App Term, 2d Dept, 9th & 10th Jud Dists:<br>47 Misc 3d 153(A) (Westchester) | denied 8/4/15<br>(Stein, J.)                              |
| People v Smith (Terry)   | 2d Dept: 128 AD3d 864 (Suffolk)                                             | denied 8/6/15<br>(Fahey, J.)                              |
| People v Smooth          | 4th Dept: 117 AD3d 1468 (Ontario)                                           | denied 8/10/15<br>(Rivera, J.)                            |
| People v Smoove          | 4th Dept: 117 AD3d 1468 (Ontario)                                           | denied 8/10/15<br>(Rivera, J.)                            |
| People v Sorden          | 1st Dept: 128 AD3d 417 (NY)                                                 | denied 8/10/15<br>(Pigott, J.)                            |
| People v Sosa            | 1st Dept: 128 AD3d 443 (Bronx)                                              | denied <sup>1</sup> 8/18/15<br>(Read, J.)                 |
| People v Spencer         | 1st Dept: 128 AD3d 623 (Bronx)                                              | denied 8/4/15<br>(Stein, J.)                              |
| People v Spragion        | App Div, 2d Dept: 2015 NY Slip Op<br>71829(U) (Kings)                       | dismissed 8/10/15<br>(Pigott, J.)                         |
| People v Stewartson      | 1st Dept: 127 AD3d 646 (NY)                                                 | denied 8/4/15<br>(Stein, J.)                              |

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1. Denied, with leave to renew within 30 days after the Court of Appeals renders decisions in *People v Sanchez* (126 AD3d 482 [2015], *lv granted* 25 NY3d 1077 [2015]) and *People v Perez* (116 AD3d 511 [2014], *lv granted* 24 NY3d 1004 [2014]).

|                                |                                                             |                                                                |
|--------------------------------|-------------------------------------------------------------|----------------------------------------------------------------|
| People v Stover                | 3d Dept: 123 AD3d 1232 (Schenectady)                        | denied 8/10/15<br>(Rivera, J.)                                 |
| People v Sylver                | App Term, 1st Dept: 47 Misc 3d 150(A)<br>(NY)               | denied 8/3/15<br>(Fahey, J.)                                   |
| People v Sylvestre             | 2d Dept: 123 AD3d 743 (Kings)                               | denied 8/10/15<br>(Rivera, J.)                                 |
| People v Taylor                | 3d Dept: 126 AD3d 1120 (Ulster)                             | denied upon<br>reconsideration<br>8/21/15<br>(Lippman, Ch. J.) |
| People v Thompson<br>(Garnell) | 2d Dept: 127 AD3d 1242 (Kings)                              | denied 8/10/15<br>(Pigott, J.)                                 |
| People v Thompson<br>(Willis)  | 1st Dept: 128 AD3d 568 (Bronx)                              | denied 8/10/15<br>(Rivera, J.)                                 |
| People v Torres                | 4th Dept: 129 AD3d 1535 (Onondaga)                          | denied 8/28/15<br>(Pigott, J.)                                 |
| People v Trife                 | 3d Dept: 128 AD3d 1275 (Ulster)                             | denied 8/17/15<br>(Lippman, Ch. J.)                            |
| People v Vargas                | 1st Dept: 123 AD3d 638 (NY)                                 | denied 8/10/15<br>(Rivera, J.)                                 |
| People v Vasquez (Elias)       | App Term, 1st Dept: 47 Misc 3d 155(A)<br>(NY)               | denied <sup>2</sup> 8/28/15<br>(Fahey, J.)                     |
| People v Vasquez (Joel)        | 1st Dept: 129 AD3d 414 (NY)                                 | denied 8/14/15<br>(Read, J.)                                   |
| People v Vega                  | 1st Dept: 129 AD3d 474 (NY)                                 | denied 8/21/15<br>(Stein, J.)                                  |
| People v Villafane             | 2d Dept: 129 AD3d 748 (Suffolk)                             | denied 8/14/15<br>(Read, J.)                                   |
| People v Walker                | 4th Dept: 128 AD3d 1499 (Monroe)                            | denied 8/11/15<br>(Pigott, J.)                                 |
| People v Wallace               | 2d Dept: 128 AD3d 866 (Dutchess)                            | denied 8/6/15<br>(Fahey, J.)                                   |
| People v Ward (Ricky)          | 2d Dept: 124 AD3d 809 (Nassau)                              | denied 8/10/15<br>(Rivera, J.)                                 |
| People v Ward (Tyrell)         | 1st Dept: 129 AD3d 492 (NY)                                 | denied 8/18/15<br>(Stein, J.)                                  |
| People v Wares                 | 3d Dept: 124 AD3d 1079 (Ulster)                             | denied<br>reconsideration<br>8/6/15<br>(Fahey, J.)             |
| People v Washington            | App Div, 1st Dept: 2015 NY Slip Op<br>69610(U) (NY)         | dismissed 8/17/15<br>(Lippman, Ch. J.)                         |
| People v Watkins               | 1st Dept: 128 AD3d 503 (NY)                                 | denied 8/13/15<br>(Lippman, Ch. J.)                            |
| People v Watson                | App Div, 2d Dept: 2014 NY Slip Op<br>78484(U) (Westchester) | denied<br>reconsideration<br>8/7/15<br>(Lippman, Ch. J.)       |

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2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Afilal* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [2014], *lv granted* 24 NY3d 1218 [2015]).

## MEMORANDA

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|                                 |                                                             |                                                  |
|---------------------------------|-------------------------------------------------------------|--------------------------------------------------|
| People v Williams<br>(Derek)    | 4th Dept: 125 AD3d 1300 (Erie)                              | denied 8/10/15<br>(Rivera, J.)                   |
| People v Williams (Gary)        | 2d Dept: 129 AD3d 1000 (Suffolk)                            | denied 8/28/15<br>(Fahey, J.)                    |
| People v Williams (Isiah)       | App Div, 4th Dept: 2015 NY Slip Op<br>66668(U) (Monroe)     | dismissed 8/10/15<br>(Abdus-Salaam,<br>J.)       |
| People v Williams<br>(Melvin)   | 1st Dept: 128 AD3d 569 (Bronx)                              | denied 8/10/15<br>(Pigott, J.)                   |
| People v Williams<br>(Sheila)   | 2d Dept: 122 AD3d 781 (Putnam)                              | denied 8/10/15<br>(Rivera, J.)                   |
| People v Williamson             | App Div, 3d Dept: 2015 NY Slip Op<br>74020(U) (Schenectady) | dismissed 8/4/15<br>(Stein, J.)                  |
| People v Wisniewski<br>(Steven) | 4th Dept: 128 AD3d 1480 (Erie)                              | denied 8/3/15<br>(Read, J.)<br>(Appeal No. 1)    |
| People v Wisniewski<br>(Steven) | 4th Dept: 128 AD3d 1481 (Erie)                              | denied 8/3/15<br>(Read, J.)<br>(Appeal No. 2)    |
| People v Witt                   | 4th Dept: 129 AD3d 1449 (Monroe)                            | denied 8/28/15<br>(Pigott, J.)                   |
| People v Wright (Adam)          | App Div, 2d Dept: 2015 NY Slip Op<br>65427(U) (Kings)       | dismissed 8/28/15<br>(Fahey, J.)                 |
| People v Wright (Jason)         | 4th Dept: 129 AD3d 1515 (Monroe)                            | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 1) |
| People v Wright (Jason)         | 4th Dept: 129 AD3d 1515 (Monroe)                            | denied 8/28/15<br>(Pigott, J.)<br>(Appeal No. 2) |
| People v Yoneyama               | 1st Dept: 128 AD3d 616 (NY)                                 | denied 8/14/15<br>(Pigott, J.)                   |
| People v Zabawczuk              | 3d Dept: 128 AD3d 1267 (Montgomery)                         | denied 8/14/15<br>(Pigott, J.)                   |

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[38 NE3d 798, 17 NYS3d 56]

BRANIC INTERNATIONAL REALTY CORP., Appellant, v PHILLIP PITT,  
Respondent, et al., Respondents.

Decided September 1, 2015

## SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 6, 2015. The Appellate Division, upon remittitur from the Court of Appeals (op 24 NY3d 1005 [2014]), (1) reversed, on the law, so much of an order of the Appellate Term of the Supreme Court in the First Judicial Department (op 30 Misc 3d 29 [2010]) as had (a) reversed an

order of the Civil Court of the City of New York, New York County (Gerald Lebovits, J.; op 24 Misc 3d 940 [2009]), granting respondent's motion for summary judgment dismissing the petition and denying petitioner's motion for summary judgment on its claim for possession in a summary holdover proceeding; (b) denied respondent's motion; and (c) granted petitioner's motion; (2) vacated the order of the Appellate Term; and (3) dismissed the proceeding as moot. The Court of Appeals order remitting the matter to the Appellate Division had (1) reversed the earlier order of the Appellate Division (106 AD3d 178 [2013]) resolving the appeal from the Appellate Term, and (2) directed the Appellate Division to dismiss the proceeding solely on the ground of mootness. The Appellate Division, in its 2013 order, had (1) reversed, on the law, so much of the Appellate Term order as had reversed the Civil Court order, denied respondent's motion, and granted petitioner's motion; (2) granted respondent's motion; and (3) denied petitioner's motion. The following question was certified by the Appellate Division: "Was the order of this Court, entered upon remittitur from the Court of Appeals, properly made?"

Petitioner was the owner of a single room occupancy rent-stabilized hotel located in New York City. Respondent was referred to petitioner for housing by the New York City Human Resources Administration (HRA), with the HRA paying petitioner a public assistance shelter allowance. Petitioner commenced a licensee holdover proceeding after the HRA ceased making payments and respondent continued to reside in the hotel without paying. Respondent voluntarily moved out of the hotel while his appeal to the Appellate Division from the order of the Appellate Term was pending.

*Matter of Branick Intl., Realty Corp. v Pitt*, 124 AD3d 421, affirmed.

#### HEADNOTE

##### Appeal — Remittitur

In a holdover proceeding, the Appellate Division order, which, upon remittitur from the Court of Appeals, dismissed the proceeding as moot, was affirmed.

#### APPEARANCES OF COUNSEL

*Rosenberg Calica & Birney LLP*, Garden City (Ronald J. Rosenberg, Lesley Reardon and Judah Serfaty of counsel), for appellant.

*Jeanette Zelhof, MFY Legal Services Inc.*, New York City (Martha A. Weithman of counsel), for respondent.

## OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative (see *Branic Intl. Realty Corp. v Pitt*, 24 NY3d 1005, 1007 [2014], citing *Matter of Park E. Corp. v Whalen*, 43 NY2d 735, 736 [1977]).

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, STEIN and FAHEY; Judge ABDUS-SALAAM taking no part.

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ARIES FINANCIAL, LLC, Appellant-Respondent, v 12005 142<sup>ND</sup> STREET, LLC, et al., Respondents-Appellants, et al., Defendants.

Submitted June 1, 2015; decided September 1, 2015

Reported below, 127 AD3d 900.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of BENJAMIN JUSTIN BROWNLEE, Appellant, v ANTHONY J. ANNUCCI, Commissioner New York State Department of Corrections and Supervision, et al., Respondents.

Submitted June 15, 2015; decided September 1, 2015

Reported below, 2015 NY Slip Op 72971(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of JESSICA GRAHAM, Appellant, v CHARLES T. RAWLEY, Respondent.

Submitted July 27, 2015; decided September 1, 2015

Reported below, 2015 NY Slip Op 77848(U).

Motion for leave to appeal dismissed upon the ground that it does not lie. Motion for poor person relief dismissed as academic.

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In the Matter of KEVIN GRIFFIN, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, et al., Respondents.

Submitted June 22, 2015; decided September 1, 2015

Reported below, 2015 NY Slip Op 65193(U).

Motion for reargument of motion for leave to appeal denied [*see* 25 NY3d 1037 (2015)].

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In the Matter of JACK J. GRYNBERG et al., Respondents, v BP EXPLORATION OPERATING COMPANY LIMITED et al., Appellants.

Submitted June 8, 2015; decided September 1, 2015

Reported below, 127 AD3d 553.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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DAVID KASSEL, Appellant, v JAMES P. DONOHUE et al., Respondents, et al., Defendants.

Submitted June 15, 2015; decided September 1, 2015

Reported below, 127 AD3d 674.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of STEPHANIE LEWIS, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION et al., Respondents.

Decided September 1, 2015

Reported below, 126 AD3d 442.



Appeal, insofar as taken against respondents New York City Health and Hospitals Corporation and Bellevue Hospital Center, dismissed, without costs, by the Court of Appeals, sua sponte, as untimely taken (*see* CPLR 5513 [a], [d]); appeal, insofar as taken against respondent New York State Division of Human Rights, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of MARTHA S. and Another, Children Alleged to be Neglected. GENESEE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; LINDA M.S., Appellant.

Submitted June 15, 2015; decided September 1, 2015

Reported below, 126 AD3d 1496.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from so much of the Family Court order as was entered on appellant's consent, dismissed upon the ground that, as to that portion of the Appellate Division order, appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied.

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In the Matter of J. EZRA MERKIN, Respondent, v RICHARD BORN et al., Appellants.

Submitted June 15, 2015; decided September 1, 2015

Reported below, 127 AD3d 576.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the Supreme Court order denying the motion to renew, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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RONALD PAYNE, Appellant, v CITY OF NEW ROCHELLE et al., Respondents, et al., Defendants.

Submitted June 8, 2015; decided September 1, 2015

Reported below, 2014 NY Slip Op 92192(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

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THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* THE NONHUMAN RIGHTS PROJECT, INC., on Behalf of TOMMY, Appellant, v PATRICK C. LAVERY, Individually and as an Officer of Circle L Trailer Sales, Inc., et al., Respondents.

Submitted March 23, 2015; decided September 1, 2015

Reported below, 124 AD3d 148.

Motion by the Center for the Study of The Great Ideas, Inc. for leave to appear *amicus curiae* on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge STEIN taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* THE NONHUMAN RIGHTS PROJECT, INC., on Behalf of TOMMY, Appellant, v PATRICK C. LAVERY, Individually and as an Officer of Circle L Trailer Sales, Inc., et al., Respondents.

Submitted May 4, 2015; decided September 1, 2015

Reported below, 124 AD3d 148.

Motion by Justin F. Marceau for leave to appear *amicus curiae* on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge STEIN taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* THE NONHUMAN RIGHTS PROJECT, INC., on Behalf of TOMMY, Appellant, v PATRICK C. LAVERY, Individually and as an Officer of Circle L Trailer Sales, Inc., et al., Respondents.

Submitted June 1, 2015; decided September 1, 2015

Reported below, 124 AD3d 148.

Motion by Laurence H. Tribe for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge STEIN taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. THE NONHUMAN RIGHTS PROJECT, INC., on Behalf of TOMMY, Appellant, v PATRICK C. LAVERY, Individually and as an Officer of Circle L Trailer Sales, Inc., et al., Respondents.

Submitted June 15, 2015; decided September 1, 2015

Reported below, 124 AD3d 148.

Motion by the Center for Constitutional Rights for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge STEIN taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. DARREN WILLIAMS, Appellant, v CHARLES KELLY, JR., Respondent.

Submitted June 15, 2015; decided September 1, 2015

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

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In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted June 15, 2015; decided September 1, 2015

Reported below, 2015 NY Slip Op 71405(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted June 22, 2015; decided September 1, 2015

Reported below, 2015 NY Slip Op 74577(U), 2015 NY Slip Op 74578(U), 2015 NY Slip Op 74579(U), 2015 NY Slip Op 74580(U), 2015 NY Slip Op 74581(U), 2015 NY Slip Op 74582(U), 2015 NY Slip Op 74584(U).

Motions for leave to appeal dismissed upon the ground that they do not lie. Motions for poor person relief dismissed as academic.

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RAFIA AHMED, Individually and as Executrix of NAFIS AHMED, Deceased, Appellant, v JOHN PANNONE, M.D., et al., Respondents, et al., Defendant.

Submitted August 3, 2015; decided September 3, 2015

Reported below, 116 AD3d 802.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 964 (2015)].

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SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted June 22, 2015; decided September 3, 2015

Reported below, 2015 NY Slip Op 74791(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of the Claim of RENE E. AUSSICKER, Respondent. PARK RIDE FLY USA, Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted July 13, 2015; decided September 3, 2015

Reported below, 128 AD3d 1264.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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MARY BEEBE et al., Appellants, v ST. JOSEPH'S HOSPITAL HEALTH CENTER, Defendant, and ASSOCIATES FOR WOMEN'S MEDICINE, PLLC, et al., Respondents.

Submitted July 6, 2015; decided September 3, 2015

Reported below, 121 AD3d 1536.

Motion for reargument of motion for leave to appeal denied  
[see 25 NY3d 1035 (2015)].

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INEZ BIELECKI, Appellant, v RICHARD BIELECKI, Respondent.

Submitted June 22, 2015; decided September 3, 2015

Motion for reargument of motion for leave to appeal denied  
[see 25 NY3d 1035 (2015)].

Judge FAHEY taking no part.

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CF HY LLC, Respondent, v HUDSON YARDS LLC et al., Defendants, and BARUCH SINGER, Appellant.

Submitted June 22, 2015; decided September 3, 2015

Reported below, 124 AD3d 490.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]). Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

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JEFFREY CHIARA, Respondent, v TOWN OF NEW CASTLE et al., Appellants.

Submitted July 20, 2015; decided September 3, 2015

Reported below, 126 AD3d 111.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of CITY OF LONG BEACH, Appellant, v SUN NLF LIMITED PARTNERSHIP, Respondent, and LOUIS BOMBART et al., Respondents.

Submitted July 13, 2015; decided September 3, 2015

Reported below, 124 AD3d 651, 654.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the motions for leave to appeal herein granted and the brief is accepted as filed.

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PATRICIA J. CURTO, Appellant, v MARK DIEHL et al., Respondents.

Submitted July 13, 2015; decided September 3, 2015

Reported below, 2015 NY Slip Op 73809(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

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DOROTHY M. FAISON, as Administratrix of the Estate of PERCY LEE GOGINS, JR., Deceased, Appellant, v TONYA LEWIS, Also Known as TONYA TAYLOR and Another, et al., Defendants, and BANK OF AMERICA, N.A., Respondent.

Submitted June 29, 2015; decided September 3, 2015

Reported below, 106 AD3d 1047.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 25 NY3d 220 (2015)].

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DOROTHY M. FAISON, as Administratrix of the Estate of PERCY LEE GOGINS, JR., Deceased, Appellant, v TONYA LEWIS, Also Known as TONYA TAYLOR and Another, et al., Defendants, and BANK OF AMERICA , N.A., Respondent.

Submitted July 13, 2015; decided September 3, 2015

Reported below, 106 AD3d 1047.

Motion by the New York State Land Title Association, Inc. for leave to appear amicus curiae on the motion for reargument herein granted and the brief is accepted as filed.

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WAYNE HABERMAN, Appellant, v JACK MEYER et al., Respondents.

Submitted July 6, 2015; decided September 3, 2015

Reported below, 120 AD3d 1301.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the April 2013 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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NORA IACONO, Appellant, v ANTHONY PILAVAS et al., Respondents.

Submitted July 20, 2015; decided September 3, 2015

Reported below, 125 AD3d 811.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 909 (2015)].

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PEGGY MORRIS, Appellant, v M.P. SANTINI, INC., et al., Respondents.

Submitted June 29, 2015; decided September 3, 2015

Reported below, 2015 NY Slip Op 64713(U).

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 907 (2015)].

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RURAL COMMUNITY COALITION, INC., et al., Appellants, v VILLAGE OF BLOOMINGBURG et al., Defendants, TOWN OF MAKATING et al., Appellants, and SHALOM LAMM et al., Respondents.

Submitted July 20, 2015; decided September 3, 2015

Reported below, 127 AD3d 1304.

Motions for reargument of motion for leave to appeal denied [see 25 NY3d 1063 (2015)].

Judge STEIN taking no part.

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ST. LAWRENCE FACTORY STORES, Appellant, v OGDENSBURG  
BRIDGE AND PORT AUTHORITY, Respondent.

Submitted June 29, 2015; decided September 3, 2015

Reported below, 121 AD3d 1226.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 25 NY3d 907 (2015)].

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74 ELDERT, LLC, Respondent, v SHARP REALTY, LLC, et al., De-  
fendants, and CIE SHARP, Appellant.

Submitted July 13, 2015; decided September 3, 2015

Reported below, 129 AD3d 821.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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BAXTER STREET CONDOMINIUM, Respondent, v LPS BAXTER  
HOLDING Co., LLC, Appellant. (And Two Other Actions.)

Submitted May 26, 2015; decided September 10, 2015

Reported below, 126 AD3d 417.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

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In the Matter of SHARON K. BLAND, Appellant, v GELLMAN,  
BRYDGES & SCHROFF et al., Respondents. WORKERS' COMPEN-  
SATION BOARD, Respondent. (Claim No. 1.)

In the Matter of SHARON K. BLAND, Appellant, v RONKO COM-  
MUNICATIONS et al., Respondents. WORKERS' COMPENSATION  
BOARD, Respondent. (Claim No. 2.)

Submitted June 15, 2015; decided September 10, 2015

Reported below, 127 AD3d 1436.



Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

Judge STEIN taking no part.

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ANNABELLE SARAH BOND, Respondent, v WARREN LICHTENSTEIN,  
Appellant.

Decided September 10, 2015

Reported below, 129 AD3d 535.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of EILEEN D'AMICO, Respondent, v CHRISTOPHER  
CORRADO, Appellant.

Submitted July 20, 2015; decided September 10, 2015

Reported below, 129 AD3d 718.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Family Court's June 2013 order awarding custody and visitation, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order sought to be appealed from does not finally determine a proceeding within the meaning of the Constitution.

---

ROBERT DAVIS, Appellant, v STATE OF NEW YORK, Respondent.

Decided September 10, 2015

Reported below, 129 AD3d 1353.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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GILBERTO DIAZ, Appellant, v NEW YORK STATE COMMISSION ON  
JUDICIAL CONDUCT, Respondent.

Submitted June 29, 2015; decided September 10, 2015

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain

this motion seeking leave to appeal from the letter dismissing the complaint (*see* NY Const, art VI, § 22; Judiciary Law § 44 [7]; CPLR 5602).

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WILLIE B. HODGE, Appellant, v COUNTY OF WESTCHESTER, Respondent.

Decided September 10, 2015

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

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In the Matter of ROBERT JONES, Appellant, v KEVIN HICKEY, as Assistant Attorney General of the State of New York, Respondent.

Decided September 10, 2015

Reported below, 126 AD3d 1247.

Appeal from the March 2015 Appellate Division order of affirmance dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of ROBERT JONES, Appellant, v KEVIN HICKEY, as Assistant Attorney General of the State of New York, Respondent.

Decided September 10, 2015

Reported below, 2015 NY Slip Op 74006(U).

Appeal from the May 2015 Appellate Division order denying leave to appeal to this Court dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

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CONSTANTINE KORELIS, Appellant, v CONRIV REALTY CORP. Respondent.

Decided September 10, 2015

Reported below, 2015 NY Slip Op 63159(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

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CARLA L. MURA, Now Known as CARLA L. PICCARRETO, Appellant, v DAVID JAMES MURA, Respondent. MARK CHAUVIN BEZINQUE et al., Respondents.

Submitted June 15, 2015; decided September 10, 2015

Reported below, 128 AD3d 1344.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

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QUINTIN A. NOWLIN, Appellant, v FREDERIKUS P. VANROON et al., Respondents.

Submitted June 29, 2015; decided September 10, 2015

Reported below, 2015 NY Slip Op 70324(U); 2014 NY Slip Op 91087(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EVERETT M. DURANT, Appellant.

Submitted August 31, 2015; decided September 10, 2015

Reported below, 112 AD3d 1366.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge FAHEY taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v  
RODOLFO HERNANDEZ, Appellant.

Submitted September 8, 2015; decided September 10, 2015

Reported below, 127 AD3d 991.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EARL  
JONES, Appellant.

Submitted August 31, 2015; decided September 10, 2015

Reported below, 127 AD3d 517.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELLIOT  
PARRILLA, Appellant.

Submitted September 8, 2015; decided September 10, 2015

Reported below, 112 AD3d 517.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRIS  
PRICE, Appellant.

Submitted August 31, 2015; decided September 10, 2015

Reported below, 127 AD3d 995.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES SMITH, Appellant.

Submitted September 8, 2015; decided September 10, 2015

Reported below, 122 AD3d 456.

Motion by New York State Association of Criminal Defense Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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TAMLA POPE, Appellant, v CITY OF NEW YORK et al., Respondents.

Decided September 10, 2015

Reported below, 2015 NY Slip Op 67539(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

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In the Matter of RENAISSANCE ECONOMIC DEVELOPMENT CORPORATION, Respondent, v JIN HUA LIN, Appellant.

Submitted June 29, 2015; decided September 10, 2015

Reported below, 126 AD3d 465.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of TAMMY ROBINSON, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted June 29, 2015; decided September 10, 2015

Reported below, 125 AD3d 1038; 2015 NY Slip Op 71918(U).

Motion, insofar as it seeks leave to appeal from the February 2015 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion, insofar as it seeks leave to appeal from the April 2015 Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

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HANS SCHMID, Appellant, v EILEEN KNAUER et al., Respondents.

Decided September 10, 2015

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

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In the Matter of STATE OF NEW YORK, Respondent, v DENNIS K., Appellant.

Submitted August 17, 2015; decided September 10, 2015

Reported below, 120 AD3d 694.

Motion to vacate this Court's July 14, 2015 preclusion order granted.

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In the Matter of EMMA TORRES.

EMMA TORRES, Appellant, v DARA FREED, as Executrix of BERNARD COHEN, Deceased, Respondent, and FIDELITY AND DEPOSIT COMPANY OF MARYLAND, Respondent. JOEL B. MAYER ESQ., Nonparty Respondent.

Submitted July 6, 2015; decided September 10, 2015

Reported below, 124 AD3d 525.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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UTICA MUTUAL INSURANCE COMPANY, as Subrogee of Harris Berenson et al., Appellant, v STYLE MANAGEMENT ASSOCIATES CORP. et al., Respondents, et al., Defendants.

Submitted August 24, 2015; decided September 10, 2015

Reported below, 125 AD3d 759.

Motion to expand the record denied.

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In the Matter of the Claim of SHERI H. WILNER, Respondent. PRIMARY STAGES COMPANY INC., Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted July 6, 2015; decided September 10, 2015

Reported below, 128 AD3d 1148.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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SCOTT YOUNG, Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted June 29, 2015; decided September 10, 2015

Motion for leave to appeal dismissed upon the ground that the April 15, 2015 letter sought to be appealed from is not a judgment or an order from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]; 5602).

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YULIYA ANGELOVA, Respondent, v VLADISLAV RUCHINSKY, Appellant.

Submitted August 10, 2015; decided September 17, 2015

Reported below, 126 AD3d 828.

Motion for reargument of motion for leave to appeal denied [*see* 25 NY3d 911 (2015)].

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PHILIP CAPRIO et al., Respondents, v NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE et al., Appellants, et al., Defendant.

Submitted August 17, 2015; decided September 17, 2015

Reported below, 117 AD3d 168.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 25 NY3d 744 (2015)].

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STEVEN CARRINGTON, Appellant, v PH SUPERINTENDENT MOORE,  
as Hearing Officer, et al., Respondents.

Submitted June 15, 2015; decided September 17, 2015

Reported below, 125 AD3d 1069.

Motion to vacate this Court's May 18, 2015 dismissal order granted [*see* 25 NY3d 1068 (2015)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

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REGINA FARAGE, Appellant, v LANCE EHRENBURG, ESQ., Respondent.

Submitted July 27, 2015; decided September 17, 2015

Reported below, 2015 NY Slip Op 69064(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of JACQUELIN M., Appellant, v JOSEPH M., Respondent.

Submitted July 27, 2015; decided September 17, 2015

Reported below, 124 AD3d 534.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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LAW OFFICES OF J. STEWART MOORE, P.C., Appellant, v SHERMAN TRENT et al., Respondents, et al., Defendants.

Submitted July 6, 2015; decided September 17, 2015

Reported below, 2015 NY Slip Op 73229(U).



Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of the Claim of LING CHEN, Appellant, v REUTERS AMERICA HOLDINGS, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 10, 2015; decided September 17, 2015

Reported below, 2015 NY Slip Op 78116(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALMA CALDAVADO, Also Known as ALMA CALDERARO, Appellant.

Submitted September 14, 2015; decided September 17, 2015

Reported below, 116 AD3d 877.

Motion by National Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALMA CALDAVADO, Also Known as ALMA CALDERARO, Appellant.

Submitted September 14, 2015; decided September 17, 2015

Reported below, 116 AD3d 877.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. NOUCHIE VEL-  
LON, Appellant, v DALE ARTUS, Respondent.

Submitted August 10, 2015; decided September 17, 2015

Motion for reargument of motion for leave to appeal denied  
[see 25 NY3d 1186 (2015)].

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ERIC T. SCHNEIDERMAN et al., Respondents, v MUJAHID PERVEZ,  
et al., Defendants, and NADIA PERVEZ et al., Appellants.

Submitted July 6, 2015; decided September 17, 2015

Reported below, 124 AD3d 470.

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine  
the action within the meaning of the Constitution and is not a  
nonfinal order of the type within the meaning of CPLR 5602  
(a) (2).

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In the Matter of SIERRA CLUB et al., Appellants, v VILLAGE OF  
PAINTED POST et al., Respondents.

Submitted September 14, 2015; decided September 17, 2015

Reported below, 115 AD3d 1310.

Motion by Railroads of New York for leave to file a brief ami-  
cus curiae on the appeal herein granted and the proposed brief  
is accepted as filed. Three copies of the brief must be served  
and an original and nine copies filed within seven days.

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In the Matter of SIERRA CLUB et al., Appellants, v VILLAGE OF  
PAINTED POST et al., Respondents.

Submitted September 14, 2015; decided September 17, 2015

Reported below, 115 AD3d 1310.

Motion by Gas Free Seneca et al. for leave to file a brief  
amici curiae on the appeal herein granted and the proposed  
brief is accepted as filed. Three copies of the brief must be  
served and an original and nine copies filed within seven days.

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In the Matter of SIERRA CLUB et al., Appellants, v VILLAGE OF PAINTED POST et al., Respondents.

Submitted September 14, 2015; decided September 17, 2015

Reported below, 115 AD3d 1310.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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In the Matter of EAMON TEAGUE, an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted August 31, 2015; decided September 17, 2015

Reported below, 131 AD3d 268.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

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In the Matter of THE TOROK TRUST, Respondent, v TOWN BOARD OF TOWN OF ALEXANDRIA et al., Respondents. ALEXANDRIA CENTRAL SCHOOL DISTRICT, Appellant.

Submitted July 27, 2015; decided September 17, 2015

Reported below, 128 AD3d 97.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 1098 (2015)].

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CRP/EXTELL PARCEL I, L.P., Respondent, v ANDREW M. CUOMO et al., Respondents, and 3TO4, LLC, et al., Appellants.

Submitted August 17, 2015; decided September 22, 2015

Reported below, 124 AD3d 560.

Motion to enlarge the record granted.

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SHURA GLINSKAYA, Appellant, v ALLEN ZELMAN, as Administrator of the Estate of JOSEPH BERGER, Deceased, Respondent, et al., Defendants.

Submitted July 6, 2015; decided September 22, 2015

Reported below, 128 AD3d 771.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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MICHAEL WESLEY HARRIS, Appellant, v THE UNION THEOLOGICAL SEMINARY IN THE CITY OF NEW YORK, Respondent.

Submitted August 10, 2015; decided September 22, 2015

Reported below, 127 AD3d 431.

Motion for reconsideration of this Court's June 25, 2015 dismissal order denied [*see* 25 NY3d 1182 (2015)].

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LITTLETON CONSTRUCTION LTD., Appellant, v HUBER CONSTRUCTION, INC., et al., Respondents.

Submitted August 17, 2015; decided September 22, 2015

Reported below, 125 AD3d 1404.

Motion to enlarge the record denied.

Judge FAHEY taking no part.

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In the Matter of the Estate of MAGDA CORDELL MCHALE, Deceased. DENISE KELLEHER et al., Respondents; EVAN MCHALE, Appellant. CHARITABLE BENEFICIARIES, Interested Party-Respondent.

Submitted July 27, 2015; decided September 22, 2015

Reported below, 129 AD3d 1557.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of JERALD MILLER, Appellant, v NEW YORK STATE  
DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted August 17, 2015; decided September 22, 2015

Reported below, 129 AD3d 973.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of TEDDY ISRAEL MOORE, Admitted as ISRAEL  
TEDDY MOORE, a Disbarred Attorney, Appellant. GRIEV-  
ANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIR-  
TEENTH JUDICIAL DISTRICTS, Respondent.

Submitted August 10, 2015; decided September 22, 2015

Reported below, 2015 NY Slip Op 79333(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of RENE MUNOZ, Appellant, v ANGELA LEWIS,  
Respondent.

Decided September 22, 2015

Reported below, 2015 NY Slip Op 73276(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLEVE-  
LAND LOVETT, Appellant.

Submitted August 10, 2015; decided September 22, 2015

Reported below, 116 AD3d 428.

Motion for reargument denied [*see* 25 NY3d 1088 (2015)].

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PII SAM, LLC, Respondent, v VINCENT MAZZURCO, Appellant, et al., Defendants. SUSAN YEH, Nonparty-Respondent.

Submitted August 17, 2015; decided September 22, 2015

Reported below, 121 AD3d 1063.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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PS 157 LOFTS LLC et al., Respondents, v KIMBERLY AUSTIN et al., Appellants.

Submitted August 10, 2015; decided September 22, 2015

Reported below, 42 Misc 3d 132(A), 2013 NY Slip Op 52241(U).

Motion for reargument denied [*see* 25 NY3d 1186 (2015)].

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In the Matter of the Claim of PAUL SCHWENGER, Appellant, v NYU SCHOOL OF MEDICINE et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted June 29, 2015; decided September 22, 2015

Reported below, 126 AD3d 1056.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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KENNETH P. SILVERMAN, Appellant, v DAILY NEWS, L.P., et al., Respondents, et al., Defendants.

Decided September 22, 2015

Reported below, 129 AD3d 1054.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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WELLS FARGO BANK, N.A., Respondent, v GERSHON KRAUSS et al., Defendants, and BAC HOME LOANS SERVICING, L.P., Formerly Known as COUNTRYWIDE HOME LOANS SERVICING, L.P., Appellant.

Submitted July 13, 2015; decided September 22, 2015

Reported below, 128 AD3d 813.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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YAN PING LIANG, Appellant, v WEI XUAN GAO et al., Respondents.

Submitted August 17, 2015; decided September 22, 2015

Reported below, 118 AD3d 696.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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[39 NE3d 473, 17 NYS3d 672]

SHIBY ABRAHAM, as Administrator of the Estate of SHIBU ABRAHAM, Deceased, Appellant, v CHELSEA PIERS MANAGEMENT, INC., Respondent.

Decided September 17, 2015

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 7, 2014. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Milton A. Tingling, J.), which had denied defendant's motion for summary judgment dismissing the complaint; and (2) granted the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

Plaintiff's decedent drowned in the Hudson River, just off Chelsea Piers, after trespassing onto one of the piers by scaling a locked gate while intoxicated. The decedent was part of a group of men who had been escorted off the piers earlier that night by two of defendant's employees, one of whom relocked the gate after letting the group out. An employee later received a call reporting that someone was in the water, and ran over from the command center with a life ring, but it was too late.

The Appellate Division concluded that, under those circumstances, the decedent's actions were not foreseeable, and there was no basis for holding defendant liable for the decedent's demise.

*Abraham v Chelsea Piers Mgt., Inc.*, 121 AD3d 439, affirmed.

#### HEADNOTE

##### **Negligence — Foreseeability — Trespasser Drowning at Pier Not Foreseeable**

In an action arising out of plaintiff's decedent's death from drowning in a river after trespassing onto one of defendant's piers by scaling a locked gate while intoxicated, the Appellate Division properly concluded, under the circumstances presented, that the decedent's actions were not foreseeable.

#### APPEARANCES OF COUNSEL

*Herman Kaufman*, Rye, and *Weitz & Luxenberg, P.C.*, New York City (*Lawrence B. Goldhirsch* of counsel), for appellant.

*Rivkin Radler LLP*, Uniondale (*Cheryl F. Korman* of counsel), for respondent.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The Appellate Division properly concluded, under the circumstances presented here, that the decedent's actions were not foreseeable.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY; Judge RIVERA taking no part.

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#### **APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT**

(September 1, 2015 through September 30, 2015)

|                               |                        |        |
|-------------------------------|------------------------|--------|
| Sanders, Matter of, v Annucci | 3d Dept: 128 AD3d 1156 | 9/2/15 |
|-------------------------------|------------------------|--------|

#### **APPEALS WITHDRAWN AND DISCONTINUED**

(September 1, 2015 through September 30, 2015)

|                                |                        |        |
|--------------------------------|------------------------|--------|
| Elmaliach v Bank of China Ltd. | 1st Dept: 110 AD3d 192 | 9/9/15 |
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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(September 1, 2015 through September 30, 2015)

|                    |                                                                                        |                                                             |
|--------------------|----------------------------------------------------------------------------------------|-------------------------------------------------------------|
| People v AK        | 3d Dept: 129 AD3d 1385 (Clinton)                                                       | denied 9/21/15<br>(Pigott, J.)                              |
| People v Allard    | 2d Dept: 128 AD3d 1081 (Kings)                                                         | granted 9/3/15<br>(Fahey, J.)                               |
| People v Anderson  | 3d Dept: 129 AD3d 1385 (Clinton)                                                       | denied 9/21/15<br>(Pigott, J.)                              |
| People v Archie    | 4th Dept: 118 AD3d 1292 (Onondaga)                                                     | denied 9/10/15<br>(Rivera, J.)                              |
| People v Arrindell | 3d Dept: 124 AD3d 1135 (Ulster)                                                        | denied 9/11/15<br>(Rivera, J.)                              |
| People v Banchs    | 1st Dept: 129 AD3d 466 (NY)                                                            | denied 9/13/15<br>(Stein, J.)                               |
| People v Barber    | 4th Dept: 124 AD3d 1312 (Monroe)                                                       | dismissed 9/11/15<br>(Rivera, J.)                           |
| People v Baron     | 2d Dept: 126 AD3d 992 (Rockland)                                                       | denied 9/11/15<br>(Rivera, J.)                              |
| People v Beltran   | App Div, 2d Dept: 2015 NY Slip Op<br>77092(U) (Kings)                                  | dismissed 9/11/15<br>(Stein, J.)                            |
| People v Bethea    | 2d Dept: 129 AD3d 986 (Kings)                                                          | denied 9/21/15<br>(Fahey, J.)                               |
| People v Blair     | 4th Dept: 129 AD3d 1514 (Erie)                                                         | denied 9/1/15<br>(Pigott, J.)                               |
| People v Borrell   | 2d Dept: 128 AD3d 1085 (Queens)                                                        | denied 9/25/15<br>(Pigott, J.)                              |
| People v Bostic    | 2d Dept: 125 AD3d 992 (Kings)                                                          | denied 9/4/15<br>(Abdus-Salaam,<br>J.)                      |
| People v Boutte    | App Div, 2d Dept: 2015 NY Slip Op<br>76198(U) (Queens)                                 | dismissed 9/1/15<br>(Lippman, Ch. J.)                       |
| People v Boyd      | 2d Dept: 129 AD3d 854 (Suffolk)                                                        | denied 9/1/15<br>(Lippman, Ch. J.)                          |
| People v Brahney   | App Div, 4th Dept: 2015 NY Slip Op<br>76585(U) ( <i>see</i> 129 AD3d 1557)<br>(Cayuga) | dismissed 9/3/15<br>(Stein, J.)<br>(Appeal Nos. 1<br>and 2) |
| People v Braxton   | 4th Dept: 129 AD3d 1674 (Monroe)                                                       | denied 9/28/15<br>(Pigott, J.)                              |
| People v Brewer    | 4th Dept: 129 AD3d 1619 (Monroe)                                                       | granted 9/25/15<br>(Stein, J.)                              |
| People v Brinson   | 4th Dept: 130 AD3d 1493 (Ontario)                                                      | denied 9/11/15<br>(Lippman, Ch. J.)                         |
| People v Brown     | 2d Dept: 123 AD3d 732 (Orange)                                                         | denied 9/10/15<br>(Rivera, J.)                              |
| People v Bryan     | 1st Dept: 129 AD3d 524 (Bronx)                                                         | denied 9/23/15<br>(Fahey, J.)                               |
| People v Buckman   | 4th Dept: 129 AD3d 1496 (Monroe)                                                       | denied 9/28/15<br>(Pigott, J.)                              |
| People v Cameron   | 1st Dept: 122 AD3d 472 (NY)                                                            | denied 9/10/15<br>(Rivera, J.)                              |

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| People v Canales              | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 47 Misc 3d 136(A) (Kings) | denied 9/11/15<br>(Rivera, J.)                   |
| People v Chapman              | 1st Dept: 128 AD3d 619 (NY)                                                | denied 9/21/15<br>(Fahey, J.)                    |
| People v Chisholm             | 2d Dept: 126 AD3d 721 (Queens)                                             | denied 9/11/15<br>(Rivera, J.)                   |
| People v Clark                | 4th Dept: 128 AD3d 1494 (Onondaga)                                         | denied 9/3/15<br>(Stein, J.)                     |
| People v<br>Clyburn-Dawson    | 4th Dept: 128 AD3d 1350 (Monroe)                                           | denied 9/13/15<br>(Stein, J.)                    |
| People v Colletta             | 2d Dept: 123 AD3d 941 (Queens)                                             | denied 9/10/15<br>(Rivera, J.)                   |
| People v Collins              | App Term, 1st Dept: 46 Misc 3d 140(A)<br>(NY)                              | denied 9/4/15<br>(Abdus-Salaam,<br>J.)           |
| People v Colon                | 1st Dept: 129 AD3d 597 (NY)                                                | denied 9/1/15<br>(Pigott, J.)                    |
| People v Contreras            | 2d Dept: 123 AD3d 1139 (Nassau)                                            | denied 9/10/15<br>(Rivera, J.)                   |
| People v Cooper (James)       | 4th Dept: 128 AD3d 1431 (Monroe)                                           | denied 9/17/15<br>(Rivera, J.)<br>(Appeal No. 1) |
| People v Cooper (James)       | 4th Dept: 128 AD3d 1433 (Monroe)                                           | denied 9/17/15<br>(Rivera, J.)<br>(Appeal No. 2) |
| People v Cooper<br>(Tyronne)  | 3d Dept: 126 AD3d 1046 (Warren)                                            | denied 9/11/15<br>(Rivera, J.)                   |
| People v Covington            | 1st Dept: 130 AD3d 409 (NY)                                                | denied 9/3/15<br>(Stein, J.)                     |
| People v Cox                  | 3d Dept: 129 AD3d 1210 (Albany)                                            | denied 9/21/15<br>(Fahey, J.)                    |
| People v Crooks               | 3d Dept: 129 AD3d 1207 (Albany)                                            | granted 9/28/15<br>(Fahey, J.)                   |
| People v Davis<br>(Alexander) | 1st Dept: 127 AD3d 549 (Bronx)                                             | denied 9/11/15<br>(Rivera, J.)                   |
| People v Davis (Antwan)       | 4th Dept: 126 AD3d 1398 (Onondaga)                                         | denied 9/11/15<br>(Rivera, J.)                   |
| People v Davis<br>(Matthew)   | 4th Dept: 126 AD3d 1516 (Niagara)                                          | granted 9/3/15<br>(Lippman, Ch. J.)              |
| People v Davis (Peter)        | 4th Dept: 129 AD3d 1613 (Yates)                                            | denied 9/3/15<br>(Stein, J.)                     |
| People v Dean                 | App Div, 4th Dept, 6/23/15 (Ontario)                                       | dismissed 9/1/15<br>(Lippman, Ch. J.)            |
| People v Deas                 | App Div, 1st Dept: 2014 NY Slip Op<br>91746(U) (NY)                        | denied 9/10/15<br>(Rivera, J.)                   |
| People v DeMicheli            | 2d Dept: 129 AD3d 743 (Putnam)                                             | denied 9/1/15<br>(Fahey, J.)                     |
| People v Diggs                | 4th Dept: 129 AD3d 1675 (Monroe)                                           | denied 9/3/15<br>(Stein, J.)                     |
| People v Dixon                | App Div, 1st Dept: 2015 NY Slip Op<br>78636(U) (NY)                        | dismissed 9/30/15<br>(Lippman, Ch. J.)           |

## MEMORANDA

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|-----------------------|-------------------------------------------------------|--------------------------------------------------|
| People v Dollinger    | App Div, 2d Dept: 2015 NY Slip Op 75777(U) (Putnam)   | dismissed 9/25/15 (Abdus-Salaam, J.)             |
| People v Drayton      | App Div, 2d Dept: 2015 NY Slip Op 77455(U) (Dutchess) | dismissed 9/30/15 (Lippman, Ch. J.)              |
| People v Dre          | 3d Dept: 125 AD3d 1106 (Albany)                       | denied 9/28/15 (Pigott, J.)                      |
| People v Duell        | 4th Dept: 124 AD3d 1225 (Oswego)                      | denied 9/13/15 (Stein, J.)                       |
| People v Echevarria   | 4th Dept: 126 AD3d 1450 (Monroe)                      | denied 9/17/15 (Rivera, J.)                      |
| People v Edwards      | 1st Dept: 129 AD3d 551 (NY)                           | denied 9/13/15 (Stein, J.)                       |
| People v Englert      | 4th Dept: 130 AD3d 1532 (Monroe)                      | denied 9/28/15 (Pigott, J.)                      |
| People v Esquiled     | 2d Dept: 121 AD3d 807 (Kings)                         | denied reconsideration 9/30/15 (Lippman, Ch. J.) |
| People v Estivarez    | 4th Dept: 122 AD3d 1292 (Onondaga)                    | denied 9/10/15 (Rivera, J.)                      |
| People v Failing      | 4th Dept: 129 AD3d 1677 (Monroe)                      | denied 9/28/15 (Pigott, J.)                      |
| People v Fair         | 1st Dept: 129 AD3d 617 (Bronx)                        | denied 9/18/15 (Stein, J.)                       |
| People v Farmer       | 2d Dept: 123 AD3d 735 (Westchester)                   | denied 9/10/15 (Rivera, J.)                      |
| People v Fernandez    | 1st Dept: 126 AD3d 639 (Bronx)                        | denied 9/11/15 (Rivera, J.)                      |
| People v Figueroa     | 1st Dept: 125 AD3d 432 (NY)                           | denied 9/4/15 (Abdus-Salaam, J.)                 |
| People v Finkelstein  | 1st Dept: 121 AD3d 615 (NY)                           | granted 9/9/15 (Rivera, J.)                      |
| People v Fortier      | 2d Dept: 130 AD3d 642 (Rockland)                      | denied 9/21/15 (Fahey, J.)                       |
| People v Francis      | App Div, 1st Dept: 2015 NY Slip Op 78639(U) (NY)      | dismissed 9/22/15 (Pigott, J.)                   |
| People v Fully (Amos) | App Div, 2d Dept: 2015 NY Slip Op 75369(U) (Richmond) | dismissed 9/1/15 (Fahey, J.)                     |
| People v Fully (Amos) | 2d Dept: 128 AD3d 717 (Richmond)                      | denied 9/1/15 (Fahey, J.)                        |
| People v Gamarra      | 2d Dept: 126 AD3d 998 (Queens)                        | denied 9/11/15 (Rivera, J.)                      |
| People v Garcia       | App Div, 2d Dept: 2015 NY Slip Op 72534(U) (Queens)   | denied reconsideration 9/25/15 (Stein, J.)       |
| People v Gee          | 4th Dept: 126 AD3d 1426 (Monroe)                      | denied 9/11/15 (Rivera, J.)                      |
| People v Georges      | 2d Dept: 130 AD3d 843 (Dutchess)                      | denied 9/29/15 (Fahey, J.)                       |

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| People v Goode              | 2d Dept: 130 AD3d 1068 (Kings)                              | denied 9/13/15<br>(Stein, J.)                       |
| People v Grant              | 2d Dept: 127 AD3d 990 (Kings)                               | denied 9/17/15<br>(Rivera, J.)                      |
| People v Graves             | 2d Dept: 129 AD3d 748 (Kings)                               | denied 9/10/15<br>(Stein, J.)                       |
| People v Gray               | 2d Dept: 129 AD3d 1101 (Queens)                             | denied 9/23/15<br>(Fahey, J.)                       |
| People v Guerrero           | 2d Dept: 129 AD3d 1102 (Nassau)                             | denied 9/3/15<br>(Stein, J.)                        |
| People v Hall               | 4th Dept: 130 AD3d 1495 (Monroe)                            | denied 9/28/15<br>(Pigott, J.)                      |
| People v Hamilton           | 2d Dept: 130 AD3d 647 (Kings)                               | denied 9/23/15<br>(Fahey, J.)                       |
| People v Hammock            | 4th Dept: 128 AD3d 1424 (Monroe)                            | denied 9/1/15<br>(Lippman, Ch. J.)                  |
| People v Hatcher            | 2d Dept: 130 AD3d 648 (Kings)                               | denied 9/28/15<br>(Pigott, J.)                      |
| People v Hawkins            | 3d Dept: 130 AD3d 1298 (Ulster)                             | denied 9/17/15<br>(Lippman, Ch. J.)                 |
| People v Hazzard            | 4th Dept: 129 AD3d 1598 (Lewis)                             | denied 9/10/15<br>(Stein, J.)                       |
| People v Henry<br>(Amanda)  | 4th Dept: 126 AD3d 1350 (Niagara)                           | denied 9/11/15<br>(Rivera, J.)                      |
| People v Henry<br>(Anthony) | App Div, 2d Dept: 2015 NY Slip Op<br>66805(U) (Kings)       | denied<br>reconsideration<br>9/21/15<br>(Fahey, J.) |
| People v Hernandez          | 2d Dept: 125 AD3d 885 (Suffolk)                             | denied 9/4/15<br>(Abdus-Salaam,<br>J.)              |
| People v Heron              | 2d Dept: 130 AD3d 754 (Nassau)                              | denied 9/23/15<br>(Fahey, J.)                       |
| People v Hines              | App Div, 2d Dept: 2014 NY Slip Op<br>75967(U) (Westchester) | dismissed 9/10/15<br>(Rivera, J.)                   |
| People v Holloway           | 2d Dept: 130 AD3d 943 (Kings)                               | denied 9/30/15<br>(Lippman, Ch. J.)                 |
| People v Holmes             | 4th Dept: 129 AD3d 1692 (Monroe)                            | denied 9/10/15<br>(Lippman, Ch. J.)                 |
| People v Howard             | 4th Dept: 129 AD3d 1469 (Erie)                              | denied 9/13/15<br>(Stein, J.)                       |
| People v Izzy               | 1st Dept: 125 AD3d 537 (NY)                                 | granted 9/4/15<br>(Abdus-Salaam,<br>J.)             |
| People v Jarvis             | 2d Dept: 127 AD3d 992 (Suffolk)                             | denied 9/11/15<br>(Rivera, J.)                      |
| People v Javier             | 1st Dept: 128 AD3d 494 (NY)                                 | denied 9/10/15<br>(Stein, J.)                       |
| People v Jemmott            | 2d Dept: 125 AD3d 1005 (Nassau)                             | denied 9/11/15<br>(Rivera, J.)                      |
| People v Johnson            | 1st Dept: 130 AD3d 436 (NY)                                 | denied 9/21/15<br>(Fahey, J.)                       |

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|--------------------------|--------------------------------------------------------|-----------------------------------------|
| People v Jones           | 4th Dept: 120 AD3d 1611 (Erie)                         | denied 9/11/15<br>(Rivera, J.)          |
| People v Kamp            | 3d Dept: 129 AD3d 1339 (Otsego)                        | denied 9/24/15<br>(Fahey, J.)           |
| People v Keels           | 4th Dept: 128 AD3d 1444 (Monroe)                       | denied 9/17/15<br>(Rivera, J.)          |
| People v Kitchen         | 4th Dept: 129 AD3d 1615 (Onondaga)                     | denied 9/13/15<br>(Stein, J.)           |
| People v Lamont          | 3d Dept: 125 AD3d 1106 (Albany)                        | denied 9/28/15<br>(Pigott, J.)          |
| People v Latimer (Corey) | 2d Dept: 116 AD3d 1065 (Orange)                        | denied 9/10/15<br>(Rivera, J.)          |
| People v Latimer (Corey) | 2d Dept: 120 AD3d 1264 (Dutchess)                      | denied 9/10/15<br>(Rivera, J.)          |
| People v Leak            | 2d Dept: 129 AD3d 745 (Westchester)                    | denied 9/1/15<br>(Lippman, Ch. J.)      |
| People v Lenihan         | 2d Dept: 125 AD3d 788 (Queens)                         | denied 9/30/15<br>(Lippman, Ch. J.)     |
| People v Lewis (Teddy)   | App Div, 2d Dept: 2015 NY Slip Op<br>75522(U) (Queens) | dismissed 9/23/15<br>(Fahey, J.)        |
| People v Lewis (Walter)  | 4th Dept: 129 AD3d 1546 (Onondaga)                     | denied 9/13/15<br>(Stein, J.)           |
| People v Llibre          | 1st Dept: 125 AD3d 422 (NY)                            | denied* 9/10/15<br>(Rivera, J.)         |
| People v Mack (Alfred)   | 4th Dept: 128 AD3d 1456 (Erie)                         | denied 9/3/15<br>(Stein, J.)            |
| People v Mack (Brian)    | 2d Dept: 130 AD3d 650 (Queens)                         | denied 9/28/15<br>(Pigott, J.)          |
| People v Mackie          | App Div, 1st Dept: 2015 NY Slip Op<br>62534(U) (NY)    | denied 9/4/15<br>(Abdus-Salaam,<br>J.)  |
| People v Malloy          | 3d Dept: 124 AD3d 1150 (Albany)                        | denied 9/30/15<br>(Lippman, Ch. J.)     |
| People v Mamadou         | 2d Dept: 129 AD3d 993 (Kings)                          | denied 9/21/15<br>(Fahey, J.)           |
| People v Marlowe         | App Div, 3d Dept: 2015 NY Slip Op<br>72602(U) (Broome) | dismissed 9/21/15<br>(Pigott, J.)       |
| People v Martinez        | 2d Dept: 129 AD3d 1106 (Nassau)                        | denied 9/23/15<br>(Fahey, J.)           |
| People v Matthews        | 1st Dept: 124 AD3d 436 (NY)                            | denied 9/10/15<br>(Rivera, J.)          |
| People v McDaniel        | 1st Dept: 123 AD3d 496 (NY)                            | denied 9/10/15<br>(Rivera, J.)          |
| People v McGhee          | 1st Dept: 125 AD3d 537 (NY)                            | granted 9/4/15<br>(Abdus-Salaam,<br>J.) |
| People v McGuire         | 2d Dept: 122 AD3d 947 (Suffolk)                        | denied 9/10/15<br>(Rivera, J.)          |

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\* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Llibre* (2014 NY Slip Op 73663[U] [1st Dept 2014], *lv granted* 24 NY3d 1121 [2015]).

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|-------------------|-------------------------------------------------------------|----------------------------------------------------------|
| People v McKee    | 4th Dept: 126 AD3d 1426 (Monroe)                            | denied 9/11/15<br>(Rivera, J.)                           |
| People v Mead     | 4th Dept: 129 AD3d 1516 (Genesee)                           | denied 9/3/15<br>(Stein, J.)                             |
| People v Medina   | 1st Dept: 129 AD3d 504 (NY)                                 | denied 9/21/15<br>(Fahey, J.)                            |
| People v Merrill  | 3d Dept: 123 AD3d 1339 (Albany)                             | denied 9/10/15<br>(Rivera, J.)                           |
| People v Messam   | App Div, 1st Dept: 2015 NY Slip Op<br>71745(U) (NY)         | denied 9/17/15<br>(Rivera, J.)                           |
| People v Messan   | App Div, 1st Dept: 2015 NY Slip Op<br>71745(U) (NY)         | denied 9/17/15<br>(Rivera, J.)                           |
| People v Milton   | App Div, 4th Dept, 6/22/15 (Erie)                           | dismissed 9/22/15<br>(Pigott, J.)                        |
| People v Mitchell | App Div, 2d Dept: 2015 NY Slip Op<br>78522(U) (Suffolk)     | dismissed 9/29/15<br>(Fahey, J.)                         |
| People v Montero  | 1st Dept: 130 AD3d 474 (NY)                                 | denied 9/29/15<br>(Fahey, J.)                            |
| People v Moore    | App Div, 2d Dept: 2015 NY Slip Op<br>78523(U) (Nassau)      | dismissed 9/25/15<br>(Abdus-Salaam,<br>J.)               |
| People v Moran    | 4th Dept: 126 AD3d 1426 (Monroe)                            | denied 9/11/15<br>(Rivera, J.)                           |
| People v Morton   | App Term, 1st Dept: 46 Misc 3d 132(A)<br>(NY)               | denied 9/10/15<br>(Rivera, J.)                           |
| People v Nesbit   | 1st Dept: 129 AD3d 523 (NY)                                 | denied 9/21/15<br>(Fahey, J.)                            |
| People v Nieves   | App Term, 1st Dept: 46 Misc 3d 140(A)<br>(NY)               | denied 9/4/15<br>(Abdus-Salaam,<br>J.)                   |
| People v Ocasio   | App Term, 1st Dept: 48 Misc 3d 127(A)<br>(Bronx)            | granted 9/22/15<br>(Stein, J.)                           |
| People v Oginski  | 3d Dept: 123 AD3d 1303 (Schenectady)                        | denied 9/10/15<br>(Rivera, J.)                           |
| People v Pabon    | App Term, 1st Dept: 46 Misc 3d 152(A)<br>(Bronx)            | denied<br>reconsideration<br>9/1/15<br>(Lippman, Ch. J.) |
| People v Pantoja  | App Div, 2d Dept: 2015 NY Slip Op<br>75525(U) (Westchester) | dismissed 9/10/15<br>(Rivera, J.)                        |
| People v Perry    | 1st Dept: 129 AD3d 576 (NY)                                 | denied 9/23/15<br>(Fahey, J.)                            |
| People v Phipps   | 3d Dept: 127 AD3d 1500 (Sullivan)                           | denied 9/1/15<br>(Lippman, Ch. J.)                       |
| People v Porter   | App Div, 3d Dept: 2015 NY Slip Op<br>78154(U) (Tompkins)    | dismissed 9/10/15<br>(Rivera, J.)                        |
| People v Price    | 4th Dept: 129 AD3d 1484 (Onondaga)                          | denied 9/8/15<br>(Stein, J.)                             |
| People v Pruitt   | 1st Dept: 129 AD3d 517 (NY)                                 | denied 9/3/15<br>(Stein, J.)                             |
| People v Purisic  | 3d Dept: 130 AD3d 1095 (Clinton)                            | denied 9/23/15<br>(Fahey, J.)                            |

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|                                |                                                                               |                                                      |
|--------------------------------|-------------------------------------------------------------------------------|------------------------------------------------------|
| People v Pyke                  | 4th Dept: 129 AD3d 1548 (Onondaga)                                            | denied 9/10/15<br>(Stein, J.)                        |
| People v Ramos                 | 3d Dept: 129 AD3d 1205 (Montgomery)                                           | denied 9/21/15<br>(Fahey, J.)                        |
| People v Richardson            | 4th Dept: 129 AD3d 1629 (Monroe)                                              | denied 9/11/15<br>(Lippman, Ch. J.)                  |
| People v Rivera (A.J.)         | 3d Dept: 124 AD3d 1070 (Rensselaer)                                           | denied 9/1/15<br>(Fahey, J.)                         |
| People v Rivera (Albert)       | 3d Dept: 124 AD3d 1070 (Rensselaer)                                           | denied 9/1/15<br>(Fahey, J.)                         |
| People v Rivera<br>(Christian) | 1st Dept: 130 AD3d 487 (NY)                                                   | denied 9/13/15<br>(Stein, J.)                        |
| People v Rivera (Negro)        | 1st Dept: 129 AD3d 601 (NY)                                                   | denied 9/21/15<br>(Fahey, J.)                        |
| People v Rivera<br>(Wilfredo)  | 2d Dept: 128 AD3d 1100 (Queens)                                               | denied 9/21/15<br>(Pigott, J.)                       |
| People v Robertson             | 4th Dept: 130 AD3d 1488 (Niagara)                                             | denied 9/13/15<br>(Stein, J.)                        |
| People v Rodriguez<br>(Jose)   | App Div, 3d Dept: 2015 NY Slip Op<br>76031(U) (Otsego)                        | dismissed 9/30/15<br>(Lippman, Ch. J.)               |
| People v Rodriguez<br>(Rafael) | 1st Dept: 125 AD3d 472 (NY)                                                   | denied 9/4/15<br>(Abdus-Salaam,<br>J.)               |
| People v Rosario               | 1st Dept: 124 AD3d 412 (Bronx)                                                | denied 9/10/15<br>(Rivera, J.)                       |
| People v Rosas                 | 2d Dept: 130 AD3d 757 (Kings)                                                 | denied 9/1/15<br>(Lippman, Ch. J.)                   |
| People v Rucano                | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 46 Misc 3d 142(A) (Richmond) | denied 9/4/15<br>(Abdus-Salaam,<br>J.)               |
| People v Rutledge              | 1st Dept: 130 AD3d 430 (NY)                                                   | denied 9/3/15<br>(Stein, J.)                         |
| People v Santana               | App Div, 1st Dept: 2015 NY Slip Op<br>77351(U) (Bronx)                        | denied 9/28/15<br>(Pigott, J.)                       |
| People v Santiago              | 1st Dept: 129 AD3d 119 (NY)                                                   | denied 9/3/15<br>(Stein, J.)                         |
| People v Scott                 | App Div, 4th Dept, 5/8/15 (Genesee)                                           | dismissed 9/10/15<br>(Stein, J.)                     |
| People v Segura                | 2d Dept: 129 AD3d 871 (Nassau)                                                | denied 9/10/15<br>(Stein, J.)                        |
| People v Sengupta              | 1st Dept: 121 AD3d 575 (NY)                                                   | denied<br>reconsideration<br>9/28/15<br>(Pigott, J.) |
| People v Singleton             | 2d Dept: 129 AD3d 748 (Kings)                                                 | denied 9/10/15<br>(Stein, J.)                        |
| People v Smith                 | 4th Dept: 129 AD3d 1549 (Jefferson)                                           | denied 9/1/15<br>(Lippman, Ch. J.)                   |
| People v Soler                 | 2d Dept: 130 AD3d 948 (Kings)                                                 | denied 9/13/15<br>(Stein, J.)                        |
| People v Spallina              | 4th Dept: 129 AD3d 1677 (Monroe)                                              | denied 9/28/15<br>(Pigott, J.)                       |

|                               |                                                                                                |                                                           |
|-------------------------------|------------------------------------------------------------------------------------------------|-----------------------------------------------------------|
| People v Stokes               | 4th Dept: 129 AD3d 1556 (Erie)                                                                 | denied 9/1/15<br>(Lippman, Ch. J.)                        |
| People v Sutton               | App Term, 1st Dept: 47 Misc 3d 156(A)<br>(NY)                                                  | denied 9/1/15<br>(Pigott, J.)                             |
| People v Swan                 | 4th Dept: 126 AD3d 1527 (Onondaga)                                                             | denied 9/22/15<br>(Lippman, Ch. J.)                       |
| People v Swift                | App Div, 4th Dept, 4/30/15 (Cayuga)                                                            | dismissed 9/10/15<br>(Rivera, J.)                         |
| People v Sykes                | 4th Dept: 122 AD3d 1306 (Erie)                                                                 | denied 9/10/15<br>(Rivera, J.)                            |
| People v Terry                | 4th Dept: 129 AD3d 1472 (Onondaga)                                                             | denied 9/3/15<br>(Stein, J.)                              |
| People v Theall               | 4th Dept: 128 AD3d 1425 (Oneida)                                                               | denied 9/4/15<br>(Stein, J.)                              |
| People v Thomas<br>(Jamahl)   | 4th Dept: 124 AD3d 1387 (Cayuga)                                                               | denied 9/10/15<br>(Rivera, J.)                            |
| People v Thomas<br>(Steven)   | 2d Dept: 129 AD3d 1110 (Nassau)                                                                | denied 9/1/15<br>(Pigott, J.)                             |
| People v Thompson             | App Div, 2d Dept: 2015 NY Slip Op<br>77106(U) (Kings)                                          | dismissed 9/22/15<br>(Pigott, J.)                         |
| People v Turley (Paul)        | 4th Dept: 130 AD3d 1574 (Niagara)                                                              | denied 9/28/15<br>(Pigott, J.)<br>(Appeal No. 1)          |
| People v Turley (Paul)        | 4th Dept: 130 AD3d 1578 (Niagara)                                                              | denied 9/28/15<br>(Pigott, J.)<br>(Appeal No. 2)          |
| People v VanDeusen            | 3d Dept: 129 AD3d 1325 (Otsego)                                                                | denied 9/24/15<br>(Fahey, J.)                             |
| People v Vega                 | 1st Dept: 129 AD3d 541 (NY)                                                                    | denied 9/28/15<br>(Pigott, J.)                            |
| People v Velasquez            | 4th Dept: 126 AD3d 1459 (Erie)                                                                 | denied<br>reconsideration<br>9/30/15<br>(Lippman, Ch. J.) |
| People v Wallace              | 4th Dept: 129 AD3d 1482 (Erie)                                                                 | denied 9/1/15<br>(Lippman, Ch. J.)                        |
| People v Waller               | 1st Dept: 129 AD3d 407 (NY)                                                                    | denied 9/30/15<br>(Lippman, Ch. J.)                       |
| People v Waterford            | 4th Dept: 124 AD3d 1246 (Monroe)                                                               | denied 9/10/15<br>(Rivera, J.)                            |
| People v West (Edward)        | 4th Dept: 129 AD3d 1629 (Monroe)                                                               | denied 9/28/15<br>(Pigott, J.)                            |
| People v West (Nicholas)      | 4th Dept: 129 AD3d 1629 (Monroe)                                                               | denied 9/28/15<br>(Pigott, J.)                            |
| People v Williams<br>(Kermit) | 2d Dept: 127 AD3d 1114 (Suffolk)                                                               | denied<br>reconsideration<br>9/22/15<br>(Lippman, Ch. J.) |
| People v Williams<br>(Larry)  | App Div, 4th Dept: 2015 NY Slip Op<br>78548(U) ( <i>see</i> 130 AD3d 1506, 1507)<br>(Onondaga) | denied 9/18/15<br>(Stein, J.)                             |



|                                 |                                    |                                |
|---------------------------------|------------------------------------|--------------------------------|
| People v Williams<br>(Marcus)   | 4th Dept: 129 AD3d 1583 (Onondaga) | denied 9/3/15<br>(Stein, J.)   |
| People v Wilson                 | 4th Dept: 128 AD3d 1424 (Monroe)   | denied 9/13/15<br>(Stein, J.)  |
| People v Winchell<br>(Champ)    | 3d Dept: 129 AD3d 1309 (Madison)   | denied 9/28/15<br>(Fahey, J.)  |
| People v Winchell<br>(Chauncey) | 3d Dept: 129 AD3d 1309 (Madison)   | denied 9/28/15<br>(Fahey, J.)  |
| People v Wright                 | 4th Dept: 129 AD3d 1695 (Monroe)   | denied 9/3/15<br>(Stein, J.)   |
| People v Youngblood             | 4th Dept: 126 AD3d 1426 (Monroe)   | denied 9/17/15<br>(Rivera, J.) |

### APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

#### Decisions of Appellate Division Justices\*

(September 1, 2015 through September 30, 2015)

|                     |                                 |                                 |
|---------------------|---------------------------------|---------------------------------|
| People v Warrington | 3d Dept: 130 AD3d 1368 (Warren) | granted 9/22/15<br>(Devine, J.) |
|---------------------|---------------------------------|---------------------------------|

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[40 NE3d 563, 18 NYS3d 586]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES  
R. POLEUN, Appellant.

Argued September 9, 2015; decided October 15, 2015

### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 3, 2014. The Appellate Division affirmed an order of the Niagara County Court (Matthew J. Murphy III, J.), which had determined that defendant was a level three risk pursuant to the Sex Offender Registration Act.

*People v Poleun*, 119 AD3d 1378, affirmed.

### HEADNOTE

#### Appeal — Preservation of Issue for Review — Challenge to Waiver of Appearance at Sex Offender Risk Level Classification Hearing

Defendant failed to preserve the challenge to his waiver of appearance at a hearing to determine his risk level classification under the Sex Offender Registration Act. At the hearing, defense counsel provided the court with a waiver of appearance executed by defendant, agreed to proceed in defendant's absence, and did not raise any objection to the validity of the waiver. Moreover, this was not one of the rare cases in which preservation is not required.

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\* Includes only applications that were granted.

**APPEARANCES OF COUNSEL**

*David J. Farrugia, Public Defender, Lockport (Joseph G. Frazier of counsel), for appellant.*

*Michael J. Violante, District Attorney, Lockport (Laura T. Bittner of counsel), for respondent.*

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Division should be affirmed, without costs.

Defendant pleaded guilty to one count of possession of a sexual performance by a child (Penal Law § 263.16), in full satisfaction of the charges against him. He was sentenced to an indeterminate term of 1 $\frac{1}{3}$  to 4 years.

As defendant neared his expected release, the Board of Examiners of Sex Offenders prepared a risk assessment instrument (RAI) assessing him 100 points—a presumptive level two classification—but recommended an upward departure to a risk level three designation. A hearing on defendant's classification was scheduled and defendant was assigned counsel.

Prior to the hearing, County Court had received two letters from defendant stating that he did not wish to attend. In one of the letters, defendant expressed a fear that, if he was transferred from Great Meadow Correctional Facility where he was presently incarcerated to the Attica Correctional Facility in anticipation of his hearing, he would suffer personal injury at the hands of the correction officers. He further stated that he explained these fears to his lawyer and that he was hopeful that his lawyer would address the things he believed were wrong in the RAI.

At the hearing, defense counsel acknowledged that his office had spoken to defendant regarding his absence and counsel handed the court a waiver of appearance executed by defendant. With defense counsel's consent and defendant's waiver of appearance, the court proceeded with the hearing in defendant's absence. County Court granted the People's request for an upward departure and adjudicated defendant a level three sex offender. Defendant appealed, arguing, among other things, that his waiver of appearance was not made knowingly, intelligently, and voluntarily.

We agree with the Appellate Division that defendant failed to preserve the challenge to his waiver of appearance. Defense

counsel, who represented defendant at the Sex Offender Registration Act hearing, did not raise any objection to the validity of defendant's waiver of appearance. Rather, at the hearing, he provided the court with an executed waiver and agreed to proceed with the hearing in defendant's absence. We further reject defendant's contention that this is one of the "rare case[s]" in which preservation is not required (*cf. People v Lopez*, 71 NY2d 662, 666 [1988]).

Defendant's remaining contentions are without merit.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur; Judge FAHEY taking no part.

Order affirmed, without costs, in a memorandum.

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DAWN L. BAKER, Appellant, v JEFFREY P. BAKER, Respondent.

Submitted July 27, 2015; decided October 15, 2015

Reported below, 129 AD3d 1541.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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BANK OF AMERICA NATIONAL ASSOCIATION, as Successor by Merger to LASALLE BANK NATIONAL ASSOCIATION, as Trustee for MORGAN STANLEY LOAN TRUST 2006-3AR, Respondent, v JUAN PATINO, Appellant, et al., Defendants.

Submitted July 27, 2015; decided October 15, 2015

Reported below, 128 AD3d 994.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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BRUNELLE & HADJIKOW, P.C., Respondent, v JAMES G. O'CALLAGHAN, Appellant.

Decided October 15, 2015

Reported below, 2015 NY Slip Op 76554(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of CARSON W., a Child Alleged to be Abused. OS-  
WEGO COUNTY DEPARTMENT OF SOCIAL SERVICES, Respon-  
dent; JAMIE G. et al., Appellants.

Submitted July 6, 2015; decided October 15, 2015

Reported below, 128 AD3d 1501.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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JOHN C. MCPHILLIPS, Appellant, v STATE OF NEW YORK, Re-  
spondent.

Submitted August 10, 2015; decided October 15, 2015

Reported below, 129 AD3d 1360.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD  
DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et  
al., Defendants, and CRANE Co., Appellant.

Submitted September 21, 2015; decided October 15, 2015

Reported below, 121 AD3d 230.

Motion by United Steel, Paper and Forestry, Rubber,  
Manufacturing, Energy, Allied Industrial and Service Workers  
International Union et al. for leave to file a brief amici curiae  
on the appeal herein granted and the proposed brief is accepted  
as filed.

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In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et al., Defendants, and CRANE CO., Appellant.

Submitted September 28, 2015; decided October 15, 2015

Reported below, 121 AD3d 230.

Motion by Environmental Working Group et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et al., Defendants, and CRANE CO., Appellant.

Submitted October 13, 2015; decided October 15, 2015

Reported below, 121 AD3d 230.

Motion by Product Liability Advisory Council, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DRU ALLARD, Respondent.

Submitted September 28, 2015; decided October 15, 2015

Reported below, 128 AD3d 1081.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HERMAN H. BANK, Appellant.

Submitted September 28, 2015; decided October 15, 2015

Reported below, 129 AD3d 1445.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v Nnamdi Clarke, Respondent.

Submitted October 5, 2015; decided October 15, 2015

Reported below, 122 AD3d 765.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v Steven Finkelstein, Appellant.

Submitted October 13, 2015; decided October 15, 2015

Reported below, 121 AD3d 615.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v Tyrell Ingram, Appellant.

Submitted October 5, 2015; decided October 15, 2015

Reported below, 125 AD3d 558.

Motion for assignment of counsel and waiver of the Rules of Practice of the Court of Appeals granted only to the extent that Stanley E. Neustadter, Esq., Cardozo Law School, Criminal Appeals Clinic, 55 Fifth Ave., New York, NY 10003 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v Marcellus Johnson, Appellant.

Submitted September 28, 2015; decided October 15, 2015

Reported below, 120 AD3d 1154.

Motion by Legal Aid Society for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENDALL LAWSON, Appellant.

Submitted October 13, 2015; decided October 15, 2015

Reported below, 130 AD3d 943.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISMA MCGHEE, Also Known as Izzy, Appellant.

Submitted September 28, 2015; decided October 15, 2015

Reported below, 125 AD3d 537.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL THEN, Appellant.

Submitted September 21, 2015; decided October 15, 2015

Reported below, 128 AD3d 864.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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In the Matter of RAM I LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent, et al., Respondent.

Submitted October 13, 2015; decided October 15, 2015

Reported below, 123 AD3d 102.

Motion by Small Property Owners of New York, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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REGENCY OAKS CORPORATION, Respondent, v NORMAN-SPENCER  
McKERNAN, INC., Appellant.

Submitted October 10, 2015; decided October 15, 2015

Reported below, 129 AD3d 1454.

On the Court's own motion, appeal dismissed upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

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In the Matter of TOWN BOARD OF TOWN OF BRIGHTON, on Behalf  
of TOWN OF BRIGHTON, et al., Respondents, v WEST  
BRIGHTON FIRE DEPARTMENT, INC., Appellant.

Submitted August 3, 2015; decided October 15, 2015

Reported below, 126 AD3d 1433.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

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In the Matter of DEAN GARY WEBER, an Attorney, Appellant.  
GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT,  
Respondent.

Submitted August 17, 2015; decided October 15, 2015

Reported below, 131 AD3d 38.



On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

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XIU JIAN SUN, Appellant, v STATE OF NEW YORK DEPARTMENT OF  
MOTOR VEHICLES, Respondent.

Decided October 15, 2015

Reported below, 2015 NY Slip Op 79526(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of CANDIDO BAEZ, Respondent, v RICHARD A.  
BROWN, Queens County District Attorney, Appellant.

Submitted July 27, 2015; decided October 20, 2015

Reported below, 124 AD3d 881.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

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In the Matter of LILLIAN EVANS, Appellant, v NEW YORK STATE  
OFFICE OF CHILDREN AND FAMILY SERVICES, Respondent.

Submitted August 17, 2015; decided October 20, 2015

Reported below, 2014 NY Slip Op 61257(U).

Motion for leave to appeal dismissed upon the ground that it does not lie. Motion for poor person relief dismissed as academic.

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In the Matter of the Claim of NEVILLE FRANCIS, Appellant, v  
JEWELRY BOX CORPORATION OF AMERICA et al., Respondents,  
and SPECIAL FUND FOR REOPENED CASES, Respondent.  
WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 17, 2015; decided October 20, 2015

Reported below, 128 AD3d 1292.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of TRAVIS D. GRIFFIN, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted August 17, 2015; decided October 20, 2015

Reported below, 127 AD3d 412.

Motion for reargument denied [*see* 25 NY3d 1191 (2015)].

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DOUGLAS L. LEIGHT et al., Plaintiffs, and JOHN H. MASTEN, Appellant, v W7879 LLC et al., Respondents.

Submitted August 10, 2015; decided October 20, 2015

Reported below, 128 AD3d 417.

Motion to dismiss appeal denied.

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MIDFIRST BANK, Respondent, v LILLIAN EVANS, Appellant, et al., Defendants.

Submitted August 17, 2015; decided October 20, 2015

Reported below, 2014 NY Slip Op 60965(U).

Motion for leave to appeal dismissed upon the ground that it does not lie. Motion for poor person relief dismissed as academic.

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In the Matter of RONALD D. ROSSBOROUGH, Appellant, v HALA Y. ALATAWNEH, Respondent.

Submitted July 27, 2015; decided October 20, 2015

Reported below, 129 AD3d 1537.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the dismissal of the application to adjudicate respondent in violation of prior visitation orders, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the

meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

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ANGELO RUOTOLO, Appellant, v FANNIE MAE et al., Respondents.

Submitted July 27, 2015; decided October 20, 2015

Reported below, 127 AD3d 1442.

Motion to dismiss appeal granted, without costs, and appeal dismissed upon the ground that no substantial constitutional question is directly involved.

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In the Matter of ISABEL VIDEA, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted August 24, 2015; decided October 20, 2015

Reported below, 2015 NY Slip Op 77033(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

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[41 NE3d 66, 19 NYS3d 209]

In the Matter of ANTHONY BOTTOM, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Argued September 11, 2015; decided October 22, 2015

#### SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 21, 2014, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Wyoming County). The Appellate Division (1) confirmed respondent's determination which had affirmed a decision (a) finding,

after a tier III disciplinary hearing, that petitioner violated an inmate rule; and (b) imposing a penalty of pre-hearing confinement, already credited; and (2) dismissed the petition.

*Matter of Bottom v Annucci*, 115 AD3d 1226, affirmed.

#### HEADNOTE

##### **Prisons and Prisoners — Discipline of Inmates — Possessing Loose Postage Stamps in Law Library**

Respondent's determination in an inmate disciplinary hearing finding petitioner guilty of violating a prison rule prohibiting possession of loose postage stamps in the law library was supported by substantial evidence. Petitioner conceded that he was in possession of the stamps. Although he claimed that he did not violate the facility provision because he was found to be in possession of the loose stamps outside the library premises, prison rules state explicitly that inmates who attempt "to violate institutional rules of conduct . . . [are] punishable to the same degree as violators of such rules . . . [and] may be cited for attempts . . . whether or not the text of an actual rule contains such term[ ]" (7 NYCRR 270.3 [b]). Petitioner testified during the hearing that he was carrying the loose stamps while on his way to the law library. Thus, by his own admission, he was guilty of an attempt to violate the provision, and as a consequence the rule itself. Furthermore, whether petitioner was aware that he was in violation of a restriction on loose stamps was irrelevant because the rule applies regardless of the inmate's intent.

#### APPEARANCES OF COUNSEL

*Wyoming County Attica Legal Aid Bureau*, Warsaw (Norman P. Effman of counsel), for appellant.

*Eric T. Schneiderman*, Attorney General, Albany (*Allyson B. Levine*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The judgment of the Appellate Division should be affirmed, without costs.

Petitioner Anthony Bottom appeals from a judgment confirming a disciplinary determination of respondent, the Acting Commissioner of the Department of Corrections and Community Supervision (DOCCS), that petitioner violated DOCCS rule 113.22. That rule states, "[a]n inmate shall not use or possess an article in an area where its use or possession [is] prohibited" (7 NYCRR 270.2 [B] [14] [xii]). Our review of petitioner's challenge is limited to determining whether the prison disciplinary determination is supported by substantial evidence (CPLR 7803 [4]; *People ex rel. Vega v Smith*, 66 NY2d 130, 139 [1985]). Substantial evidence "means such relevant proof as a reason-

able mind may accept as adequate to support a conclusion or ultimate fact” (*id.* at 139, quoting *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 180 [1978]).

Here, the administrative record establishes that while petitioner was an inmate at Attica Correctional Facility, he was subjected to a routine frisk as a part of a library callout, during which he was found to be in possession of two, loose United States postage stamps, in direct violation of the Attica facility provision prohibiting loose stamps in the law library. At the tier III disciplinary hearing, petitioner conceded the facts as charged, including that he was in possession of the stamps. Although he claimed he was unaware of the facility provision at the time of the incident, he admitted that the provision was set forth in the Attica inmate handbook. On its face, the record provides substantial evidence of respondent’s determination.

Nonetheless, petitioner contends that the determination is not supported by substantial evidence that he violated an enforceable rule. As a threshold matter, petitioner has not preserved for our consideration his claim that the facility provision is unenforceable because, at the time of the incident, it had not been filed with the Secretary of State, as required by article IV, § 8 of the New York State Constitution (“No rule or regulation made by any state department, board, bureau, officer, authority or commission, except such as relates to the organization or internal management of a state department, board, bureau, authority or commission shall be effective until it is filed in the office of the department of state”). Petitioner admits that he failed to raise the constitutionality of the provision during the administrative proceedings and in his CPLR article 78 petition. Thus, his claim is not properly before us (*see Matter of Barbara C.*, 64 NY2d 866, 868 [1985] [dismissing appeal where the constitutional questions raised on appeal were not raised or preserved in the trial court]; *Matter of Rosa v Fischer*, 87 AD3d 1252, 1253 [3d Dept 2011] [claim, not raised in an article 78 petition, was unpreserved], *lv denied* 19 NY3d 802 [2012]; *Matter of Mingo v Annucci*, 49 AD3d 1106, 1107 [3d Dept 2008] [claim raised for the first time on appeal was unpreserved], *lv denied* 11 NY3d 707 [2008]; *see also Matter of Khan v New York State Dept. of Health*, 96 NY2d 879 [2001] [stating that in the article 78 context, the Appellate Division’s power of review is the same as the Court of Appeals’]).

Petitioner’s preserved claims that, in fact, he did not violate the facility provision because he was found to be in possession

of the loose stamps outside the library premises, and that any mistake on his part was unintentional, are without merit. Prison rules state explicitly that inmates who attempt “to violate institutional rules of conduct . . . [are] punishable to the same degree as violators of such rules . . . [and] may be cited for attempts . . . whether or not the text of an actual rule contains such term[ ]” (7 NYCRR 270.3 [b]). Petitioner testified during the disciplinary hearing that he was carrying the loose stamps while on his way to the law library. Thus, by his own admission, he is guilty of an attempt to violate the provision, and as a consequence rule 113.22. Furthermore, whether petitioner was aware that he was in violation of a restriction on loose stamps is irrelevant because rule 113.22 applies regardless of the inmate’s intent.

The Appellate Division order should be affirmed because substantial evidence supports respondent’s disciplinary determination that petitioner violated an enforceable prison rule, based on the misbehavior report, petitioner’s admissions, and the Attica law library provision (*see People ex rel. Vega*, 66 NY2d at 139; *Matter of Bryant v Coughlin*, 77 NY2d 642, 647 [1991]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Judgment affirmed, without costs, in a memorandum.

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[41 NE3d 336, 19 NYS3d 471]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS BARNES, Appellant.

Argued September 16, 2015; decided October 20, 2015

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered July 31, 2013. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Robert M. Mandelbaum, J.), which had convicted defendant, upon a plea of guilty, of criminal trespass in the second degree.

*People v Barnes*, 40 Misc 3d 133(A), 2013 NY Slip Op 51249(U), affirmed.

#### HEADNOTES

**Crimes — Criminal Trespass — Lobby of Public Housing Building — Second-Degree Criminal Trespass**

1. Defendant, who was observed in the lobby of a public housing building beyond the vestibule and a posted “No Trespassing” sign, and was neither a tenant nor an invited guest, was properly charged with criminal trespass in the second degree, a class A misdemeanor, which is committed when a person “knowingly enters or remains unlawfully in a dwelling” (Penal Law § 140.15 [1]). The word “public” in the phrase “public housing” refers to ownership, not access, and not all property owned by the government is “open to the public.” Moreover, certain areas of publicly-owned buildings may be restricted from public use by a locked door or a front desk, much like the common areas of privately-owned buildings. The presence of a “No Trespassing” sign may also indicate that the common area of a publicly-owned building is not open to the public. Thus, it is possible for a person to enter or remain in a publicly-owned dwelling without license or privilege to do so. Since there is no ambiguity in the language of Penal Law § 140.15 (1), and defendant did not suggest that such an interpretation would lead to an absurd or unreasonable result, there was no need to consult the legislative history of the third-degree criminal trespass statute.

**Crimes — Criminal Trespass — Lobby of Public Housing Building — Facial Sufficiency of Information Charging Second-Degree Criminal Trespass**

2. The misdemeanor information charging defendant with criminal trespass in the second degree (Penal Law § 140.15 [1]) based on his presence in the lobby of a public housing building was facially sufficient. The information sufficiently alleged that defendant knowingly entered and remained unlawfully in a dwelling, stating that a police officer observed him in the lobby of an apartment building, beyond the vestibule and a posted “No Trespassing” sign. Moreover, defendant admitted he did not reside at the building and could not identify a resident who had invited him onto the premises. Those allegations established every element of second-degree criminal trespass and provided reasonable cause to believe defendant had committed that offense.

#### APPEARANCES OF COUNSEL

*Seymour W. James, Jr., The Legal Aid Society*, New York City (*Laura Boyd* of counsel), for appellant.

*Cyrus R. Vance, Jr., District Attorney*, New York City (*Sheila O’Shea* and *Sylvia Wertheimer* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Term should be affirmed.

On February 15, 2011, Officer Jamar Lamey was patrolling a New York City Housing Authority building when he observed defendant in the lobby beyond the building’s vestibule and a



posted “No Trespassing” sign. When asked, defendant stated that he did not reside at the building, nor was he able to identify any resident who had invited him. Having determined that defendant was neither a tenant nor an invited guest, the officer arrested him for trespassing.

Defendant was charged, by information, with one count of criminal trespass in the second degree (Penal Law § 140.15 [1]), a class A misdemeanor, and one count of criminal trespass in the third degree (Penal Law § 140.10 [e]), a class B misdemeanor. He pleaded guilty to the second-degree charge and was sentenced to time served.

Defendant appealed, arguing that the misdemeanor information was jurisdictionally defective for two reasons. First, he asserted that he could not be charged with second-degree criminal trespass for being in the common area of a public housing authority building because such areas are open to the public. Second, he argued that even if he could be charged with second-degree criminal trespass, the misdemeanor information insufficiently alleged that his presence in the lobby of the building was unlawful.

The Appellate Term rejected defendant’s contentions and affirmed (40 Misc 3d 133[A], 2013 NY Slip Op 51249[U] [App Term, 1st Dept 2013]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1034 [2014]), and we now affirm.

The legislature has established three degrees of non-felonious criminal trespass, with each “becom[ing] progressively more serious as they approach criminal trespass in the first degree” (*People v Moore*, 5 NY3d 725, 727 [2005]).

A person is guilty of simple trespass, a violation, when he or she “knowingly enters or remains unlawfully in or upon premises” (Penal Law § 140.05).

Criminal trespass in the third degree, a class B misdemeanor, is established when a person “knowingly enters or remains unlawfully in a building or upon real property” and one of seven aggravating factors is present (Penal Law § 140.10). As relevant here, one such aggravating factor elevating simple trespass to criminal trespass in the third degree is “where the building is used as a public housing project in violation of conspicuously posted rules or regulations governing entry and use thereof” (Penal Law § 140.10 [e]).

Criminal trespass in the second degree, a class A misdemeanor, is committed when a person “knowingly enters or



remains unlawfully in a dwelling” (Penal Law § 140.15 [1]). A “dwelling” is defined as “a building which is usually occupied by a person lodging therein at night” (Penal Law § 140.00 [3]).

For all degrees of criminal trespass, “[a] person ‘enters or remains unlawfully’ in or upon premises when he is not licensed or privileged to do so” (Penal Law § 140.00 [5]). Where the premises are open to the public, however, a person has license or privilege to enter “unless he defies a lawful order not to enter or remain, personally communicated to him by the owner of such premises or other authorized person” (*id.*).

[1] At the outset, defendant does not dispute that an apartment building in a public housing project constitutes a “dwelling.” Rather, this appeal turns on the phrase “enters or remains unlawfully.” Defendant argues that a person cannot be prosecuted under the second-degree criminal trespass statute for entering the common areas of a public housing authority building because those areas are open to the public. And “[w]hen [a] property is ‘open to the public’ at the time of the alleged trespass . . . the accused is presumed to have a license and privilege to be present” (*People v Leonard*, 62 NY2d 404, 408 [1984] [holding that the defendant could not be banished from a State University of New York campus, a publicly-owned and maintained property, absent proof of a lawful order excluding him from the premises]).

Contrary to defendant’s argument, the word “public” in the phrase “public housing” refers to ownership, not access. It is not the case that all property owned by the government is “open to the public.” Certain areas of publicly-owned buildings may be restricted from public use by a locked door or a front desk, much like the common areas of privately-owned buildings (see *People v Rodriguez*, 159 AD2d 201, 202-203 [1st Dept 1990], *lv denied* 76 NY2d 742 [1990]). The presence of a “No Trespassing” sign may also indicate that the common area of a publicly-owned building is not open to the public. Accordingly, we agree with the Appellate Term that it is possible for a person to enter or remain in a publicly-owned dwelling without license or privilege to do so.

In light of the statute’s plain language, we decline defendant’s invitation to consult the legislative history of a *different* statute—third-degree criminal trespass. We resort to legislative history “only where the language is ambiguous or where a literal construction would lead to absurd or unreasonable consequences” (*Matter of Auerbach v Board of Educ. of City*

*School Dist. of City of N.Y.*, 86 NY2d 198, 204 [1995]). There is no ambiguity in the language of Penal Law § 140.15 (1), and defendant has not suggested that our interpretation would lead to an absurd or unreasonable result.

[2] In the alternative, defendant contends that even if the second-degree criminal trespass statute applies, the misdemeanor information charging him with that offense was facially insufficient because it failed to establish that defendant lacked license or privilege to be in the lobby of this particular building.

To be facially sufficient, a misdemeanor information must contain “facts of an evidentiary character” that provide “reasonable cause” to believe the defendant committed the crime charged (CPL 100.15 [3]; 100.40 [1] [b]) and “‘nonhearsay allegations which, if true, establish every element of the offense charged and the defendant’s commission thereof’” (*People v Kalin*, 12 NY3d 225, 228-229 [2009], citing CPL 100.40 [1] [c]).

The misdemeanor information charging defendant with criminal trespass in the second degree sufficiently alleged that he knowingly entered and remained unlawfully in a dwelling. It stated that Officer Lamey observed defendant in the lobby of an apartment building, beyond the vestibule and a posted “No Trespassing” sign. Moreover, defendant admitted he did not reside at the building and could not identify a resident who had invited him onto the premises. These allegations establish every element of second-degree criminal trespass and provide reasonable cause to believe defendant committed that offense.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, in a memorandum.

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CHRISTOPHER BENT, Respondent, v SEARS, ROEBUCK, & Co., et al., Appellants.

Submitted August 17, 2015; decided October 22, 2015

Reported below, 127 AD3d 540.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of BENJAMIN JUSTIN BROWNLEE, Appellant, v  
ANTHONY ANNUCCI, Acting Commissioner, New York State  
Department of Corrections and Community Supervision,  
et al., Respondents.

Submitted August 31, 2015; decided October 22, 2015

Reported below, 130 AD3d 1491.

On the Court's own motion, appeal dismissed, without costs,  
upon the ground that no substantial constitutional question is  
directly involved. Motion for leave to appeal denied. Motion for  
poor person relief dismissed as academic.

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STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S.  
SULTAN, Appellant.

Submitted August 24, 2015; decided October 22, 2015

Reported below, 126 AD3d 525.

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine  
the action within the meaning of the Constitution.

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NANCY CRUZ, Respondent, v BRONX LEBANON HOSPITAL CENTER,  
Appellant.

Submitted September 21, 2015; decided October 22, 2015

Reported below, 129 AD3d 631.

Motion to dismiss appeal denied.

Judge ABDUS-SALAAM taking no part.

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In the Matter of JORGE L. LINARES, Appellant, v ANDREA W.  
EVANS, as Chair of the Division of Parole, Respondent.

Submitted September 8, 2014; decided October 22, 2015

Reported below, 112 AD3d 1056.

Motion to dismiss appeal etc. denied.

Judge STEIN taking no part.

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JOAN C. LIPIN, Appellant, v DANSKE BANK et al., Respondents.

JOAN C. LIPIN, Appellant, v DANSKE BANK et al., Respondents,  
et al., Defendant.

Decided October 22, 2015

Reported below, 130 AD3d 470.

Appeal dismissed, with costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie.

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In the Matter of MONARCH CONSULTING, INC., et al., Respondents, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant.

In the Matter of NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant, v PRIORITY BUSINESS SERVICES, INC., Formerly Known as INLAND VALLEY STAFFING SERVICES, Respondent.

In the Matter of NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant, v SOURCE ONE STAFFING, LLC, Respondent.

Submitted October 19, 2015; decided October 22, 2015

Reported below, 123 AD3d 51.

Motion by United Policyholders for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

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JOSEPH MULLEN, Appellant, v NEIL LOCKWOOD, Respondent.

Submitted August 31, 2015; decided October 22, 2015

Reported below, 129 AD3d 1269.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in town court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

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NOMURA ASSET CAPITAL CORPORATION et al., Respondents-Appellants, v CADWALADER, WICKERSHAM & TAFT LLP, Appellant-Respondent.

Submitted October 20, 2014; decided October 22, 2015

Reported below, 115 AD3d 228.

Motion to strike portions of defendant's brief denied.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NATANAEL SAGASTUMEAL VARENGA, Respondent.

Submitted October 19, 2015; decided October 22, 2015

Reported below, 115 AD3d 684.

Motion by Randy Hertz et al. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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STEPHANIE RAAB, Respondent, v KEVIN RAAB, Appellant.

Submitted August 24, 2015; decided October 22, 2015

Reported below, 129 AD3d 1050.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of ELIZABETH RENNER, Appellant, v DANIEL COSTIGAN, Respondent. (Matter No. 1.)

In the Matter of ELIZABETH RENNER, Appellant, v DANIEL COSTIGAN, Respondent. (Matter No. 2.)

In the Matter of DANIEL A. COSTIGAN, Respondent, v ELIZABETH A. RENNER, Appellant. (Matter No. 3.)

In the Matter of DANIEL A. COSTIGAN, Respondent, v ELIZABETH A. RENNER, Appellant. (Matter No. 4.)

Submitted July 13, 2015; decided October 22, 2015

Reported below, 123 AD3d 825, 834.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

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In the Matter of STATE OF NEW YORK, Respondent, v RICHARD TT., Appellant.

Decided October 22, 2015

Reported below, 132 AD3d 72.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

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STONEHILL CAPITAL MANAGEMENT, LLC, et al., Appellants, v BANK OF THE WEST, Respondent, et al., Defendant.

Submitted August 24, 2015; decided October 22, 2015

Reported below, 127 AD3d 429.

Motion by Loan Syndications and Trading Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

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In the Matter of DELSENIOR STRACHAN, Appellant, v LINDA GILLIAM, Respondent. (Appeal No. 1.)

In the Matter of DELSENIOR STRACHAN, Appellant, v LINDA GILLIAM, Respondent. (Appeal No. 2.)

Submitted August 17, 2015; decided October 22, 2015

Reported below, 129 AD3d 1679 (Appeal Nos. 1 and 2).

Motions for leave to appeal dismissed upon the ground that the proceedings and the motions have abated because of the death of the appellant.

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LISA WOLMAN, Respondent, v ELI SHOUELA, Appellant.

Submitted August 17, 2015; decided October 22, 2015

Reported below, 129 AD3d 579.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of ARKADIAN S. and Others, Children Alleged to be Abused and Neglected. CAYUGA COUNTY DEPARTMENT OF HEALTH AND HUMAN SERVICES et al., Respondents; JOSHUA S., Appellant.

Submitted September 14, 2015; decided October 27, 2015

Reported below, 130 AD3d 1457.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of B&M KINGSTONE, LLC, Respondent, v MEGA INTERNATIONAL COMMERCIAL BANK CO., LTD., Appellant.

Submitted August 31, 2015; decided October 27, 2015

Reported below, 131 AD3d 259.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of SHAMECKIA L. BLUE, Respondent, v DARRYL F. CALDWELL, Appellant, et al., Respondent. (Appeal No. 1.)

In the Matter of SHAMECKIA L. BLUE, Respondent, v DARRYL F. CALDWELL, Appellant, and LOVANA E. BYRD-McGUIRE, Respondent. (Appeal No. 2.)

Submitted August 31, 2015; decided October 27, 2015

Reported below, 126 AD3d 1390.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the Supreme Court order settling the record on appeal, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of BRITTANY R. and Others, Children Alleged to be Permanently Neglected. SCHOHARIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ANNEMARIE R., Appellant.

Submitted August 24, 2015; decided October 27, 2015

Reported below, 130 AD3d 1271.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of CELSO L. CASTILLO, Appellant, v JOHN B. LATTELLA, Respondent.

Submitted September 8, 2015; decided October 27, 2015

Reported below, 112 AD3d 922.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by the Rules of the Court of Appeals (*see* 22 NYCRR 500.22 [b] [2]). Motion for poor person relief dismissed as academic.

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In the Matter of CONSTELLATION NUCLEAR POWER PLANTS LLC, Appellant, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Submitted September 8, 2015; decided October 27, 2015

Reported below, 131 AD3d 185.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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PAUL HSU et al., Appellants, v LIU & SHIELDS LLP et al., Respondents.

Submitted August 24, 2015; decided October 27, 2015

Reported below, 127 AD3d 522.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as dismissed the appeal from the October 2013 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine



the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

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LaSALLE NATIONAL BANK ASSOCIATION, Respondent, v TATIANA ODATO, Appellant, et al., Defendants.

Submitted September 14, 2015; decided October 27, 2015

Reported below, 126 AD3d 675.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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LYNN LEW, Appellant, v MANHASSET PUBLIC LIBRARY et al., Respondents.

Submitted August 31, 2015; decided October 27, 2015

Reported below, 123 AD3d 1096.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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DONNA M. MATSCH, Appellant, v CHEMUNG COUNTY DEPARTMENT OF PUBLIC WORKS et al., Respondents.

Submitted August 31, 2015; decided October 27, 2015

Reported below, 128 AD3d 1259.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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WILHELM NOEL, Appellant, v BRYAN TYLER, Respondent.

Submitted August 31, 2015; decided October 27, 2015

Reported below, 2015 NY Slip Op 67986(U).

Motion for leave to appeal denied. Motion for a stay dismissed as academic. Cross motion for the imposition of sanctions denied.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TERRANCE  
L. MACK, Respondent.

Decided October 27, 2015

Reported below, 117 AD3d 1450.

Reargument ordered and case set down for argument during a future session of the Court of Appeals.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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CARLAYNE SIMS, Appellant, v CITY OF NEW YORK, Respondent.

Submitted September 8, 2015; decided October 27, 2015

Reported below, 2015 NY Slip Op 77345(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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S.L., Appellant, v J.R., Respondent.

Submitted September 8, 2015; decided October 27, 2015

Reported below, 126 AD3d 682.

Motion by the Domestic Violence Legal Empowerment and Appeals Project et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

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In the Matter of VANITA UU., Respondent, v MAHENDER VV.,  
Appellant. (And Other Related Proceedings.)

Submitted August 24, 2015; decided October 27, 2015

Reported below, 130 AD3d 1161.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the Family Court order dismissing the violation petition, dismissed upon the ground that such portion of the order does not finally determine a proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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PATRICIA WARMHOLD, Appellant, v MICHAEL ZAGARINO et al.,  
Respondents.

Submitted August 31, 2015; decided October 27, 2015

Reported below, 2015 NY Slip Op 78423(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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[41 NE3d 763, 19 NYS3d 799]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VINCENT  
Izzo, Appellant.

Argued September 11, 2015; decided October 20, 2015

#### SUMMARY

APPEAL, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 7, 2014. The Appellate Division, with two Justices dissenting, affirmed an order of Chemung County Court (James T. Hayden, J.), which had classified defendant as a risk level two sex offender pursuant to the Sex Offender Registration Act.

*People v Izzo*, 120 AD3d 860, reversed.

#### HEADNOTES

**Crimes — Sex Offenders — Sex Offender Registration Act — “Number of Victims” Risk Factor — Level of “Sexual Conduct” Considered**

1. Defendant was properly assessed 30 points under risk factor 3 of the Sex Offender Registration Act (SORA) Guidelines for three or more victims even though his contact with the third victim, which involved defendant touching himself and discussing sexual matters with the child during webcam chats,

did not constitute a SORA level offense. Given that the Guidelines do not mention a SORA level offense in risk factor 3, but instead address the more general term “sexual conduct,” the conduct does not have to amount to a SORA level offense in order to be considered in assessing a defendant’s risk of reoffending. Furthermore, the child could still be a victim under risk factor 3 even though defendant and the child were not in the same room, but were communicating through a webcam.

**Crimes — Sex Offenders — Sex Offender Registration Act — “Relationship with Victim” Risk Factor — Maturity of Sex Offender Considered**

2. Defendant should not have been assessed 20 points under risk factor 7 of the Sex Offender Registration Act Guidelines for grooming his victims, since there was no clear and convincing evidence that he purposefully “groomed” his victims for the primary purpose of victimizing them, or, aside from grooming, had any relationship with the victims that would count for factor 7. Unrebutted expert evidence showed that defendant was significantly lacking in sexual and social maturity, had difficulty in understanding and interpreting social cues, functioned socially at the level of a young teenager of roughly the same age as his victims, and would be unable to maintain appropriate relationships with young women of his chronological age.

**APPEARANCES OF COUNSEL**

*Adam J. Bevelacqua*, New York City, for appellant.

*Weeden A. Wetmore*, *District Attorney*, Elmira (*Damian M. Sonsire* of counsel), for respondent.

**OPINION OF THE COURT**

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, and the matter remitted to County Court for further proceedings in accordance with this memorandum.

Defendant, who was 21 years old at the time of his arrest, was charged with various sex crimes and other offenses arising out of his contact with three underage girls. He pleaded guilty to two counts of criminal sexual act in the second degree, two counts of unlawful imprisonment in the second degree, two counts of sexual abuse in the third degree, endangering the welfare of a child and aggravated harassment in the second degree. He was placed on interim probation for a period of one year, but soon violated that probation by purchasing a computer, operating a Facebook account under an assumed name, and sending sexually explicit messages to a 17-year-old girl. He admitted to violating the terms of his interim probation and was sentenced to a two-year determinate prison term and three years’ postrelease supervision.

Prior to defendant’s release from prison, his case was returned to County Court for classification pursuant to the Sex

Offender Registration Act (*see* Correction Law art 6-C [SORA]), and upon agreement of the parties, the court determined the SORA classification on written submissions. The Board of Examiners of Sex Offenders had classified defendant through its risk assessment instrument (RAI) as a risk level two offender, assessing him 105 points, which indicates a moderate risk of re-offending. As is relevant here, the Board assessed 30 points under risk factor 3 (number of victims) for three or more victims and 20 points under risk factor 7 (relationship between offender and victim) for his relationships with the underage girls. County Court found that the assessment of 30 points for three victims was supported by clear and convincing evidence, as was the assessment of 20 points under risk factor 7, finding that defendant had “contacted [the girls] repeatedly to build a relationship which could ultimately satisfy his sexual desires.” County Court did not expressly decide defendant’s application for a downward departure.

The Appellate Division, with two Justices dissenting, affirmed (120 AD3d 860 [2014]). It agreed with County Court’s assessment of points under risk factors 3 and 7. Regarding defendant’s downward departure request, the Appellate Division held that although County Court had not expressly referenced that request, it had discussed the factors relied upon by defendant, and thus provided an adequate basis for intelligent appellate review. It concluded that defendant had failed to establish, by a preponderance of the evidence, that a downward departure was warranted. The dissent disagreed with the assessment of points under both risk factors 3 and 7, and concluded that defendant’s application for a downward departure should be remitted.

[1] We affirm the assessment of 30 points under risk factor 3 (Number of Victims) on the basis of three or more victims. The Commentary to the Guidelines states:

“This category focuses upon the number of people whom the offender victimized in the case (or cases) that ultimately resulted in the instant conviction. Clear and convincing evidence of sexual conduct by the actor against victims may be taken into consideration. The existence of multiple victims is indicative of compulsive behavior and is, therefore, a significant factor in assessing the offender’s risk of reoffense and dangerousness” (Sex Offender Registration Act: Risk Assessment Guidelines and Commentary at 10 [2006]).

One of the complainants testified before the grand jury that she and defendant had engaged in webcam chats, and that during one such chat, defendant was touching himself outside his clothing, below the waist on his penis, while telling her she “could help him with [her] hands to fix it” and that she would “be good at it.” She also testified that on another occasion while they were talking on the webcam, defendant told her he had purchased fuzzy handcuffs and a kinky outfit for her. During the plea allocution, the court described defendant’s conduct as testified to by the complainant. Defendant said he remembered the webchat, but not the other parts, and that maybe sexual matters were discussed, but that was all he remembered. The Judge stated: “For purposes of this plea, . . . you are admitting [to] endangering the welfare of a child by discussing sexual issues, et cetera, with this child.”

Defendant argues that this girl should not be counted as a third victim because his actions towards her were not SORA level sex offenses. The People concede that the facts surrounding defendant’s contact with this girl did not constitute a SORA level offense but assert that she may still be considered a victim under the Guidelines, arguing that defendant’s narrow reading of the term “sexual conduct” would not allow for courts to take into account clearly inappropriate sexual behavior which may be relevant in assessing a defendant’s risk of reoffending. Given that the Guidelines do not mention a SORA level offense in risk factor 3, but instead address the more general term, “sexual conduct,” we agree with the People that the conduct does not have to amount to a SORA level offense in order to be considered. Furthermore, the child can still be a victim under risk factor 3 even though the defendant and the child were not in the same room, but were communicating through a webcam (see *People v DeDona*, 102 AD3d 58, 63 [2d Dept 2012] [points assessed under risk factor 3 where defendant was communicating by webcam to an undercover officer posing as an underage girl, concluding that risk factor 3 does not require actual, physical sexual contact between the offender and the victim]).

[2] Regarding risk factor 7, the Commentary provides that “[t]he guidelines assess 20 points if the offender’s crime (i) was directed at a stranger or a person with whom a relationship had been established or promoted for the primary purpose of victimization” and that

“[t]he phrase ‘established or promoted for the primary purpose of victimization’ is adopted from

the Act itself. An uncle who offends against his niece generally would not fall into this category. A scout leader who chooses his profession or vocation to gain access to victims and ‘grooms’ his victims before sexually abusing them would qualify” (SORA Guidelines at 12 [citation omitted]).

County Court found that defendant and the victims were not strangers, but assessed 20 points for grooming, finding that it was “apparent that the defendant approached these girls because they were younger, immature, and needy” and that defendant’s “intentions for these girls [was] apparent from his first contact with them.”

The Appellate Division majority was persuaded that there was clear and convincing evidence that defendant engaged in “grooming” behavior. However, the dissent concluded, and we agree, that given the expert evidence (unrebutted by the People) “defendant is significantly lacking in sexual and social maturity, has difficulty in understanding and interpreting social cues, functions socially at the level of a young teenager of roughly the same age as his victims, and would be unable to maintain appropriate relationships with young women of his chronological age” (120 AD3d at 864 [Garry, J., dissenting]), there was no clear and convincing evidence that he purposefully “groomed” the victims for the primary purpose of victimizing them, or, aside from grooming, had any relationship with the girls that would count for factor 7. Accordingly, we agree with defendant that he should not have been assessed points under factor 7. Because the courts below used an incorrect RAI score, we remit to County Court for determination of the downward departure application in accordance with *People v Gillotti* (23 NY3d 841 [2014]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order reversed, without costs, and matter remitted to County Court, Chemung County, for further proceedings in accordance with the memorandum herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWIN  
MENDEZ, Appellant.

Decided October 27, 2015

**SUMMARY**

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 10, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree.

*People v Mendez*, 116 AD3d 513, reversed.

**HEADNOTE**

**Crimes — Jurors — Trial Court's Failure to Respond in Any Way to  
Substantive Jury Inquiry — Reversal Required**

In an assault prosecution wherein the People introduced into evidence several recordings of telephone calls that defendant made while he was in jail awaiting trial, the trial court's failure to inform counsel of two notes sent by the jurors during deliberations requesting to see the transcripts of the phone calls that included Spanish-to-English translations they were given while they were listening to the tape recordings, or respond to the jury in any way before the jury ultimately found defendant guilty, required reversal. The jury's request to see the transcripts did not merely require the ministerial actions of informing the jury that none of the items they requested were in evidence. Inasmuch as a significant portion of defendant's conversations were conducted in Spanish, the jury could not be expected to understand the recordings without the aid of the transcripts. Moreover, the trial court expressly invited the jurors to ask for the transcripts during deliberations and told them the procedure by which they could see the transcripts, which involved reassembling the jury in the courtroom. Thus, the jury's requests for the transcripts required a substantive response.

**APPEARANCES OF COUNSEL**

*Fitzpatrick, Cella, Harper & Scinto*, New York City (*C. Austin Ginnings* of counsel), and *Richard M. Greenberg*, Office of the Appellate Defender, New York City (*Margaret E. Knight* of counsel), for appellant.

*Cyrus R. Vance, Jr.*, District Attorney, New York City (*Jared Wolkowitz* and *Grace Vee* of counsel), for respondent.

**OPINION OF THE COURT**

MEMORANDUM.

The order of the Appellate Division should be reversed and the indictment dismissed, with leave to the People, if they be



so advised, to resubmit the charge of assault in the second degree to a new grand jury.

Defendant was charged with assault for his conduct during a street brawl in January 2011. During the ensuing jury trial, the People introduced into evidence several recordings of telephone calls that defendant made while he was in jail awaiting trial. Inasmuch as defendant and the other participants in the calls sometimes spoke in Spanish, the People prepared transcripts of the phone calls that included Spanish-to-English translations. The transcripts themselves were not admitted into evidence but were used as an aid to the jurors while they listened to the recordings. The court told the jurors twice during the course of the trial that the transcripts were not in evidence, but that if they wanted to see the transcripts during deliberations, they should ask to do so, and the court would then bring the jury in the courtroom and distribute the transcripts while the recordings were played back to the jury.

During deliberations, the jurors sent, among other notes, two notes requesting to see the transcripts they were given while they were listening to the tape recordings. The record does not indicate that the trial court informed counsel of these notes or responded to the jury in any way before the jury ultimately found defendant guilty of assault in the second degree.

For reasons stated in *People v Silva* (24 NY3d 294 [2014], *rearg denied* 24 NY3d 1216 [2015]), the Appellate Division erred in holding that reversal was not required. Contrary to the Appellate Division's determination, the jury's request to see the transcripts did not merely require "the ministerial actions of informing the jury that none of the items they requested were in evidence" (*People v Mendez*, 116 AD3d 513, 513 [1st Dept 2014]). Inasmuch as a significant portion of defendant's conversations were conducted in Spanish, the jury could not be expected to understand the recordings without the aid of the transcripts (*cf. People v Miller*, 8 AD3d 176, 177 [1st Dept 2004], *affd as mod* 6 NY3d 295 [2006]). Moreover, the trial court expressly invited the jurors to ask for the transcripts during deliberations and told them the procedure by which they could see the transcripts, which involved reassembling the jury in the courtroom. Thus, the jury's requests for the transcripts required a substantive response, and reversal is required because these "substantive jury notes, marked as court exhibits, were neither revealed to the attorneys nor addressed by the court[ ]" (*Silva*, 24 NY3d at 300).

In light of our holding, we do not reach defendant's remaining contention.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and indictment dismissed, with leave to the People, if they be so advised, to resubmit the charge of assault in the second degree to a new grand jury, in a memorandum.

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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE  
OF COURT OF APPEALS OR ON CONSENT**

(October 1, 2015 through October 31, 2015)

|                                     |                        |         |
|-------------------------------------|------------------------|---------|
| Wells Fargo Bank, N.A. v<br>Erobobo | 2d Dept: 127 AD3d 1176 | 10/2/15 |
|-------------------------------------|------------------------|---------|

**APPEALS WITHDRAWN AND DISCONTINUED**

(October 1, 2015 through October 31, 2015)

|                                                |                        |          |
|------------------------------------------------|------------------------|----------|
| Echevarria, Matter of, v<br>Wambua             | 1st Dept: 116 AD3d 418 | 10/19/15 |
| State of New York, Matter of, v<br>Humberto G. | 2d Dept: 119 AD3d 594  | 10/6/15  |

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(October 1, 2015 through October 31, 2015)

|                               |                                    |                                                      |
|-------------------------------|------------------------------------|------------------------------------------------------|
| People v Adamson              | 1st Dept: 127 AD3d 566 (NY)        | denied<br>reconsideration<br>10/27/15<br>(Fahey, J.) |
| People v Algarin              | 1st Dept: 130 AD3d 401 (NY)        | denied 10/1/15<br>(Pigott, J.)                       |
| People v Almeida<br>(Denys)   | 4th Dept: 128 AD3d 1451 (Onondaga) | denied 10/9/15<br>(Rivera, J.)                       |
| People v Almeida<br>(Michael) | 3d Dept: 127 AD3d 1499 (Albany)    | denied 10/27/15<br>(Fahey, J.)                       |
| People v Almonte              | 1st Dept: 121 AD3d 448 (NY)        | denied 10/9/15<br>(Rivera, J.)                       |
| People v Atkinson             | 3d Dept: 119 AD3d 1151 (Tompkins)  | denied 10/16/15<br>(Rivera, J.)                      |
| People v Ayers                | 2d Dept: 128 AD3d 845 (Kings)      | denied 10/30/15<br>(Pigott, J.)                      |

## MEMORANDA

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|                                 |                                                            |                                                            |
|---------------------------------|------------------------------------------------------------|------------------------------------------------------------|
| People v Barksdale<br>(Jovan)   | 4th Dept: 129 AD3d 1497 (Erie)                             | denied<br>reconsideration<br>10/26/15<br>(Stein, J.)       |
| People v Barksdale<br>(Stephen) | 2d Dept: 130 AD3d 746 (Kings)                              | denied 10/23/15<br>(Stein, J.)                             |
| People v Barnes                 | App Div, 1st Dept: 2015 NY Slip Op<br>78084(U) (NY)        | dismissed<br>10/13/15<br>(Stein, J.)                       |
| People v Batista                | 1st Dept: 130 AD3d 503 (NY)                                | denied 10/27/15<br>(Pigott, J.)                            |
| People v Beliard                | App Div, 3d Dept: 2015 NY Slip Op<br>75124(U) (Rensselaer) | denied 10/1/15<br>(Pigott, J.)                             |
| People v Boyd                   | County Ct, 2/10/15 (Madison)                               | denied<br>reconsideration<br>10/1/15<br>(Pigott, J.)       |
| People v Bridgewater            | App Div, 1st Dept: 2014 NY Slip Op<br>89531(U) (Bronx)     | denied<br>reconsideration<br>10/30/15<br>(Lippman, Ch. J.) |
| People v Brown (Andre)          | 2d Dept: 129 AD3d 854 (Queens)                             | withdrawn<br>10/27/15<br>(Fahey, J.)                       |
| People v Brown (Josh)           | App Div, 2d Dept: 2015 NY Slip Op<br>79683(U) (Queens)     | dismissed<br>10/13/15<br>(Stein, J.)                       |
| People v Bruce                  | 2d Dept: 130 AD3d 938 (Kings)                              | denied 10/28/15<br>(Fahey, J.)                             |
| People v Bush                   | App Div, 2d Dept: 2015 NY Slip Op<br>79847(U) (Kings)      | dismissed 10/1/15<br>(Pigott, J.)                          |
| People v Cargill                | 2d Dept: 131 AD3d 482 (Kings)                              | denied 10/28/15<br>(Pigott, J.)                            |
| People v Carter<br>(Lefonza)    | 3d Dept: 131 AD3d 717 (Warren)                             | denied 10/28/15<br>(Fahey, J.)                             |
| People v Carter (Ronald)        | 2d Dept: 130 AD3d 1060 (Queens)                            | denied 10/28/15<br>(Pigott, J.)                            |
| People v Cates                  | App Term, 1st Dept: 48 Misc 3d 135(A)<br>(Bronx)           | denied 10/15/15<br>(Stein, J.)                             |
| People v Chaves                 | App Div, 1st Dept: 2015 NY Slip Op<br>60231(U) (Bronx)     | dismissed<br>10/23/15<br>(Stein, J.)                       |
| People v Chavez-Zuniga          | App Term, 1st Dept: 48 Misc 3d 91<br>(Bronx)               | denied 10/27/15<br>(Fahey, J.)                             |
| People v Chrisley               | 4th Dept: 126 AD3d 1495 (Genesee)                          | denied 10/1/15<br>(Pigott, J.)                             |
| People v Colon                  | 1st Dept: 130 AD3d 434 (NY)                                | denied 10/27/15<br>(Fahey, J.)                             |
| People v Costello               | 2d Dept: 128 AD3d 848 (Queens)                             | denied<br>reconsideration<br>10/19/15<br>(Lippman, Ch. J.) |

|                                           |                                                        |                                                               |
|-------------------------------------------|--------------------------------------------------------|---------------------------------------------------------------|
| People v Cotter                           | County Ct, 7/14/15 (Chautauqua)                        | denied 10/28/15<br>(Stein, J.)                                |
| People v Cousar                           | 2d Dept: 128 AD3d 716 (Orange)                         | denied 10/15/15<br>(Rivera, J.)                               |
| People v Cruz (Julio)                     | 1st Dept: 130 AD3d 504 (NY)                            | denied 10/27/15<br>(Pigott, J.)                               |
| People v Cruz (Michael)                   | 4th Dept: 130 AD3d 1538 (Cattaraugus)                  | denied 10/28/15<br>(Stein, J.)                                |
| People v DeCarr                           | 3d Dept: 130 AD3d 1365 (Franklin)                      | denied 10/28/15<br>(Fahey, J.)                                |
| People v DiSalvo                          | 2d Dept: 130 AD3d 841 (Suffolk)                        | denied 10/28/15<br>(Stein, J.)                                |
| People v Dorvilier                        | 2d Dept: 130 AD3d 1061 (Queens)                        | denied 10/23/15<br>(Stein, J.)                                |
| People v Douglas                          | App Div, 1st Dept: 2015 NY Slip Op<br>70985(U) (Bronx) | denied<br>reconsideration<br>10/2/15<br>(Abdus-Salaam,<br>J.) |
| People v Dunbar                           | 1st Dept: 129 AD3d 419 (NY)                            | denied 10/15/15<br>(Rivera, J.)                               |
| People v Dupree                           | 2d Dept: 130 AD3d 752 (Queens)                         | denied 10/2/15<br>(Fahey, J.)                                 |
| People v Ewart                            | 2d Dept: 130 AD3d 1062 (Nassau)                        | denied 10/27/15<br>(Fahey, J.)                                |
| People v Ferrell                          | App Div, 4th Dept: 2015 NY Slip Op<br>74346(U) (Wayne) | dismissed<br>10/27/15<br>(Pigott, J.)                         |
| People v Fisher                           | 1st Dept: 119 AD3d 426 (NY)                            | granted 10/5/15<br>(Rivera, J.)                               |
| People v Fleming                          | App Div, 1st Dept: 2015 NY Slip Op<br>74080(U) (Bronx) | denied<br>reconsideration<br>10/30/15<br>(Lippman, Ch. J.)    |
| People v Frazier                          | 2d Dept: 127 AD3d 1229 (Kings)                         | denied 10/30/15<br>(Lippman, Ch. J.)                          |
| People v George                           | 2d Dept: 131 AD3d 623 (Kings)                          | denied 10/6/15<br>(Lippman, Ch. J.)                           |
| People v Golyunker                        | 2d Dept: 131 AD3d 624 (Kings)                          | denied 10/28/15<br>(Pigott, J.)                               |
| People v Graham                           | 4th Dept: 125 AD3d 1496 (Monroe)                       | denied 10/30/15<br>(Lippman, Ch. J.)                          |
| People v Greenman                         | App Div, 1st Dept: 2015 NY Slip Op<br>78640(U) (NY)    | dismissed<br>10/27/15<br>(Pigott, J.)                         |
| People v Hall                             | 2d Dept: 130 AD3d 753 (Westchester)                    | denied 10/28/15<br>(Pigott, J.)                               |
| People v Hampton                          | App Div, 1st Dept: 2015 NY Slip Op<br>76272(U) (NY)    | denied 10/1/15<br>(Pigott, J.)                                |
| People v Harriott                         | 1st Dept: 128 AD3d 470 (NY)                            | denied 10/30/15<br>(Pigott, J.)                               |
| People v Harry's Nurses<br>Registry, Inc. | App Div, 2d Dept: 2015 NY Slip Op<br>77454(U) (Queens) | denied 10/23/15<br>(Stein, J.)                                |

## MEMORANDA

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|                                |                                                         |                                                      |
|--------------------------------|---------------------------------------------------------|------------------------------------------------------|
| People v Hathaway              | 4th Dept: 130 AD3d 1507 (Monroe)                        | denied 10/23/15<br>(Stein, J.)                       |
| People v Hawkins               | App Div, 1st Dept: 2015 NY Slip Op<br>76272(U) (NY)     | denied 10/1/15<br>(Pigott, J.)                       |
| People v Hidalgo               | 2d Dept: 131 AD3d 483 (Kings)                           | denied 10/23/15<br>(Stein, J.)                       |
| People v Hines                 | 2d Dept: 128 AD3d 722 (Westchester)                     | denied 10/15/15<br>(Rivera, J.)                      |
| People v Hobson                | 2d Dept: 131 AD3d 546 (Kings)                           | denied 10/6/15<br>(Lippman, Ch. J.)                  |
| People v Hoffman               | 3d Dept: 130 AD3d 1152 (Rensselaer)                     | denied 10/27/15<br>(Fahey, J.)                       |
| People v Jacobs                | 2d Dept: 128 AD3d 850 (Nassau)                          | denied 10/15/15<br>(Rivera, J.)                      |
| People v Jeffords              | County Ct, 6/9/15 (Niagara)                             | denied 10/15/15<br>(Rivera, J.)                      |
| People v Johnson (Jose)        | 4th Dept: 129 AD3d 1516 (Erie)                          | denied 10/15/15<br>(Rivera, J.)                      |
| People v Johnson<br>(Lawrence) | 1st Dept: 127 AD3d 451 (Bronx)                          | denied 10/9/15<br>(Rivera, J.)                       |
| People v Jordan                | 2d Dept: 125 AD3d 787 (Kings)                           | granted 10/23/15<br>(Abdus-Salaam,<br>J.)            |
| People v Joslin                | 3d Dept: 130 AD3d 1093 (Delaware)                       | denied 10/28/15<br>(Fahey, J.)                       |
| People v Kaplan                | 1st Dept: 125 AD3d 465 (NY)                             | denied<br>reconsideration<br>10/1/15<br>(Pigott, J.) |
| People v Karlsen               | App Div, 4th Dept, 7/10/15 (Seneca)                     | dismissed 10/2/15<br>(Abdus-Salaam,<br>J.)           |
| People v King                  | App Div, 4th Dept: 2015 NY Slip Op<br>73813(U) (Erie)   | denied<br>reconsideration<br>10/8/15<br>(Stein, J.)  |
| People v Knotts                | 2d Dept: 130 AD3d 943 (Kings)                           | denied 10/5/15<br>(Stein, J.)                        |
| People v Lakotosz              | App Div, 3d Dept: 2015 NY Slip Op<br>73158(U) (Madison) | denied 10/15/15<br>(Rivera, J.)                      |
| People v Lanier                | 3d Dept: 130 AD3d 1310 (Rensselaer)                     | denied 10/29/15<br>(Fahey, J.)                       |
| People v LaRosa                | 2d Dept: 130 AD3d 757 (Suffolk)                         | denied 10/1/15<br>(Pigott, J.)                       |
| People v LaTouche              | 2d Dept: 130 AD3d 846 (Rockland)                        | denied 10/30/15<br>(Lippman, Ch. J.)                 |
| People v Laurendi              | 4th Dept: 126 AD3d 1401 (Erie)                          | denied 10/9/15<br>(Rivera, J.)                       |
| People v Lewis                 | 1st Dept: 129 AD3d 637 (Bronx)                          | denied 10/28/15<br>(Fahey, J.)                       |
| People v Lopez                 | 2d Dept: 128 AD3d 1093 (Dutchess)                       | denied 10/15/15<br>(Rivera, J.)                      |

|                                    |                                                                                       |                                                            |
|------------------------------------|---------------------------------------------------------------------------------------|------------------------------------------------------------|
| People v Louis                     | 2d Dept: 131 AD3d 491 (Kings)                                                         | denied 10/23/15<br>(Stein, J.)                             |
| People v Martinez<br>(Christopher) | App Div, 4th Dept, 7/1/15 (Oneida)                                                    | dismissed<br>10/27/15<br>(Pigott, J.)                      |
| People v Martinez (Rey)            | 3d Dept: 130 AD3d 1087 (Albany)                                                       | denied 10/30/15<br>(Lippman, Ch. J.)                       |
| People v Matthews                  | App Term, 2d Dept, 9th & 10th Jud<br>Dists: 2015 NY Slip Op 82141(U)<br>(Westchester) | dismissed<br>10/30/15<br>(Lippman, Ch. J.)                 |
| People v Maxwell                   | 1st Dept: 130 AD3d 533 (NY)                                                           | denied 10/23/15<br>(Stein, J.)                             |
| People v McCullough                | 4th Dept: 128 AD3d 1510 (Monroe)                                                      | denied 10/2/15<br>(Pigott, J.)                             |
| People v Mitchell                  | 4th Dept: 126 AD3d 1408 (Monroe)                                                      | denied 10/9/15<br>(Rivera, J.)                             |
| People v Morocho                   | 2d Dept: 129 AD3d 1107 (Nassau)                                                       | denied 10/28/15<br>(Stein, J.)                             |
| People v Nadal                     | 2d Dept: 128 AD3d 733 (Westchester)                                                   | denied 10/15/15<br>(Rivera, J.)                            |
| People v Nashal                    | 1st Dept: 130 AD3d 480 (NY)                                                           | denied 10/1/15<br>(Pigott, J.)                             |
| People v Nunez                     | App Div, 1st Dept: 2014 NY Slip Op<br>89531(U) (Bronx)                                | denied<br>reconsideration<br>10/30/15<br>(Lippman, Ch. J.) |
| People v Ortiz (David)             | 3d Dept: 127 AD3d 1416 (Albany)                                                       | denied 10/1/15<br>(Pigott, J.)                             |
| People v Ortiz (Jai)               | App Div, 1st Dept: 2015 NY Slip Op<br>78976(U) (NY)                                   | dismissed<br>10/19/15<br>(Lippman, Ch. J.)                 |
| People v Parker                    | 2d Dept: 131 AD3d 550 (Kings)                                                         | denied 10/27/15<br>(Fahey, J.)                             |
| People v Partlow                   | 1st Dept: 129 AD3d 540 (NY)                                                           | denied 10/15/15<br>(Rivera, J.)                            |
| People v Perea                     | 2d Dept: 128 AD3d 986 (Kings)                                                         | denied 10/15/15<br>(Rivera, J.)                            |
| People v Perez                     | 2d Dept: 126 AD3d 814 (Westchester)                                                   | denied 10/9/15<br>(Rivera, J.)                             |
| People v Pettersen                 | 4th Dept: 130 AD3d 1536 (Oneida)                                                      | denied 10/5/15<br>(Stein, J.)                              |
| People v Ponikau                   | County Ct, 7/21/15 (Erie)                                                             | denied 10/23/15<br>(Stein, J.)                             |
| People v Ramsey                    | County Ct, 5/27/15 (Washington)                                                       | granted 10/16/15<br>(Rivera, J.)                           |
| People v Robinson                  | 1st Dept: 129 AD3d 550 (NY)                                                           | denied 10/28/15<br>(Fahey, J.)                             |
| People v Rodriguez                 | 1st Dept: 127 AD3d 670 (Bronx)                                                        | denied 10/15/15<br>(Rivera, J.)                            |

## MEMORANDA

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|-----------------------------|-----------------------------------------------------|---------------------------------------------------|
| People v Rosales            | App Div, 1st Dept: 2015 NY Slip Op 66392(U) (NY)    | denied reconsideration 10/30/15 (Lippman, Ch. J.) |
| People v Rotger             | 3d Dept: 129 AD3d 1330 (Broome)                     | denied* 10/1/15 (Fahey, J.)                       |
| People v Sabo               | 2d Dept: 117 AD3d 1089 (Kings)                      | denied 10/9/15 (Rivera, J.)                       |
| People v Sainz-Mantilla     | 1st Dept: 129 AD3d 508 (NY)                         | denied 10/1/15 (Pigott, J.)                       |
| People v Sanders            | 1st Dept: 130 AD3d 519 (NY)                         | denied 10/23/15 (Stein, J.)                       |
| People v Santoro            | 2d Dept: 129 AD3d 870 (Dutchess)                    | denied 10/23/15 (Stein, J.)                       |
| People v Saturria           | 1st Dept: 127 AD3d 673 (NY)                         | denied 10/15/15 (Rivera, J.)                      |
| People v Schultz            | 2d Dept: 128 AD3d 989 (Queens)                      | denied 10/15/15 (Rivera, J.)                      |
| People v Schwartzfigure     | County Ct, 8/5/15 (St. Lawrence)                    | denied 10/30/15 (Lippman, Ch. J.)                 |
| People v Serrano            | App Div, 1st Dept: 2014 NY Slip Op 90409(U) (NY)    | dismissed 10/27/15 (Fahey, J.)                    |
| People v Smith (Devin)      | 3d Dept: 130 AD3d 1375 (Warren)                     | denied 10/28/15 (Fahey, J.)                       |
| People v Smith (Jason)      | 4th Dept: 128 AD3d 1434 (Monroe)                    | denied 10/15/15 (Rivera, J.)                      |
| People v Stephens (Harvert) | 4th Dept: 128 AD3d 1497 (Onondaga)                  | granted 10/5/15 (Rivera, J.)                      |
| People v Stephens (Havert)  | 4th Dept: 128 AD3d 1497 (Onondaga)                  | granted 10/5/15 (Rivera, J.)                      |
| People v Stokes             | 2d Dept: 126 AD3d 1018 (Queens)                     | denied 10/9/15 (Rivera, J.)                       |
| People v Tanney             | App Term, 1st Dept: 47 Misc 3d 85 (NY)              | denied 10/9/15 (Rivera, J.)                       |
| People v Tate               | 1st Dept: 130 AD3d 505 (NY)                         | denied 10/27/15 (Pigott, J.)                      |
| People v Thompson           | 2d Dept: 125 AD3d 1013 (Queens)                     | denied reconsideration 10/23/15 (Stein, J.)       |
| People v Tor (Buddha)       | App Div, 1st Dept: 2014 NY Slip Op 87333(U) (Bronx) | denied reconsideration 10/28/15 (Pigott, J.)      |
| People v Tor (Budha)        | App Div, 1st Dept: 2014 NY Slip Op 87333(U) (Bronx) | denied reconsideration 10/28/15 (Pigott, J.)      |

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\* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Small* (112 AD3d 857 [2013], *lv granted* 23 NY3d 1067 [2014]).

|                             |                                                        |                                                      |
|-----------------------------|--------------------------------------------------------|------------------------------------------------------|
| People v Trevino            | 1st Dept: 126 AD3d 616 (NY)                            | denied 10/9/15<br>(Rivera, J.)                       |
| People v Trimm              | 3d Dept: 129 AD3d 1215 (St. Lawrence)                  | denied 10/26/15<br>(Fahey, J.)                       |
| People v VanVleet           | 4th Dept: 126 AD3d 1359 (Seneca)                       | denied 10/9/15<br>(Rivera, J.)                       |
| People v Walker<br>(Selwyn) | App Div, 2d Dept: 2015 NY Slip Op<br>61485(U) (Queens) | dismissed<br>10/29/15<br>(Fahey, J.)                 |
| People v Walker<br>(Selwyn) | App Div, 2d Dept: 2014 NY Slip Op<br>83428(U) (Queens) | dismissed<br>10/29/15<br>(Fahey, J.)                 |
| People v Walters            | App Div, 2d Dept: 2015 NY Slip Op<br>80580(U) (Nassau) | dismissed<br>10/28/15<br>(Fahey, J.)                 |
| People v Ward               | 1st Dept: 128 AD3d 485 (NY)                            | denied 10/1/15<br>(Rivera, J.)                       |
| People v Weinstock          | 4th Dept: 129 AD3d 1663 (Monroe)                       | denied 10/2/15<br>(Stein, J.)                        |
| People v Wellington         | 2d Dept: 130 AD3d 1086 (Kings)                         | denied 10/27/15<br>(Fahey, J.)                       |
| People v Wells              | 1st Dept: 130 AD3d 457 (NY)                            | denied 10/28/15<br>(Stein, J.)                       |
| People v White              | 4th Dept: 128 AD3d 1457 (Monroe)                       | denied 10/15/15<br>(Rivera, J.)                      |
| People v Wiggins            | 2d Dept: 126 AD3d 921 (Orange)                         | denied<br>reconsideration<br>10/27/15<br>(Fahey, J.) |
| People v Williams           | 1st Dept: 129 AD3d 477 (NY)                            | denied 10/15/15<br>(Rivera, J.)                      |
| People v Willock            | 2d Dept: 125 AD3d 901 (Kings)                          | denied 10/30/15<br>(Lippman, Ch. J.)                 |
| People v Wilson             | 2d Dept: 121 AD3d 724 (Queens)                         | denied 10/1/15<br>(Pigott, J.)                       |
| People v Zeledon            | 2d Dept: 131 AD3d 553 (Queens)                         | denied 10/23/15<br>(Stein, J.)                       |

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[42 NE3d 212, 20 NYS3d 542]

In the Matter of JORGE L. LINARES, Appellant, v ANDREA W.  
EVANS, as Chair of the Board of Parole, Respondent.

Argued September 8, 2015; decided October 22, 2015

### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order  
of the Appellate Division of the Supreme Court in the Third



Judicial Department, entered December 5, 2013. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Albany County (Roger D. McDonough, J.), which had dismissed petitioner's application, in a proceeding pursuant to CPLR article 78, to review a determination of the Board of Parole denying petitioner's request for parole release; (2) annulled the determination; and (3) remitted the matter to the Board of Parole for further proceedings.

*Matter of Linares v Evans*, 112 AD3d 1056, affirmed.

#### HEADNOTE

##### **Appeal — Court of Appeals — Matters Reviewable**

Where petitioner challenged the validity and potential application of certain regulations of the Board of Parole addressing risks and needs assessments and related matters (*see* 9 NYCRR 8002.3 [a]) that the Board promulgated after its determination denying petitioner's request for parole release, none of petitioner's statutory and regulatory claims were reviewable by the Court of Appeals. The Board had not had an opportunity to consider petitioner's arguments, and given the impact that a determination of petitioner's claims would have in his and future cases, the more prudent course was to leave the propriety of the regulations to be raised in the first instance before the Board.

#### APPEARANCES OF COUNSEL

*Alfred O'Connor, New York State Defenders Association, Albany, and Alan Rosenthal, Center for Community Alternatives, Syracuse*, for appellant.

*Eric T. Schneiderman, Attorney General, Albany (Kate H. Nepveu, Barbara D. Underwood, Andrea Oser and Nancy A. Spiegel of counsel)*, for respondent.

*Morningside Heights Legal Services, Inc., New York City (Philip M. Genty of counsel)*, for Columbia Law School Prisoners and Families Clinic, amicus curiae.

*Skadden, Arps, Slate, Meagher & Flom LLP, New York City (Boris Bershteyn and Ramya Ravishankar of counsel)*, for Tim Brennan and others, amici curiae.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Petitioner challenges the validity and potential application of certain regulations of the Board of Parole which address risks and needs assessments and related matters (*see* 9 NYCRR 8002.3 [a]). However, the Board promulgated those regulations

after its determination here and has not had an opportunity to consider petitioner's arguments. Given the impact that a determination of petitioner's claims will certainly have in this and future cases, the more prudent course is to leave the propriety of the regulations to be raised in the first instance before the Board (*see Walton v New York State Dept. of Correctional Servs.*, 8 NY3d 186, 197 [2007]; *Schiavone v City of New York*, 92 NY2d 308, 317 [1998]; *see also Matter of Red Hook/Gowanus Chamber of Commerce v New York City Bd. of Stds. & Appeals*, 5 NY3d 452, 461-462 [2005]). Because, under the particular circumstances of this case, none of petitioner's statutory and regulatory claims are reviewable on appeal at this juncture, we express no opinion on the merits of those claims.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Judge STEIN taking no part.

Order affirmed, without costs, in a memorandum.

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[42 NE3d 1205, 21 NYS3d 686]

In the Matter of NOEL OLMOSPerez, Appellant, v ANDREA W. EVANS, as Chair of the Board of Parole, Respondent.

Decided October 22, 2015

#### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered February 20, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Peter A. Lynch, J.), which had dismissed petitioner's application, in a proceeding pursuant to CPLR article 78, to review a determination of the Board of Parole denying his request for parole release.

The Appellate Division determined that the record reflected that the Board of Parole considered the relevant statutory factors in denying petitioner's request for parole release, including his positive programming and disciplinary record, plans upon release, his COMPAS risk and reentry needs assessment, nature of the instant offense and expressions of remorse. The Appellate Division was unpersuaded that the Board's placement of particular emphasis on the heinous and callous nature of the offense demonstrated irrationality bordering on impropriety.

*Matter of Olmosperez v Evans*, 114 AD3d 1077, affirmed.

## HEADNOTE

**Parole — Denial — Judicial Review**

An order of the Appellate Division, which affirmed a judgment dismissing petitioner's application, in a proceeding pursuant to CPLR article 78, to review a determination of the Board of Parole denying his request for parole release, was affirmed.

## APPEARANCES OF COUNSEL

*Seymour W. James, Jr., The Legal Aid Society*, New York City (*Cynthia H. Conti-Cook* and *Caroline Hsu* of counsel), for appellant.

*Eric T. Schneiderman, Attorney General*, Albany (*Frank Brady, Barbara D. Underwood, Andrea Oser* and *Nancy A. Spiegel* of counsel), for respondent.

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs (*see Matter of Linares v Evans*, 26 NY3d 1012 [2015] [decided today]; *Matter of Silmon v Travis*, 95 NY2d 470, 476 [2000]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Judge STEIN taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, in a memorandum.

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[42 NE3d 212, 20 NYS3d 542]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TYSON SYDORIAK, Respondent.

Decided October 27, 2015

## SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 27, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Kenneth C. Holder, J.), which had convicted defendant, upon his plea of guilty, of attempted murder in the second degree, and, upon a jury verdict, of attempted robbery in the first degree

(two counts), attempted robbery in the second degree, criminal possession of a weapon in the second degree, attempted criminal possession of a controlled substance in the second degree, and attempted criminal possession of a controlled substance in the third degree; and (2) ordered a new trial.

The Appellate Division concluded that Supreme Court's failure to comply with CPL 310.30 in accordance with the procedure set forth in *People v O'Rama* (78 NY2d 270 [1991]), with respect to three jury notes sent during deliberations, required a new trial. Without initially reading the first note to counsel outside the presence of the jury, Supreme Court, with all parties present, read a portion of the note into the record, and then immediately responded to the jury's question. When the jury subsequently sent two more notes, Supreme Court once again, without any consultation with counsel, called the jury into the courtroom, read the notes into the record, and immediately provided the instructions and the readback which it understood the jury to have requested. Although defendant failed to object to the manner in which Supreme Court handled the notes, the Appellate Division determined that, under the circumstances, the *O'Rama* error was not subject to the preservation requirement.

*People v Sydorik*, 120 AD3d 840, reversed.

#### HEADNOTE

##### **Crimes — Appeal — Preservation of Issue for Review — Trial Court's Handling of Substantive Jury Notes**

An order of the Appellate Division which had reversed, on the law, a judgment convicting defendant of various crimes, based on Supreme Court's handling of three jury notes sent during deliberations, was reversed and the case remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court, for reasons stated in *People v Nealon* (26 NY3d 152 [2015]): where counsel has meaningful notice of a substantive jury note because the court has read the precise content of the note into the record in the presence of counsel, defendant, and the jury, the court's failure to discuss the note with counsel before recalling the jury is not a mode of proceedings error.

#### APPEARANCES OF COUNSEL

*Richard A. Brown*, District Attorney, Kew Gardens (*Christopher J. Blira-Koessler* of counsel), for appellant.

*Lynn W.L. Fahey*, Appellate Advocates, New York City (*Alexis A. Ascher* of counsel), for respondent.

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on the appeal to that Court, for reasons stated in *People v Nealon* (26 NY3d 152 [2015] [decided herewith]).

Chief Judge LIPPMAN (dissenting). I dissent, and would affirm the order of the Appellate Division for the reasons stated in my dissenting opinion in *People v Nealon* (26 NY3d 152 [2015] [decided herewith]).

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge LIPPMAN dissents in an opinion in which Judge RIVERA concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on the appeal to that Court, in a memorandum.

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[41 NE3d 1142, 20 NYS3d 327]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALFRED GARY, Appellant.

Argued October 13, 2015; decided November 18, 2015

## SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 12, 2014. The Appellate Division (1) affirmed a judgment of the Supreme Court, Nassau County (Norman St. George, J.), which had convicted defendant, after a nonjury trial, of conspiracy in the fourth degree; and (2) remitted the matter to Supreme Court for further proceedings pursuant to CPL 460.50 (5).

*People v Gary*, 115 AD3d 760, affirmed.

**HEADNOTE****Crimes — Evidence — Document Covered by Parties' Stipulation of Admissibility — Timeliness of Hearsay Objection**

The trial court in defendant's prosecution for participating in a scheme to defraud mortgage lenders did not abuse its discretion in admitting into evidence a document, which had been deemed admissible pursuant to the parties' pretrial stipulation containing a loan officer's handwritten note that defendant verbally confirmed certain false information, where defense counsel did not raise a hearsay objection to the receipt of the note and a witness' testimony referencing it until the following day of trial and after receipt of considerable unobjected-to testimony respecting the notation. While the court might have exercised its discretion differently, its decision not to revisit the issue of the notation's admissibility could not under the circumstances be characterized as an abuse of discretion. Although the stipulation was not irreversibly binding, it was at least presumptively enforceable and defendant offered no plausible excuse for failing earlier to seek an exception from its coverage. Moreover, receipt of the extrajudicial statement did not result in a denial of defendant's constitutional right of confrontation, as the notation was not testimonial hearsay.

**APPEARANCES OF COUNSEL**

*Fahringer & Dubno*, New York City (*Erica T. Dubno*, *Herald Price Fahringer* and *Nicole Neckles* of counsel), and *Law Offices of Thomas F. Liotti*, Garden City (*Thomas F. Liotti* of counsel), for appellant.

*Madeline Singas*, *Acting District Attorney*, Mineola (*Jason R. Richards* and *Tammy J. Smiley* of counsel), for respondent.

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Defendant stands convicted of conspiracy in the fourth degree. Prior to his nonjury trial upon an indictment charging him with numerous crimes incident to his alleged participation in a scheme to defraud mortgage lenders, defendant, through trial counsel, entered into a stipulation deeming certain enumerated exhibits "admissible as evidence in chief for all purposes." Among the numerous documents covered by this stipulation was one from a lender file respecting a mortgage loan made for the purchase of a property identified as 185 Friends Lane. That document, exhibit 17C, was a request-for-verification-of-employment form respecting putative loan applicant Frank Martin. The form, signed by "Allen Gary" on November 16, 2006, falsely represented that Mr. Martin was employed by AG Capital Holdings, as its Corporate Finance Manager and that his prospects for continued employment were "[g]ood." At the bottom of the form was a handwritten

notation by an individual identified at trial as a mortgage company loan officer, stating that on January 12th she “spoke w[lith] Gary and he QC all info.”

During his trial testimony as a prosecution witness, erstwhile mortgage broker, codefendant Carlos Irizarry, stated that he filled out the verification-of-employment form in consultation with defendant and then forwarded the form to him for execution. He reported that the form was faxed back to him directly from defendant’s business, the fax number of which was in fact emblazoned on the top of the form. He testified without contemporaneous objection that the handwritten note on the form confirmed that the loan officer had “quality controlled” the information on the form by speaking with defendant on January 12, 2007. It was not until the following day of the trial and after the receipt of considerable intervening testimony, that defense counsel raised a hearsay objection to the receipt in evidence of the handwritten note and Irizarry’s testimony referencing it and moved to strike the objected-to matter from the record. The court denied defendant’s application, observing that the notation had already been the subject of unobjected-to testimony. The court later indicated that it would have ruled differently had defendant’s objection been timely.

Although courts are ordinarily bound to enforce party stipulations (*see Matter of New York, Lackawanna & W. R.R. Co.*, 98 NY 447, 453 [1885]), where a party has in the interests of judicial economy stipulated to the admission of voluminous materials and there are among them scattered items, both prejudicial and ordinarily inadmissible that may reasonably have escaped counsel’s attention, there is no rule preventing an exercise of judicial discretion to relieve the party, at least in part, from the stipulation, particularly where doing so would not significantly prejudice the other side. The trial court here did not take a contrary view in declining to redact the record as defendant requested. It ruled as it did not because it understood the parties’ stipulation categorically to preclude relief of the sort sought, but because significant unobjected-to testimony had already been received respecting the disputed notation on exhibit 17C. While the court might have exercised its discretion differently, its decision not to revisit the issue of the notation’s admissibility cannot under the circumstances be characterized as an abuse of discretion, as would be necessary for it to qualify as a predicate for relief in this Court (*see People v Carroll*, 95 NY2d 375, 385 [2000]). Although the stipulation



was not irreversibly binding, it was at least presumptively enforceable and defendant offered no plausible excuse for failing earlier to seek an exception from its coverage. Assuming that the disputed notation might have reasonably escaped notice before trial—and that is at best questionable—it was prominently referenced in Mr. Irizarry’s testimony, but even then elicited no contemporaneous protest.

This moreover was not a situation in which the receipt of an extrajudicial statement resulted in a denial of the constitutional right of confrontation. The notation was not testimonial hearsay (see *Crawford v Washington*, 541 US 36 [2004]); at worst its admission ran counter to evidentiary rules of nonconstitutional provenance and was, in light of other evidence in the case received without even belated objection, practically redundant. Indeed, a different exercise of discretion by the trial court to exclude the note and redact record references to it would not have materially altered the evidentiary equation. The lender’s pertinent loan service notes, also admitted pursuant to the parties’ pretrial stipulation, contain essentially duplicative entries in which the loan officer identified as the author of the disputed notation on exhibit 17C represented that she telephoned “Al” Gary’s business on January 12, 2007 and orally confirmed with an individual referred to as “Allen Gary” Mr. Martin’s employment, position and income.

We have considered defendant’s remaining points and find them to be without merit.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, in a memorandum.

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ACQUEST WEHRLE, LLC, Appellant-Respondent, v TOWN OF AMHERST, Respondent-Appellant. (Appeal No. 1.)

Decided November 18, 2015

Reported below, 129 AD3d 1644.

Appeals dismissed, without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

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ACQUEST WEHRLE, LLC, Respondent, v TOWN OF AMHERST, Appellant. (Appeal No. 2.)

Decided November 18, 2015

Reported below, 129 AD3d 1650.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

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BECK CHEVROLET CO., INC., Appellant, v GENERAL MOTORS LLC, Respondent.

Submitted November 16, 2015; decided November 18, 2015

*See* 787 F3d 663.

Motion by Greater New York Automobile Dealers Association, Inc. for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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LUIS CACERES et al., Respondents, v STANDARD REALTY ASSOCIATES, INC., et al., Appellants. (And a Third-Party Action.)

Decided November 18, 2015

Reported below, 131 AD3d 433.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

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JENNIFER CANGRO, Appellant, v GINA MARIE REITANO, Respondent.

Decided November 18, 2015

Reported below, 130 AD3d 486.

Appeal dismissed, without costs, by the Court of Appeals,

sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of MICHAEL FLOURNOY, Appellant, v NORMAN R. BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, et al., Respondents.

Submitted September 8, 2015; decided November 18, 2015

Reported below, 2015 NY Slip Op 78765(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge STEIN taking no part.

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GERALD GARDNER WRIGHT, P.C. & ASSOCIATES, Appellant, v CHAMPION PROPERTY MANAGEMENT, LLC, et al., Respondents.

Submitted August 31, 2015; decided November 18, 2015

Reported below, 130 AD3d 779.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

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MANUFACTURERS AND TRADERS TRUST COMPANY, Plaintiff, v ANNE BERTHOLE et al., Defendants, ANTHONY BERTHOLE, Respondent, and GLADYS MENARDY, Appellant.

Decided November 18, 2015

Reported below, 130 AD3d 881.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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MILLENNIUM HOLDINGS LLC, Plaintiff, THE NORTHERN ASSURANCE COMPANY OF AMERICA, Appellant, and CERTAIN UNDERWRITERS AT LLOYD'S et al., Intervenor-Appellants, v THE GLIDDEN COMPANY, Now Known as AKZO NOBEL PAINTS, et al., Respondents.

Submitted November 16, 2015; decided November 18, 2015

Reported below, 121 AD3d 444.

Motion by United Policyholders for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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NANCY WALDBAUM NIMKOFF, Respondent, v RONALD A. NIMKOFF, Appellant.

Submitted August 17, 2015; decided November 18, 2015

Reported below, 120 AD3d 1099.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

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In the Matter of the Claim of ARLENE K. PARRIS, Appellant.  
COMMISSIONER OF LABOR, Respondent.

Decided November 18, 2015

Reported below, 126 AD3d 1224.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY BREWER, Appellant.

Submitted November 2, 2015; decided November 18, 2015

Reported below, 129 AD3d 1619.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM COOK, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v WILLIAM COOK, Respondent.

Submitted November 16, 2015; decided November 18, 2015

Reported below, 128 AD3d 927, 928.

Motion for poor person relief granted.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN FISHER, Appellant.

Submitted November 2, 2015; decided November 18, 2015

Reported below, 119 AD3d 426.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZACHARY T. GUERIN, Appellant.

Submitted October 19, 2015; decided November 18, 2015

Motion to vacate this Court's August 21, 2015 dismissal order granted [*see* 26 NY3d 925 (2015)].

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONNELL JORDAN, Appellant.

Submitted November 16, 2015; decided November 18, 2015

Reported below, 125 AD3d 787.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New

York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAITY MARSHALL, Appellant.

Submitted November 2, 2015; decided November 18, 2015

Reported below, 42 Misc 3d 141(A), 2014 NY Slip Op 50215(U).

Motion by Innocence Project, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v HAROLD L. PETKE, Respondent.

Submitted September 28, 2015; decided November 18, 2015

Reported below, 125 AD3d 1103.

Motion to vacate this Court's September 3, 2015 preclusion order granted.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HARVERT STEPHENS, Also Known as HAVERT STEPHENS, Appellant.

Submitted November 2, 2015; decided November 18, 2015

Reported below, 128 AD3d 1497.

Motion for assignment of counsel granted and Philip Rothchild, Esq., Frank H. Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN STONE, Appellant.

Submitted October 26, 2015; decided November 18, 2015

Reported below, 121 AD3d 617.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street,

28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CARLOS VALENTIN, Respondent.

Submitted November 16, 2015; decided November 18, 2015

Reported below, 128 AD3d 428.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BRANDON WARRINGTON, Respondent.

Submitted October 26, 2015; decided November 18, 2015

Reported below, 130 AD3d 1368.

Motion for assignment of counsel granted and Paul J. Connolly, Esq., 2 Wedge Road, Delmar, New York 12207 assigned as counsel to the respondent on the appeal herein.

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KELLY G. SHERIDAN, Respondent, v DAVID E. SHERIDAN, Appellant. KELLY M. CORBETT, Attorney for the Child, Appellant. (Appeal No. 1.)

Submitted November 16, 2015; decided November 18, 2015

Reported below, 129 AD3d 1567.

Motion for poor person relief granted.

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BLANCA SOLTERO, Appellant-Respondent, v CITY OF NEW YORK, Respondent-Appellant.

Submitted August 24, 2015; decided November 18, 2015

Reported below, 129 AD3d 468.

Motions for leave to appeal dismissed upon the ground that the Appellate Division order from which both parties seek leave

to appeal has been vacated and superceded by a subsequent order of that Court.

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[41 NE3d 1145, 20 NYS3d 330]

In the Matter of ESTEVAN GENTIL, Respondent, v IRA MARGULIS, Justice of the Supreme Court of the State of New York, County of Queens, Respondent, and RICHARD A. BROWN, District Attorney, Queens County, Appellant.

Argued October 14, 2015; decided November 19, 2015

#### SUMMARY

APPEAL, on constitutional grounds, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 24, 2014, in a proceeding pursuant to CPLR article 78. The Appellate Division granted the petition, on the law, and prohibited respondents from retrying petitioner on counts two and three of the indictment in the criminal action entitled *People v Gentil*, pending under Queens County indictment No. 623/12.

*Matter of Gentil v Margulis*, 120 AD3d 1414, reversed.

#### HEADNOTE

##### Crimes — Trial — Mistrial — Consent of Defendant

Defendant, having refused to substitute an alternate juror when one juror was found unable to serve and having requested a partial verdict on the one count on which the jury had indicated it had reached a verdict, implicitly consented to a mistrial on two of three counts by requesting a partial verdict and by saying nothing about the court's plans for retrial.

#### APPEARANCES OF COUNSEL

*Richard A. Brown*, District Attorney, Kew Gardens (*Nancy Fitzpatrick Talcott*, *Robert J. Masters* and *John M. Castellano* of counsel), appellant pro se.

*Law Office of Garnett H. Sullivan*, South Hempstead (*Garnett H. Sullivan* of counsel), for Estevan Gentil, respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, and the petition dismissed.

After one juror was found unable to serve, defendant refused to substitute an alternate juror and requested a partial verdict

on the one count on which the jury had indicated it had reached a verdict. The Appellate Division granted the petition on the basis that there was no manifest necessity for a mistrial and did not address the issue of consent (120 AD3d 1414 [2014]). Because defendant implicitly consented to a mistrial on two of three counts by requesting a partial verdict and by saying nothing about the court's plans for retrial (*People v McFadden*, 20 NY3d 260 [2012]; *Matter of Marte v Berkman*, 16 NY3d 874 [2011]), we need not reach the issue of manifest necessity.

FAHEY, J. (concurring). I agree with the majority that the order of the Appellate Division should be reversed, but for a different reason. A defendant's consent to a mistrial, and concomitant waiver of double jeopardy protection, "may . . . be implied from the circumstances leading up to the dismissal of the jury" (*People v Ferguson*, 67 NY2d 383, 388 [1986]). This Court has held, however, that whether a defendant has "consented to a mistrial is a factual question" (*id.* at 389; see *Matter of Marte v Berkman*, 16 NY3d 874, 875 [2011]). As such, that "factual determination . . . may not be disturbed by this Court if there is any support for that finding in the record" (*Marte*, 16 NY3d at 875).

In this CPLR article 78 proceeding in the nature of prohibition, however, the Appellate Division made no factual finding with respect to whether defendant consented to the mistrial. Rather, the Appellate Division's decision was based solely on that Court's conclusion that "there was no manifest necessity for the declaration of a mistrial" (*Matter of Gentil v Margulis*, 120 AD3d 1414, 1417 [2d Dept 2014]). Thus, there are no factual findings by a lower court for us to review (*cf.* *Marte*, 16 NY3d at 875; *Ferguson*, 67 NY2d at 389). Furthermore, we have no power to make our own factual determination on this issue (see NY Const, art VI, § 3 [a]; CPLR 5501 [b]).

While the majority relies on the waiver of double jeopardy protection in *People v McFadden* (20 NY3d 260 [2012]), that case is clearly distinguishable. In *McFadden*, the defendant *affirmatively requested* a mistrial (see *id.* at 262, 264-265). Here, the issue is whether defendant *impliedly consented* to a mistrial, which presents a factual question (see *Marte*, 16 NY3d at 875; *Ferguson*, 67 NY2d at 389).

I would reverse the order of the Appellate Division on the ground that there was manifest necessity for a mistrial on counts two and three of the indictment. As the majority notes, after the trial court determined that one juror was unable to



continue deliberations, defendant refused to consent to the substitution of an alternate juror.

For there to be a “manifest necessity” for a mistrial, such that double jeopardy does not bar retrial, the trial court must consider reasonable alternatives to a mistrial (*see Ferguson*, 67 NY2d at 388; *Matter of Enright v Siedlecki*, 59 NY2d 195, 199-200 [1983]). Here, the trial court considered reasonable alternatives to a mistrial, except for the taking of a partial verdict on count one (*see Matter of Robles v Bamberger*, 219 AD2d 243, 247 [1st Dept 1996], *lv denied* 88 NY2d 809 [1996], *mot to dismiss appeal granted* 88 NY2d 962 [1996]; *cf. Matter of Rivera v Firetog*, 11 NY3d 501, 508 [2008], *cert denied* 556 US 1193 [2009]). Nevertheless, the trial court’s failure to take a partial verdict on count one does not bar retrial on counts two and three.

CPL 310.70 (2) provides that “[f]ollowing the rendition of a partial verdict . . . , a defendant may be retried for any submitted offense upon which the jury was unable to agree,” with certain exceptions that are not relevant here. Thus, the trial court’s failure to take a partial verdict on count one does not prevent defendant from being retried on counts two and three, inasmuch as the jury was “unable to agree” on counts two and three (CPL 310.70 [2]; *see Matter of Dissell v Adams*, 115 AD2d 1006, 1008 [4th Dept 1985]).

Defendant’s reliance on the Appellate Division’s dismissal of the entire indictment in *Robles* is misplaced. In that case, although the jurors indicated that they had reached a partial verdict, there was no indication as to the count upon which the jury had reached a partial verdict before the trial court declared a mistrial and discharged the jury (*see Robles*, 219 AD2d at 247-248). There, the Appellate Division properly dismissed the indictment in its entirety (*see id.* at 248). Here, by contrast, the jury clearly stated that it was deadlocked on counts two and three and, by inference, that it had reached a partial verdict on count one only. Defendant therefore may be retried on counts two and three of the indictment (*see* CPL 310.70 [2]; *Dissell*, 115 AD2d at 1008).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA and ABDUS-SALAAM concur; Judge FAHEY concurs in result in an opinion in which Judge STEIN concurs.

Order reversed, without costs, and petition dismissed, in a memorandum.

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In the Matter of ALEXANDER S., an Infant. STEUBEN COUNTY  
DEPARTMENT OF SOCIAL SERVICES, Respondent; DAVID S.,  
Appellant, et al., Respondent.

Submitted August 24, 2015; decided November 19, 2015

Reported below, 130 AD3d 1463.

On the Court's own motion, appeal dismissed, without costs,  
upon the ground that no substantial constitutional question is  
directly involved. Motion for leave to appeal denied. Motion for  
poor person relief dismissed as academic.

Judge FAHEY taking no part.

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BANK OF NEW YORK, on Behalf of the CERTIFICATE HOLDERS,  
CWABS, INC., ASSET-BACKED CERTIFICATES, SERIES 2007-7,  
Respondent, v JEAN PENALVER et al., Defendants, and  
JOSHUA NESBITT, Appellant.

Submitted September 8, 2015; decided November 19, 2015

Reported below, 125 AD3d 795.

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine  
the action within the meaning of the Constitution.

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RICHARD (RICARDO) CORDERO, Appellant, v VIVIANA BARREIRO-  
CORDERO et al., Respondents.

Submitted September 21, 2015; decided November 19, 2015

Reported below, 129 AD3d 899.

Motion for leave to appeal etc. dismissed upon the ground  
that the order sought to be appealed from does not finally  
determine the action within the meaning of the Constitution.

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In the Matter of LAWRENCE J. WORNER, Respondent, v SUSAN  
GAVIN, Appellant.

Submitted September 14, 2015; decided November 19, 2015

Reported below, 128 AD3d 981.

Motion for leave to appeal denied. Motion for a stay dismissed  
as academic.

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[43 NE3d 361, 22 NYS3d 151]

In the Matter of ANTHONY FRANK FIZZINOGLIA, Also Known as ANTHONY F. FIZZINOGLIA and Another, Deceased. JOSEPHINE PARADISO FIZZINOGLIA, Appellant; FRANK FIZZINOGLIA, Respondent.

Argued October 21, 2015; decided November 18, 2015

#### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division in the Second Judicial Department, entered June 25, 2014. The Appellate Division affirmed a decree of the Surrogate's Court of Putnam County (James F. Reitz, S.), which had, after a nonjury trial upon a stipulated statement of issues, (1) denied petitioner's motion to amend the pleadings to conform to the proof presented at the nonjury trial dealing with overreaching and fraud; (2) determined that petitioner was the surviving spouse of the decedent; (3) determined that objectant met his burden of proof to establish that petitioner and the decedent entered into a prenuptial agreement dated August 18, 2005; (4) determined that petitioner had not met her burden to establish that the prenuptial agreement was invalid or unenforceable; (5) granted objectant's motion to dismiss the petition for letters of administration; (6) revoked the temporary letters of administration issued to petitioner; and (7) directed petitioner to file an account of her proceedings as temporary administrator.

*Matter of Fizzinoglia*, 118 AD3d 994, affirmed.

#### HEADNOTES

**Marriage — Prenuptial Agreement — Validity and Enforceability in Estate Proceeding — Omission of Statement of Parties' Assets and Liabilities**

1. In a proceeding pursuant to SCPA 1001 to obtain letters of administration on the ground that petitioner was the surviving spouse of the decedent, Surrogate's Court properly denied petitioner's motion for summary judgment dismissing objectant's claim against the estate based on the prenuptial agreement between petitioner and the decedent. Petitioner did not make a prima facie showing that the prenuptial agreement she and the decedent signed was invalid and unenforceable insofar as it omitted a statement of the parties' assets and liabilities. Petitioner testified that she was aware when the agreement was executed that the statement was absent, and that, at the time, the decedent's finances "didn't matter" to her. Moreover, the record did not contain any indication that the decedent attempted to conceal or misrepresent the nature or extent of his assets.

**Wills — Elective Share of Surviving Spouse — Burden as to Enforceability of Prenuptial Agreement**

2. In a proceeding pursuant to SCPA 1001 to obtain letters of administration on the ground that petitioner was the surviving spouse of the decedent,

Surrogate's Court properly granted objectant's motion for judgment as a matter of law under CPLR 4401 based on the prenuptial agreement between petitioner and the decedent. Petitioner failed to present prima facie proof that a fact-based, particularized inequality existed between the decedent and herself at the time that they executed the prenuptial agreement, or meet her resulting burden of proof that the agreement was the product of fraud, duress, overreaching, or other inequitable conduct by the decedent.

#### APPEARANCES OF COUNSEL

*McCarthy Fingar LLP*, White Plains (*Sondra M. Miller*, *Frank W. Streng* and *Robert H. Rosh* of counsel), for appellant.

*Daniels, Porco and Lusardi, LLP*, Carmel (*Robert C. Lusardi* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

[1] In this administration proceeding pursuant to Surrogate's Court Procedure Act § 1001, Surrogate's Court properly denied petitioner's motion for summary judgment dismissing objectant's claim against the estate. Petitioner did not make a prima facie showing that the prenuptial agreement she and the decedent signed was invalid and unenforceable insofar as it omitted a statement of the parties' assets and liabilities. Notably, petitioner testified that she was aware when the agreement was executed that the statement was absent, and that, at the time, the decedent's finances "didn't matter" to her. Moreover, the record does not contain any indication that the decedent "attempted to conceal or misrepresent the nature or extent of his assets" (*Panossian v Panossian*, 172 AD2d 811, 813 [2d Dept 1991]).

[2] At trial, Surrogate's Court properly granted objectant's motion for judgment as a matter of law under CPLR 4401. Petitioner failed to present prima facie proof that "a fact-based, particularized inequality" (*Matter of Greiff*, 92 NY2d 341, 346 [1998]) existed between the decedent and herself at the time of the execution of the prenuptial agreement, or meet her resulting burden of proof that the agreement was the product of fraud, duress, overreaching, or other inequitable conduct by the decedent (*see generally Christian v Christian*, 42 NY2d 63, 71-73 [1977]).

Petitioner's remaining contentions lack merit in the circumstances of this case.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, with costs, in a memorandum.

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[43 NE3d 372, 22 NYS3d 162]

AINSWORTH M. BENNETT, Individually and on Behalf of the Estate of VIRGINIA R. BENNETT, Deceased, Appellant, v St. JOHN'S HOME et al., Respondents.

Decided November 23, 2015

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered May 8, 2015. The Appellate Division affirmed an order and judgment (one paper) of the Supreme Court, Monroe County (William P. Polito, J.), which had granted defendants' motion for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: "Was the order of this Court entered May 8, 2015, properly made?"

*Bennett v St. John's Home*, 128 AD3d 1428, affirmed.

#### HEADNOTE

##### **Appeal — Matters Reviewable — Issue Not Preserved**

The Court of Appeals lacked power to review either the Appellate Division's exercise of its discretion to reach the issue of the timeliness under CPLR 3212 (a) of defendants' summary judgment motion, or the issue itself, as the issue was not preserved in Supreme Court.

#### APPEARANCES OF COUNSEL

*David E. Woodin, LLC*, Catskill (*David E. Woodin* of counsel), for appellant.

*Underberg & Kessler LLP*, Rochester (*David H. Fitch* of counsel), for respondents.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered as unnecessary. As the issue of the timeliness under CPLR 3212 (a)

of defendants' summary judgment motion was not preserved in Supreme Court, the Court of Appeals lacks power to review either the Appellate Division's exercise of its discretion to reach the issue, or the issue itself (*see Hecker v State of New York*, 20 NY3d 1087 [2013]). On the remaining issue presented, the Appellate Division properly held that defendants were entitled to summary judgment.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY; Judge STEIN taking no part.

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[43 NE3d 369, 22 NYS3d 159]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALMA CALDAVADO, Also Known as ALMA CALDERARO, Appellant.

Argued October 15, 2015; decided November 23, 2015

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 16, 2014. The Appellate Division affirmed an order of the Supreme Court, Queens County (Robert C. McGann, J.), which had denied, without a hearing, defendant's CPL 440.10 motion to vacate a judgment of that court convicting defendant, upon a jury verdict, of assault in the first degree and endangering the welfare of a child.

*People v Caldavado*, 116 AD3d 877, reversed.

#### HEADNOTE

##### **Crimes — Right to Counsel — Effective Representation — Failure to Present Expert Testimony to Support Crux of Defense**

On a CPL 440.10 motion to vacate defendant's conviction of assault in the first degree and endangering the welfare of a child in connection with injuries sustained by a seven-month-old infant in her care, a hearing was necessary to resolve defendant's ineffective assistance of counsel claim as defendant established that there were sufficient questions of fact as to whether counsel had an adequate explanation for his failure to pursue certain lines of defense on cross-examination or for his failure to call an expert on defendant's behalf. At trial, the People theorized that the infant suffered from shaken baby syndrome (SBS) and called 13 medical professionals in support of their case, nine of whom testified as expert witnesses, while defense counsel presented no expert testimony to contradict the SBS diagnosis. Defendant's CPL 440.10 proffer included statements from two experts, who described additional lines of inquiry that would likely have been advantageous to the defense but were not pursued at trial. Moreover, defendant submitted an affidavit from her

sister, wherein she indicated that counsel asserted that he would not call an expert at trial because it would be “pointless” to do so in light of the number of experts being called by the People. While it is exceedingly rare that a defense attorney’s strategic decision not to present expert testimony amounts to ineffective assistance of counsel, where, as here, casting doubt on the prosecution’s medical proof is the crux of the defense, a decision that it would be futile to call an expert based solely on the volume of expert testimony presented by the People is not a legitimate or reasonable tactical choice.

#### APPEARANCES OF COUNSEL

*Mark M. Baker*, New York City, for appellant.

*Richard A. Brown*, District Attorney, Kew Gardens (*John M. Castellano*, *Robert J. Masters*, *Nicoletta J. Caferri* and *William H. Branigan* of counsel), for respondent.

*Fried, Frank, Harris, Shriver & Jacobson LLP*, New York City (*David B. Hennes*, *Nathan M. Erickson* and *Michael P. Sternheim* of counsel), *Seth Miller*, *Innocence Network*, Tallahassee, Florida (*Katherine Judson* of counsel), and *Dana M. Delger* and *M. Chris Fabricant*, New York City, for Innocence Network, amicus curiae.

*Thomas R. Villecco*, Jericho, *Mark Fernich*, *New York State Association of Criminal Defense Lawyers*, New York City, and *Richard Willstatter*, *National Association of Criminal Defense Lawyers*, White Plains, for National Association of Criminal Defense Lawyers and another, amici curiae.

*Gerald F. Mollen*, *Benjamin E. Rosenberg* and *Jamie Masten* for District Attorneys Association of the State of New York, amicus curiae.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be reversed, and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

In 2006, defendant was charged with assault in the first degree (Penal Law § 120.10 [3]) and endangering the welfare of a child (Penal Law § 260.10 [1]), in connection with injuries sustained by a seven-month-old infant in her care. At defendant’s trial in 2009, the People’s theory was that the infant suffered from shaken baby syndrome (SBS) after defendant violently shook her. The People called 13 medical professionals in support of their case, nine of whom testified as expert witnesses. Defense counsel, relying on a 1½-page opinion by a physician, challenged the People’s witnesses through cross-



examination by suggesting that the victim's injuries were caused by a "re-bleed" of an earlier trauma. Defense counsel did not, however, present any expert testimony at trial to contradict the SBS diagnosis proffered by the People's witnesses. Following deliberations, defendant was found guilty of both charges. Upon her subsequent appeal, the Appellate Division affirmed (78 AD3d 962, 963 [2d Dept 2010], *lv denied* 16 NY3d 829 [2011]).

In 2012, defendant moved, pursuant to CPL 440.10 (1) (g) and (h), for an order vacating her conviction on the grounds of newly discovered evidence, ineffective assistance of counsel, and actual innocence. Supreme Court denied defendant's motion without an evidentiary hearing, and the Appellate Division affirmed (116 AD3d 877, 877 [2d Dept 2014]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1060 [2014]), and we now reverse.

On this record, defendant established that "there were sufficient questions of fact as to whether [counsel] had an adequate explanation" for his failure to pursue certain lines of defense on cross-examination or for his failure to call an expert on defendant's behalf, and defendant "is therefore entitled to an opportunity to establish that [s]he was deprived of meaningful legal representation" (*People v Zeh*, 22 NY3d 1144, 1146 [2014]). In this regard, we note that defendant's CPL 440.10 proffer included statements from two experts, who described additional lines of inquiry that would likely have been advantageous to the defense but were not pursued at trial. In addition, defendant submitted an affidavit from her sister, wherein she indicated that counsel asserted that he would not call an expert at trial because it would be "pointless" to do so in light of the number of experts being called by the People. We are mindful that it is exceedingly rare that a defense attorney's strategic decision not to present expert testimony amounts to ineffective assistance of counsel (*see Harrington v Richter*, 562 US 86, 106 [2011]; *People v Ross*, 119 AD3d 964, 965 [2d Dept 2014]; *cf. Hinton v Alabama*, 571 US —, —, 134 S Ct 1081, 1089 [2014]). However, in a case such as this, where casting doubt on the prosecution's medical proof is the crux of the defense, a decision that it would be futile to call an expert based *solely* on the volume of expert testimony presented by the People is not a legitimate or reasonable tactical choice.

Accordingly, although a hearing is not invariably required on a CPL 440.10 motion, under the circumstances presented here,



defendant's proof raised a question—in the absence of any submissions from defense counsel—as to whether counsel's alleged deficiencies were merely the result of a reasonable, but unsuccessful, trial strategy (*see generally Strickland v Washington*, 466 US 668, 690 [1984]; *People v Baldi*, 54 NY2d 137, 147 [1981]), or whether counsel failed to “pursue the minimal investigation required under the circumstances” (*People v Oliveras*, 21 NY3d 339, 348 [2013]). Thus, a hearing is necessary to resolve defendant's claim of ineffective assistance of counsel (*see Zeh*, 22 NY3d at 1146; *People v Jenkins*, 68 NY2d 896, 898 [1986]).

The other grounds cited in connection with defendant's CPL 440.10 motion do not warrant further inquiry upon remittal. Defendant's proffered submissions did not constitute “newly discovered evidence” within the meaning of CPL 440.10 (1) (g). Furthermore, to the extent defendant's motion was based on a purported “freestanding actual innocence claim” beyond that provided by CPL 440.10—such as that recognized by the Second Department in *People v Hamilton* (115 AD3d 12 [2d Dept 2014])—we need not pass on the viability of such a claim here; even assuming it is cognizable, defendant failed to demonstrate factual innocence regardless of the applicable standard of proof.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order reversed and case remitted to Supreme Court, Queens County, for further proceedings in accordance with the memorandum herein.

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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE  
OF COURT OF APPEALS OR ON CONSENT**

(November 1, 2015 through November 30, 2015)

|                             |                       |         |
|-----------------------------|-----------------------|---------|
| Best, Matter of, v Schwartz | 2d Dept: 130 AD3d 818 | 11/5/15 |
|-----------------------------|-----------------------|---------|

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(November 1, 2015 through November 30, 2015)

|                |                                                    |                                         |
|----------------|----------------------------------------------------|-----------------------------------------|
| People v Adams | App Div, 2d Dept: 2015 NY Slip Op 81981(U) (Kings) | dismissed 11/6/15<br>(Abdus-Salaam, J.) |
| People v Ahmed | App Div, 2d Dept: 2015 NY Slip Op 80763(U) (Kings) | dismissed<br>11/12/15<br>(Fahey, J.)    |

|                             |                                                            |                                                       |
|-----------------------------|------------------------------------------------------------|-------------------------------------------------------|
| People v Arroyo             | 2d Dept: 131 AD3d 1257 (Nassau)                            | denied 11/19/15<br>(Stein, J.)                        |
| People v Asaro              | App Div, 2d Dept: 2015 NY Slip Op<br>80009(U) (Orange)     | dismissed<br>11/27/15<br>(Rivera, J.)                 |
| People v Barnes             | App Div, 4th Dept, 3/17/15 (Monroe)                        | dismissed 11/2/15<br>(Pigott, J.)                     |
| People v Beaty              | 4th Dept: 128 AD3d 1391 (Erie)                             | denied 11/30/15<br>(Lippman, Ch. J.)                  |
| People v Belton             | 2d Dept: 131 AD3d 538 (Queens)                             | denied 11/4/15<br>(Pigott, J.)                        |
| People v Bethune            | 2d Dept: 130 AD3d 937 (Kings)                              | granted 11/13/15<br>(Fahey, J.)                       |
| People v Bigwarfe           | 3d Dept: 128 AD3d 1170 (St. Lawrence)                      | denied 11/4/15<br>(Pigott, J.)                        |
| People v Birt               | 2d Dept: 127 AD3d 1223 (Kings)                             | denied 11/30/15<br>(Lippman, Ch. J.)                  |
| People v Blair              | 4th Dept: 129 AD3d 1514 (Erie)                             | denied<br>reconsideration<br>11/23/15<br>(Pigott, J.) |
| People v Briggs             | 3d Dept: 129 AD3d 1201 (St. Lawrence)                      | denied 11/2/15<br>(Rivera, J.)                        |
| People v Brooks             | County Ct, 3/11/15 (Onondaga)                              | denied 11/23/15<br>(Pigott, J.)                       |
| People v Brown (Carlos)     | App Div, 2d Dept: 2015 NY Slip Op<br>80012(U) (Orange)     | dismissed<br>11/13/15<br>(Lippman, Ch. J.)            |
| People v Brown (Eric)       | 1st Dept: 129 AD3d 545 (NY)                                | denied 11/17/15<br>(Rivera, J.)                       |
| People v Brown<br>(Gregory) | County Ct, 9/2/15 (Albany)                                 | denied 11/30/15<br>(Fahey, J.)                        |
| People v Brown (Joseph)     | App Div, 3d Dept: 2015 NY Slip Op<br>82348(U) (Tioga)      | dismissed<br>11/25/15<br>(Fahey, J.)                  |
| People v Burgos             | 1st Dept: 129 AD3d 627 (NY)                                | denied 11/27/15<br>(Rivera, J.)                       |
| People v Caraway            | App Div, 2d Dept: 2015 NY Slip Op<br>80013(U) (Kings)      | dismissed<br>11/23/15<br>(Lippman, Ch. J.)            |
| People v Carrasquillo       | 4th Dept: 130 AD3d 1498 (Onondaga)                         | denied 11/17/15<br>(Rivera, J.)                       |
| People v Carter             | App Div, 3d Dept, 2015 NY Slip Op<br>82391(U) (Washington) | denied 11/24/15<br>(Fahey, J.)                        |
| People v Cofield            | 2d Dept: 131 AD3d 539 (Queens)                             | denied 11/5/15<br>(Fahey, J.)                         |
| People v Collins            | 4th Dept: 129 AD3d 1676 (Erie)                             | denied 11/2/15<br>(Rivera, J.)                        |
| People v Colliton           | 2d Dept: 130 AD3d 642 (Dutchess)                           | denied 11/2/15<br>(Rivera, J.)                        |
| People v Cooper             | App Div, 1st Dept: 2015 NY Slip Op<br>83734(U) (NY)        | denied 11/25/15<br>(Fahey, J.)                        |

## MEMORANDA

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|------------------------|----------------------------------------------------------|------------------------------------------------------------|
| People v Covington     | App Div, 2d Dept: 2015 NY Slip Op 82275(U) (Queens)      | dismissed<br>11/19/15<br>(Stein, J.)                       |
| People v Cruz          | 2d Dept: 131 AD3d 706 (Kings)                            | denied 11/5/15<br>(Fahey, J.)                              |
| People v Dalton        | App Term, 1st Dept: 49 Misc 3d 126(A) (NY)               | denied 11/25/15<br>(Lippman, Ch. J.)                       |
| People v Daniel        | App Div, 2d Dept: 2015 NY Slip Op 78864(U) (Kings)       | dismissed<br>11/27/15<br>(Rivera, J.)                      |
| People v Dark (Davan)  | 4th Dept: 122 AD3d 1321 (Erie)                           | denied 11/27/15<br>(Rivera, J.)                            |
| People v Dark (Davan)  | 4th Dept: 129 AD3d 1556 (Erie)                           | denied 11/27/15<br>(Rivera, J.)                            |
| People v Davalloo      | App Div, 2d Dept: 2015 NY Slip Op 80016(U) (Westchester) | dismissed<br>11/27/15<br>(Rivera, J.)                      |
| People v Dawson        | 2d Dept: 130 AD3d 750 (Kings)                            | denied 11/17/15<br>(Rivera, J.)                            |
| People v Dingle        | App Div, 1st Dept: 2015 NY Slip Op 74384(U) (Bronx)      | denied<br>reconsideration<br>11/23/15<br>(Pigott, J.)      |
| People v Diop          | 1st Dept: 127 AD3d 611 (NY)                              | denied 11/13/15<br>(Lippman, Ch. J.)                       |
| People v Dixon         | App Div, 1st Dept: 2015 NY Slip Op 78636(U) (NY)         | denied<br>reconsideration<br>11/13/15<br>(Lippman, Ch. J.) |
| People v Duren         | 2d Dept: 130 AD3d 842 (Nassau)                           | denied 11/6/15<br>(Fahey, J.)                              |
| People v Fafone        | 4th Dept: 129 AD3d 1667 (Monroe)                         | denied 11/23/15<br>(Stein, J.)                             |
| People v Fernandez     | App Div, 2d Dept: 2015 NY Slip Op 80017(U) (Nassau)      | dismissed 11/2/15<br>(Pigott, J.)                          |
| People v Flanagan      | 2d Dept: 132 AD3d 693 (Nassau)                           | granted 11/12/15<br>(Stein, J.)                            |
| People v Floyd (Jamel) | App Div, 2d Dept: 2015 NY Slip Op 82277(U) (Nassau)      | dismissed<br>11/23/15<br>(Pigott, J.)                      |
| People v Floyd (Jamel) | App Div, 2d Dept: 2015 NY Slip Op 82278(U) (Nassau)      | dismissed<br>11/23/15<br>(Pigott, J.)                      |
| People v Fowler        | App Div, 2d Dept: 2015 NY Slip Op 81760(U) (Suffolk)     | dismissed<br>11/24/15<br>(Fahey, J.)                       |
| People v Frazier       | 2d Dept: 131 AD3d 707 (Kings)                            | denied 11/30/15<br>(Lippman, Ch. J.)                       |
| People v Funches       | App Div, 1st Dept, 8/3/15 (NY)                           | dismissed<br>11/23/15<br>(Pigott, J.)                      |
| People v Garcia        | 1st Dept: 132 AD3d 405 (NY)                              | denied 11/25/15<br>(Lippman, Ch. J.)                       |

|                            |                                                                                 |                                      |
|----------------------------|---------------------------------------------------------------------------------|--------------------------------------|
| People v Gardine           | App Div, 1st Dept: 2015 NY Slip Op 83702(U) (NY)                                | denied 11/24/15 (Fahey, J.)          |
| People v Gunn              | 1st Dept: 128 AD3d 526 (NY)                                                     | denied 11/17/15 (Rivera, J.)         |
| People v Hall (Bryant)     | 2d Dept: 130 AD3d 753 (Suffolk)                                                 | denied 11/27/15 (Rivera, J.)         |
| People v Hares             | 4th Dept: 130 AD3d 1500 (Cayuga)                                                | denied 11/2/15 (Rivera, J.)          |
| People v Harte             | App Div, 2d Dept: 2015 NY Slip Op 82518(U) (Kings)                              | dismissed 11/6/15 (Stein, J.)        |
| People v Hendricks         | 2d Dept: 130 AD3d 943 (Suffolk)                                                 | denied 11/17/15 (Rivera, J.)         |
| People v Houston           | 4th Dept: 130 AD3d 1501 (Monroe)                                                | denied 11/17/15 (Rivera, J.)         |
| People v Hughes            | App Div, 2d Dept: 2015 NY Slip Op 80770(U) (Queens)                             | dismissed 11/12/15 (Lippman, Ch. J.) |
| People v Hylton            | App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 48 Misc 3d 130(A) (Queens)        | denied 11/23/15 (Stein, J.)          |
| People v Jackson           | 4th Dept: 120 AD3d 1601 (Onondaga)                                              | denied 11/2/15 (Rivera, J.)          |
| People v James (Frank)     | App Div, 2d Dept: 2015 NY Slip Op 82518(U) (Kings)                              | dismissed 11/6/15 (Stein, J.)        |
| People v Jingzhi Li        | App Div, 2d Dept: 2015 NY Slip Op 82284(U) (Kings)                              | dismissed 11/25/15 (Fahey, J.)       |
| People v Johnson (Jasmine) | App Term, 1st Dept: 48 Misc 3d 130(A) (NY)                                      | denied 11/24/15 (Fahey, J.)          |
| People v Johnson (Kerwin)  | App Div, 1st Dept: 2015 NY Slip Op 76286(U) (NY)                                | denied 11/3/15 (Rivera, J.)          |
| People v Jones             | App Div, 2d Dept: 2015 NY Slip Op 81374(U) (Orange)                             | dismissed 11/6/15 (Stein, J.)        |
| People v Kahng (Young)     | App Term, 2d Dept, 9th & 10th Jud Dists: 47 Misc 3d 147(A) (Westchester)        | dismissed 11/2/15 (Abdus-Salaam, J.) |
| People v Kahng (Young)     | App Term, 2d Dept, 9th & 10th Jud Dists: 2015 NY Slip Op 74242(U) (Westchester) | dismissed 11/2/15 (Abdus-Salaam, J.) |
| People v Kahng (Young)     | App Term, 2d Dept, 9th & 10th Jud Dists: 2015 NY Slip Op 74241(U) (Westchester) | dismissed 11/2/15 (Abdus-Salaam, J.) |
| People v Kahng (Young)     | App Term, 2d Dept, 9th & 10th Jud Dists, 5/6/15 (Westchester)                   | dismissed 11/2/15 (Abdus-Salaam, J.) |
| People v Kearns            | 4th Dept: 125 AD3d 1473 (Onondaga)                                              | denied 11/2/15 (Abdus-Salaam, J.)    |
| People v Kev               | 4th Dept: 129 AD3d 1528 (Monroe)                                                | denied 11/12/15 (Pigott, J.)         |
| People v Laterza           | 2d Dept: 129 AD3d 1105 (Suffolk)                                                | denied 11/2/15 (Rivera, J.)          |

## MEMORANDA

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|                      |                                                                                       |                                                       |
|----------------------|---------------------------------------------------------------------------------------|-------------------------------------------------------|
| People v Lindsay     | 2d Dept: 131 AD3d 625 (Queens)                                                        | denied 11/19/15<br>(Stein, J.)                        |
| People v Lipford     | 4th Dept: 129 AD3d 1528 (Monroe)                                                      | denied 11/12/15<br>(Pigott, J.)                       |
| People v Little      | 2d Dept: 131 AD3d 1181 (Kings)                                                        | denied 11/19/15<br>(Stein, J.)                        |
| People v Lopez-Perez | 2d Dept: 128 AD3d 1093 (Dutchess)                                                     | denied 11/19/15<br>(Stein, J.)                        |
| People v Lucas       | County Ct, 2/10/15 (Erie)                                                             | denied 11/2/15<br>(Rivera, J.)                        |
| People v Lynch       | 1st Dept: 131 AD3d 876 (NY)                                                           | denied 11/24/15<br>(Pigott, J.)                       |
| People v Macon       | 1st Dept: 129 AD3d 484 (Bronx)                                                        | denied 11/25/15<br>(Lippman, Ch. J.)                  |
| People v Maldonado   | 2d Dept: 130 AD3d 1070 (Queens)                                                       | denied 11/30/15<br>(Lippman, Ch. J.)                  |
| People v Marsden     | 2d Dept: 130 AD3d 945 (Nassau)                                                        | denied 11/24/15<br>(Pigott, J.)                       |
| People v Marshall    | 2d Dept: 131 AD3d 1074 (Kings)                                                        | denied 11/24/15<br>(Pigott, J.)                       |
| People v Martinez    | 1st Dept: 121 AD3d 471 (NY)                                                           | denied 11/30/15<br>(Rivera, J.)                       |
| People v Massia      | 3d Dept: 131 AD3d 1280 (Essex)                                                        | denied 11/12/15<br>(Pigott, J.)                       |
| People v Matthews    | App Term, 2d Dept, 9th & 10th Jud Dists:<br>2015 NY Slip Op 82156(U)<br>(Westchester) | dismissed<br>11/12/15<br>(Lippman, Ch. J.)            |
| People v McDonald    | 2d Dept: 131 AD3d 1268 (Kings)                                                        | denied 11/25/15<br>(Lippman, Ch. J.)                  |
| People v McLaren     | 2d Dept: 131 AD3d 548 (Queens)                                                        | denied 11/12/15<br>(Fahey, J.)                        |
| People v Mears       | App Div, 1st Dept: 2014 NY Slip Op<br>86355(U) (NY)                                   | denied<br>reconsideration<br>11/27/15<br>(Rivera, J.) |
| People v Mike        | 4th Dept: 122 AD3d 1321 (Erie)                                                        | denied 11/27/15<br>(Rivera, J.)                       |
| People v Mike        | 4th Dept: 129 AD3d 1556 (Erie)                                                        | denied 11/27/15<br>(Rivera, J.)                       |
| People v Mitchell    | 3d Dept: 129 AD3d 1319 (Ulster)                                                       | denied 11/17/15<br>(Rivera, J.)                       |
| People v Morales     | App Term, 2d Dept, 9th and 10th Jud<br>Dists: 2015 NY Slip Op 82166(U)<br>(Nassau)    | granted 11/30/15<br>(Pigott, J.)                      |
| People v Mosquero    | 2d Dept: 128 AD3d 985 (Queens)                                                        | denied 11/23/15<br>(Stein, J.)                        |
| People v Moss        | App Div, 1st Dept: 2015 NY Slip Op<br>63923(U) (Bronx)                                | denied 11/23/15<br>(Stein, J.)                        |
| People v Nadal       | 3d Dept: 131 AD3d 729 (Albany)                                                        | denied 11/4/15<br>(Pigott, J.)                        |
| People v Nelson      | 3d Dept: 128 AD3d 1225 (Chemung)                                                      | denied 11/18/15<br>(Lippman, Ch. J.)                  |

|                              |                                                        |                                                |
|------------------------------|--------------------------------------------------------|------------------------------------------------|
| People v Nesmith             | 4th Dept: 124 AD3d 1325 (Monroe)                       | denied 11/2/15<br>(Pigott, J.)                 |
| People v Nieves              | App Div, 1st Dept: 2015 NY Slip Op<br>81302(U) (Bronx) | dismissed<br>11/30/15<br>(Abdus-Salaam,<br>J.) |
| People v Norm                | 3d Dept: 130 AD3d 1142 (Albany)                        | granted 11/24/15<br>(Pigott, J.)               |
| People v Odums               | 4th Dept: 121 AD3d 1503 (Onondaga)                     | denied 11/2/15<br>(Rivera, J.)                 |
| People v Olivero             | 1st Dept: 130 AD3d 479 (NY)                            | denied 11/27/15<br>(Rivera, J.)                |
| People v Pappas              | 2d Dept: 125 AD3d 793 (Kings)                          | denied 11/2/15<br>(Abdus-Salaam,<br>J.)        |
| People v Paulino             | 1st Dept: 131 AD3d 65 (Bronx)                          | denied 11/17/15<br>(Rivera, J.)                |
| People v Pena                | 1st Dept: 126 AD3d 618 (NY)                            | granted 11/4/15<br>(Pigott, J.)                |
| People v Perez (Alberto)     | 2d Dept: 131 AD3d 709 (Kings)                          | denied 11/25/15<br>(Fahey, J.)                 |
| People v Perez<br>(Wilfredo) | 2d Dept: 131 AD3d 492 (Queens)                         | denied 11/30/15<br>(Lippman, Ch. J.)           |
| People v Phillip             | App Div, 2d Dept: 2015 NY Slip Op<br>80980(U) (Queens) | dismissed<br>11/27/15<br>(Rivera, J.)          |
| People v Pizarro             | App Div, 1st Dept: 2015 NY Slip Op<br>73713(U) (Bronx) | denied 11/24/15<br>(Pigott, J.)                |
| People v Poirier             | 1st Dept: 126 AD3d 420 (NY)                            | denied 11/2/15<br>(Abdus-Salaam,<br>J.)        |
| People v Prince              | App Div, 2d Dept: 2015 NY Slip Op<br>80577(U) (Kings)  | dismissed<br>11/23/15<br>(Pigott, J.)          |
| People v Ramos               | 1st Dept: 129 AD3d 642 (Bronx)                         | denied 11/17/15<br>(Rivera, J.)                |
| People v Reyes (Jose)        | 2d Dept: 130 AD3d 847 (Westchester)                    | denied 11/17/15<br>(Rivera, J.)                |
| People v Reyes (Teofilo)     | App Div, 1st Dept: 2015 NY Slip Op<br>77346(U) (NY)    | denied 11/17/15<br>(Rivera, J.)                |
| People v Rivera<br>(Ciceron) | 2d Dept: 128 AD3d 857 (Nassau)                         | denied 11/13/15<br>(Lippman, Ch. J.)           |
| People v Rivera (Edgar)      | App Div, 1st Dept: 2014 NY Slip Op<br>91756(U) (NY)    | dismissed 11/2/15<br>(Abdus-Salaam,<br>J.)     |
| People v Robinson            | App Div, 2d Dept: 2015 NY Slip Op<br>81384(U) (Kings)  | dismissed 11/2/15<br>(Abdus-Salaam,<br>J.)     |
| People v Rodney              | 1st Dept: 131 AD3d 424 (Bronx)                         | denied 11/12/15<br>(Pigott, J.)                |

## MEMORANDA

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|                              |                                                      |                                              |
|------------------------------|------------------------------------------------------|----------------------------------------------|
| People v Roman               | App Div, 1st Dept: 2015 NY Slip Op 81931(U) (NY)     | dismissed 11/19/15 (Stein, J.)               |
| People v Ross (Anthony)      | 2d Dept: 119 AD3d 961 (Westchester)                  | denied 11/30/15 (Lippman, Ch. J.)            |
| People v Ross (Anthony)      | 2d Dept: 119 AD3d 964 (Westchester)                  | denied 11/30/15 (Lippman, Ch. J.)            |
| People v Serrano             | App Div, 1st Dept: 2015 NY Slip Op 81309(U) (NY)     | dismissed 11/27/15 (Rivera, J.)              |
| People v Simpkins            | App Div, 2d Dept: 2015 NY Slip Op 81386(U) (Nassau)  | dismissed 11/2/15 (Stein, J.)                |
| People v Slater              | 1st Dept: 130 AD3d 500 (Bronx)                       | denied 11/17/15 (Rivera, J.)                 |
| People v Smith (Charles)     | 2d Dept: 124 AD3d 918 (Queens)                       | granted 11/9/15 (Pigott, J.)                 |
| People v Smith (Craig)       | 1st Dept: 130 AD3d 411 (NY)                          | denied 11/2/15 (Rivera, J.)                  |
| People v Snell               | App Div, 2d Dept: 2015 NY Slip Op 83683(U) (Suffolk) | dismissed 11/27/15 (Rivera, J.)              |
| People v Stanford            | 3d Dept: 130 AD3d 1306 (Albany)                      | denied 11/4/15 (Pigott, J.)                  |
| People v Sumprer             | County Ct, 6/25/14 (Delaware)                        | denied 11/25/15 (Fahey, J.)                  |
| People v Thomas              | 2d Dept: 131 AD3d 712 (Nassau)                       | denied 11/23/15 (Stein, J.)                  |
| People v Tucker              | 2d Dept: 131 AD3d 713 (Suffolk)                      | denied 11/4/15 (Pigott, J.)                  |
| People v Ullah               | 2d Dept: 130 AD3d 759 (Kings)                        | denied 11/2/15 (Rivera, J.)                  |
| People v Vann                | App Div, 2d Dept: 2015 NY Slip Op 80579(U) (Kings)   | dismissed 11/27/15 (Rivera, J.)              |
| People v Vellon              | 3d Dept: 128 AD3d 1274 (Albany)                      | denied 11/23/15 (Pigott, J.)                 |
| People v Walker              | App Div, 1st Dept: 2015 NY Slip Op 67198(U) (NY)     | dismissed 11/2/15 (Pigott, J.)               |
| People v Whitehead           | 3d Dept: 130 AD3d 1142 (Albany)                      | granted 11/24/15 (Pigott, J.)                |
| People v Williams (Kenyatta) | App Div, 2d Dept: 2015 NY Slip Op 72538(U) (Suffolk) | denied reconsideration 11/27/15 (Rivera, J.) |
| People v Williams (Robert)   | 1st Dept: 130 AD3d 498 (Bronx)                       | denied 11/2/15 (Rivera, J.)                  |
| People v Williams (Sean)     | App Div, 2d Dept: 2015 NY Slip Op 78733(U) (Kings)   | dismissed 11/30/15 (Abdus-Salaam, J.)        |

|                          |                                                     |                                |
|--------------------------|-----------------------------------------------------|--------------------------------|
| People v Williams (Teon) | App Div, 2d Dept: 2015 NY Slip Op 66488(U) (Nassau) | dismissed 11/10/15 (Fahey, J.) |
| People v Winters         | 1st Dept: 132 AD3d 407 (NY)                         | denied 11/23/15 (Stein, J.)    |
| People v Wright          | 3d Dept: 129 AD3d 1217 (Albany)                     | granted 11/4/15 (Fahey, J.)    |

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

**Decisions of Appellate Division Justices\***

(November 1, 2015 through November 30, 2015)

|                           |                                 |                               |
|---------------------------|---------------------------------|-------------------------------|
| People v Beander          | 2d Dept: 128 AD3d 723 (Orange)  | granted 11/18/15 (Dillon, J.) |
| People v Fletcher         | 2d Dept: 130 AD3d 1063 (Kings)  | granted 11/2/15 (Hall, J.)    |
| People v James (Kenyatta) | 2d Dept: 128 AD3d 723 (Orange)  | granted 11/18/15 (Dillon, J.) |
| People v Palencia         | 2d Dept: 130 AD3d 1072 (Nassau) | granted 11/9/15 (Miller, J.)  |

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[43 NE3d 765, 22 NYS3d 408]

In the Matter of PATROLMEN'S BENEVOLENT ASSOCIATION OF THE  
CITY OF NEW YORK, INC., et al., Appellants, v CITY OF NEW  
YORK et al., Respondents.

Decided October 27, 2015

**SUMMARY**

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 13, 2014. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Joan B. Lobis, J.), entered in a proceeding pursuant to CPLR article 75, which had, insofar as appealed from as limited by the briefs, preliminarily enjoined respondents from implementing any termination or revocation of "Release Time" leave for the three individual petitioners pending resolution of arbitration proceedings commenced by petitioner Patrolmen's Benevolent Association of the City of New York, Inc.; (2) vacated the judgment; (3) denied the petition; and (4) dismissed the proceeding.

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\* Includes only applications that were granted.



The individual petitioners, who were elected by petitioner Patrolmen's Benevolent Association of the City of New York, Inc. (PBA) to serve as the sole borough-wide PBA representatives for police officers assigned to the Bronx, and were issued Release Time certificates pursuant to New York City Executive Order No. 75 of 1973 (EO 75) which approved full-time leave with pay and benefits, had those certificates rescinded by the Office of Labor Relations (OLR) after a grand jury indicted the individual petitioners in connection with an alleged ticket-fixing scheme. As a result, the PBA filed a group grievance with the OLR, which was ultimately denied. Petitioners then filed a request for arbitration with the New York City Office of Collective Bargaining seeking to reinstate the certificates on the ground that the rescission violated the parties' collective bargaining agreement and EO 75. In conjunction therewith, petitioners commenced a proceeding seeking a preliminary injunction pending arbitration, pursuant to CPLR 7502 (c).

Supreme Court granted petitioners a preliminary injunction enjoining respondents from denying or revoking "Release Time" to the individual petitioners, pending resolution of the arbitration proceedings. The Appellate Division reversed, concluding that petitioners failed to establish a likelihood of success on the merits of the claim to be arbitrated, and vacated the preliminary injunction. The Appellate Division determined that the indictments related to the ticket-fixing scheme, which included allegations of grand larceny, official misconduct, tampering with public records, and criminal solicitation, constituted a sufficient basis for respondent City of New York to determine that the individual petitioners did not "at all times conduct themselves in a responsible manner" as required by section 4 (10) of EO 75, and that, accordingly, the OLR was entitled to unilaterally rescind the Release Time certificates.

*Matter of Patrolmen's Benevolent Assn. of the City of New York, Inc. v City of New York*, 119 AD3d 1, reversed.

#### HEADNOTE

##### **Appeal — Academic and Moot Questions — Dismissal of Proceeding**

In a proceeding seeking a preliminary injunction pending arbitration, an order of the Appellate Division, which reversed an order and judgment of the Supreme Court preliminarily enjoining respondents from implementing any termination or revocation of "Release Time" leave for the individual petitioners pending resolution of arbitration proceedings commenced by petitioner Patrolmen's Benevolent Association of the City of New York, Inc., vacated the judgment, denied the petition and dismissed the proceeding, was reversed,

and the proceeding remitted to Supreme Court with directions to dismiss the proceeding upon the ground of mootness.

#### APPEARANCES OF COUNSEL

*Gleason Dunn Walsh & O'Shea*, Albany (*Ronald G. Dunn* of counsel), and *Michael T. Murray*, *Patrolmen's Benevolent Association of the City of New York, Inc.*, New York City (*Gaurav I. Shah* and *David W. Morris* of counsel), for appellants.

*Zachary W. Carter*, *Corporation Counsel*, New York City (*Ellen Ravitch*, *Richard Dearing* and *Pamela Seider Dolgow* of counsel), for respondents.

*Greenberg Burzichelli Greenberg P.C.*, Lake Success (*Harry Greenberg* and *Genevieve E. Peebles* of counsel), for Harry Nespoli, amicus curiae.

#### OPINION OF THE COURT

Order reversed, without costs, and matter remitted to Supreme Court, New York County, with directions to dismiss the proceeding upon the ground of mootness (*see Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 718 [1980]).

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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In the Matter of AMINATA M.S.-L. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; DORIS L., Appellant. (Proceeding No. 1.)

In the Matter of NEFERITTI M.A.S.-L. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; DORIS L., Appellant. (Proceeding No. 2.)

Submitted October 13, 2015; decided November 23, 2015

Reported below, 128 AD3d 707.

Motion for reargument of motion for leave to appeal denied [*see* 25 NY3d 914 (2015)].

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RAMANDEEP BADWAL, Respondent, v AVTAR S. BADWAL, Appellant.

Submitted October 5, 2015; decided November 23, 2015

Reported below, 126 AD3d 736.

On the Court's own motion, appeal dismissed, without costs, upon the ground that it does not lie. Motion for leave to appeal denied. Motion for a stay dismissed as academic.

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CF HY LLC, Respondent, v HUDSON YARDS LLC et al., Defendants, and BARUCH SINGER, Appellant.

Submitted October 5, 2015; decided November 23, 2015

Reported below, 124 AD3d 490.

Motion for reargument denied [*see* 26 NY3d 945 (2015)].

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In the Matter of EILEEN D'AMICO, Respondent, v CHRISTOPHER CORRADO, Appellant.

Submitted October 13, 2015; decided November 23, 2015

Reported below, 129 AD3d 718.

Motion for reargument of motion for leave to appeal denied [*see* 26 NY3d 949 (2015)].

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RENEE FORBES, Appellant, v PAUL J. GIACOMO, JR., et al., Respondents.

Submitted September 21, 2015; decided November 23, 2015

Reported below, 130 AD3d 428.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from the Supreme Court order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of LETITIA JAMES, Appellant, v DANIEL DONOVAN, Respondent.

In the Matter of LEGAL AID SOCIETY, Appellant, v DANIEL DONOVAN, Respondent.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Appellant, v DANIEL DONOVAN, Respondent.

In the Matter of NYP HOLDINGS, INC., Petitioner, v DANIEL DONOVAN, Respondent.

In the Matter of STATEN ISLAND BRANCH OF NATIONAL ASSOCIATION FOR ADVANCEMENT OF COLORED PEOPLE et al., Appellants, v DANIEL DONOVAN, Respondent.

Submitted August 24, 2015; decided November 23, 2015

Reported below, 130 AD3d 1032.

Motions for leave to appeal denied. Motions for a calendar preference dismissed as academic.

Chief Judge LIPPMAN taking no part.

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In the Matter of LI RONG GAO et al., Respondents, v PERFECT TEAM CORP., Appellant.

Submitted October 5, 2015; decided November 23, 2015

Reported below, 124 AD3d 890.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as dismissed appeals from the October 2010 and February 2012 Supreme Court orders, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

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111-38 MANAGEMENT CORP., Appellant, v DIEGO BENITEZ, Also Known as JUAN D. BENITEZ, et al., Respondent, et al., Defendant.

Submitted September 28, 2015; decided November 23, 2015

Reported below, 131 AD3d 458.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE AVILES, Appellant.

Submitted October 5, 2015; decided November 23, 2015

Reported below, 47 Misc 3d 126(A), 2015 NY Slip Op 50347(U).

Motion to enlarge the record denied.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRANK L. MORRISON, Appellant.

Submitted September 28, 2015; decided November 23, 2015

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of County Court entered in this proceeding commenced in Town Court (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* RAFAEL AGOSTO, Appellant, v PAUL CHAPPIUS JR., as Superintendent of Elmira Correctional Facility, Respondent.

Submitted October 5, 2015; decided November 23, 2015

Reported below, 2015 NY Slip Op 70518(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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PEDRO ANTONIO RIVERA, Appellant, v EARLYBIRD DELIVERY SYSTEMS, LLC, Respondent.

Submitted October 5, 2015; decided November 23, 2015

Reported below, 2015 NY Slip Op 82609(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of VILLAGE OF SOUTHAMPTON, Respondent, v VILLAGE OF SOUTHAMPTON POLICE BENEVOLENT ASSOCIATION, INC., Respondent. CHRISTOPHER BROICH, Nonparty-Appellant.

Submitted August 31, 2015; decided November 23, 2015

Reported below, 2015 NY Slip Op 78443(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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[43 NE3d 762, 22 NYS3d 405]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ABDEL-OUAHAD AFILAL, Appellant.

Argued October 20, 2015; decided November 24, 2015

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered June 4, 2014. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Tamiko A. Amaker, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of marihuana in the fifth degree.

*People v Afilal*, 43 Misc 3d 142(A), 2014 NY Slip Op 50851(U), reversed.

#### HEADNOTE

**Crimes — Controlled Substances — Criminal Possession of Marihuana — Sufficiency of Accusatory Instrument — “Public Place” Element**

The accusatory instrument charging defendant with criminal possession of marihuana in the fifth degree failed to allege sufficient facts to establish the “public place” element of Penal Law § 221.10 (1). Since defendant waived prosecution by information, the sufficiency of the accusatory instrument was assessed under the standard applicable to a misdemeanor complaint. Under

that standard, the complaint must allege “facts of an evidentiary character supporting or tending to support the charges” (CPL 100.15 [3]), and the factual allegations must “provide reasonable cause to believe that the defendant committed the offense charged” (CPL 100.40 [4] [b]). Given the absence of factual allegations describing a public place within the definition of Penal Law § 240.00 (1) where defendant was located when he was observed holding a bag of marihuana, and the accusatory instrument’s reliance otherwise on conclusory statements that did no more than track the language of Penal Law § 221.10 (1), the complaint failed to meet the reasonable cause requirement and warranted dismissal.

#### APPEARANCES OF COUNSEL

*Seymour W. James, Jr., The Legal Aid Society*, New York City (*Seth Steed* of counsel), for appellant.

*Cyrus R. Vance, Jr., District Attorney*, New York City (*Alan Gadlin* and *Hilary Hassler* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Term should be reversed and the accusatory instrument dismissed. Defendant was charged with and pleaded guilty to criminal possession of marihuana in the fifth degree (Penal Law § 221.10 [1]). On appeal he challenges the sufficiency of the accusatory instrument, claiming that it fails to allege sufficient facts to establish the “public place” element of section 221.10 (1).

A person is guilty of criminal possession of marihuana in the fifth degree “when [such person] knowingly and unlawfully possesses . . . marihuana in a public place . . . and such marihuana is burning or open to public view” (Penal Law § 221.10 [1]). Public place means

“a place to which the public or a substantial group of persons has access, and includes, but is not limited to, highways, transportation facilities, schools, places of amusement, parks, playgrounds, and hallways, lobbies and other portions of apartment houses and hotels not constituting rooms or apartments designed for actual residence” (Penal Law § 240.00 [1]).

“A valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution” (*People v Case*, 42 NY2d 98, 99 [1977]). Defendant waived prosecution by information and, therefore, the sufficiency of the accusatory instrument is assessed under the standard applicable to a misdemeanor complaint. Under that standard, the

complaint must allege “facts of an evidentiary character supporting or tending to support the charges” (CPL 100.15 [3]), and the factual allegations must “provide reasonable cause to believe that the defendant committed the offense charged” (CPL 100.40 [4] [b]; *see People v Dumay*, 23 NY3d 518, 522 [2014]).

Here, the People concede that the accusatory instrument could have more precisely pleaded the public nature of defendant’s location by alleging that he was standing on a sidewalk or in a park, when the officer saw him holding a bag of marihuana. We agree that either of these assertions describes a location within the definition of Penal Law § 240.00 (1) (*see* Penal Law § 240.00 [1] [public place includes “places of amusement, parks, playgrounds”]; *People v Campbell*, 41 Misc 3d 143[A], 2013 NY Slip Op 52057[U], \*2 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2013] [officer “observed the defendant on a sidewalk which is a public place, and in possession of a quantity of marihuana”], *lv denied* 22 NY3d 1155 [2014]). Given the absence of such factual allegations, and the instrument’s reliance otherwise on conclusory statements that do no more than track the language of Penal Law § 221.10 (1), the complaint fails to meet the reasonable cause requirement and should be dismissed (*see People v Dreyden*, 15 NY3d 100, 103 [2010]; CPL 100.40 [4] [b]; *Dumay*, 23 NY3d at 522).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order reversed and accusatory instrument dismissed, in a memorandum.

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[44 NE3d 196, 23 NYS3d 121]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAC-TAR SOUGOU, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RITA THOMPSON, Appellant.

Decided November 24, 2015

#### SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial



Department, dated February 20, 2015. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (James M. Burke, J.), which had convicted defendant, upon his plea of guilty, of unlicensed general vending.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered December 31, 2014. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Diana M. Boyar, J.), which had convicted defendant, upon her plea of guilty, of harassment in the second degree.

*People v Sougou*, 46 Misc 3d 140(A), 2015 NY Slip Op 50146(U), affirmed.

*People v Thompson*, 46 Misc 3d 136(A), 2014 NY Slip Op 51892(U), affirmed.

#### HEADNOTES

##### **Crimes — Plea of Guilty — Validity**

1. Defendant's guilty plea was knowing, voluntary and intelligent and constituted a valid waiver of his constitutional rights where the record demonstrated that defendant understood the consequences of his plea, including that he was waiving his right to trial and to challenge evidence against him, and that he discussed both the plea and his sentence with counsel. During the plea, defense counsel stated initially that defendant authorized him to enter a guilty plea and that he had discussed with defendant that any arrests during defendant's conditional discharge period would place him at risk of arrest and 90 days' jail time. The judge then directly addressed defendant and asked specifically whether defendant had discussed the plea and sentence with his lawyer, whether he was pleading voluntarily and of his own free will, and whether defendant understood that he was giving up his right to a trial and to hearings on the search and seizure evidence. Defendant answered "yes" to each and every question.

##### **Crimes — Plea of Guilty — Validity**

2. Defendant's guilty plea was knowing, voluntary and intelligent and constituted a valid waiver of her constitutional rights where the court's inquiry and defendant's responses established that defendant waived her right to trial and fully comprehended the plea. At the plea proceeding, counsel stated that she was authorized to enter a plea of guilty on defendant's behalf. The judge addressed defendant and asked whether she wanted to enter a plea of guilty to harassment, a violation and not a crime, and whether she understood that by pleading guilty she was giving up her right to trial. Defendant responded affirmatively to the court's inquiries, and also stated that no one had forced her to enter the plea. Defense counsel emphasized that the plea was to a violation, not a crime, and that it would not add to her criminal record. Defendant thus understood that by pleading guilty she avoided any further enhancement of her existing criminal record.

**APPEARANCES OF COUNSEL**

*The Legal Aid Society*, New York City (*Harold V. Ferguson, Jr.*, of counsel), for appellant in the first above-entitled action.

*Cyrus R. Vance, Jr., District Attorney*, New York City (*Alan Gadlin* and *Hilary Hassler* of counsel), for respondent in the first above-entitled action.

*The Legal Aid Society*, New York City (*Harold V. Ferguson, Jr.*, of counsel), for appellant in the second above-entitled action.

*Cyrus R. Vance, Jr., District Attorney*, New York City (*Manu Balachandran* and *Alan Gadlin* of counsel), for respondent in the second above-entitled action.

**OPINION OF THE COURT****MEMORANDUM.**

The orders of the Appellate Term should be affirmed.

In each of these appeals defendants contend that their respective plea allocutions were insufficient as a matter of law to establish that they pleaded guilty knowingly and intelligently (see *Boykin v Alabama*, 395 US 238, 243 [1969]; *People v Harris*, 61 NY2d 9, 18 [1983]). We disagree and conclude that, in each case, the plea proceeding manifests a constitutionally adequate waiver.

As a preliminary matter, we reject the People's contention that defendants' claims are unpreserved and find *People v Tyrell* (22 NY3d 359 [2013]) dispositive on this issue. As in *Tyrell*, both defendants pleaded guilty and were sentenced at the same proceeding, and the errors were clear from the face of the record. As a consequence, preservation poses no bar to our review of defendants' challenges to their guilty pleas (*id.* at 364).

Turning to the merits, we begin with the established constitutional principle that a guilty plea must be "entered voluntarily, knowingly and intelligently" (*People v Haffiz*, 19 NY3d 883, 884 [2012]; see *Tyrell*, 22 NY3d at 365; *People v Harris*, 61 NY2d 9, 17-18 [1983]). A valid plea encompasses a waiver of the right to trial by jury, the privilege against compulsory self-incrimination, and the right to confront one's accusers (*Boykin*, 395 US at 243; *Harris*, 61 NY2d at 18). However, this Court has rejected the requirement that the trial judge must enumerate all the rights waived during the course of the plea allocution (*Harris*, 61 NY2d at 18; *Tyrell*, 22 NY3d at 365). Nevertheless, "the Trial Judge has a vital responsibility 'to make sure [that the accused] has full understanding of what the plea con-

notes and of its consequence[s]’ ” (*Harris*, 61 NY2d at 19, citing *Boykin*, 395 US at 244). Of course, a trial judge may discharge this duty by direct inquiry of the defendant, but, as we recognized in *Tyrell*, a valid waiver can be established “where the record shows that the defendant consulted with [defendant’s] attorney about the constitutional consequences of a guilty plea” (22 NY3d at 365, citing *North Carolina v Alford*, 400 US 25, 29 n 3 [1970], and *Hanson v Phillips*, 442 F3d 789, 801 [2d Cir 2006]).

A court determining the voluntariness of a plea must review the record as a whole and the circumstances of the plea in its totality (*Harris*, 61 NY2d at 19). Indeed, “ ‘the voluntariness of [a] plea can be determined only by considering all of the relevant circumstances surrounding it’ ” (*Harris*, 61 NY2d at 19 [emphasis omitted], quoting *Brady v United States*, 397 US 742, 749 [1970]). Here, the records in the instant appeals demonstrate that defendants’ pleas were “knowing, voluntary and intelligent” and constitute valid waivers of their constitutional rights.

In *Sougou*, defendant pleaded guilty to unlicensed general vending (Administrative Code of City of NY § 20-453), a misdemeanor. The court sentenced defendant to a conditional discharge, with three days of community service, and required that he not be arrested for one year, or risk 90 days’ jail time as an alternative sentence.

[1] During the plea, defense counsel stated initially that defendant authorized him to enter a guilty plea for violating section 20-453, and that he had discussed with defendant that any arrests during the conditional discharge period would place defendant at risk of arrest and 90 days’ jail time. The judge then directly addressed defendant and asked specifically whether defendant had discussed the plea and the sentence, as described in open court, with his lawyer; whether defendant was pleading voluntarily and of his own free will; and whether defendant understood that he was giving up his right to a trial and to hearings on the search and seizure evidence. Defendant answered “yes” to each and every question. The record thus affirmatively demonstrates that defendant understood the consequences of his plea, including that he was waiving his right to trial and to challenge evidence against him, and that he discussed both the plea and his sentence with counsel. Therefore, defendant’s challenge to the voluntariness of the plea is without merit (*see Harris*, 61 NY2d at 20-21 [holding that waivers in *People v Ramsey* and *People v Alicea* were valid

where the judges advised the defendants of their right to trial, discussed the plea consequences with defendant, and defendant affirmed that the plea was voluntary]).

In *Thompson*, defendant pleaded guilty to harassment in the second degree (Penal Law § 240.26), a violation, and the court sentenced her to time served and imposed a two-year order of protection. At the plea proceeding, counsel stated that she was authorized to enter a plea of guilty on defendant's behalf to harassment in the second degree. The judge addressed defendant and asked whether she wanted to enter a plea of guilty to harassment, a violation and not a crime, and whether she understood that by pleading guilty she was giving up her right to trial. Defendant responded affirmatively to the court's inquiries, and also stated that no one had forced her to enter the plea.

[2] Based on our review of the record, we conclude that the court's inquiry and defendant's responses establish that defendant waived her right to trial and fully comprehended the plea. Indeed, defense counsel emphasized "to be very clear for" defendant, that the plea was to "a violation not a crime. It will not add to her criminal record." Defendant thus understood that by pleading guilty she avoided any further enhancement of her existing criminal record. Granted, the plea proceeding was succinct, but, unlike *Tyrell*, the record was not silent, and the substance of the plea colloquy is at least equivalent to that of the pleas this Court upheld in *People v Ramsey* and *People v Alicea*, two of the cases decided along with *Harris* (61 NY2d at 20-21).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

In each case: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

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AURORA LOAN SERVICES, LLC, Respondent, v MARIO LUCERO et al., Defendants, and ROSA SOTO, Appellant.

Submitted October 5, 2015; decided November 24, 2015

Reported below, 131 AD3d 496.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of VIVIAN BARBAGALLO, Respondent, v ERICK COTTO-DONIS, Appellant.

Submitted November 2, 2015; decided November 24, 2015

Reported below, 131 AD3d 1237.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of SHARON K. BLAND, Appellant, v GELLMAN, BRYDGES & SCHROFF et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (Claim No. 1.)

In the Matter of SHARON K. BLAND, Appellant, v RONCO COMMUNICATIONS et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (Claim No. 2.)

Submitted October 26, 2015; decided November 24, 2015

Reported below, 127 AD3d 1437.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 948 (2015)].

Judge STEIN taking no part.

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PATRICIA J. CURTO, Appellant, v MARK DIEHL et al., Respondents.

Submitted October 19, 2015; decided November 24, 2015

Reported below, 2015 NY Slip Op 73809(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 946 (2015)].

Judge FAHEY taking no part.

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In the Matter of DIOR POLO G., an Infant. CARRIE D. TILLMAN, Appellant; RONALD ROSSI et al., Respondents.

Submitted October 13, 2015; decided November 24, 2015

Reported below, 105 AD3d 739.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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SANDRA L. HUGHES, Respondent, v NEVILLE T. HUGHES, Appellant.

Submitted October 26, 2015; decided November 24, 2015

Reported below, 131 AD3d 1207.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of ELVIN LEBRON, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of New York State Department of Corrections and Community Supervision, Respondent.

Submitted October 13, 2015; decided November 24, 2015

Reported below, 2015 NY Slip Op 80458(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of STEPHANIE LEWIS, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION et al., Respondents.

Submitted October 26, 2015; decided November 24, 2015

Reported below, 126 AD3d 442.

Motion, insofar as it seeks leave to appeal against respondents New York City Health and Hospitals Corporation and Bellevue Hospital Center, dismissed as untimely (*see* CPLR 5513 [b]; 5514 [a]); motion for leave to appeal otherwise denied.

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In the Matter of GERALD E. LOEHR et al., Respondents, v ADMINISTRATIVE BOARD OF THE COURTS OF THE STATE OF NEW YORK, Appellant.

Submitted September 28, 2015; decided November 24, 2015

Reported below, 130 AD3d 89.

Motion for leave to appeal denied upon the ground that an appeal lies as of right (*see* CPLR 5601 [b] [1]).

Chief Judge LIPPMAN taking no part.

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In the Matter of ERICH MILORD, Appellant, v NEW YORK STATE  
DEPARTMENT OF MOTOR VEHICLES, Respondent.

Submitted November 2, 2015; decided November 24, 2015

Reported below, 125 AD3d 972.

Motion for reargument of motion for leave to appeal denied  
[*see* 26 NY3d 904 (2015)].

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In the Matter of TEDDY ISRAEL MOORE (Admitted as ISRAEL  
TEDDY MOORE), a Disbarred Attorney, Appellant. GRIEV-  
ANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIR-  
TEENTH JUDICIAL DISTRICTS, Respondent.

Submitted October 13, 2015; decided November 24, 2015

Reported below, 2015 NY Slip Op 79333(U).

Motion for reargument of motion for leave to appeal denied  
[*see* 26 NY3d 961 (2015)].

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RTN NETWORKS, LLC, Appellant, v TELCO GROUP, INC., et al.,  
Respondents.

Submitted September 28, 2015; decided November 24, 2015

Reported below, 126 AD3d 477; 2015 NY Slip Op 80665(U).

Motion, insofar as it seeks leave to appeal from the August 2015 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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RW HOLDINGS, LLC, Appellant, v JOHANNA MAYER et al., Re-  
spondents.

Submitted November 2, 2015; decided November 24, 2015

Reported below, 131 AD3d 1228.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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S. NICOLIA & SONS REALTY CORP., Appellant, v A.J.A. CONCRETE READY MIX, INC., Doing Business as AJA CONCRETE, INC., et al., Respondents.

Submitted October 13, 2015; decided November 24, 2015

Reported below, 130 AD3d 1004.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

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LYNDSEY WILCOX, Appellant, v NEWARK VALLEY CENTRAL SCHOOL DISTRICT et al., Respondents, et al., Defendants.

Submitted October 26, 2015; decided November 24, 2015

Reported below, 129 AD3d 1230.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of the Claim of YUJUAN SHENG, Appellant, v TIME WARNER CABLE, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted November 2, 2015; decided November 24, 2015

Reported below, 131 AD3d 1283.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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[44 NE3d 220, 23 NYS3d 145]

SWITZERLAND GREEN, Appellant, v METROPOLITAN TRANSPORTATION AUTHORITY BUS COMPANY et al., Respondents, et al., Defendants.

TYESE LAWS, Appellant, v METROPOLITAN TRANSPORTATION AUTHORITY BUS COMPANY et al., Respondents.

Decided November 19, 2015

### SUMMARY

APPEALS, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 7, 2015. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, New York County (Arlene P. Bluth, J.), which, to the extent appealed from, had (1) denied the motion to renew of defendants Metropolitan Transportation Authority Bus Company and Isael Reyes (the MTA defendants); (2) granted the MTA defendants' motion to reargue their cross motion for summary judgment; and (3) upon reargument, adhered to that court's prior order (op 2013 NY Slip Op 32398[U] [2013]), which had denied the MTA defendants' cross motion. The modification consisted of granting upon reargument the MTA defendants' motion for summary judgment. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as [modified] by this Court, properly made?"

In an action arising from a collision between a municipal bus and a sedan, the Appellate Division determined that defendants Metropolitan Transportation Authority Bus Company and bus driver (MTA defendants) made a prima facie showing of entitlement to judgment as a matter of law based on the emergency doctrine defense. The bus driver stated that he was traveling north in the right lane on an expressway when a van suddenly jumped the guard barrier to his right and entered the expressway, causing him to veer into the left lane in order to avoid a collision with the van and, in turn, collide with the sedan. No alternate factual account was presented in opposition by plaintiff bus passenger, who was asleep at the time of impact, or defendant sedan driver, who was rendered unconscious as a result of the collision. The Appellate Division further determined that the MTA defendants' motion was not premature, even though the deposition of the bus driver had not yet been held. Although the bus driver's account of the ac-

cident was uncorroborated, the Appellate Division concluded that neither plaintiff nor defendant sedan driver presented evidence to show that further discovery was required pursuant to CPLR 3212 (f) to develop their opposition to summary judgment.

*Green v Metropolitan Transp. Auth. Bus Co.*, 127 AD3d 421, reversed.

#### HEADNOTE

##### **Negligence — Emergency Doctrine — Appropriateness of Summary Judgment**

In an action arising from a collision between a municipal bus and a sedan, the order of the Appellate Division which granted the motion of defendants bus company and bus driver for summary judgment based on the emergency doctrine defense was reversed, and the motion denied. On the record, whether the emergency doctrine precluded liability presented a question of fact and, therefore, summary judgment for defendants was inappropriate.

#### APPEARANCES OF COUNSEL

*Laurence M. Savedoff, P.L.L.C.*, Bronx (*Laurence M. Savedoff* of counsel), for Switzerland Green, appellant.

*Parker Waichman LLP*, Port Washington (*Jay L.T. Breakstone* of counsel), for Tyese Laws, appellant.

*Morris Duffy Alonso & Faley*, New York City (*Arjay G. Yao* of counsel), for respondents.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, with costs; motion of defendants Metropolitan Transportation Authority Bus Company and Isael Reyes for summary judgment denied; and certified question not answered as unnecessary. On this record, whether the emergency doctrine precludes liability presents a question of fact and, therefore, summary judgment for defendants Metropolitan Transportation Authority Bus Company and Isael Reyes was inappropriate.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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[44 NE3d 220, 23 NYS3d 145]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEPHEN  
PELLEGRINO, Appellant.

Decided November 24, 2015

**SUMMARY**

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered June 9, 2014. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Jennifer G. Schecter, J.), which had convicted defendant, upon his plea of guilty, of promoting prostitution in the fourth degree.

*People v Pellegrino*, 43 Misc 3d 145(A), 2014 NY Slip Op 50896(U), affirmed.

**HEADNOTE****Crimes — Plea of Guilty — Validity**

Defendant's guilty plea to promoting prostitution was valid where the record as a whole affirmatively demonstrated that he knowingly, intelligently and voluntarily waived his constitutional rights. A guilty plea is not invalid solely because the trial court failed to recite a defendant's constitutional rights under *Boykin v Alabama* (395 US 238 [1969]). Although defendant was initially charged with a felony, defendant pleaded guilty to a misdemeanor in exchange for a fine. He discussed the plea with his attorney for two days and personally confirmed that he was pleading guilty of his own free will because he was guilty of the charge. Moreover, the court ensured that defendant was aware of any potential immigration consequences and also that the conviction would add to his criminal record.

**APPEARANCES OF COUNSEL**

*The Legal Aid Society*, New York City (*Joanne Legano Ross* of counsel), for appellant.

*Cyrus R. Vance, Jr.*, *District Attorney*, New York City (*Yuval Simchi-Levi* and *Alan Gadlin* of counsel), for respondent.

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Term should be affirmed.

A guilty plea is not invalid solely because the trial court failed to recite a defendant's constitutional rights under *Boykin v Alabama* (395 US 238 [1969]; see *People v Conceicao*, 26 NY3d 375 [2015] [decided herewith]). The record as a whole, however, must affirmatively demonstrate that defendant knowingly, intelligently and voluntarily waived those rights (see *People v Harris*, 61 NY2d 9, 17 [1983]).

The Appellate Term correctly concluded that the record in this case affirmatively shows a knowing, intelligent and voluntary waiver. Although he was initially charged with a felony, defendant pleaded guilty to promoting prostitution in the fourth degree (Penal Law § 230.20), a class A misdemeanor, in exchange for a \$250 fine. He discussed the plea with his attorney for two days and personally confirmed that he was pleading guilty of his own free will because he was, in fact, guilty of the charge. The court ensured that defendant was aware of any potential immigration consequences and also that the conviction would add to his criminal record. We are satisfied that these facts establish a knowing, intelligent and voluntary waiver.

Chief Judge LIPPMAN (dissenting). I dissent for the reasons stated in my dissenting opinion in *People v Conceicao* (26 NY3d 375 [2015] [decided herewith]).

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge LIPPMAN dissents in an opinion in which Judge RIVERA concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

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[44 NE3d 209, 23 NYS3d 134]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS P. SMALLS, Appellant.

Argued November 17, 2015; decided December 15, 2015

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 8, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Robert A. Sackett, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the seventh degree.

*People v Smalls*, 116 AD3d 474, affirmed.

## HEADNOTE

**Crimes — Controlled Substances — Criminal Possession of Controlled Substance — Sufficiency of Information**

The information charging defendant with criminal possession of a controlled substance in the seventh degree, which described the circumstances surrounding defendant's possession of alleged drug residue, the appearance of the residue, and the officer's experience in identifying controlled substances, was facially sufficient. To meet the jurisdictional standard for facial sufficiency, a misdemeanor complaint need only set forth facts that establish reasonable cause to believe that the defendant committed the charged offense. In addition to satisfying the reasonable cause requirement, an information must also set forth nonhearsay allegations which, if true, establish every element of the offense charged and the defendant's commission thereof. Here, the information contained adequate allegations that the officer had the requisite training and experience to recognize the substance in defendant's possession as a controlled substance and that the officer reached his conclusion about the nature of the substance based on its appearance and placement within a favored apparatus of drug users, a glass pipe. That the substance was a burnt residue did not dictate a different result, since an information's description of the characteristics of a substance combined with its account of an officer's training in identifying such substances, the packaging of such substance and the presence of drug paraphernalia, can support the inference that the officer properly recognized the substance as a controlled substance.

## APPEARANCES OF COUNSEL

*Seymour W. James, Jr., The Legal Aid Society, New York City (Lawrence T. Hausman of counsel), for appellant.*

*Robert T. Johnson, District Attorney, Bronx (Marianne Stracquadanio, Joseph N. Ferdenzi and Karen Swiger of counsel), for respondent.*

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be affirmed.

On this appeal, the main issue is whether a misdemeanor information that describes the circumstances surrounding the defendant's possession of alleged drug residue, the appearance of the residue, and the officer's experience in identifying controlled substances sets forth a prima facie case of criminal possession of a controlled substance in the seventh degree (*see* Penal Law § 220.03). We hold that, under the particular circumstances of this case, such allegations were minimally sufficient to plead a valid charge of seventh-degree criminal possession of a controlled substance.

By a misdemeanor information, the People charged defendant Dennis P. Smalls with criminal possession of a controlled

substance in the seventh degree and unlawful possession of a knife (*see* Administrative Code of City of NY § 10-133 [b]). After his arraignment on the information, defendant moved to dismiss the information on facial sufficiency grounds, and the court denied his motion. Thereafter, defendant pleaded guilty to the charge of seventh-degree criminal possession of a controlled substance in full satisfaction of the information. In exchange for his plea, defendant received a sentence of 30 days in jail, which was set to run concurrently with his sentence upon an unrelated misdemeanor charge and with his punishment for violating the terms of his parole in a prior felony case.

The Appellate Division unanimously affirmed the judgment of conviction and sentence, rejecting defendant's challenge to the facial sufficiency of the drug-related charge to which he had pleaded guilty (*see People v Smalls*, 116 AD3d 474, 474 [1st Dept 2014]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1067 [2014]).

“‘A valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution’” (*People v Dreyden*, 15 NY3d 100, 103 [2010], quoting *People v Case*, 42 NY2d 98, 99 [1977]). To meet the jurisdictional standard for facial sufficiency, a misdemeanor complaint “need only set forth facts that establish reasonable cause to believe that the defendant committed the charged offense” (*People v Dumay*, 23 NY3d 518, 522 [2014]; *see People v Kalin*, 12 NY3d 225, 228 [2009]; *People v Dumas*, 68 NY2d 729, 731 [1986]). “In addition to [satisfying] the reasonable cause requirement, an information,” unlike a complaint, “must also set forth ‘nonhearsay allegations which, if true, establish every element of the offense charged and the defendant’s commission thereof’” (*Kalin*, 12 NY3d at 228-229, quoting *People v Henderson*, 92 NY2d 677, 679 [1999]; *see also* CPL 100.15 [3]; 100.40 [1] [c]; [4] [b]).

While more demanding than the reasonable cause standard, this *prima facie* case requirement for the facial sufficiency of an information “‘is not the same as the burden of proof beyond a reasonable doubt required at trial,’ nor does it rise to the level of legally sufficient evidence that is necessary to survive a motion to dismiss based on the proof presented at trial” (*Kalin*, 12 NY3d at 230 [citation omitted], quoting *Henderson*, 92 NY2d at 680; *see People v Guaman*, 22 NY3d 678, 681 [2014]). Additionally, “[s]o long as the factual allegations of an information give an accused notice sufficient to prepare a defense and are adequately detailed to prevent a defendant from being tried twice for the same offense, they should be given a fair

and not overly restrictive or technical reading” (*People v Casey*, 95 NY2d 354, 360 [2000]). Once the accusatory instrument meets that threshold, if “the fair implication of the[ ] averments” in the instrument establishes the elements of the charged crime, then the instrument is facially sufficient (*id.*).

Our determination of whether the information here contained adequate factual allegations establishing the elements of seventh-degree criminal possession of a controlled substance is guided by our prior exploration of that subject in *People v Kalin* (12 NY3d 225). In that case, we concluded that, because the officer’s account of his experience, the packaging of the drugs, and the drug paraphernalia recovered from the car “supplied the basis” for his belief that the substances in question were illegal drugs, the information was facially sufficient notwithstanding the absence of a lab report or a description of the appearance of the drugs themselves (*id.* at 231-232). Here, as in *Kalin*, the information was facially sufficient because it contained adequate allegations that the officer had the requisite training and experience to recognize the substance in defendant’s possession as a controlled substance and that the officer reached his conclusion about the nature of the substance based on its appearance and placement within a favored apparatus of drug users, a glass pipe.

That the substance at issue here was a burnt residue does not dictate a different result. As *Kalin* makes clear, an information’s description of the characteristics of a substance combined with its account of an officer’s training in identifying such substances, the packaging of such substance and the presence of drug paraphernalia, can support the inference that the officer properly recognized the substance as a controlled substance. Certainly, if defendant chose to go to trial he was not foreclosed from arguing in his defense that the contents of his pipe were not illegal.

We continue to stress that an information must satisfy significantly more stringent facial sufficiency requirements than those applicable to a complaint (*see Dumay*, 23 NY3d at 522; *People v Alejandro*, 70 NY2d 133, 139 [1987]). In this case, because the information met those heightened requirements, defendant’s bid for dismissal of the information must be denied. We have considered and rejected defendant’s remaining claims.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, in a memorandum.

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[44 NE3d 221, 23 NYS3d 146]

In the Matter of RAM I LLC, Appellant, v NEW YORK STATE  
DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respon-  
dent, et al., Respondent.

Argued November 18, 2015; decided December 15, 2015

### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 7, 2014. The Appellate Division (1) reversed, on the law, a judgment (denominated order) of the Supreme Court, New York County (Geoffrey D. Wright, J.; op 2012 NY Slip Op 33680[U] [2012]), entered in a proceeding pursuant to CPLR article 78, which had denied respondents' motions to dismiss and granted petitioner's application to annul a determination of respondent State Division of Housing and Community Renewal which (a) granted respondent Phyllis Berk's petition for administrative review; (b) revoked the Rent Administrator's order deregulating the apartment leased by respondent Phyllis Berk; and (c) denied petitioner's 2008 application for high-income rent deregulation of that apartment; (2) denied the petition; and (3) dismissed the proceeding. The following question was certified by the Appellate Division: "Was the order of this Court which, *inter alia*, reversed the order of the Supreme Court, properly made?"

*Matter of RAM I LLC v New York State Div. of Hous. & Community Renewal*, 123 AD3d 102, appeal dismissed.

### HEADNOTE

#### **Appeal — Academic and Moot Questions — Rent-Controlled Status of Apartment — Apartment Vacated by Tenant**

Petitioner landlord's appeal from an order of the Appellate Division, which had reversed a judgment granting petitioner's application to annul a determination of respondent State Division of Housing and Community Renewal that respondent tenant's apartment was exempt from high-rent/high-income rent deregulation, was rendered moot by respondent tenant having vacated the rent-controlled apartment, pursuant to a stipulation of settlement with petitioner, and the exception to the mootness doctrine was not applicable.

### APPEARANCES OF COUNSEL

*Graubard Miller*, New York City (*Lawrence D. Bernfeld*, *Peter A. Schwartz* and *Neil P. Ritter* of counsel), for appellant.



*Gary R. Connor, General Counsel*, New York State Division of Housing and Community Renewal, New York City (*Martin B. Schneider* of counsel), for New York State Division of Housing and Community Renewal, respondent.

*Belkin Burden Wenig & Goldman, LLP*, New York City (*Robert A. Jacobs, Sherwin Belkin* and *Magda L. Cruz* of counsel), for Small Property Owners of New York, Inc., and others, amici curiae.

### OPINION OF THE COURT

#### MEMORANDUM.

The appeal should be dismissed, without costs, as moot.

The tenant having vacated the rent-controlled apartment at issue, pursuant to a stipulation of settlement with petitioner, this appeal has been rendered moot (see *Matter of Grand Jury Subpoenas for Locals 17, 135, 257 & 608 of United Bhd. of Carpenters & Joiners of Am.*, *AFL-CIO*, 72 NY2d 307, 311 [1988]; *Matter of Hearst Corp. v Clyne*, 50 NY2d 707 [1980]). The exception to the mootness doctrine is not applicable here (see *Wisholek v Douglas*, 97 NY2d 740, 742 [2002]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Appeal dismissed, without costs, as moot, in a memorandum.

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[44 NE3d 222, 23 NYS3d 147]

STEVEN C. RIDGE, Appellant, v ALICE GOLD et al., Defendants,  
and JAY BRAYMILLER, Respondent.

Decided December 15, 2015

### SUMMARY

APPEAL from a judgment of the Supreme Court, Erie County (Tracey A. Bannister, J.), entered March 11, 2015. The Supreme Court granted the motion of defendants Alice Gold and Susan Griesman for summary judgment dismissing plaintiffs' complaint and defendant Jay Braymiller's cross claims as against them. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 21, 2014. The Appellate Division, with two Justices dissenting, had (1) reversed, on the law, an order of that Supreme Court which, insofar as appealed from, denied the motion of defendant Jay Braymiller

for summary judgment dismissing plaintiff's complaint; (2) granted the motion; and (3) dismissed the complaint as against that defendant.

In a Labor Law and common-law negligence action alleging that plaintiff was injured when he fell from a ladder while working on an addition to a home, the Appellate Division determined that the Supreme Court erred in denying defendant general contractor's motion to dismiss the complaint as against him on the ground that the action was barred by collateral estoppel. The Appellate Division found that defendant met his burden on his motion by establishing the identity and decisiveness of the issue decided in a prior workers' compensation proceeding in which the Workers' Compensation Board concluded that plaintiff lacked credibility and that no accident had occurred as alleged by plaintiff.

*Ridge v Gold*, 115 AD3d 1263, reversed.

#### HEADNOTE

**Administrative Law — Collateral Estoppel — Workers' Compensation Board's Finding as to Lack of Causal Relationship Did Not Preclude Subsequent Personal Injury Action**

In a Labor Law and common-law negligence action alleging that plaintiff was injured when he fell from a ladder while working on an addition to a home, defendant general contractor was not entitled to summary judgment dismissing the complaint as against him on the ground of collateral estoppel based on a prior workers' compensation proceeding in which the Workers' Compensation Board concluded that plaintiff lacked credibility and that no accident had occurred as alleged by him. The record was inadequate to determine, as a matter of law, whether the issue of the occurrence of an accident was addressed and decided in the workers' compensation proceeding. Therefore, defendant failed to meet his burden of establishing that the doctrine of collateral estoppel barred plaintiff's action against him.

#### APPEARANCES OF COUNSEL

*Gibson, McAskill & Crosby, LLP*, Buffalo (*Timothy J. Graber* of counsel), for appellant.

*Sugarman Law Firm LLP*, Buffalo (*Carlton K. Brownell, III* of counsel), for respondent.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment insofar as appealed from and order of the Appellate Division brought up for review reversed, with costs, and motion of defendant Jay Braymiller for summary judgment dismissing the complaint denied. The record is inadequate to determine, as a

matter of law, whether the issue of the occurrence of an accident was addressed and decided in the workers' compensation proceeding. Therefore, defendant Braymiller failed to meet his burden of establishing that the doctrine of collateral estoppel bars plaintiff's action against him.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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AETNA HEALTH PLANS, as Assignee of Luz Herrera, Appellant, v  
HANOVER INSURANCE COMPANY, Respondent.

Submitted December 7, 2015; decided December 15, 2015

Reported below, 116 AD3d 538.

Motion by American Insurance Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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BECK CHEVROLET CO., INC., Appellant, v GENERAL MOTORS LLC,  
Respondent.

Submitted December 7, 2015; decided December 15, 2015

See 787 F3d 663.

Motion by Evans Chevrolet for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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In the Matter of JENNIFER L. BURKE, Respondent, v STEPHEN  
ERLE, Appellant.

Submitted September 28, 2015; decided December 15, 2015

Reported below, 125 AD3d 773.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of CHARITY AKOSUA A., Respondent, v NANA A., Appellant.

Submitted November 9, 2015; decided December 15, 2015

Reported below, 132 AD3d 462.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

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MARIA DE LOURDES TORRES, Appellant, v POLICE OFFICER JONES et al., Defendants, and CITY OF NEW YORK, Respondent. (Action No. 1.)

MARIA DE LOURDES TORRES, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents, et al., Defendants. (Action No. 2.)

Submitted December 7, 2015; decided December 15, 2015

Reported below, 120 AD3d 572.

Motion by the New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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EXECUTOR OF CELIA KATES et al., Appellants, v JAMES G. PRESSLY et al., Respondents.

Decided December 15, 2015

Reported below, 132 AD3d 723.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

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RAYMOND FINERTY et al., Respondents, v ABEX CORPORATION, Formerly Known as AMERICAN BRAKE SHOE COMPANY, et al., Defendants, and FORD MOTOR COMPANY, LTD., Appellant.

RAYMOND FINERTY et al., Respondents, v ABEX CORPORATION et al., Defendants, and FORD MOTOR COMPANY, Appellant.

Submitted December 7, 2015; decided December 15, 2015

Reported below, 125 AD3d 564.

Motion by Chamber of Commerce of the United States of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

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55 GANS JUDGMENT LLC, as Successor in Interest to UNION CENTER NATIONAL BANK, Respondent, v GERALD ROMANOFF et al., Respondents, and THE SHERYL ROMANOFF IRREVOCABLE GRANTOR TRUST et al., Appellants, et al., Defendants.

55 GANS JUDGMENT LLC, as Successor in Interest to UNION CENTER NATIONAL BANK, Respondent, v GERALD ROMANOFF et al., Respondents, et al., Defendants. ROBERT ROMANOFF, Proposed Intervenor-Appellant; FRANK D. PLATT, ESQ., Respondent.

Submitted June 8, 2015; decided December 15, 2015

Reported below, 123 AD3d 452.

Motion to substitute the Estate of Gerald Romanoff as defendant-respondent herein for defendant-respondent Gerald Romanoff granted. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of HIGHBRIDGE BROADWAY, LLC, Appellant, v ASSESSOR OF THE CITY OF SCHENECTADY et al., Respondents.

Submitted December 7, 2015; decided December 15, 2015

Reported below, 124 AD3d 1193.

Motion by New York State School Boards Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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DOUGLAS L. LEIGHT et al., Plaintiffs, and JOHN H. MASTEN, Appellant, v W7879 LLC et al., Respondents.

Submitted December 7, 2015; decided December 15, 2015

Reported below, 128 AD3d 417.

Motion by Metropolitan Council on Housing for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. One copy of the brief must be served and an original and two copies filed within seven days.

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In the Matter of MONARCH CONSULTING, INC., et al., Respondents, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant.

In the Matter of NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant, v PRIORITY BUSINESS SERVICES, INC., Formerly Known as INLAND VALLEY STAFFING SERVICES, Respondent.

In the Matter of NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant, v SOURCE ONE STAFFING, LLC, Respondent.

Submitted November 23, 2015; decided December 15, 2015

Reported below, 123 AD3d 51.

Motion by Dave Jones, California Insurance Commissioner, for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

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DOCTOR FRED L. PASTERNAK, Appellant, v LABORATORY CORPORATION OF AMERICA HOLDINGS, Also Known as LABCORP, et al., Respondents.

Decided December 15, 2015

See 807 F3d 14.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27),

accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JERYED BURGESS, Appellant.

Submitted December 7, 2015; decided December 15, 2015

Reported below, 124 AD3d 790.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLIFFTON FLETCHER, Appellant.

Submitted November 30, 2015; decided December 15, 2015

Reported below, 130 AD3d 1063.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES A. GHENT, III, Appellant.

Submitted November 30, 2015; decided December 15, 2015

Reported below, 132 AD3d 1275.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NORMAN E. RAMSEY, Appellant.

Submitted November 30, 2015; decided December 15, 2015

Motion for assignment of counsel granted and Robert N. Gregor, Esq., 3 Lake Avenue, Lake George, New York 12845 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CARLOS VALENTIN, Respondent.

Submitted November 23, 2015; decided December 15, 2015

Reported below, 128 AD3d 428.

Motion to enlarge the record denied.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. DAVID BELLON,  
on Behalf of ELZA YADGAROVA and LYUDMILA YAKUBOVA,  
Appellants, v YAACOV CHAI YONATONOV, Respondent.

Decided December 15, 2015

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the paper appealed from is not an order or judgment from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]).

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RODNEY SHERMAN, Appellant, v NEW YORK STATE THRUWAY AUTHORITY, Respondent.

Submitted December 7, 2015; decided December 15, 2015

Reported below, 120 AD3d 792.

Motion by New York City Transit Authority for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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In the Matter of KERRYANN THOMPSON, Respondent, v KEVIN FAWCETT, Appellant.

Decided December 15, 2015

Reported below, 131 AD3d 620.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of VIKING PUMP, INC. and WARREN PUMPS, LLC,  
Insurance Appeals. VIKING PUMP, INC. and WARREN PUMPS,  
LLC, Appellants; TIG INSURANCE COMPANY et al., Respon-  
dents.

Submitted December 7, 2015; decided December 15, 2015

*See* — A3d —, 2015 WL 3618924, 2015 Del LEXIS 278.

Motion by Complex Insurance Claims Litigation Association  
et al. for leave to appear amici curiae on consideration of the  
certified questions herein granted only to the extent that the  
proposed brief is accepted as filed. Three copies of the brief  
must be served and an original and nine copies filed within  
seven days.

Chief Judge LIPPMAN taking no part.

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ROBERT E. WILSON, III, Respondent, v DANIEL VALENTE DANTAS  
et al. Appellants, et al., Defendants.

Submitted November 2, 2015; decided December 15, 2015

Reported below, 128 AD3d 176.

Motion to dismiss appeal denied.

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In the Matter of BEATRICE R.H., Respondent. DEAN E.H.,  
Respondent. PENNY F.H., Nonparty Respondent; ESTATE OF  
RONALD H., Nonparty Appellant.

Submitted November 2, 2015; decided December 16, 2015

Reported below, 131 AD3d 1059.

Motion for leave to appeal dismissed upon the ground that  
movant is not a party aggrieved (*see* CPLR 5511).

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In the Matter of ROBERT JONES, Appellant, v KEVIN HICKEY, as  
Assistant Attorney General of the State of New York,  
Respondent.

Submitted November 2, 2015; decided December 16, 2015

Reported below, 126 AD3d 1247; 2015 NY Slip Op 74006(U).

Motion for reconsideration of this Court's September 10, 2015

dismissal orders denied [*see* 26 NY3d 950 (2015)]. Motion for poor person relief dismissed as academic.

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ANDREW M. KLAPPER, M.D., Appellant, v RENEE GRAZIANO et al., Defendants, and WEINSTEIN COMPANY et al., Respondents.

Submitted November 2, 2015; decided December 16, 2015

Reported below, 129 AD3d 674.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

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In the Matter of DANIEL MARTUSCELLO, JR., as Superintendent of Cocksackie Correctional Facility, Respondent, v JUA SMITH, Appellant.

Submitted October 26, 2015; decided December 16, 2015

Reported below, 2015 NY Slip Op 86291(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not a nonfinal order of the type within the meaning of CPLR 5602 (a) (2).

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MIDWEST GOLDBUYERS, INC., Appellant, v BRINK'S GLOBAL SERVICES USA, INC., a Delaware Corporation, Respondent.

Submitted October 13, 2015; decided December 16, 2015

Reported below, 120 AD3d 1150.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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PNC BANK, NATIONAL ASSOCIATION, Respondent, v AARON KLEIN, Appellant, et al., Defendants.

Submitted October 13, 2015; decided December 16, 2015

Reported below, 125 AD3d 953.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted November 2, 2015; decided December 16, 2015

Reported below, 132 AD3d 11.

Motion by New York Civil Liberties Union et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

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In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted November 2, 2015; decided December 16, 2015

Reported below, 132 AD3d 11.

Motion by Foursquare Labs, Inc., et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the memorandum is accepted as filed.

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In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted November 2, 2015; decided December 16, 2015

Reported below, 132 AD3d 11.

Motion by Brennan Center for Justice at New York University School of Law et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

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In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted November 2, 2015; decided December 16, 2015

Reported below, 132 AD3d 11.

Motion by Dropbox, Inc., et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

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SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted November 9, 2015; decided December 17, 2015

Reported below, 2015 NY Slip Op 74791(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 944 (2015)]. Motion for poor person relief dismissed as academic.

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AMY BRAUNSTEIN, Respondent, v DAVID J. BRAUNSTEIN, Appellant. (Action No. 1.)

Submitted November 9, 2015; decided December 17, 2015

Reported below, 132 AD3d 620.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of the Claim of LING CHEN, Appellant, v REUTERS AMERICA HOLDINGS, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted November 9, 2015; decided December 17, 2015

Reported below, 2015 NY Slip Op 78116(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 957 (2015)].

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STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S. SULTAN, Appellant.

Submitted November 16, 2015; decided December 17, 2015

Reported below, 129 AD3d 455.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed so much of the Supreme Court order as pertains to the motion in that court

for the imposition of sanctions, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S. SULTAN, Appellant.

Submitted November 23, 2015; decided December 17, 2015

Reported below, 126 AD3d 525.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 991 (2015)].

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MARY JANE HAYES, Respondent, v WILLIAM AMES HAYES, Appellant.

Submitted November 2, 2015; decided December 17, 2015

Reported below, 127 AD3d 1021.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. CURTIS DAVIS, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted November 16, 2015; decided December 17, 2015

Reported below, 129 AD3d 1559.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 907 (2015)].

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250 WEST 78 LLC, Respondent, v PILDES OF 83RD STREET, INC., Defendant, and DAN PILDES, Appellant.

Submitted November 16, 2015; decided December 17, 2015

Reported below, 129 AD3d 405.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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KIMBERLY MITCHELL CONVERSE, Plaintiff, v DOLE FOOD COMPANY, INC., et al., Respondents, and LEONARD'S EXPRESS, INC., Appellant. (Appeal No. 2.)

Submitted November 2, 2015; decided January 5, 2016

Reported below, 98 AD3d 1284.

Motion for leave to appeal dismissed upon the ground that the judgment and order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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JESSICA MANFORD, Respondent, v FRED M. WILBER, Appellant.

Submitted November 30, 2015; decided January 5, 2016

Reported below, 128 AD3d 1544.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of ALVIN W. McLEAN, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Decided January 5, 2016

Reported below, 132 AD3d 1041.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES BROWN, Appellant.

Submitted December 21, 2015; decided January 5, 2016

Reported below, 126 AD3d 516.

Motion by Legal Aid Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EVERETT B. McMILLAN, Appellant.

Submitted December 28, 2015; decided January 5, 2016

Reported below, 130 AD3d 651.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CRISTIAN MORALES, Appellant.

Submitted December 28, 2015; decided January 5, 2016

Reported below, 2015 NY Slip Op 82166(U).

Motion for assignment of counsel granted and Kent V. Moston, Esq., Legal Aid Society of Nassau County, 40 Main Street, 3rd Floor, Hempstead, New York 11550 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES SMITH, Appellant.

Submitted December 21, 2015; decided January 5, 2016

Reported below, 124 AD3d 918.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MORRIS H. WHITE, Appellant.

Submitted December 21, 2015; decided January 5, 2016

Reported below, 129 AD3d 1642.

Motion for assignment of counsel granted and Mary P. Davison, Esq., care of Davison Law Firm, 42 North Main Street, Suite 103, PO Box 652, Canandaigua, New York 14424 assigned as counsel to the appellant on the appeal herein.

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ADAM PLOTCH, Appellant, v CITIBANK, N.A., Respondent.

Submitted December 21, 2015; decided January 5, 2016

Reported below, 120 AD3d 1210.

Motion by Council of New York Cooperatives & Condominiums for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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ANGELO RUOTOLO, Appellant, v FANNIE MAE et al., Respondents.

Submitted November 30, 2015; decided January 5, 2016

Reported below, 127 AD3d 1442.

Motion for reargument denied [*see* 26 NY3d 983 (2015)].

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TONYIA B. WATSON, Appellant, v STATE OF NEW YORK, Respondent. (And Another Action.)

Decided January 5, 2016

Appeals transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

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XIU JIAN SUN, Appellant, v WILLIAM YEUNG et al., Respondents.

Decided January 5, 2016

Reported below, 132 AD3d 756.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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YAN PING LIANG, Appellant, v WEI XUAN GAO et al., Respondents.

Submitted November 30, 2015; decided January 5, 2016

Reported below, 118 AD3d 696.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 963 (2015)].

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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE  
OF COURT OF APPEALS OR ON CONSENT**  
(December 1, 2015 through December 31, 2015)

|                             |                                   |          |
|-----------------------------|-----------------------------------|----------|
| Rivera, Matter of, v Moxham | 3d Dept: 2015 NY Slip Op 83014(U) | 12/18/15 |
|-----------------------------|-----------------------------------|----------|

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**  
(December 1, 2015 through December 31, 2015)

|                         |                                                                     |                                        |
|-------------------------|---------------------------------------------------------------------|----------------------------------------|
| People v Adamson        | 2d Dept: 131 AD3d 701 (Kings)                                       | denied 12/11/15<br>(Stein, J.)         |
| People v Allen (Jimmie) | App Div, 2d Dept: 2015 NY Slip Op 78518(U) (Westchester)            | dismissed 12/2/15<br>(Lippman, Ch. J.) |
| People v Allen (Jimmie) | App Div, 2d Dept: 2014 NY Slip Op 92020(U) (Westchester)            | dismissed 12/2/15<br>(Lippman, Ch. J.) |
| People v Alleyne        | 2d Dept: 128 AD3d 715 (Kings)                                       | denied 12/28/15<br>(Lippman, Ch. J.)   |
| People v Andujar        | App Term, 1st Dept: 49 Misc 3d 36 (Bronx)                           | granted 12/16/15<br>(Fahey, J.)        |
| People v Atkinson       | App Div, 3d Dept: 2015 NY Slip Op 82394(U) (Tompkins)               | denied 12/2/15<br>(Rivera, J.)         |
| People v Badia          | 2d Dept: 130 AD3d 744 (Westchester)                                 | denied 12/3/15<br>(Lippman, Ch. J.)    |
| People v Barnes         | App Term, 2d Dept, 9th & 10th Jud Dists: 49 Misc 3d 131(A) (Nassau) | denied 12/4/15<br>(Pigott, J.)         |
| People v Barrios        | 1st Dept: 132 AD3d 615 (Bronx)                                      | denied 12/11/15<br>(Stein, J.)         |
| People v Beblowski      | 3d Dept: 131 AD3d 1303 (Schenectady)                                | denied 12/15/15<br>(Pigott, J.)        |
| People v Bjorntzen      | App Term, 1st Dept: 49 Misc 3d 127(A) (NY)                          | denied 12/14/15<br>(Fahey, J.)         |
| People v Black          | 3d Dept: 129 AD3d 1306 (Albany)                                     | denied 12/7/15<br>(Lippman, Ch. J.)    |
| People v Boddie         | 3d Dept: 126 AD3d 1129 (Schenectady)                                | denied 12/22/15<br>(Abdus-Salaam, J.)  |

|                         |                                                         |                                                                  |
|-------------------------|---------------------------------------------------------|------------------------------------------------------------------|
| People v Bolarinwa      | App Div, 3d Dept: 2014 NY Slip Op 88587(U) (Albany)     | dismissed<br>12/15/15<br>(Pigott, J.)                            |
| People v Boone (Otis)   | 2d Dept: 129 AD3d 1099 (Kings)                          | granted 12/22/15<br>(Rivera, J.)                                 |
| People v Boone (Thomas) | 2d Dept: 131 AD3d 704 (Queens)                          | denied 12/8/15<br>(Lippman, Ch. J.)                              |
| People v Borges         | 2d Dept: 130 AD3d 1057 (Suffolk)                        | denied 12/2/15<br>(Rivera, J.)                                   |
| People v Boula          | App Div, 3d Dept: 2015 NY Slip Op 83561(U) (Clinton)    | dismissed<br>12/16/15<br>(Pigott, J.)                            |
| People v Bowers         | 2d Dept: 131 AD3d 704 (Queens)                          | denied 12/29/15<br>(Lippman, Ch. J.)                             |
| People v Boyer          | App Div, 3d Dept: 2015 NY Slip Op 76716(U) (Rensselaer) | denied 12/1/15<br>(Rivera, J.)                                   |
| People v Bracey         | 1st Dept: 123 AD3d 419 (NY)                             | denied<br>reconsideration<br>12/7/15<br>(Lippman, Ch. J.)        |
| People v Bradberry      | 4th Dept: 131 AD3d 800 (Erie)                           | denied 12/4/15<br>(Lippman, Ch. J.)                              |
| People v Brooks         | 1st Dept: 123 AD3d 448 (Bronx)                          | denied<br>reconsideration<br>12/23/15<br>(Pigott, J.)            |
| People v Broomfield     | 3d Dept: 128 AD3d 1271 (Albany)                         | denied 12/2/15<br>(Rivera, J.)                                   |
| People v Brown          | 1st Dept: 127 AD3d 498 (NY)                             | granted upon<br>reconsideration<br>12/29/15<br>(Lippman, Ch. J.) |
| People v Bryant         | 1st Dept: 132 AD3d 502 (Bronx)                          | denied 12/29/15<br>(Fahey, J.)                                   |
| People v Burgess        | 1st Dept: 128 AD3d 530 (NY)                             | denied 12/29/15<br>(Lippman, Ch. J.)                             |
| People v Bush (Timothy) | App Div, 3d Dept: 2015 NY Slip Op 81013(U) (Tompkins)   | dismissed<br>12/22/15<br>(Rivera, J.)                            |
| People v Bush (Timothy) | App Div, 3d Dept: 2015 NY Slip Op 85640(U) (Tompkins)   | dismissed<br>12/22/15<br>(Rivera, J.)                            |
| People v Cabeza         | App Div, 1st Dept: 2014 NY Slip Op 70774(U) (NY)        | denied<br>reconsideration<br>12/1/15<br>(Rivera, J.)             |
| People v Cahill         | 4th Dept: 130 AD3d 1507 (Onondaga)                      | denied 12/4/15<br>(Rivera, J.)                                   |
| People v Carr           | 4th Dept: 128 AD3d 1402 (Erie)                          | granted 12/28/15<br>(Lippman, Ch. J.)                            |
| People v Carter         | 4th Dept: 129 AD3d 1556 (Monroe)                        | denied 12/2/15<br>(Rivera, J.)                                   |

## MEMORANDA

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|                       |                                                                            |                                          |
|-----------------------|----------------------------------------------------------------------------|------------------------------------------|
| People v Coles        | 4th Dept: 132 AD3d 1256 (Monroe)                                           | denied 12/7/15<br>(Stein, J.)            |
| People v Cooper       | App Term, 2d Dept, 9th & 10th Jud Dists:<br>49 Misc 3d 132(A) (Suffolk)    | denied 12/4/15<br>(Fahey, J.)            |
| People v Cornelius    | 1st Dept: 132 AD3d 495 (NY)                                                | denied 12/23/15<br>(Pigott, J.)          |
| People v Correa       | App Term, 1st Dept: 49 Misc 3d 127(A)<br>(Bronx)                           | denied 12/14/15<br>(Fahey, J.)           |
| People v Cosmos       | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 49 Misc 3d 134(A) (Kings) | denied 12/2/15<br>(Rivera, J.)           |
| People v Council      | 2d Dept: 130 AD3d 1060 (Queens)                                            | denied 12/1/15<br>(Rivera, J.)           |
| People v Coxon        | 3d Dept: 130 AD3d 1098 (Columbia)                                          | denied 12/15/15<br>(Lippman, Ch. J.)     |
| People v Craig        | App Div, 1st Dept: 2014 NY Slip Op<br>89005(U) (NY)                        | denied 12/2/15<br>(Rivera, J.)           |
| People v Crowl        | 2d Dept: 130 AD3d 1061 (Nassau)                                            | denied 12/2/15<br>(Rivera, J.)           |
| People v Cruz (Jorge) | 3d Dept: 131 AD3d 724 (Albany)                                             | denied 12/29/15<br>(Fahey, J.)           |
| People v Cruz (Jose)  | 2d Dept: 131 AD3d 970 (Queens)                                             | denied 12/1/15<br>(Fahey, J.)            |
| People v Darbasie     | 1st Dept: 128 AD3d 489 (NY)                                                | denied 12/4/15<br>(Rivera, J.)           |
| People v Davis        | 4th Dept: 120 AD3d 1542 (Monroe)                                           | denied 12/1/15<br>(Rivera, J.)           |
| People v Dean         | 1st Dept: 132 AD3d 472 (NY)                                                | denied 12/23/15<br>(Pigott, J.)          |
| People v Delima       | 1st Dept: 127 AD3d 600 (NY)                                                | denied 12/28/15<br>(Lippman, Ch. J.)     |
| People v Desmarat     | App Div, 2d Dept: 2015 NY Slip Op<br>82276(U) (Kings)                      | dismissed<br>12/16/15<br>(Pigott, J.)    |
| People v Diallo       | App Term, 1st Dept: 47 Misc 3d 146(A)<br>(Bronx)                           | denied 12/15/15<br>(Lippman, Ch. J.)     |
| People v Dunston      | 2d Dept: 130 AD3d 1061 (Kings)                                             | denied 12/2/15<br>(Rivera, J.)           |
| People v Elian        | 4th Dept: 129 AD3d 1635 (Monroe)                                           | denied 12/29/15<br>(Lippman, Ch. J.)     |
| People v Ested        | 2d Dept: 129 AD3d 858 (Kings)                                              | denied 12/29/15<br>(Lippman, Ch. J.)     |
| People v Ettari       | App Div, 2d Dept: 2015 NY Slip Op<br>84580(U) (Westchester)                | dismissed 12/1/15<br>(Fahey, J.)         |
| People v Evans        | 4th Dept: 132 AD3d 1398 (Onondaga)                                         | denied 12/8/15<br>(Stein, J.)            |
| People v Felder       | 1st Dept: 125 AD3d 547 (NY)                                                | denied 12/22/15<br>(Abdus-Salaam,<br>J.) |
| People v Fiorino      | 3d Dept: 130 AD3d 1376 (Albany)                                            | denied 12/29/15<br>(Lippman, Ch. J.)     |

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|------------------------|--------------------------------------------------------|-----------------------------------------------------------|
| People v Flame         | 3d Dept: 129 AD3d 1300 (Albany)                        | denied 12/29/15<br>(Lippman, Ch. J.)                      |
| People v Flores        | 1st Dept: 132 AD3d 519 (Bronx)                         | denied 12/21/15<br>(Pigott, J.)                           |
| People v Fox           | 2d Dept: 123 AD3d 844 (Kings)                          | denied 12/22/15<br>(Abdus-Salaam, J.)                     |
| People v Gangaram      | 2d Dept: 132 AD3d 776 (Queens)                         | denied 12/30/15<br>(Fahey, J.)                            |
| People v Gayden        | 4th Dept: 126 AD3d 1518 (Monroe)                       | granted 12/28/15<br>(Lippman, Ch. J.)                     |
| People v Genyard       | 2d Dept: 131 AD3d 623 (Queens)                         | denied 12/29/15<br>(Fahey, J.)                            |
| People v Gluckjhagroo  | App Term, 1st Dept: 49 Misc 3d 127(A)<br>(NY)          | denied 12/4/15<br>(Pigott, J.)                            |
| People v Goldston      | 3d Dept: 126 AD3d 1175 (Albany)                        | denied<br>reconsideration<br>12/3/15<br>(Lippman, Ch. J.) |
| People v Gordon        | 2d Dept: 132 AD3d 904 (Kings)                          | denied 12/22/15<br>(Stein, J.)                            |
| People v Griffin       | App Div, 2d Dept: 2015 NY Slip Op<br>80019(U) (Queens) | dismissed 12/1/15<br>(Rivera, J.)                         |
| People v Griggs        | 4th Dept: 132 AD3d 1327 (Erie)                         | denied 12/8/15<br>(Stein, J.)                             |
| People v Gutt (Adolf)  | App Div, 1st Dept: 2015 NY Slip Op<br>76292(U) (NY)    | denied 12/4/15<br>(Rivera, J.)                            |
| People v Gutt (Adolph) | App Div, 1st Dept: 2015 NY Slip Op<br>76292(U) (NY)    | denied 12/4/15<br>(Rivera, J.)                            |
| People v Hale          | 4th Dept: 130 AD3d 1540 (Erie)                         | denied 12/8/15<br>(Lippman, Ch. J.)                       |
| People v Hall          | App Div, 1st Dept: 2015 NY Slip Op<br>83750(U) (Bronx) | dismissed 12/2/15<br>(Lippman, Ch. J.)                    |
| People v Hammock       | 4th Dept: 128 AD3d 1424 (Monroe)                       | denied<br>reconsideration<br>12/15/15<br>(Pigott, J.)     |
| People v Harrell       | 1st Dept: 132 AD3d 507 (NY)                            | denied 12/29/15<br>(Fahey, J.)                            |
| People v Harris        | 2d Dept: 129 AD3d 990 (Kings)                          | denied 12/28/15<br>(Lippman, Ch. J.)                      |
| People v Hathaway      | 4th Dept: 130 AD3d 1507 (Monroe)                       | denied<br>reconsideration<br>12/22/15<br>(Stein, J.)      |
| People v Hawkins       | 1st Dept: 130 AD3d 426 (NY)                            | denied 12/3/15<br>(Lippman, Ch. J.)                       |
| People v Heron         | County Ct, 10/22/15 (Herkimer)                         | dismissed<br>12/30/15<br>(Fahey, J.)                      |
| People v Holley        | App Div, 2d Dept: 2015 NY Slip Op<br>81373(U) (Nassau) | dismissed 12/4/15<br>(Rivera, J.)                         |

## MEMORANDA

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|--------------------------------|-----------------------------------------------------------------------------|--------------------------------------------------------|
| People v Howard<br>(Harold)    | 4th Dept: 129 AD3d 1469 (Erie)                                              | denied<br>reconsideration<br>12/7/15 (Stein, J.)       |
| People v Howard (Tony)         | 2d Dept: 128 AD3d 732 (Nassau)                                              | denied 12/28/15<br>(Lippman, Ch. J.)                   |
| People v Howland               | 3d Dept: 130 AD3d 1105 (Ulster)                                             | denied 12/15/15<br>(Lippman, Ch. J.)                   |
| People v Huggins               | 2d Dept: 130 AD3d 1069 (Kings)                                              | denied 12/2/15<br>(Rivera, J.)                         |
| People v Hunter                | 2d Dept: 130 AD3d 1069 (Queens)                                             | denied 12/4/15<br>(Pigott, J.)                         |
| People v Jackson<br>(Michael)  | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 49 Misc 3d 134(A) (Queens) | denied 12/29/15<br>(Fahey, J.)                         |
| People v Jackson<br>(Thomas)   | 3d Dept: 128 AD3d 1181 (Schenectady)                                        | granted 12/28/15<br>(Lippman, Ch. J.)                  |
| People v Jeffrey               | 1st Dept: 132 AD3d 441 (NY)                                                 | denied 12/29/15<br>(Fahey, J.)                         |
| People v Jennings              | 2d Dept: 129 AD3d 1103 (Suffolk)                                            | denied 12/7/15<br>(Lippman, Ch. J.)                    |
| People v Johnson<br>(Andre)    | 1st Dept: 131 AD3d 893 (NY)                                                 | denied 12/4/15<br>(Pigott, J.)                         |
| People v Johnson<br>(Dwayne)   | 1st Dept: 129 AD3d 486 (NY)                                                 | denied 12/28/15<br>(Lippman, Ch. J.)                   |
| People v Johnson<br>(Randy)    | 4th Dept: 125 AD3d 1419 (Genesee)                                           | denied 12/14/15<br>(Abdus-Salaam,<br>J.)(Appeal No. 1) |
| People v Johnson<br>(Randy)    | 4th Dept: 125 AD3d 1422 (Genesee)                                           | denied 12/14/15<br>(Abdus-Salaam,<br>J.)(Appeal No. 2) |
| People v Johnson<br>(Terrance) | 2d Dept: 125 AD3d 1007 (Kings)                                              | denied 12/14/15<br>(Abdus-Salaam,<br>J.)               |
| People v Jones (Daniel)        | 4th Dept: 125 AD3d 1327 (Erie)                                              | denied 12/14/15<br>(Abdus-Salaam,<br>J.)               |
| People v Jones (Robert)        | 2d Dept: 131 AD3d 707 (Suffolk)                                             | denied 12/4/15<br>(Rivera, J.)                         |
| People v Kai                   | 3d Dept: 129 AD3d 1306 (Albany)                                             | denied 12/7/15<br>(Lippman, Ch. J.)                    |
| People v Kuhlmann              | 3d Dept: 130 AD3d 1086 (Warren)                                             | denied 12/4/15<br>(Rivera, J.)                         |
| People v Lamb                  | App Term, 1st Dept: 49 Misc 3d 135(A)<br>(NY)                               | denied 12/21/15<br>(Pigott, J.)                        |
| People v Landry (Kerry)        | 4th Dept: 132 AD3d 1351 (Onondaga)                                          | denied 12/21/15<br>(Pigott, J.)<br>(Appeal No. 1)      |
| People v Landry (Kerry)        | 4th Dept: 132 AD3d 1352 (Onondaga)                                          | denied 12/21/15<br>(Pigott, J.)<br>(Appeal No. 2)      |

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| People v LaRosa               | 2d Dept: 130 AD3d 757 (Suffolk)                          | denied<br>reconsideration<br>12/22/15<br>(Pigott, J.)   |
| People v Leonard<br>(Richard) | 4th Dept: 129 AD3d 1592 (Monroe)                         | granted 12/29/15<br>(Lippman, Ch. J.)<br>(Appeal No. 1) |
| People v Leonard<br>(Richard) | 4th Dept: 129 AD3d 1596 (Monroe)                         | granted 12/29/15<br>(Lippman, Ch. J.)<br>(Appeal No. 2) |
| People v Lopez                | App Div, 2d Dept: 2015 NY Slip Op<br>81230(U) (Richmond) | dismissed<br>12/16/15<br>(Pigott, J.)                   |
| People v Lowery               | 1st Dept: 131 AD3d 884 (NY)                              | denied 12/23/15<br>(Pigott, J.)                         |
| People v Lucas                | 1st Dept: 131 AD3d 875 (Bronx)                           | denied 12/30/15<br>(Fahey, J.)                          |
| People v Lugo                 | App Div, 1st Dept: 2015 NY Slip Op<br>76292(U) (NY)      | denied 12/4/15<br>(Rivera, J.)                          |
| People v Lundi                | 2d Dept: 130 AD3d 944 (Queens)                           | denied 12/28/15<br>(Lippman, Ch. J.)                    |
| People v Marine               | 1st Dept: 132 AD3d 459 (NY)                              | denied 12/21/15<br>(Pigott, J.)                         |
| People v Martinez             | App Div, 2d Dept: 2015 NY Slip Op<br>84676(U) (Suffolk)  | denied 12/22/15<br>(Stein, J.)                          |
| People v Masciotta            | App Div, 2d Dept: 2015 NY Slip Op<br>83438(U) (Kings)    | dismissed 12/7/15<br>(Stein, J.)                        |
| People v Massey               | 2d Dept: 131 AD3d 548 (Suffolk)                          | denied 12/1/15<br>(Rivera, J.)                          |
| People v McAllister           | 2d Dept: 130 AD3d 651 (Queens)                           | denied 12/1/15<br>(Rivera, J.)                          |
| People v McMillan             | 2d Dept: 130 AD3d 651 (Queens)                           | granted 12/2/15<br>(Stein, J.)                          |
| People v Medina               | 3d Dept: 129 AD3d 1385 (Schenectady)                     | denied 12/1/15<br>(Rivera, J.)                          |
| People v Mejia                | 4th Dept: 126 AD3d 1364 (Erie)                           | denied 12/2/15<br>(Lippman, Ch. J.)                     |
| People v Mills                | 2d Dept: 132 AD3d 698 (Queens)                           | denied 12/30/15<br>(Fahey, J.)                          |
| People v Mixon                | 4th Dept: 129 AD3d 1509 (Erie)                           | denied 12/9/15<br>(Lippman, Ch. J.)                     |
| People v Monroe               | 1st Dept: 132 AD3d 426 (NY)                              | denied 12/29/15<br>(Lippman, Ch. J.)                    |
| People v Montague             | 3d Dept: 130 AD3d 1100 (Albany)                          | denied 12/2/15<br>(Lippman, Ch. J.)                     |
| People v Moore                | 1st Dept: 126 AD3d 561 (NY)                              | denied 12/3/15<br>(Lippman, Ch. J.)                     |
| People v Morales              | App Div, 1st Dept: 2014 NY Slip Op<br>88417(U) (NY)      | dismissed 12/7/15<br>(Stein, J.)                        |
| People v Motayne              | 2d Dept: 128 AD3d 732 (Nassau)                           | denied 12/28/15<br>(Lippman, Ch. J.)                    |

## MEMORANDA

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| People v Murphy         | 1st Dept: 132 AD3d 550 (NY)                               | denied 12/30/15<br>(Fahey, J.)                       |
| People v Nance          | 4th Dept: 132 AD3d 1389 (Erie)                            | denied 12/15/15<br>(Pigott, J.)                      |
| People v Noble          | 2d Dept: 131 AD3d 550 (Kings)                             | denied 12/4/15<br>(Lippman, Ch. J.)                  |
| People v Norman         | 1st Dept: 132 AD3d 488 (NY)                               | denied 12/15/15<br>(Fahey, J.)                       |
| People v Orta           | 4th Dept: 130 AD3d 1506 (Monroe)                          | denied 12/7/15<br>(Lippman, Ch. J.)                  |
| People v Owens          | 2d Dept: 129 AD3d 995 (Kings)                             | denied 12/8/15<br>(Lippman, Ch. J.)                  |
| People v Perry          | 1st Dept: 131 AD3d 895 (NY)                               | denied 12/30/15<br>(Fahey, J.)                       |
| People v Portis         | 3d Dept: 129 AD3d 1300 (Albany)                           | denied 12/29/15<br>(Lippman, Ch. J.)                 |
| People v Posy           | App Div, 2d Dept: 2015 NY Slip Op<br>81765(U) (Queens)    | dismissed 12/7/15<br>(Lippman, Ch. J.)               |
| People v Prindle        | 4th Dept: 129 AD3d 1506 (Monroe)                          | granted 12/28/15<br>(Lippman, Ch. J.)                |
| People v Quinn          | 2d Dept: 131 AD3d 710 (Queens)                            | denied 12/29/15<br>(Lippman, Ch. J.)                 |
| People v Rajczak        | 4th Dept: 132 AD3d 1312 (Niagara)                         | denied 12/15/15<br>(Lippman, Ch. J.)                 |
| People v Ramirez        | 2d Dept: 131 AD3d 1269 (Queens)                           | denied 12/15/15<br>(Pigott, J.)                      |
| People v Ramos          | 2d Dept: 131 AD3d 711 (Orange)                            | denied 12/8/15<br>(Stein, J.)                        |
| People v Reitz          | 4th Dept: 125 AD3d 1425 (Oswego)                          | denied<br>reconsideration<br>12/4/15<br>(Rivera, J.) |
| People v Reyes          | 1st Dept: 125 AD3d 524 (NY)                               | denied 12/2/15<br>(Lippman, Ch. J.)                  |
| People v Richardson     | App Div, 3d Dept: 2015 NY Slip Op<br>83560(U) (Warren)    | denied 12/2/15<br>(Rivera, J.)                       |
| People v Ricketts       | 2d Dept: 125 AD3d 893 (Kings)                             | granted 12/29/15<br>(Lippman, Ch. J.)                |
| People v Rios           | 2d Dept: 132 AD3d 781 (Kings)                             | denied 12/21/15<br>(Pigott, J.)                      |
| People v Rivera (Alex)  | 2d Dept: 130 AD3d 655 (Kings)                             | denied 12/29/15<br>(Lippman, Ch. J.)                 |
| People v Rivera (Angel) | App Div, 4th Dept: 2015 NY Slip Op<br>84038(U) (Onondaga) | dismissed 12/1/15<br>(Fahey, J.)                     |
| People v Roman          | 1st Dept: 125 AD3d 515 (NY)                               | denied 12/4/15<br>(Lippman, Ch. J.)                  |
| People v Rosa           | 2d Dept: 131 AD3d 1076 (Kings)                            | denied 12/15/15<br>(Fahey, J.)                       |
| People v Ross           | App Div, 1st Dept: 2014 NY Slip Op<br>87041(U) (Bronx)    | dismissed 12/2/15<br>(Stein, J.)                     |

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| People v Sanchez           | App Term, 1st Dept: 49 Misc 3d 126(A) (NY)                               | denied 12/21/15 (Pigott, J.)                |
| People v Santoro (John)    | 4th Dept: 132 AD3d 1241 (Oneida)                                         | denied 12/23/15 (Pigott, J.) (Appeal No. 1) |
| People v Santoro (John)    | 4th Dept: 132 AD3d 1242 (Oneida)                                         | denied 12/23/15 (Pigott, J.) (Appeal No. 2) |
| People v Scarlett (Leston) | App Div, 3d Dept: 2015 NY Slip Op 80449(U) (Albany)                      | dismissed 12/1/15 (Rivera, J.)              |
| People v Scarlett (Leston) | App Div, 3d Dept: 2015 NY Slip Op 73914(U) (Albany)                      | dismissed 12/1/15 (Rivera, J.)              |
| People v Scott             | 3d Dept: 129 AD3d 1306 (Albany)                                          | denied 12/7/15 (Lippman, Ch. J.)            |
| People v Shaaban           | App Div, 1st Dept: 2015 NY Slip Op 78362(U) (NY)                         | denied 12/22/15 (Stein, J.)                 |
| People v Sinclair          | 2d Dept: 131 AD3d 492 (Orange)                                           | denied 12/4/15 (Rivera, J.)                 |
| People v Singh             | App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 136(A) (Queens) | denied 12/1/15 (Rivera, J.)                 |
| People v Singleton         | App Div, 4th Dept, 9/11/15 (Ontario)                                     | dismissed 12/22/15 (Rivera, J.)             |
| People v Sivertson         | 4th Dept: 129 AD3d 1467 (Erie)                                           | granted 12/28/15 (Lippman, Ch. J.)          |
| People v Smith             | App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 49 Misc 3d 130(A) (Kings)  | denied 12/15/15 (Fahey, J.)                 |
| People v Sparks            | 1st Dept: 132 AD3d 513 (NY)                                              | granted 12/23/15 (Pigott, J.)               |
| People v Stevenson         | 2d Dept: 129 AD3d 998 (Kings)                                            | denied 12/28/15 (Lippman, Ch. J.)           |
| People v Strong            | 4th Dept: 130 AD3d 1472 (Genesee)                                        | denied 12/1/15 (Rivera, J.)                 |
| People v Swift             | App Div, 4th Dept, 4/30/15 (Cayuga)                                      | denied reconsideration 12/1/15 (Rivera, J.) |
| People v Sylvester         | 4th Dept: 129 AD3d 1666 (Niagara)                                        | denied 12/8/15 (Lippman, Ch. J.)            |
| People v Syville           | 2d Dept: 130 AD3d 658 (Kings)                                            | denied 12/28/15 (Lippman, Ch. J.)           |
| People v Taharqa           | App Div, 2d Dept: 2015 NY Slip Op 81236(U) (Queens)                      | dismissed 12/14/15 (Fahey, J.)              |
| People v Thompson (Jerome) | 4th Dept: 126 AD3d 1486 (Wyoming)                                        | denied 12/3/15 (Lippman, Ch. J.)            |
| People v Thompson (Lamont) | 1st Dept: 132 AD3d 403 (NY)                                              | denied 12/1/15 (Fahey, J.)                  |
| People v Thorsen           | App Div, 3d Dept: 2015 NY Slip Op 75166(U) (Rensselaer)                  | denied reconsideration 12/1/15 (Rivera, J.) |



## MEMORANDA

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|--------------------------------|-------------------------------------------------------------------------------|-------------------------------------------------------------------------|
| People v Tieman                | 2d Dept: 132 AD3d 703 (Orange)                                                | denied 12/22/15<br>(Stein, J.)                                          |
| People v Torres                | 2d Dept: 130 AD3d 1082 (Queens)                                               | denied 12/8/15<br>(Stein, J.)                                           |
| People v Totari                | County Ct, 9/14/15 (Onondaga)                                                 | denied 12/9/15<br>(Lippman, Ch. J.)                                     |
| People v Turley                | 4th Dept: 130 AD3d 1574 (Niagara)                                             | denied<br>reconsideration<br>12/22/15<br>(Pigott, J.)<br>(Appeal No. 1) |
| People v Vazquez               | App Div, 2d Dept: 2015 NY Slip Op<br>82300(U) (Richmond)                      | dismissed<br>12/22/15<br>(Pigott, J.)                                   |
| People v Vega                  | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 46 Misc 3d 144(A) (Richmond) | denied 12/8/15<br>(Abdus-Salaam,<br>J.)                                 |
| People v Villafane             | 2d Dept: 129 AD3d 748 (Suffolk)                                               | denied upon<br>reconsideration<br>12/2/15<br>(Lippman, Ch. J.)          |
| People v Vining                | 1st Dept: 126 AD3d 623 (NY)                                                   | granted 12/29/15<br>(Lippman, Ch. J.)                                   |
| People v Viruet                | 2d Dept: 131 AD3d 714 (Queens)                                                | granted 12/15/15<br>(Fahey, J.)                                         |
| People v Vonneida              | 3d Dept: 130 AD3d 1322 (Schuyler)                                             | denied 12/29/15<br>(Lippman, Ch. J.)                                    |
| People v Wall                  | App Term, 2d Dept, 9th & 10th Jud Dists:<br>49 Misc 3d 132(A) (Suffolk)       | denied 12/4/15<br>(Fahey, J.)                                           |
| People v Ward (Keith)          | App Div, 2d Dept: 2014 NY Slip Op<br>80200(U) (Queens)                        | dismissed<br>12/28/15<br>(Lippman, Ch. J.)                              |
| People v Ward (Keith)          | App Div, 2d Dept: 2015 NY Slip Op<br>80029(U) (Queens)                        | dismissed<br>12/28/15<br>(Lippman, Ch. J.)                              |
| People v Watkins               | 4th Dept: 125 AD3d 1364 (Oswego)                                              | denied 12/4/15<br>(Rivera, J.)                                          |
| People v White (Byron)         | 1st Dept: 131 AD3d 891 (NY)                                                   | denied 12/28/15<br>(Lippman, Ch. J.)                                    |
| People v White (Morris)        | 4th Dept: 129 AD3d 1642 (Ontario)                                             | granted 12/2/15<br>(Pigott, J.)                                         |
| People v Williams<br>(Jamel)   | 1st Dept: 132 AD3d 439 (NY)                                                   | denied 12/14/15<br>(Fahey, J.)                                          |
| People v Williams<br>(Terence) | 2d Dept: 131 AD3d 627 (Kings)                                                 | denied 12/2/15<br>(Rivera, J.)                                          |
| People v Williams<br>(Vincent) | App Div, 2d Dept: 2015 NY Slip Op<br>81236(U) (Queens)                        | dismissed<br>12/14/15<br>(Fahey, J.)                                    |
| People v Wilson                | App Div, 1st Dept: 2015 NY Slip Op<br>63186(U) (Bronx)                        | dismissed<br>12/14/15<br>(Fahey, J.)                                    |

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| People v Wright                 | 3d Dept: 126 AD3d 1036 (Schenectady) | denied 12/14/15<br>(Abdus-Salaam, J.)             |
| People v Young<br>(Christopher) | 4th Dept: 132 AD3d 1327 (Monroe)     | denied 12/23/15<br>(Pigott, J.)<br>(Appeal No. 1) |
| People v Young<br>(Christopher) | 4th Dept: 132 AD3d 1327 (Monroe)     | denied 12/23/15<br>(Pigott, J.)<br>(Appeal No. 2) |
| People v Zalevsky               | 2d Dept: 131 AD3d 552 (Kings)        | denied 12/8/15<br>(Stein, J.)                     |

#### APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

##### Decisions of Appellate Division Justices \*

(December 1, 2015 through December 31, 2015)

|                              |                                |                               |
|------------------------------|--------------------------------|-------------------------------|
| People v Garvin<br>(Anthony) | 2d Dept: 130 AD3d 644 (Queens) | granted 12/9/15<br>(Hall, J.) |
| People v Garvin (Sean)       | 2d Dept: 130 AD3d 644 (Queens) | granted 12/9/15<br>(Hall, J.) |

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HARVEY GESSIN et al., Appellants, v ANNA THRONE-HOLST et al.,  
Defendants, and FRED HAVEMEYER et al., Respondents.

Decided January 7, 2016

Reported below, 134 AD3d 31.

Appeal, insofar as taken from that portion of the Appellate Division order that denied plaintiffs' motion for a preliminary injunction, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of SYLVIA GOLUB, Deceased. NORMAN GOLUB,  
Respondent; J. DAVID GOLUB, Appellant. (Matter No. 1.)

NORMAN GOLUB, Respondent, v JERRY DAVID GOLUB, Appellant.  
(Matter No. 2.)

Decided January 7, 2016

Reported below, 2015 NY Slip Op 67154(U).

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\* Includes only applications that were granted.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5601).

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In the Matter of SYLVIA GOLUB, Deceased. NORMAN GOLUB, Respondent; J. DAVID GOLUB, Appellant. (Matter No. 1.)  
NORMAN GOLUB, Respondent, v JERRY DAVID GOLUB, Appellant. (Matter No. 2.)

Decided January 7, 2016

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5601).

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MARILYN HOPEMAN, Appellant, v ERIC A. SEIFF, Respondent.

Submitted November 23, 2015; decided January 7, 2016

Reported below, 2015 NY Slip Op 86570(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

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DONNA M. LATTUCA, Appellant, v JOHN M. LATTUCA, Respondent.

Submitted November 23, 2015; decided January 7, 2016

Reported below, 129 AD3d 1683.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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KOSTA POLITOPOULOS et al., Appellants, v CITY OF NEW YORK, Respondent.

Submitted November 23, 2015; decided January 7, 2016

Reported below, 130 AD3d 706.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the May 2014 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of SARAH C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CAROLINE C., Appellant, et al., Respondent. (Proceeding No. 1.)

In the Matter of SHAWN C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CAROLINE C., Appellant, et al., Respondent. (Proceeding No. 2.)

In the Matter of JOSHUA C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CAROLINE C., Appellant, et al., Respondent. (Proceeding No. 3.)

In the Matter of JOSEPH C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CAROLINE C., Appellant, et al., Respondent. (Proceeding No. 4.)

Submitted November 16, 2015; decided January 7, 2016

Reported below, 132 AD3d 862.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

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JOAN COCCIA, Respondent, v THOMAS F. LIOTTI, Appellant.

Submitted November 16, 2015; decided January 12, 2016

Reported below, 129 AD3d 763; 2015 NY Slip Op 85063(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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DONALD FELIX, Respondent, v LAW OFFICES OF THOMAS F. LIOTTI, Appellant.

Submitted November 16, 2015; decided January 12, 2016

Reported below, 129 AD3d 773; 2015 NY Slip Op 84294(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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SHEILA FREED, Respondent, v YOCHAI KAPLA, Appellant.

Submitted November 30, 2015; decided January 12, 2016

Reported below, 129 AD3d 615.

Motion for leave to appeal etc. dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of RASHAD HUDYIH, Appellant, v JOSEPH T. SMITH, as Superintendent of Shawangunk Correctional Facility, Respondent.

Submitted November 30, 2015; decided January 12, 2016

Reported below, 129 AD3d 1435.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 909 (2015)].

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LAW OFFICES OF THOMAS F. LIOTTI et al., Appellants, v DONALD FELIX et al., Respondents.

Submitted November 16, 2015; decided January 12, 2016

Reported below, 129 AD3d 783; 2015 NY Slip Op 84297(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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PATRICIA WARMHOLD, Appellant, v MICHAEL ZAGARINO et al., Respondents.

Submitted December 7, 2015; decided January 12, 2016

Reported below, 2015 NY Slip Op 78423(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 999 (2015)].

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In the Matter of KEVIN AOKI et al., Respondents, v ECHO AOKI et al., Respondents, and KEIKO ONO AOKI, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 117 AD3d 499.

Motion by Alex Long et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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In the Matter of KEVIN AOKI et al., Respondents, v ECHO AOKI et al., Respondents, and KEIKO ONO AOKI, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 117 AD3d 499.

Motion by Geoffrey C. Hazard, Jr. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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GOVERNMENT EMPLOYEES INSURANCE Co. et al., Respondents, v AVANGUARD MEDICAL GROUP, PLLC, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 127 AD3d 60.

Motion by Medical Society of the State of New York et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

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GOVERNMENT EMPLOYEES INSURANCE Co. et al., Respondents, v AVANGUARD MEDICAL GROUP, PLLC, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 127 AD3d 60.

Motion by New York State Association of Ambulatory Surgery Centers, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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JP MORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent,  
v FREDERICK W. BUTLER, Appellant, et al., Defendants.

Submitted December 7, 2015; decided January 14, 2016

Reported below, 129 AD3d 777.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of JUAN P., a Person Alleged to be a Juvenile  
Delinquent, Appellant.

Decided January 14, 2016

Reported below, 131 AD3d 1249.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Concur: Acting Chief Judge PIGOTT and Judges ABDUS-SALAAM, STEIN and FAHEY. Judge RIVERA dissents and votes to retain jurisdiction.

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In the Matter of MARK K. McDERMOTT, Appellant, v ANTHONY  
J. ANNUCCI, as Acting Commissioner of Corrections and  
Community Supervision, Respondent.

Submitted November 9, 2015; decided January 14, 2016

Reported below, 128 AD3d 1258.

Motion for poor person relief granted.

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MILLENNIUM HOLDINGS LLC, Plaintiff, THE NORTHERN ASSURANCE COMPANY OF AMERICA, Appellant, and CERTAIN UNDERWRITERS AT LLOYD'S et al., Intervenor-Appellants, v THE GLIDDEN COMPANY, Now Known as AKZO NOBEL PAINTS, et al., Respondents.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 121 AD3d 444.

Motion by Complex Insurance Claims Litigation Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE DIVERSIFIED GROUP, INC., et al., Appellants, v MARCUM & KLIEGMAN LLP et al., Respondents.

Submitted November 30, 2015; decided January 14, 2016

Reported below, 129 AD3d 552.

Motion to substitute the personal representative of the estate of Gerald Cohen for deceased defendant Gerald Cohen denied without prejudice to renewal upon proof of service of the motion in compliance with CPLR article 3 (*see generally Matter of Einstoss*, 26 NY2d 181, 190-191 [1970]).

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN ANDUJAR, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 49 Misc 3d 36.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SCOTT BARDEN, Appellant.

Decided January 14, 2016

Reported below, 117 AD3d 216.



Reargument ordered and case set down for argument during a future session of this Court.

Concur: Acting Chief Judge PIGOTT and Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEAN GARVIN, Also Known as ANTHONY GARVIN, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 130 AD3d 644.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VACHESLA GOLGER, Also Known as VACHESLAV, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 126 AD3d 914.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEAN JOHN, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 120 AD3d 511.

Motion by Innocence Network for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCELLUS JOHNSON, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 120 AD3d 1154.

Motion by Brooklyn Defender Services for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KIER VALENTINE, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 48 Misc 3d 130(A), 2015 NY Slip Op 51004(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIGUEL VIRUET, Appellant.

Submitted January 11, 2016; decided January 14, 2016

Reported below, 131 AD3d 714.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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In the Matter of MAXINE TODD, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION OFFICE OF LEGAL AFFAIRS, CLAIMS DIVISION, Respondent.

Submitted December 7, 2015; decided January 14, 2016

Reported below, 129 AD3d 433.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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YANIVETH R., an Infant, by Her Mother and Natural Guardian,  
RAMONA S., et al., Appellants, v LTD REALTY CO. et al.,  
Respondents, et al., Defendants. (And a Third-Party Ac-  
tion.)

Submitted January 11, 2016; decided January 14, 2016

Reported below, 120 AD3d 1142.

Motion by New York City Housing Authority for leave to file  
a brief amicus curiae on the appeal herein granted and the  
proposed brief is accepted as filed.

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YANIVETH R., an Infant, by Her Mother and Natural Guardian,  
RAMONA S., et al., Appellants, v LTD REALTY CO. et al.,  
Respondents, et al., Defendants. (And a Third-Party Ac-  
tion.)

Submitted January 11, 2016; decided January 14, 2016

Reported below, 120 AD3d 1142.

Motion by New York City Coalition to End Lead Poisoning et  
al. for leave to appear amici curiae on the appeal herein  
granted only to the extent that the proposed brief is accepted  
as filed. Three copies of the brief must be served and an original  
and nine copies filed within seven days.

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[45 NE3d 623, 24 NYS3d 583]

In the Matter of ROKHAYA CISSE, Appellant, v CHRISTOPHER  
GRAHAM, Respondent. (Proceeding No. 1.)

In the Matter of CHRISTOPHER GRAHAM, Respondent, v ROKHAYA  
CISSE, Appellant. (Proceeding No. 2.)

Argued January 7, 2016; decided January 14, 2016

#### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order  
of the Appellate Division of the Supreme Court in the Second  
Judicial Department, entered August 27, 2014. The Appellate  
Division affirmed an order of the Family Court of Queens  
County (Mildred T. Negron, Ct. Atty. Ref.), entered in two  
related proceedings pursuant to Family Court Act article 6,

which had, among other things, after a hearing, granted the father's petition to modify a prior order of custody and visitation of that court (Robert F. Clark, J.) so as to award him custody of the parties' child, and denied the mother's petition, in effect, to modify the visitation provisions of the order.

In a child custody matter, the Appellate Division determined that the Family Court's finding that a change in circumstances warranted the modification of a prior order of custody and visitation, under which the mother was awarded custody and the father was awarded extensive, well-defined visitation, so as to reverse those terms such that the father was awarded custody, subject to the mother's substantially similar visitation, was founded on a sound and substantial basis in the record.

*Matter of Cisse v Graham*, 120 AD3d 801, affirmed.

#### HEADNOTE

##### **Parent, Child and Family — Custody — Modification**

In a child custody matter, an order of the Appellate Division, which affirmed a Family Court order modifying a prior order of custody and visitation, was affirmed. Record evidence existed to support the affirmed findings of fact upon which the modification of the child custody award was predicated.

#### APPEARANCES OF COUNSEL

*Law Offices of Barry J. Fisher, P.C.*, Garden City (*Barry J. Fisher* of counsel), for appellant.

*Larry S. Bachner, P.C.*, Jamaica (*Larry S. Bachner* of counsel), for respondent.

*Marc E. Strauss*, Jamaica, Attorney for the Child.

#### OPINION OF THE COURT

Order affirmed, with costs. Record evidence exists to support the affirmed findings of fact upon which the modification of the child custody award was predicated.

Concur: Acting Chief Judge PIGOTT and Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

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[46 NE3d 612, 26 NYS3d 229]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KARL CHU-JOI, Also Known as KARL CHU-JOY, Also Known as KARL CHUJOI, Appellant.

Decided December 15, 2015

**SUMMARY**

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 11, 2015. The Appellate Division affirmed an order of the Supreme Court, Queens County (Michael B. Aloise, J.), which had denied, without a hearing, defendant's motion pursuant to CPL 440.20 (1) to set aside a sentence of that court (Joseph G. Golia, J.) imposed upon his conviction of murder in the second degree and criminal possession of a weapon in the second degree.

*People v Karl Chu-Joi*, 125 AD3d 785, affirmed.

**HEADNOTE****Crimes — Sentence — Motion to Set Aside Sentence — Denial of Motion without Hearing**

The Appellate Division did not abuse its discretion when it affirmed the trial court's decision to deny, without a hearing, defendant's CPL 440.20 motion to set aside his sentence alleging that he was 15 years old at the time of the underlying offense and therefore should have been sentenced as a juvenile delinquent not as an adult. Under CPL 440.30 (4), a court may deny a CPL 440.20 motion without a hearing where an allegation of fact essential to support the motion is "conclusively refuted by unquestionable documentary proof," or "contradicted by a court record or other official document" and "there is no reasonable possibility that such allegation is true" (CPL 440.30 [4] [c], [d]). The People provided "unquestionable documentary proof" from the Peruvian government that defendant, who was born in Peru, was 16 at the time of the murder, effectively refuting any reasonable possibility that defendant's claims were accurate. Moreover, the court was not required to credit defendant's evidence of fraud that was self-serving and uncorroborated, nor allegations that the records provided by the Peruvian government were forgeries created by defendant's grandparents.

**APPEARANCES OF COUNSEL**

*Robert DiDio & Associates*, Kew Gardens (*Elisha Rudolph* of counsel), for appellant.

*Richard A. Brown*, District Attorney, Kew Gardens (*Rona I. Kugler* of counsel), for respondent.

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Chu-Joi\* appeals from an order of the Appellate Division, Second Department, which affirmed Supreme Court's denial, without a hearing, of defendant's CPL 440.20 motion to set aside his sentence. Defendant contends that his allegations and supporting documents establish he was 15 years old at the time of the offense and therefore should have been sentenced as a juvenile offender not as an adult. In support of his motion, defendant, who was born in Peru, attached a copy of his baptismal and birth certificates, documents that his former legal name was "Karl Sebastian Hondermann Pino," and affidavits alleging that his now deceased grandparents had fraudulently created the birth certificate on record with the Peruvian government. In opposition, the People submitted the following documents provided by the Peruvian government: (1) a letter from the Archdiocese stating that defendant's purported baptismal certificate is a "forgery"; (2) an official birth certificate from the National Identification and Civil Registry of Peru indicating "Karl Hondermann Pino" was born in 1976; and (3) a letter that a new "extraordinary registration" for defendant, listing a 1977 birth date, was filed in 1994. The People also submitted a copy of defendant's Peruvian passport, which indicated he was born in 1976, and which defendant himself had presented to the court in connection with a previous crime, to demonstrate that he was only 15 years old at the time.

A court can "determine on written submissions whether the motion can be decided without a hearing" (*People v Satterfield*, 66 NY2d 796, 799 [1985]). Under CPL 440.30 (4), a court may deny a CPL 440.20 motion without a hearing where an allegation of fact essential to support the motion is "conclusively refuted by unquestionable documentary proof," or "contradicted by a court record or other official document" and "there is no reasonable possibility that such allegation is true" (CPL 440.30 [4] [c], [d]).

The People provided "unquestionable documentary proof" from the Peruvian government that defendant was 16 at the time of the murder, effectively refuting any reasonable possibility that defendant's claims were accurate. Moreover, the

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\* Defendant is also known as Karl, Chu-Joy, and Chujoj.

court was not required to credit defendant's evidence of fraud that was self-serving and uncorroborated, nor allegations that the records provided by the Peruvian government were forgeries created by defendant's grandparents (*see People v White*, 309 NY 636, 641 [1956] [court does not have "to accept every sworn allegation as true"]). Therefore, the Appellate Division did not abuse its discretion when it affirmed the trial court's decision (*see People v Friedgood*, 58 NY2d 467 [1983]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(January 1, 2016 through January 31, 2016)

|                      |                                                     |                                        |
|----------------------|-----------------------------------------------------|----------------------------------------|
| People v Abreu       | 1st Dept: 132 AD3d 439 (NY)                         | denied 1/19/16<br>(Fahey, J.)          |
| People v Allen       | 3d Dept: 132 AD3d 1156 (Ulster)                     | denied 1/22/16<br>(Pigott, J.)         |
| People v Anderson    | App Div, 3d Dept: 2015 NY Slip Op 84217(U) (Albany) | dismissed 1/6/16<br>(Abdus-Salaam, J.) |
| People v Anthony     | 1st Dept: 132 AD3d 562 (NY)                         | denied 1/12/16<br>(Stein, J.)          |
| People v Bethea      | 1st Dept: 132 AD3d 523 (NY)                         | denied 1/12/16<br>(Stein, J.)          |
| People v Big         | 3d Dept: 133 AD3d 920 (Warren)                      | denied 1/22/16<br>(Pigott, J.)         |
| People v Bitting     | App Div, 4th Dept, 10/26/15 (Niagara)               | dismissed 1/26/16<br>(Stein, J.)       |
| People v Blanchard   | 2d Dept: 132 AD3d 1009 (Westchester)                | denied 1/25/16<br>(Pigott, J.)         |
| People v Bonnemere   | 1st Dept: 131 AD3d 885 (NY)                         | denied 1/27/16<br>(Fahey, J.)          |
| People v Branch      | App Div, 2d Dept: 2015 NY Slip Op 86785(U) (Kings)  | dismissed 1/8/16<br>(Abdus-Salaam, J.) |
| People v Bridgeforth | App Div, 4th Dept, 9/3/15 (Erie)                    | dismissed 1/6/16<br>(Abdus-Salaam, J.) |

|                       |                                                                           |                                            |
|-----------------------|---------------------------------------------------------------------------|--------------------------------------------|
| People v Bridgefourth | App Div, 4th Dept, 9/3/15 (Erie)                                          | dismissed 1/6/16<br>(Abdus-Salaam,<br>J.)  |
| People v Britt        | 4th Dept: 132 AD3d 1254 (Monroe)                                          | denied 1/5/16<br>(Stein, J.)               |
| People v Buchanan     | App Div, 3d Dept: 2015 NY Slip Op<br>88460(U) (Albany)                    | denied 1/19/16<br>(Fahey, J.)              |
| People v Bushey       | County Ct, 10/15/15 (Erie)                                                | granted 1/25/16<br>(Pigott, J.)            |
| People v Cadet        | 2d Dept: 133 AD3d 610 (Suffolk)                                           | denied 1/15/16<br>(Stein, J.)              |
| People v Camlin       | 3d Dept: 133 AD3d 909 (Schenectady)                                       | denied 1/19/16<br>(Fahey, J.)              |
| People v Campbell     | 1st Dept: 131 AD3d 882 (Bronx)                                            | granted 1/26/16<br>(Fahey, J.)             |
| People v Campo        | App Div, 3d Dept: 2015 NY Slip Op<br>88386(U) (Ulster)                    | dismissed 1/22/16<br>(Pigott, J.)          |
| People v Collins      | 1st Dept: 132 AD3d 580 (NY)                                               | denied 1/22/16<br>(Fahey, J.)              |
| People v Colonramos   | App Term, 1st Dept: 49 Misc 3d 135(A)<br>(Bronx)                          | denied 1/19/16<br>(Fahey, J.)              |
| People v Cooper       | 2d Dept: 131 AD3d 985 (Dutchess)                                          | denied 1/29/16<br>(Fahey, J.)              |
| People v Costales     | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 51 Misc 3d 22 (Richmond) | denied 1/19/16<br>(Fahey, J.)              |
| People v Coveney      | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 50 Misc 3d 1 (Kings)     | denied 1/15/16<br>(Stein, J.)              |
| People v Crowder      | App Div, 2d Dept: 2015 NY Slip Op<br>88894(U) (Kings)                     | dismissed 1/22/16<br>(Abdus-Salaam,<br>J.) |
| People v Cruz         | 1st Dept: 131 AD3d 889 (NY)                                               | denied 1/13/16<br>(Stein, J.)              |
| People v Cunningham   | App Div, 2d Dept: 2015 NY Slip Op<br>87150(U) (Kings)                     | dismissed 1/5/16<br>(Stein, J.)            |
| People v Davila       | 1st Dept: 133 AD3d 500 (NY)                                               | denied 1/13/16<br>(Stein, J.)              |
| People v Days         | 2d Dept: 131 AD3d 972 (Westchester)                                       | denied 1/25/16<br>(Stein, J.)              |
| People v Deprosperis  | 2d Dept: 132 AD3d 692 (Westchester)                                       | denied 1/12/16<br>(Stein, J.)              |
| People v Donovan      | 2d Dept: 133 AD3d 615 (Suffolk)                                           | denied 1/22/16<br>(Fahey, J.)              |
| People v Echevarria   | App Term, 1st Dept: 45 Misc 3d 128(A)<br>(NY)                             | denied 1/7/16<br>(Rivera, J.)              |
| People v Ekwegbalu    | 2d Dept: 131 AD3d 982 (Queens)                                            | denied 1/8/16<br>(Rivera, J.)              |
| People v Erle         | App Div, 4th Dept, 10/8/15 (Niagara)                                      | dismissed 1/8/16<br>(Rivera, J.)           |
| People v Erving       | App Div, 4th Dept, 11/13/15 (Erie)                                        | denied 1/13/16<br>(Stein, J.)              |



## MEMORANDA

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|                               |                                                                        |                                           |
|-------------------------------|------------------------------------------------------------------------|-------------------------------------------|
| People v Feeney               | 2d Dept: 130 AD3d 1062 (Westchester)                                   | denied 1/8/16<br>(Rivera, J.)             |
| People v Fields               | 2d Dept: 127 AD3d 782 (Westchester)                                    | denied 1/19/16<br>(Fahey, J.)             |
| People v Foster               | 1st Dept: 133 AD3d 414 (Bronx)                                         | denied 1/12/16<br>(Stein, J.)             |
| People v Fulton               | App Div, 4th Dept, 11/13/15 (Monroe)                                   | denied 1/19/16<br>(Stein, J.)             |
| People v Gillette             | 1st Dept: 132 AD3d 572 (NY)                                            | denied 1/19/16<br>(Fahey, J.)             |
| People v Gordon               | 1st Dept: 132 AD3d 531 (Bronx)                                         | denied 1/13/16<br>(Stein, J.)             |
| People v Graham (Joey)        | 1st Dept: 132 AD3d 599 (NY)                                            | denied 1/27/16<br>(Fahey, J.)             |
| People v Graham<br>(Joseline) | 1st Dept: 132 AD3d 599 (NY)                                            | denied 1/27/16<br>(Fahey, J.)             |
| People v Grayson              | App Div, 3d Dept, 8/12/15 (Albany)                                     | dismissed 1/6/16<br>(Abdus-Salaam,<br>J.) |
| People v Gutierrez            | 1st Dept: 130 AD3d 517 (NY)                                            | denied 1/7/16<br>(Rivera, J.)             |
| People v Harris               | 4th Dept: 132 AD3d 1281 (Monroe)                                       | denied 1/15/16<br>(Stein, J.)             |
| People v Harvey               | App Div, 2d Dept: 2015 NY Slip Op<br>83088(U) (Queens)                 | dismissed 1/12/16<br>(Stein, J.)          |
| People v Hayes                | App Div, 1st Dept: 2015 NY Slip Op<br>85287(U) (NY)                    | dismissed 1/6/16<br>(Abdus-Salaam,<br>J.) |
| People v Hernandez            | App Term, 1st Dept: 46 Misc 3d 151(A)<br>(NY)                          | denied 1/20/16<br>(Abdus-Salaam,<br>J.)   |
| People v Herring              | 2d Dept: 131 AD3d 985 (Dutchess)                                       | denied 1/29/16<br>(Fahey, J.)             |
| People v Hester               | App Term, 2d Dept, 9th & 10th Jud Dists:<br>49 Misc 3d 138(A) (Nassau) | denied 1/22/16<br>(Pigott, J.)            |
| People v Hines                | 4th Dept: 132 AD3d 1385 (Cayuga)                                       | denied 1/12/16<br>(Stein, J.)             |
| People v Hone                 | County Ct, 9/25/15 (Otsego)                                            | dismissed 1/6/16<br>(Abdus-Salaam,<br>J.) |
| People v Howard               | App Term, 1st Dept: 45 Misc 3d 66 (NY)                                 | denied 1/7/16<br>(Rivera, J.)             |
| People v Innocent             | 2d Dept: 132 AD3d 696 (Kings)                                          | denied 1/13/16<br>(Stein, J.)             |
| People v Jackson (Corey)      | App Div, 1st Dept: 2015 NY Slip Op<br>90247(U) (Bronx)                 | denied 1/19/16<br>(Stein, J.)             |
| People v Jackson (Cory)       | App Div, 1st Dept: 2015 NY Slip Op<br>90247(U) (Bronx)                 | denied 1/19/16<br>(Stein, J.)             |
| People v James                | 2d Dept: 132 AD3d 905 (Kings)                                          | denied 1/22/16<br>(Pigott, J.)            |

|                           |                                                       |                                                  |
|---------------------------|-------------------------------------------------------|--------------------------------------------------|
| People v Javier           | 1st Dept: 128 AD3d 494 (NY)                           | denied<br>reconsideration<br>1/12/16 (Stein, J.) |
| People v Jemes            | 4th Dept: 132 AD3d 1361 (Erie)                        | denied 1/22/16<br>(Pigott, J.)                   |
| People v Jemmott          | 2d Dept: 132 AD3d 697 (Richmond)                      | denied 1/19/16<br>(Stein, J.)                    |
| People v Jennette         | 1st Dept: 133 AD3d 422 (Bronx)                        | denied 1/19/16<br>(Fahey, J.)                    |
| People v Jennings         | App Div, 3d Dept, 9/16/15 (Sullivan)                  | dismissed 1/12/16<br>(Stein, J.)                 |
| People v Johnson (James)  | 1st Dept: 133 AD3d 439 (Bronx)                        | denied 1/25/16<br>(Pigott, J.)                   |
| People v Johnson (Kevin)  | 4th Dept: 124 AD3d 1418 (Monroe)                      | denied 1/20/16<br>(Abdus-Salaam,<br>J.)          |
| People v Jones            | App Term, 1st Dept: 49 Misc 3d 137(A)<br>(NY)         | denied 1/22/16<br>(Pigott, J.)                   |
| People v Karris           | 2d Dept: 133 AD3d 780 (Suffolk)                       | denied 1/27/16<br>(Fahey, J.)                    |
| People v Kelly            | 2d Dept: 133 AD3d 685 (Kings)                         | denied 1/19/16<br>(Stein, J.)                    |
| People v LaTempa          | 1st Dept: 132 AD3d 427 (NY)                           | denied 1/13/16<br>(Stein, J.)                    |
| People v Linton           | 1st Dept: 132 AD3d 582 (NY)                           | denied 1/27/16<br>(Fahey, J.)                    |
| People v Lorenzo          | 4th Dept: 132 AD3d 1326 (Erie)                        | denied 1/19/16<br>(Stein, J.)                    |
| People v Luckette         | 3d Dept: 126 AD3d 1044 (Franklin)                     | denied 1/20/16<br>(Abdus-Salaam,<br>J.)          |
| People v Martin (Herbert) | 2d Dept: 132 AD3d 909 (Queens)                        | denied 1/25/16<br>(Pigott, J.)                   |
| People v Martin (Louis)   | 2d Dept: 125 AD3d 789 (Nassau)                        | denied 1/15/16<br>(Stein, J.)                    |
| People v Martinez         | App Div, 1st Dept: 2015 NY Slip Op<br>87866(U) (NY)   | dismissed 1/19/16<br>(Fahey, J.)                 |
| People v Medina           | 1st Dept: 133 AD3d 461 (NY)                           | denied 1/19/16<br>(Fahey, J.)                    |
| People v Medley           | 4th Dept: 132 AD3d 1255 (Erie)                        | denied 1/15/16<br>(Stein, J.)                    |
| People v Messoro          | 3d Dept: 133 AD3d 986 (Warren)                        | denied 1/19/16<br>(Fahey, J.)                    |
| People v Neal             | 3d Dept: 133 AD3d 920 (Warren)                        | denied 1/22/16<br>(Pigott, J.)                   |
| People v Nicholas (Kirt)  | App Div, 2d Dept: 2015 NY Slip Op<br>83678(U) (Kings) | dismissed 1/6/16<br>(Abdus-Salaam,<br>J.)        |
| People v Nicholas (Kurt)  | App Div, 2d Dept: 2015 NY Slip Op<br>83678(U) (Kings) | dismissed 1/6/16<br>(Abdus-Salaam,<br>J.)        |

## MEMORANDA

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|                         |                                                     |                                         |
|-------------------------|-----------------------------------------------------|-----------------------------------------|
| People v Olsen          | 1st Dept: 126 AD3d 515 (NY)                         | denied 1/20/16<br>(Abdus-Salaam, J.)    |
| People v Ortiz          | App Div, 1st Dept: 2015 NY Slip Op 88137(U) (NY)    | denied 1/13/16<br>(Stein, J.)           |
| People v Osorio         | App Term, 1st Dept: 46 Misc 3d 151(A) (Bronx)       | denied 1/20/16<br>(Abdus-Salaam, J.)    |
| People v Pantaleon      | 1st Dept: 133 AD3d 426 (Bronx)                      | denied 1/29/16<br>(Fahey, J.)           |
| People v Parra          | App Div, 1st Dept: 2015 NY Slip Op 87425(U) (NY)    | denied 1/12/16<br>(Stein, J.)           |
| People v Perez (Ranfis) | 1st Dept: 133 AD3d 421 (NY)                         | denied 1/25/16<br>(Pigott, J.)          |
| People v Perez (Rene)   | 2d Dept: 132 AD3d 911 (Kings)                       | denied 1/19/16<br>(Fahey, J.)           |
| People v Pilgrim        | App Div, 1st Dept: 2015 NY Slip Op 65497(U) (Bronx) | dismissed 1/26/16<br>(Pigott, J.)       |
| People v Pittman        | App Div, 4th Dept, 10/28/15 (Monroe)                | dismissed 1/22/16<br>(Abdus-Salaam, J.) |
| People v Pollard        | 1st Dept: 132 AD3d 554 (NY)                         | denied 1/12/16<br>(Stein, J.)           |
| People v Poole          | 1st Dept: 125 AD3d 493 (NY)                         | denied 1/20/16<br>(Abdus-Salaam, J.)    |
| People v Prude          | App Div, 4th Dept, 9/23/15 (Monroe)                 | dismissed 1/8/16<br>(Rivera, J.)        |
| People v Ramos          | 1st Dept: 132 AD3d 578 (NY)                         | denied 1/19/16<br>(Fahey, J.)           |
| People v Rastaldo       | 1st Dept: 132 AD3d 455 (NY)                         | denied* 1/15/16<br>(Stein, J.)          |
| People v Raysor         | 1st Dept: 133 AD3d 421 (NY)                         | denied 1/5/16<br>(Stein, J.)            |
| People v Reyes          | App Div, 1st Dept: 2015 NY Slip Op 88137(U) (NY)    | denied 1/13/16<br>(Stein, J.)           |
| People v Richards       | 1st Dept: 133 AD3d 491 (Bronx)                      | denied 1/27/16<br>(Fahey, J.)           |
| People v Richardson     | App Term, 1st Dept: 49 Misc 3d 139(A) (NY)          | denied 1/27/16<br>(Fahey, J.)           |
| People v Rios           | 1st Dept: 132 AD3d 445 (Bronx)                      | denied 1/13/16<br>(Stein, J.)           |
| People v Robinson       | County Ct, 9/28/15 (Erie)                           | denied 1/27/16<br>(Fahey, J.)           |
| People v Rodas          | 2d Dept: 131 AD3d 1181 (Dutchess)                   | denied 1/19/16<br>(Fahey, J.)           |
| People v Rosa           | 1st Dept: 133 AD3d 431 (NY)                         | denied 1/19/16<br>(Fahey, J.)           |

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\* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Joseph* (124 AD3d 437 [1st Dept 2015], *lv granted* 2015 NY Slip Op 70750[U] [1st Dept 2015]).

|                               |                                                       |                                         |
|-------------------------------|-------------------------------------------------------|-----------------------------------------|
| People v Scarlett             | 1st Dept: 132 AD3d 473 (NY)                           | denied 1/25/16<br>(Pigott, J.)          |
| People v Seabrook             | App Term, 1st Dept: 46 Misc 3d 152(A)<br>(Bronx)      | denied 1/20/16<br>(Abdus-Salaam,<br>J.) |
| People v Sibounhome           | 3d Dept: 125 AD3d 1059 (St. Lawrence)                 | denied 1/20/16<br>(Abdus-Salaam,<br>J.) |
| People v Simpson              | 2d Dept: 120 AD3d 838 (Queens)                        | denied 1/8/16<br>(Rivera, J.)           |
| People v Singletary           | 2d Dept: 132 AD3d 914 (Kings)                         | denied 1/19/16<br>(Fahey, J.)           |
| People v Sloan                | 1st Dept: 132 AD3d 593 (NY)                           | denied 1/19/16<br>(Fahey, J.)           |
| People v Taylor<br>(Sampson)  | 1st Dept: 132 AD3d 441 (NY)                           | denied 1/12/16<br>(Stein, J.)           |
| People v Taylor (Terrell)     | App Div, 2d Dept: 2015 NY Slip Op<br>81234(U) (Kings) | dismissed 1/4/16<br>(Stein, J.)         |
| People v Thomas               | 2d Dept: 131 AD3d 551 (Kings)                         | denied 1/15/16<br>(Stein, J.)           |
| People v Thompson<br>(Antwan) | App Div, 2d Dept: 2015 NY Slip Op<br>85894(U) (Kings) | dismissed 1/27/16<br>(Fahey, J.)        |
| People v Thompson<br>(Victor) | App Term, 1st Dept: 49 Misc 3d 141(A)<br>(Bronx)      | denied 1/29/16<br>(Fahey, J.)           |
| People v Van Stuyvesant       | App Div, 1st Dept: 2015 NY Slip Op<br>87854(U) (NY)   | denied 1/19/16<br>(Fahey, J.)           |
| People v Villanueva           | App Term, 1st Dept: 49 Misc 3d 126(A)<br>(NY)         | denied 1/5/16<br>(Stein, J.)            |
| People v Weaver               | 4th Dept: 132 AD3d 1285 (Monroe)                      | denied 1/22/16<br>(Pigott, J.)          |
| People v Williams             | 1st Dept: 133 AD3d 417 (Bronx)                        | denied 1/12/16<br>(Stein, J.)           |
| People v Wilson               | 2d Dept: 132 AD3d 786 (Dutchess)                      | denied 1/19/16<br>(Fahey, J.)           |

#### **APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

##### **Decisions of Appellate Division Justices \***

(January 1, 2016 through January 31, 2016)

|                  |                                 |                                |
|------------------|---------------------------------|--------------------------------|
| People v Bookman | 2d Dept: 131 AD3d 1258 (Queens) | granted 1/8/16<br>(Austin, J.) |
|------------------|---------------------------------|--------------------------------|

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\* Includes only applications that were granted.

In the Matter of TALIB ALSAIFULLAH, Appellant, v RICHARD A. DOLLINGER, Respondent.

Submitted December 14, 2015; decided February 11, 2016

Motion for leave to appeal dismissed upon the ground that the November 6, 2015 letter sought to be appealed from is not a judgment or an order from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]; 5602 [a]).

Judge GARCIA taking no part.

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In the Matter of BARACK DARNELL B., an Infant. CHERA B., Appellant, LEAKE AND WATTS SERVICES, INC., Respondent.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 133 AD3d 529.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge GARCIA taking no part.

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In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.C., Respondent. R. THOMAS RANKIN, ESQ., Attorney for the Child, Appellant.

Submitted February 8, 2016; decided February 11, 2016

Reported below, 129 AD3d 1578.

Motion for poor person relief granted.

Judges FAHEY and GARCIA taking no part.

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JENNIFER CANGRO, Appellant, v JOHN Z. MARANGOS, Respondent.

Decided February 11, 2016

Reported below, 132 AD3d 573.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge GARCIA taking no part.

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In the Matter of TOMAS CARMONA, Appellant, v NEW YORK CITY  
HOUSING AUTHORITY, Respondent.

Submitted January 11, 2016; decided February 11, 2016

Reported below, 134 AD3d 404.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

Judge GARCIA taking no part.

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SAMUEL COSENTINO, Appellant, v SULLIVAN PAPAIN BLOCK  
McGRATH & CANNAVO, P.C., Respondent.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 95 AD3d 603.

Motion for leave to appeal from the judgment entered upon the Appellate Division order dismissed upon the ground that the judgment is not the final appealable paper from which leave to appeal may be sought (*see* CPLR 5611).

Judge GARCIA taking no part.

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In the Matter of DINA EHRLICH, Respondent, v DAVID WOLF et  
al., Appellants.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 127 AD3d 613.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge GARCIA taking no part.

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In the Matter of ENTERGY NUCLEAR OPERATION, INC., et al.,  
Respondents, v NEW YORK STATE DEPARTMENT OF STATE et  
al., Appellants.

Submitted January 25, 2016; decided February 11, 2016

Reported below, 125 AD3d 21.

Motion by Riverkeeper, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

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In the Matter of the Claim of NEVILLE FRANCIS, Appellant, v JEWELRY BOX CORPORATION OF AMERICA et al., Respondents, and SPECIAL FUND FOR REOPENED CASES, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted December 21, 2015; decided February 11, 2016

Reported below, 128 AD3d 1292.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 981 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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In the Matter of the Estate of DEBORAH A. GROCHOCKI, Deceased.

JOHN C. GREENLEAF, Appellant, v NEW YORK STATE OFFICE OF VICTIM SERVICES, Respondent, et al., Respondents.

Decided February 11, 2016

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge GARCIA taking no part.

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EXECUTOR OF CELIA KATES, Deceased, PHILIP BARASH, Appellant, et al., Plaintiff, v JAMES G. PRESSLY, Esq., et al., Respondents.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 132 AD3d 723.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge GARCIA taking no part.

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LYNN LEW, Appellant, v MANHASSET PUBLIC LIBRARY et al.,  
Respondents.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 123 AD3d 1096.

Motion for reargument of motion for leave to appeal denied  
[*see* 26 NY3d 997 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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LINDA P. NASH, Respondent, v PORT AUTHORITY OF NEW YORK  
AND NEW JERSEY, Appellant.

Submitted August 24, 2015; decided February 11, 2016

Reported below, 131 AD3d 164.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see* Arthur Karger, Powers of the New York Court of Appeals § 4:15 at 93-94 [3d ed rev 2005]).

Judges ABDUS-SALAAM and GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID  
BOOKMAN, Appellant.

Submitted February 1, 2016; decided February 11, 2016

Reported below, 131 AD3d 1258.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OTIS  
BOONE, Appellant.

Submitted January 19, 2016; decided February 11, 2016

Reported below, 129 AD3d 1099.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LARRY  
BROWN, Appellant.

Submitted January 25, 2016; decided February 11, 2016

Reported below, 127 AD3d 498.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTONIO  
BRUNO, Appellant.

Submitted February 1, 2016; decided February 11, 2016

Reported below, 127 AD3d 986.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAY-  
SHAWN CROOKS, Appellant.

Submitted February 1, 2016; decided February 11, 2016

Reported below, 129 AD3d 1207.

Motion for assignment of counsel granted and Matthew C. Hug, Esq., Rensselaer Technology Park, 105 Jordan Road, Troy, New York 12180 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KENYATTA JAMES, Also Known as NATE BEANDER, Respondent.

Decided February 11, 2016

Reported below, 128 AD3d 723.

Appeal dismissed, by the Court of Appeals, sua sponte, upon the ground that the reversal by the Appellate Division was not on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal (CPL 450.90 [2] [a]).

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL PONDEXTER, Appellant.

Submitted February 1, 2016; decided February 11, 2016

Reported below, 134 AD3d 467.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICARDO RICKETTS, Appellant.

Submitted January 25, 2016; decided February 11, 2016

Reported below, 125 AD3d 893.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAWN J. SIVERTSON, Appellant.

Submitted January 25, 2016; decided February 11, 2016

Reported below, 129 AD3d 1467.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v YUSUF SPARKS, Appellant.

Submitted January 19, 2016; decided February 11, 2016

Reported below, 132 AD3d 513.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GREGORY VINING, Appellant.

Submitted February 1, 2016; decided February 11, 2016

Reported below, 126 AD3d 623.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

Judge GARCIA taking no part.

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RUO MEI CAI, Respondent, v VICTOR FAI LAU, Appellant.

Decided February 11, 2016

Reported below, 133 AD3d 541.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge GARCIA taking no part.

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CARLAYNE SIMS, Appellant, v CITY OF NEW YORK, Respondent.

Submitted December 21, 2015; decided February 11, 2016

Reported below, 2015 NY Slip Op 77345(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 998 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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In the Matter of GERARD V. SUNNEN, M.D., Appellant, v NEW YORK STATE DEPARTMENT OF HEALTH, Respondent.

Submitted December 7, 2015; decided February 11, 2016

Reported below, 2015 NY Slip Op 87456(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge GARCIA taking no part.

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In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 133 AD3d 1013.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judges STEIN and GARCIA taking no part.

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In the Matter of TARRENCE A., Appellant. MID-HUDSON FORENSIC PSYCHIATRIC CENTER, Respondent.

Submitted December 7, 2015; decided February 11, 2016

Reported below, 132 AD3d 985.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic.

Judge GARCIA taking no part.

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In the Matter of VIKING PUMP, INC. and WARREN PUMPS, LLC, INSURANCE APPEALS. VIKING PUMP, INC. and WARREN PUMPS, LLC, Appellants; TIG INSURANCE COMPANY et al., Respondents.

Submitted January 19, 2016; decided February 11, 2016

*See* — A3d —, 2015 WL 3618924, 2015 Del LEXIS 278.

Motion by New York State Electric and Gas Corporation for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

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In the Matter of VIKING PUMP, INC. and WARREN PUMPS, LLC, INSURANCE APPEALS. VIKING PUMP, INC. and WARREN PUMPS, LLC, Appellants; TIG INSURANCE COMPANY et al., Respondents.

Submitted January 25, 2016; decided February 11, 2016

*See* — A3d —, 2015 WL 3618924, 2015 Del LEXIS 278.

Motion by United Policyholders et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed.

Judge GARCIA taking no part.

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In the Matter of YOGA VIDA NYC, INC., Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted December 14, 2015; decided February 11, 2016

Reported below, 119 AD3d 1314.

Motion by Legal Aid Society for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judges STEIN and GARCIA taking no part.

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BECK CHEVROLET CO., INC., Appellant, v GENERAL MOTORS LLC,  
Respondent.

Submitted February 16, 2016; decided February 18, 2016

*See* 787 F3d 663.

Motion by New York State Automobile Dealers Association for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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BECK CHEVROLET CO., INC., Appellant, v GENERAL MOTORS LLC,  
Respondent.

Submitted February 16, 2016; decided February 18, 2016

*See* 787 F3d 663.

Motion by Alliance of Automobile Manufacturers et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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In the Matter of BROOKE S.B., Respondent, v ELIZABETH  
A.C.C., Respondent. R. THOMAS RANKIN, Attorney for the  
Child, Appellant.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 129 AD3d 1578.

Motion by Richard J. Adago et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge FAHEY taking no part.

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MICHAEL J. CARLSON, SR., Individually and as Administrator of the Estate of CLAUDIA D'AGOSTINO CARLSON, Deceased, and as Assignee of William Porter, Appellant, v AMERICAN INTERNATIONAL GROUP, INC., et al., Respondents, and DHL EXPRESS (USA), INC., Formerly Known as DHL WORLDWIDE EXPRESS, INC., Respondent.

Submitted December 7, 2015; decided February 18, 2016

Reported below, 130 AD3d 1479.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge GARCIA taking no part.

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JEAN JAMES CHARITE et al., Appellants, v DUANE READE, INC., et al., Respondents, et al., Defendants.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 120 AD3d 1378.

Motion by National Employment Lawyers Association/New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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RICHARD (RICARDO) CORDERO, Appellant, v VIVIANA BARREIRO-CORDERO et al., Respondents.

Submitted December 21, 2015; decided February 18, 2016

Reported below, 129 AD3d 899.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1030 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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In the Matter of ELT HARRIMAN, LLC, Appellant, v ASSESSOR OF TOWN OF WOODBURY et al., Respondents, and BOARD OF EDUCATION OF THE MONROE-WOODBURY CENTRAL SCHOOL DISTRICT, Intervenor-Respondent.

Submitted December 28, 2015; decided February 18, 2016

Reported below, 128 AD3d 201.

Motion by the National Association of Property Tax Attorneys for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge GARCIA taking no part.

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FRIENDS OF THAYER LAKE LLC et al., Appellants, v PHIL BROWN et al., Respondents, et al., Defendant.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 126 AD3d 22.

Motion by Adirondack Landowners Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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FRIENDS OF THAYER LAKE LLC et al., Appellants, v PHIL BROWN et al., Respondents, et al., Defendant.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 126 AD3d 22.

Motion by Adirondack Mountain Club, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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FRIENDS OF THAYER LAKE LLC et al., Appellants, v PHIL BROWN et al., Respondents, et al., Defendant.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 126 AD3d 22.



Motion by Pacific Legal Foundation et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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FRIENDS OF THAYER LAKE LLC et al., Appellants, v PHIL BROWN et al., Respondents, et al., Defendant.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 126 AD3d 22.

Motion by Empire State Forest Products Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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In the Matter of NAHSHON JACKSON, Appellant, v WILLIAM C. DONNINO, Respondent.

In the Matter of DEBORA JACKSON et al., Petitioners, v MICHAEL CAPRA, Respondent. NAHSHON JACKSON, Nonparty-Appellant.

Submitted December 14, 2015; decided February 18, 2016

Reported below, 2015 NY Slip Op 83646(U), 2015 NY Slip Op 84259(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge GARCIA taking no part.

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In the Matter of KENNETH COLE PRODUCTIONS, INC., SHAREHOLDER DERIVATIVE LITIGATION.

ERIE COUNTY EMPLOYEES RETIREMENT SYSTEM, Appellant, v MICHAEL J. BLITZER et al., Respondents.

Submitted February 16, 2016; decided February 18, 2016

Reported below, 122 AD3d 500.

Motion by Eastern New York Laborers' District Council for leave to file a brief amicus curiae on the appeal herein granted

and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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In the Matter of LEVEL 3 COMMUNICATIONS, LLC, Appellant, v  
ESSEX COUNTY, Respondent, et al., Respondents.

Submitted November 30, 2015; decided February 18, 2016

Reported below, 129 AD3d 1255.

Motion for reargument of motion for leave to appeal denied  
[see 26 NY3d 907 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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In the Matter of MELANIE K. SUFFOLK COUNTY DEPARTMENT OF  
SOCIAL SERVICES, Respondent; DOLORES F., Appellant.  
(Proceeding No. 1.)

In the Matter of DORIANA F. SUFFOLK COUNTY DEPARTMENT OF  
SOCIAL SERVICES, Respondent; DOLORES F., Appellant.  
(Proceeding No. 2.)

Submitted December 14, 2015; decided February 18, 2016

Reported below, 133 AD3d 756.

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine  
the proceedings within the meaning of the Constitution.

Judge GARCIA taking no part.

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BARBARA OSARCZUK et al., Respondents, v ASSOCIATED UNIVERSI-  
TIES, INCORPORATED, Appellant. JOSEPH ROMBOLA et al.,  
Intervenors-Respondents. (And a Third-Party Action.)

Submitted December 28, 2015; decided February 18, 2016

Reported below, 2015 NY Slip Op 89229(U).

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine

the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DAVIEL McCUMMINGS, Respondent.

Submitted January 25, 2016; decided February 18, 2016

Reported below, 124 AD3d 502.

Motion to vacate this Court's January 8, 2016 preclusion order granted.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. RAFAEL AGOSTO, Appellant, v PAUL CHAPPIUS, JR., as Superintendent of Elmira Correctional Facility, Respondent.

Submitted December 28, 2015; decided February 18, 2016

Reported below, 2015 NY Slip Op 83012(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1049 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOSE VAZQUEZ, Appellant, v DAVID UNGER et al., Respondents.

Submitted December 14, 2015; decided February 18, 2016

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for poor person relief dismissed as academic.

Judge GARCIA taking no part.

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MIRTA RAMOS, Appellant, v RENATA VANJA WEBER, M.D., et al., Respondents.

Submitted December 28, 2015; decided February 18, 2016

Reported below, 118 AD3d 408.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

Judge GARCIA taking no part.

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In the Matter of RENSSELAER COUNTY SHERIFF'S DEPARTMENT,  
Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS  
et al., Respondents.

Submitted December 21, 2015; decided February 18, 2016

Reported below, 131 AD3d 777; 2015 NY Slip Op 89185(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judges STEIN and GARCIA taking no part.

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In the Matter of the Claim of MARY ANN TANGO, Appellant.  
COMMISSIONER OF LABOR, Respondent.

Submitted December 21, 2015; decided February 18, 2016

Reported below, 2015 NY Slip Op 91807(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge GARCIA taking no part.

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In the Matter of VIKING PUMP, INC. and WARREN PUMPS, LLC,  
Insurance Appeals. VIKING PUMP, INC. and WARREN PUMPS,  
LLC, Appellants; TIG INSURANCE COMPANY et al., Respon-  
dents.

Submitted February 16, 2016; decided February 18, 2016

*See* — A3d —, 2015 WL 3618924, 2015 Del LEXIS 278.

Motion by Olin Corporation for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three

copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

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In the Matter of VIKING PUMP, INC. and WARREN PUMPS, LLC,  
Insurance Appeals. VIKING PUMP, INC. and WARREN PUMPS,  
LLC, Appellants; TIG INSURANCE COMPANY et al., Respon-  
dents.

Submitted February 16, 2016; decided February 18, 2016

*See* — A3d —, 2015 WL 3618924, 2015 Del LEXIS 278.

Motion by ITT Corporation for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed.

Judge GARCIA taking no part.

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[47 NE3d 71, 26 NYS3d 743]

In the Matter of EXETER BUILDING CORP. et al., Appellants, v  
TOWN OF NEWBURGH et al., Respondents.

Argued January 14, 2016; decided February 11, 2016

#### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 13, 2014. The Appellate Division (1) reversed, insofar as appealed from, on the law, an order and judgment (one paper) of the Supreme Court, Orange County (Elaine Slobod, J.), entered in a hybrid proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had, after a hearing, (a) granted that branch of the petition to review respondent Town of Newburgh Zoning Board of Appeals' determination that petitioners had no vested right to develop certain real property under the R-3 zoning regulations in effect prior to March 6, 2006; and (b) declared that petitioners had a vested right to develop the property in accordance with those prior zoning regulations; (2) confirmed the determination of respondent Town of Newburgh Zoning

Board of Appeals; (3) denied that branch of the petition; and (4) remitted the matter to Supreme Court for the entry of an amended judgment, among other things, dismissing the proceeding on the merits and declaring that petitioners had no vested right to develop the subject real property under the R-3 zoning regulations in effect prior to March 6, 2006.

*Matter of Exeter Bldg. Corp. v Town of Newburgh*, 114 AD3d 774, affirmed.

#### HEADNOTE

##### **Municipal Corporations — Zoning — Use of Property in Transition When Rezoned — Vested Right — Reliance**

Petitioners had no vested right to develop certain real property under zoning regulations in effect prior to the rezoning of their property pursuant to Local Law No. 3 (2006) of Town of Newburgh. An owner of real property can acquire a common-law vested right to develop the property in accordance with prior zoning regulations when, in reliance on a legally issued permit, the landowner effects substantial changes and incurs substantial expenses to further the development and the landowner's actions relying on the valid permit are so substantial that the municipal action results in serious loss rendering the improvements essentially valueless. Here, it was not reasonable for petitioners to rely on a December 2007 conditional final site plan approval of the development, in carrying out any substantial actions furthering the development. The Town Planning Board had repeatedly warned petitioners of the proposed rezoning, and the December 2007 approval itself, which included a statement of the new zoning status of the property, did not engender expectations to the contrary. Furthermore, while petitioners challenged the rezoning in court, petitioners must have been cognizant of the potential for an eventual legal ruling that the Local Law was in fact valid. Nor did limited permits, authorizing petitioners to demolish a single-family residence, remove certain water tanks and their foundation, conduct clearing and grading, and erect signs on the property, amount to approval of petitioners' proposed development.

#### APPEARANCES OF COUNSEL

*Burke, Miele & Golden, LLP*, Goshen (*Richard B. Golden* and *Kelly M. Naughton* of counsel), for appellants.

*Dickover, Donnelly, Donovan, LLP*, Goshen (*Michael H. Donnelly* of counsel), for respondents.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

An owner of real property can acquire a common-law vested right to develop the property in accordance with prior zoning regulations when, in reliance on a "legally issued permit," the landowner "effect[s] substantial changes and incur[s] substan-

tial expenses to further the development” and “[t]he landowner’s actions relying on [the] valid permit [are] so substantial that the municipal action results in serious loss rendering the improvements essentially valueless” (*Town of Orangetown v Magee*, 88 NY2d 41, 47-48 [1996]; see generally 4 Edward H. Ziegler, Jr., Rathkopf’s The Law of Zoning and Planning § 70:20 [4th ed]). Here, it was not reasonable for petitioners to rely on the December 2007 conditional final site plan approval of the development, in carrying out any substantial actions furthering the development. In particular, in 2005, the year before the rezoning of petitioners’ property by means of Local Law No. 3 (2006) of Town of Newburgh, the Town Planning Board had repeatedly warned petitioners of the proposed rezoning. The December 2007 approval itself did not engender expectations to the contrary. It included a statement of the new zoning status of the property. Additionally, while petitioners challenged the rezoning in court, petitioners must have been “cognizant of the potential for an eventual legal ruling that the Local Law was in fact valid” (*Preble Aggregate v Town of Preble*, 263 AD2d 849, 851 [3d Dept 1999], *lv denied* 94 NY2d 760 [2000]).

We need not address whether a conditional final site plan approval can be the basis for acquisition of a vested right to develop property. Even if the right could vest under such a site plan approval, petitioners here do not satisfy the *Magee* test, because the element of reasonable reliance on municipal permission was not satisfied.\* Nor did limited permits, authorizing petitioners to demolish a single-family residence, remove certain water tanks and their foundation, conduct clearing and grading, and erect signs on the subject property, amount to approval of petitioners’ proposed development. Consequently, the Appellate Division properly held that petitioners have no vested right to develop the subject property under the prior zoning regulations.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed, with costs, in a memorandum.

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\* Given our analysis, there is no occasion for us to decide whether Supreme Court improperly conducted a trial/hearing to decide whether the remaining elements of the *Magee* test were met, rather than remanding to the Zoning Board.

In the Matter of ADIRONDACK HEALTH-UIHLEIN LIVING CENTER  
et al., Appellants, v NIRAV R. SHAH, M.D., Commissioner of  
Health, State of New York, et al., Respondents.

Decided February 23, 2016

Reported below, 125 AD3d 1366, 1406.

Appeal dismissed, without costs, by the Court of Appeals,  
sua sponte, upon the ground that no substantial constitutional  
question is directly involved.

Judge FAHEY taking no part.

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AETNA HEALTH PLANS, as Assignee of Luz Herrera, Appellant, v  
HANOVER INSURANCE COMPANY, Respondent.

Decided February 23, 2016

Reported below, 116 AD3d 538.

Reargument ordered and case set down for argument during  
a future session of this Court.

Concur: Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and  
FAHEY. Taking no part: Chief Judge DiFIORE and Judge GARCIA.

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AGENCIES FOR CHILDREN'S THERAPY SERVICES, INC., Appellant, v  
NEW YORK STATE DEPARTMENT OF HEALTH et al., Respon-  
dents.

Submitted February 1, 2016; decided February 23, 2016

Reported below, 136 AD3d 122.

On the Court's own motion, appeal dismissed, without costs,  
upon the ground that no substantial constitutional question is  
directly involved. Motion for a stay dismissed as academic.

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In the Matter of ALEXANDER S., an Infant. STEUBEN COUNTY  
DEPARTMENT OF SOCIAL SERVICES, Respondent; DAVID S. et  
al., Appellants.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 130 AD3d 1463.



Motions for reargument denied [*see* 26 NY3d 910 (2015); 26 NY3d 1030 (2015)].

Judge FAHEY taking no part.

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In the Matter of ASIAN AMERICAN LEGAL DEFENSE AND EDUCATION FUND et al., Appellants, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

Submitted November 30, 2015; decided February 23, 2016

Reported below, 125 AD3d 531.

Motion by Muslim Community Network et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge FAHEY taking no part.

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In the Matter of HILARY BEST, Appellant, v BARRY A. SCHWARTZ, Respondent.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 130 AD3d 818.

Motion to vacate this Court's November 5, 2015 dismissal order granted [*see* 26 NY3d 1037 (2015)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of AMIN BOOKER, Appellant, v ROBERT ERCOLE, as Superintendent of Green Haven Correctional Facility, et al., Respondents.

Decided February 23, 2016

Reported below, 72 AD3d 1369.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge STEIN taking no part.

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In the Matter of JENNIFER CRONK, Respondent, v JOHN B. KING, as Commissioner of Education, et al., Respondents, and BOARD OF EDUCATION OF THE VALHALLA UNION FREE SCHOOL DISTRICT, Appellant.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 130 AD3d 1415.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 912 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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In the Matter of WASHINGTON DAVIS, Appellant, v KENNETH L. THOMPSON et al., Respondents.

In the Matter of WASHINGTON DAVIS, Appellant, et al., Petitioner, v JULIA L. RODRIGUEZ et al., Respondents.

Submitted November 30, 2015; decided February 23, 2016

Reported below, 124 AD3d 501.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 907 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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In the Matter of AMIL DINSIO, Appellant, v SUPREME COURT, APPELLATE DIVISION, THIRD JUDICIAL DEPARTMENT, Respondent. (Proceeding No. 1.)

In the Matter of AMIL DINSIO, Appellant, v SUPREME COURT, APPELLATE DIVISION, THIRD JUDICIAL DEPARTMENT, Respondent. (Proceeding No. 2.)

In the Matter of AMIL DINSIO, Appellant, v SUPREME COURT, APPELLATE DIVISION, THIRD JUDICIAL DEPARTMENT, Respondent. (Proceeding No. 3.)

Submitted July 6, 2015; decided February 23, 2016

Reported below, 125 AD3d 1313, 1314, 1315.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 908, 909 (2015)]. Motion for other relief dismissed as academic.

Judges STEIN and FAHEY taking no part.

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DLJ MORTGAGE CAPITAL, INC., Respondent, et al., Intervenors-Plaintiffs, v THOMAS KONTOGIANNIS et al., Defendants, and JEFFREY SIEGEL et al., Appellants. MASSOUD & PASHKOFF LLP, Nonparty Appellant.

Submitted December 14, 2015; decided February 23, 2016

Reported below, 128 AD3d 606.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the October 2014 Supreme Court order, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

Judge GARCIA taking no part.

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In the Matter of BERNABE ENCARNACION, Appellant, v SUSAN M. DWYER, Cayuga County Clerk, et al., Respondents.

Submitted January 11, 2016; decided February 23, 2016

Reported below, 2015 NY Slip Op 90289(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of THOMAS GLASS, Appellant, v NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES APPEALS BOARD, Respondent.

Decided February 23, 2016

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

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In the Matter of the Claim of DAVID L. HAROLD, Respondent.  
LEONARD'S TRANSPORTATION, Appellant; COMMISSIONER OF  
LABOR, Respondent.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 133 AD3d 1069.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of LEON R. KOZIOL, a Suspended Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Decided February 23, 2016

Reported below, 134 AD3d 1298.

Appeal, insofar as taken from that portion of the Appellate Division order denying the part of the motion seeking to vacate prior orders of suspension, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judges STEIN and FAHEY taking no part.

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THE MINISTERS AND MISSIONARIES BENEFIT BOARD, Interpleader Plaintiff, v LEON SNOW et al., Appellants. ESTATE OF CLARK FLESHER et al., Respondents.

Submitted January 25, 2016; decided February 23, 2016

See 780 F3d 150.

Motion for reargument denied. [see 26 NY3d 466 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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MOHONK PRESERVE, INC., Respondent, v KAREN PARDINI et al., Appellants.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 130 AD3d 1205.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 26 NY3d 912 (2015)].

Chief Judge DiFiore and Judge Garcia taking no part.

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In the Matter of the Claim of MEGAN L. MORRIS, Respondent.  
SOURCE INTERLINK MEDIA, LLC, Appellant; COMMISSIONER  
OF LABOR, Respondent.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 131 AD3d 1287.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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JUVONDI PENDER, Appellant, v MORRIS DUFFY ALONSO FALEY,  
LLP, Respondent.

Submitted January 19, 2016; decided February 23, 2016

Reported below, 2015 NY Slip Op 92386(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE  
HARRISON, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARINO  
SERRANO, Appellant.

Submitted February 16, 2016; decided February 23, 2016

Reported below, *People v Harrison*, 115 AD3d 980.

Reported below, *People v Serrano*, 45 Misc 3d 69.

Motion by Immigrant Defense Project for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TERRANCE L. MACK, Respondent.

Submitted February 16, 2016; decided February 23, 2016

Reported below, 117 AD3d 1450.

Motion to file a supplemental brief granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. SHALIEK CARTER, Appellant, v BRANDON J. SMITH, as Superintendent of Greene Correctional Facility, Respondent.

Decided February 23, 2016

Reported below, 134 AD3d 1338.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE, Appellant, v SUPERINTENDENT OF COXSACKIE CORRECTIONAL FACILITY, Respondent.

Decided February 23, 2016

Reported below, 2015 NY Slip Op 93293(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge STEIN taking no part.

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THOMAS PERKINS et al., Respondents, v PHILIP BARRY, Appellant, et al., Defendants.

Submitted January 11, 2016; decided February 23, 2016

Reported below, 2015 NY Slip Op 71789(U); 2015 NY Slip Op 80728(U); 2015 NY Slip Op 92387(U).

Motion, insofar as it seeks leave to appeal from that portion of the December 2015 Appellate Division order which dismissed appellant's appeal, denied; motion for leave to appeal otherwise

dismissed upon the ground that the remaining portions of the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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In the Matter of BRIAN PICKERING, Appellant, v CAR WIN CONSTRUCTION, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 133 AD3d 1068.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for leave to appeal denied.

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ROBERT L. SCHULZ, Appellant, et al., Plaintiffs, v ANDREW M. CUOMO et al., Respondents, et al., Defendants.

Decided February 23, 2016

Reported below, 133 AD3d 945.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFIORE taking no part.

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ROBERT L. SCHULZ et al., Appellants, et al., Plaintiffs, v STATE OF NEW YORK EXECUTIVE et al., Respondents.

Decided February 23, 2016

Reported below, 134 AD3d 52.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge STEIN taking no part.

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In the Matter of MATTHEW R. SMITH, Appellant, v WILLIAM J. CONDON, a Justice of the Supreme Court, Suffolk County, et al., Respondents.

Submitted January 25, 2016; decided February 23, 2016

Reported below, 132 AD3d 1002.

Motion for reargument etc. denied [*see* 26 NY3d 915 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

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IAN STOKOE et al., Respondents, v E-LIONHEART, LLC, et al., Appellants.

Submitted November 30, 2015; decided February 23, 2016

Reported below, 129 AD3d 703.

Motion, insofar as made by defendant Edward Bronson, denied; motion for leave to appeal otherwise dismissed as untimely (*see* CPLR 5513 [b]).

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IAN STOKOE et al., Respondents, v E-LIONHEART, LLC, et al., Appellants.

Submitted February 8, 2016; decided February 23, 2016

Reported below, 129 AD3d 703.

Motion for leave to appeal from the Supreme Court judgment entered subsequent to the Appellate Division order dismissed upon the ground that the judgment is not the final appealable paper from which leave to appeal may be sought (*see* CPLR 5611).

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UNITED STATES FIDELITY & GUARANTY COMPANY et al., Respondents, v AMERICAN RE-INSURANCE COMPANY et al., Appellants, et al., Defendants.

Decided February 23, 2016

Reported below, 132 AD3d 604.

Appeal dismissed, without prejudice and without costs, by the Court of Appeals, sua sponte, upon the ground that the Court declines to pass upon the matter raised by appellants at



this time (*see Matter of Lippman v Commissioners of Election of County of Nassau*, 15 NY2d 964, 966 [1965]).

Judge ABDUS-SALAAM taking no part.

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In the Matter of the Estate of STANLEY WAGNER, Deceased.  
JAAN AARISMAA, IV, Appellant; JOHN L. WAGNER, as Executor of STANLEY A. WAGNER, Deceased, Respondent.

Submitted January 4, 2016; decided February 23, 2016

Reported below, 2015 NY Slip Op 88321(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for miscellaneous relief denied.

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ABUWI M. WAHEED, Appellant, v CITY OF NEW YORK et al.,  
Respondents.

Submitted December 7, 2015; decided February 23, 2016

Reported below, 2015 NY Slip Op 87430(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge ABDUS-SALAAM taking no part.

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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE  
OF COURT OF APPEALS OR ON CONSENT**  
(February 1, 2016 through February 29, 2016)

|                                                      |                       |         |
|------------------------------------------------------|-----------------------|---------|
| Georgetown Unsold Shares,<br>LLC, Matter of, v Ledet | 2d Dept: 130 AD3d 99  | 2/26/16 |
| Murray v Popular                                     | 2d Dept: 132 AD3d 743 | 2/2/16  |

**APPEALS WITHDRAWN AND DISCONTINUED**

(February 1, 2016 through February 29, 2016)

McDermott, Matter of, v  
Annucci

3d Dept: 128 AD3d 1258

2/2/16

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(February 1, 2016 through February 29, 2016)

|                    |                                                     |                                            |
|--------------------|-----------------------------------------------------|--------------------------------------------|
| People v Acevedo   | App Term, 1st Dept: 46 Misc 3d 150(A) (NY)          | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Ackerman  | 4th Dept: 133 AD3d 1196 (Wyoming)                   | denied 2/22/16 (Stein, J.)                 |
| People v Adamson   | 2d Dept: 131 AD3d 701 (Kings)                       | denied reconsideration 2/16/16 (Stein, J.) |
| People v Agrusti   | 3d Dept: 123 AD3d 1158 (Schenectady)                | denied 2/23/16 (Rivera, J.)                |
| People v Ainsley   | 2d Dept: 132 AD3d 1007 (Kings)                      | denied 2/22/16 (Fahey, J.)                 |
| People v Alejandro | 1st Dept: 127 AD3d 434 (NY)                         | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Alicea    | 1st Dept: 134 AD3d 409 (NY)                         | denied 2/25/16 (Fahey, J.)                 |
| People v Allen     | 2d Dept: 134 AD3d 730 (Richmond)                    | denied 2/25/16 (Fahey, J.)                 |
| People v Alnutt    | App Div, 3d Dept: 2015 NY Slip Op 82349(U) (Fulton) | denied 2/22/16 (Fahey, J.)                 |
| People v Amos      | 1st Dept: 132 AD3d 456 (NY)                         | denied 2/18/16 (Rivera, J.)                |
| People v Ananaba   | App Term, 1st Dept: 49 Misc 3d 127(A) (NY)          | denied 2/22/16 (Stein, J.)                 |
| People v Anderson  | 2d Dept: 130 AD3d 1055 (Kings)                      | granted 2/25/16 (Pigott, J.)               |
| People v Ashkar    | 4th Dept: 130 AD3d 1568 (Onondaga)                  | denied 2/23/16 (Rivera, J.)                |
| People v Bankston  | App Div, 4th Dept, 10/29/15 (Erie)                  | dismissed 2/24/16 (Pigott, J.)             |
| People v Barker    | 1st Dept: 134 AD3d 432 (NY)                         | denied 2/17/16 (Stein, J.)                 |
| People v Barnes    | 4th Dept: 133 AD3d 1272 (Niagara)                   | denied 2/22/16 (Stein, J.)                 |
| People v Baron     | 1st Dept: 133 AD3d 516 (NY)                         | denied 2/24/16 (Pigott, J.)                |
| People v Barton    | 3d Dept: 126 AD3d 1238 (Albany)                     | denied 2/26/16 (Abdus-Salaam, J.)          |

## MEMORANDA

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|                         |                                                                      |                                                  |
|-------------------------|----------------------------------------------------------------------|--------------------------------------------------|
| People v Bharath        | 1st Dept: 134 AD3d 483 (Bronx)                                       | denied 2/22/16<br>(Stein, J.)                    |
| People v Big Man        | 3d Dept: 133 AD3d 904 (Montgomery)                                   | denied 2/25/16<br>(Fahey, J.)                    |
| People v Blake          | 4th Dept: 126 AD3d 1375 (Cayuga)                                     | denied 2/26/16<br>(Abdus-Salaam, J.)             |
| People v Blanding       | App Div, 1st Dept: 2014 NY Slip Op 92141(U) (NY)                     | dismissed 2/16/16<br>(Rivera, J.)                |
| People v Blanis         | App Term, 1st Dept: 47 Misc 3d 137(A) (NY)                           | denied 2/26/16<br>(Abdus-Salaam, J.)             |
| People v Blond          | App Div, 3d Dept: 2015 NY Slip Op 65191(U) (Schenectady)             | denied 2/26/16<br>(Abdus-Salaam, J.)             |
| People v Brett          | 2d Dept: 134 AD3d 732 (Kings)                                        | denied 2/1/16<br>(Pigott, J.)                    |
| People v Brown (Dana)   | App Div, 4th Dept: 2015 NY Slip Op 87496(U) (Wyoming)                | dismissed 2/24/16<br>(Stein, J.)                 |
| People v Brown (Duane)  | 2d Dept: 132 AD3d 891 (Queens)                                       | denied 2/22/16<br>(Stein, J.)                    |
| People v Brown (Josh)   | App Div, 2d Dept: 2015 NY Slip Op 79683(U) (Queens)                  | denied<br>reconsideration<br>2/26/16 (Stein, J.) |
| People v Brown (Mahad)  | 2d Dept: 133 AD3d 772 (Kings)                                        | denied 2/24/16<br>(Pigott, J.)                   |
| People v Brown (Robert) | 1st Dept: 127 AD3d 589 (Bronx)                                       | denied 2/26/16<br>(Abdus-Salaam, J.)             |
| People v Brown (Rodney) | 1st Dept: 134 AD3d 502 (NY)                                          | denied 2/29/16<br>(Pigott, J.)                   |
| People v Bryant         | App Div, 4th Dept: 2015 NY Slip Op 86878(U) (Monroe)                 | dismissed 2/24/16<br>(Pigott, J.)                |
| People v Caban          | 1st Dept: 134 AD3d 434 (NY)                                          | denied 2/25/16<br>(Fahey, J.)                    |
| People v Caquias        | 1st Dept: 127 AD3d 487 (NY)                                          | denied 2/26/16<br>(Abdus-Salaam, J.)             |
| People v Carrasco       | 1st Dept: 124 AD3d 445 (Bronx)                                       | denied 2/22/16<br>(Rivera, J.)                   |
| People v Celifie        | App Term, 2d Dept, 9th & 10th Jud Dists: 47 Misc 3d 133(A) (Suffolk) | denied 2/26/16<br>(Abdus-Salaam, J.)             |
| People v Ceruti         | 2d Dept: 133 AD3d 610 (Queens)                                       | denied 2/2/16<br>(Stein, J.)                     |
| People v Chavez         | 2d Dept: 133 AD3d 611 (Kings)                                        | denied 2/23/16<br>(Rivera, J.)                   |
| People v Cole           | 4th Dept: 132 AD3d 1327 (Erie)                                       | denied 2/23/16<br>(Rivera, J.)                   |
| People v Conklin        | 1st Dept: 132 AD3d 444 (Bronx)                                       | denied 2/23/16<br>(Rivera, J.)                   |
| People v Cook           | 3d Dept: 134 AD3d 1241 (Ulster)                                      | denied 2/29/16<br>(Fahey, J.)                    |

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| People v Crowell                | 3d Dept: 130 AD3d 1362 (Sullivan)                      | denied 2/18/16<br>(Rivera, J.)                       |
| People v Cruz                   | 1st Dept: 134 AD3d 407 (Bronx)                         | denied 2/1/16<br>(Pigott, J.)                        |
| People v Currie                 | 2d Dept: 131 AD3d 1265 (Nassau)                        | denied 2/23/16<br>(Rivera, J.)                       |
| People v Cutts                  | 1st Dept: 133 AD3d 544 (NY)                            | denied 2/22/16<br>(Stein, J.)                        |
| People v Daniels                | 1st Dept: 133 AD3d 453 (NY)                            | denied 2/1/16<br>(Pigott, J.)                        |
| People v Davis (Donald)         | 2d Dept: 123 AD3d 941 (Westchester)                    | denied 2/26/16<br>(Abdus-Salaam, J.)                 |
| People v Davis<br>(Imperial)    | 4th Dept: 133 AD3d 1240 (Onondaga)                     | denied 2/19/16<br>(Stein, J.)                        |
| People v DeLucia                | 1st Dept: 132 AD3d 581 (NY)                            | denied 2/1/16<br>(Pigott, J.)                        |
| People v Direnzo (John)         | 2d Dept: 134 AD3d 850 (Westchester)                    | denied 2/22/16<br>(Stein, J.)                        |
| People v Direnzo (John)         | 2d Dept: 134 AD3d 851 (Westchester)                    | denied 2/22/16<br>(Stein, J.)                        |
| People v Dizak                  | 4th Dept: 132 AD3d 1327 (Monroe)                       | denied 2/22/16<br>(Stein, J.)                        |
| People v Donald                 | 4th Dept: 132 AD3d 1396 (Monroe)                       | denied 2/23/16<br>(Rivera, J.)                       |
| People v Drake                  | 4th Dept: 126 AD3d 1382 (Onondaga)                     | denied 2/26/16<br>(Abdus-Salaam, J.)                 |
| People v Earl                   | 2d Dept: 133 AD3d 875 (Westchester)                    | denied 2/3/16<br>(Fahey, J.)                         |
| People v Edo                    | 2d Dept: 132 AD3d 1011 (Queens)                        | denied 2/1/16<br>(Pigott, J.)                        |
| People v Egbunike<br>(Emmanuel) | 2d Dept: 133 AD3d 776 (Westchester)                    | denied 2/22/16<br>(Stein, J.)                        |
| People v Egbunike<br>(Emmanuel) | 2d Dept: 133 AD3d 777 (Suffolk)                        | denied 2/22/16<br>(Stein, J.)                        |
| People v Ellis                  | 2d Dept: 133 AD3d 777 (Kings)                          | denied 2/24/16<br>(Pigott, J.)                       |
| People v Englert                | 4th Dept: 130 AD3d 1532 (Monroe)                       | denied <sup>1</sup> 2/1/16<br>(Pigott, J.)           |
| People v Faccio                 | App Div, 3d Dept: 2015 NY Slip Op<br>83562(U) (Greene) | dismissed 2/23/16<br>(Fahey, J.)                     |
| People v Farmer                 | 2d Dept: 123 AD3d 735 (Westchester)                    | denied<br>reconsideration<br>2/23/16 (Rivera,<br>J.) |
| People v Fat Boy                | 3d Dept: 127 AD3d 1335 (Ulster)                        | denied 2/26/16<br>(Abdus-Salaam, J.)                 |

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1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brewer* (129 AD3d 1619 [2015]), *lv granted* 26 NY3d 965 [2015]).

## MEMORANDA

1145

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|---------------------------------|--------------------------------------------------------|------------------------------------------------------|
| People v Faulknor               | 1st Dept: 134 AD3d 404 (Bronx)                         | denied 2/22/16<br>(Stein, J.)                        |
| People v Ferrell                | App Div, 4th Dept: 2015 NY Slip Op<br>74346(U) (Wayne) | denied<br>reconsideration<br>2/1/16 (Pigott, J.)     |
| People v Fields                 | 1st Dept: 133 AD3d 529 (NY)                            | denied 2/25/16<br>(Pigott, J.)                       |
| People v Figueroa               | 1st Dept: 134 AD3d 585 (NY)                            | denied 2/25/16<br>(Pigott, J.)                       |
| People v Foose                  | 4th Dept: 132 AD3d 1236 (Erie)                         | denied 2/23/16<br>(Rivera, J.)                       |
| People v Fraser                 | 2d Dept: 134 AD3d 734 (Suffolk)                        | denied 2/24/16<br>(Fahey, J.)                        |
| People v Fuhrtz                 | 2d Dept: 123 AD3d 735 (Queens)                         | denied 2/26/16<br>(Abdus-Salaam,<br>J.)              |
| People v Galeano                | App Div, 1st Dept: 2015 NY Slip Op<br>88707(U) (NY)    | denied 2/26/16<br>(Fahey, J.)                        |
| People v Ghent                  | 4th Dept: 132 AD3d 1275 (Monroe)                       | denied 2/24/16<br>(Pigott, J.)                       |
| People v Giacona                | 1st Dept: 134 AD3d 449 (NY)                            | denied 2/3/16<br>(Fahey, J.)                         |
| People v Grafton                | 3d Dept: 132 AD3d 1065 (Schenectady)                   | denied 2/25/16<br>(Pigott, J.)                       |
| People v Graham                 | 4th Dept: 134 AD3d 1414 (Niagara)                      | denied 2/29/16<br>(Pigott, J.)                       |
| People v Grant (David)          | App Div, 1st Dept: 2014 NY Slip Op<br>92141(U) (NY)    | dismissed 2/16/16<br>(Rivera, J.)                    |
| People v Grant (Lerone)         | 1st Dept: 125 AD3d 464 (NY)                            | denied 2/26/16<br>(Abdus-Salaam,<br>J.)              |
| People v Grant (Paul)           | 2d Dept: 122 AD3d 643 (Kings)                          | denied 2/23/16<br>(Rivera, J.)                       |
| People v Hardy                  | 1st Dept: 126 AD3d 648 (NY)                            | denied 2/26/16<br>(Abdus-Salaam,<br>J.)              |
| People v Harris                 | 2d Dept: 133 AD3d 880 (Kings)                          | denied 2/22/16<br>(Stein, J.)                        |
| People v Hendrix                | 4th Dept: 132 AD3d 1348 (Wyoming)                      | denied 2/23/16<br>(Rivera, J.)                       |
| People v Hicks                  | 2d Dept: 134 AD3d 854 (Rockland)                       | denied 2/25/16<br>(Fahey, J.)                        |
| People v Hinchey                | County Ct, 12/21/15 (Niagara)                          | denied 2/19/16<br>(Stein, J.)                        |
| People v Hines                  | 2d Dept: 128 AD3d 722 (Westchester)                    | denied<br>reconsideration<br>2/23/16<br>(Rivera, J.) |
| People v Holland<br>(Derrick)   | 2d Dept: 133 AD3d 685 (Kings)                          | denied 2/22/16<br>(Stein, J.)                        |
| People v Holland<br>(Johnathan) | 2d Dept: 133 AD3d 685 (Kings)                          | denied 2/22/16<br>(Stein, J.)                        |

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| People v Holloway               | 1st Dept: 134 AD3d 436 (Bronx)                             | denied 2/16/16<br>(Stein, J.)                        |
| People v Holmes                 | App Term, 1st Dept: 49 Misc 3d 127(A)<br>(Bronx)           | denied 2/22/16<br>(Fahey, J.)                        |
| People v Huggins                | 2d Dept: 134 AD3d 854 (Kings)                              | denied 2/22/16<br>(Stein, J.)                        |
| People v Hymes                  | 4th Dept: 132 AD3d 1411 (Monroe)                           | denied 2/23/16<br>(Rivera, J.)                       |
| People v Irving                 | 4th Dept: 133 AD3d 1273 (Oneida)                           | denied 2/22/16<br>(Stein, J.)                        |
| People v Jackson<br>(Johnny)    | 1st Dept: 134 AD3d 467 (NY)                                | denied 2/24/16<br>(Pigott, J.)                       |
| People v Jackson<br>(Nathaniel) | 1st Dept: 133 AD3d 474 (NY)                                | denied 2/23/16<br>(Stein, J.)                        |
| People v Jackson<br>(Ricky)     | 4th Dept: 133 AD3d 1251 (Onondaga)                         | denied 2/1/16<br>(Pigott, J.)                        |
| People v Jingzhi Li             | App Div, 2d Dept: 2015 NY Slip Op<br>82284(U) (Kings)      | denied<br>reconsideration<br>2/26/16<br>(Fahey, J.)  |
| People v Johnson                | App Div, 4th Dept, 11/9/15 (Onondaga)                      | dismissed 2/24/16<br>(Fahey, J.)                     |
| People v Jones (Jetone)         | 4th Dept: 120 AD3d 1611 (Erie)                             | denied<br>reconsideration<br>2/23/16<br>(Rivera, J.) |
| People v Jones<br>(Terrance)    | 2d Dept: 133 AD3d 779 (Queens)                             | denied 2/1/16<br>(Pigott, J.)                        |
| People v Karnatz                | App Div, 4th Dept: 2015 NY Slip Op<br>74313(U) (Niagara)   | dismissed 2/16/16<br>(Rivera, J.)                    |
| People v Kent                   | App Div, 3d Dept: 2015 NY Slip Op<br>88459(U) (Rensselaer) | denied 2/1/16<br>(Pigott, J.)                        |
| People v Kessler                | 4th Dept: 132 AD3d 1328 (Genesee)                          | denied 2/23/16<br>(Rivera, J.)                       |
| People v King (Michael)         | App Div, 4th Dept, 10/1/15 (Onondaga)                      | dismissed 2/1/16<br>(Pigott, J.)                     |
| People v King<br>(Nidamark)     | App Div, 2d Dept: 2015 NY Slip Op<br>90045(U) (Suffolk)    | denied 2/25/16<br>(Fahey, J.)                        |
| People v Kranenburg             | 3d Dept: 134 AD3d 1348 (Ulster)                            | denied 2/29/16<br>(Pigott, J.)                       |
| People v Levels                 | App Term, 1st Dept: 2015 NY Slip Op<br>51544(U) (NY)       | denied 2/23/16<br>(Rivera, J.)                       |
| People v Lewis                  | 1st Dept: 132 AD3d 401 (NY)                                | denied 2/23/16<br>(Rivera, J.)                       |
| People v Lopez                  | 1st Dept: 131 AD3d 878 (NY)                                | denied 2/23/16<br>(Rivera, J.)                       |
| People v Love                   | 2d Dept: 126 AD3d 812 (Suffolk)                            | denied 2/26/16<br>(Abdus-Salaam,<br>J.)              |
| People v Lovick                 | 2d Dept: 127 AD3d 1108 (Kings)                             | denied 2/26/16<br>(Abdus-Salaam,<br>J.)              |

## MEMORANDA

1147

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| People v Lyon                | 4th Dept: 133 AD3d 1232 (Monroe)                                                      | denied 2/19/16<br>(Stein, J.)                    |
| People v Mack                | 4th Dept: 126 AD3d 1406 (Monroe)                                                      | denied 2/26/16<br>(Abdus-Salaam,<br>J.)          |
| People v Mais                | 2d Dept: 133 AD3d 687 (Rockland)                                                      | denied 2/19/16<br>(Stein, J.)                    |
| People v Marshall            | App Div, 2d Dept: 2015 NY Slip Op<br>83677(U) (Queens)                                | dismissed 2/16/16<br>(Rivera, J.)                |
| People v Martinez<br>(Dario) | 4th Dept: 118 AD3d 1446 (Monroe)                                                      | denied 2/18/16<br>(Rivera, J.)                   |
| People v Martinez<br>(Ronny) | 1st Dept: 132 AD3d 614 (NY)                                                           | denied 2/1/16<br>(Pigott, J.)                    |
| People v Mason               | 2d Dept: 132 AD3d 777 (Queens)                                                        | granted 2/24/16<br>(Fahey, J.)                   |
| People v Matthews            | App Term, 2d Dept, 9th & 10th Jud<br>Dists: 2015 NY Slip Op<br>82141(U) (Westchester) | denied<br>reconsideration<br>2/1/16 (Pigott, J.) |
| People v McBroom             | 1st Dept: 134 AD3d 476 (NY)                                                           | denied 2/23/16<br>(Fahey, J.)                    |
| People v McCoy               | App Div, 4th Dept, 11/2/15 (Monroe)                                                   | dismissed 2/24/16<br>(Pigott, J.)                |
| People v McKinley            | 1st Dept: 134 AD3d 519 (NY)                                                           | denied 2/22/16<br>(Stein, J.)                    |
| People v McKinnon            | 4th Dept: 133 AD3d 1230 (Erie)                                                        | denied 2/1/16<br>(Pigott, J.)                    |
| People v Medina              | 1st Dept: 133 AD3d 539 (Bronx)                                                        | denied 2/3/16<br>(Fahey, J.)                     |
| People v Mendez              | App Div, 4th Dept: 2015 NY Slip Op<br>88351(U) (Monroe)                               | denied 2/23/16<br>(Rivera, J.)                   |
| People v Miller (Cody)       | 4th Dept: 126 AD3d 1393 (Niagara)                                                     | denied 2/26/16<br>(Abdus-Salaam,<br>J.)          |
| People v Miller (Phillip)    | 2d Dept: 127 AD3d 787 (Kings)                                                         | denied 2/26/16<br>(Abdus-Salaam,<br>J.)          |
| People v Mina                | 1st Dept: 133 AD3d 501 (NY)                                                           | denied 2/24/16<br>(Fahey, J.)                    |
| People v Morel               | 1st Dept: 131 AD3d 855 (NY)                                                           | denied 2/23/16<br>(Rivera, J.)                   |
| People v Muir                | 1st Dept: 134 AD3d 641 (NY)                                                           | denied 2/29/16<br>(Fahey, J.)                    |
| People v Murda               | 3d Dept: 132 AD3d 1065 (Schenectady)                                                  | denied 2/25/16<br>(Pigott, J.)                   |
| People v Murphy              | 2d Dept: 133 AD3d 691 (Nassau)                                                        | denied 2/22/16<br>(Stein, J.)                    |
| People v Muscarella          | 4th Dept: 132 AD3d 1288 (Erie)                                                        | denied 2/23/16<br>(Rivera, J.)                   |
| People v Nafi                | 4th Dept: 132 AD3d 1301 (Erie)                                                        | denied 2/23/16<br>(Rivera, J.)                   |

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| People v Nelson         | 1st Dept: 133 AD3d 536 (NY)                         | denied <sup>2</sup> 2/25/16<br>(Stein, J.)           |
| People v Newkirk        | 4th Dept: 133 AD3d 1364 (Cayuga)                    | denied 2/1/16<br>(Pigott, J.)                        |
| People v Ocasio         | 1st Dept: 132 AD3d 453 (NY)                         | denied 2/23/16<br>(Rivera, J.)                       |
| People v Ocasio-Rosario | 3d Dept: 120 AD3d 1463 (Ulster)                     | denied 2/24/16<br>(Fahey, J.)                        |
| People v O'Keefe        | 3d Dept: 133 AD3d 1034 (Warren)                     | denied 2/1/16<br>(Pigott, J.)                        |
| People v Olivier        | 1st Dept: 134 AD3d 479 (NY)                         | denied 2/22/16<br>(Stein, J.)                        |
| People v Osborne        | 4th Dept: 132 AD3d 1327 (Niagara)                   | denied 2/23/16<br>(Rivera, J.)                       |
| People v Ott            | 4th Dept: 126 AD3d 1372 (Monroe)                    | denied 2/26/16<br>(Abdus-Salaam, J.)                 |
| People v Padilla        | App Div, 2d Dept: 2015 NY Slip Op 87570(U) (Nassau) | dismissed 2/16/16<br>(Rivera, J.)                    |
| People v Pagan          | App Div, 1st Dept: 2015 NY Slip Op 86108(U) (NY)    | dismissed 2/24/16<br>(Pigott, J.)                    |
| People v Page           | 2d Dept: 134 AD3d 858 (Westchester)                 | denied 2/24/16<br>(Fahey, J.)                        |
| People v Palacios       | 1st Dept: 133 AD3d 525 (NY)                         | denied 2/23/16<br>(Fahey, J.)                        |
| People v Parson         | 1st Dept: 132 AD3d 457 (NY)                         | denied 2/23/16<br>(Rivera, J.)                       |
| People v Patel          | App Div, 2d Dept: 2014 NY Slip Op 68616 (Nassau)    | denied<br>reconsideration<br>2/1/16 (Pigott, J.)     |
| People v Pena (John)    | 2d Dept: 131 AD3d 708 (Richmond)                    | denied 2/18/16<br>(Rivera, J.)                       |
| People v Pena (Victor)  | 2d Dept: 132 AD3d 910 (Suffolk)                     | denied 2/22/16<br>(Fahey, J.)                        |
| People v Perez          | 1st Dept: 132 AD3d 462 (NY)                         | denied 2/18/16<br>(Rivera, J.)                       |
| People v Perry          | 1st Dept: 133 AD3d 410 (NY)                         | denied 2/3/16<br>(Fahey, J.)                         |
| People v Peterkin       | 2d Dept: 134 AD3d 859 (Nassau)                      | denied 2/26/16<br>(Fahey, J.)                        |
| People v Petty          | 4th Dept: 126 AD3d 1399 (Ontario)                   | denied 2/26/16<br>(Abdus-Salaam, J.)                 |
| People v Phillip        | App Div, 2d Dept: 2015 NY Slip Op 80980(U) (Queens) | denied<br>reconsideration<br>2/16/16<br>(Rivera, J.) |
| People v Pitre          | 2d Dept: 133 AD3d 792 (Kings)                       | denied 2/26/16<br>(Fahey, J.)                        |

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2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Smith* (132 AD3d 511 [2015], *lv granted* 26 NY3d 1150 [2016]).



## MEMORANDA

1149

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|--------------------------------|-----------------------------------------------------|--------------------------------------------|
| People v Polanco               | App Div, 1st Dept: 2015 NY Slip Op 88140(U) (NY)    | denied 2/24/16 (Fahey, J.)                 |
| People v Poole                 | 1st Dept: 133 AD3d 417 (NY)                         | denied 2/1/16 (Pigott, J.)                 |
| People v Ramirez (Alberto)     | 1st Dept: 134 AD3d 402 (NY)                         | denied 2/29/16 (Pigott, J.)                |
| People v Ramirez (Juan)        | 2d Dept: 126 AD3d 1012 (Suffolk)                    | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Ramos (David)         | App Div, 1st Dept: 2015 NY Slip Op 81274(U) (NY)    | denied 2/18/16 (Rivera, J.)                |
| People v Ramos (Ivan)          | 3d Dept: 133 AD3d 904 (Montgomery)                  | denied 2/25/16 (Fahey, J.)                 |
| People v Rankin                | 3d Dept: 127 AD3d 1335 (Ulster)                     | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Ransier               | 4th Dept: 133 AD3d 1260 (Oswego)                    | denied 2/1/16 (Pigott, J.)                 |
| People v Rausch                | 4th Dept: 126 AD3d 1535 (Erie)                      | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Richardson (Derek)    | 1st Dept: 134 AD3d 440 (NY)                         | denied 2/25/16 (Fahey, J.)                 |
| People v Richardson (Rajsheem) | 4th Dept: 132 AD3d 1313 (Jefferson)                 | denied 2/23/16 (Rivera, J.) (Appeal No. 1) |
| People v Richardson (Rajsheem) | 4th Dept: 132 AD3d 1316 (Jefferson)                 | denied 2/23/16 (Rivera, J.) (Appeal No. 2) |
| People v Richardson (Seddy)    | App Div, 3d Dept: 2014 NY Slip Op 89800(U) (Warren) | denied 2/23/16 (Rivera, J.)                |
| People v Rimmen                | 4th Dept: 126 AD3d 1426 (Niagara)                   | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Rivera (Dennis)       | 1st Dept: 133 AD3d 418 (NY)                         | denied 2/1/16 (Pigott, J.)                 |
| People v Rivera (Gamalier)     | 2d Dept: 126 AD3d 818 (Queens)                      | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Rivera (Julio)        | 2d Dept: 133 AD3d 692 (Kings)                       | denied 2/25/16 (Pigott, J.)                |
| People v Roberts               | 4th Dept: 126 AD3d 1481 (Wyoming)                   | denied 2/26/16 (Abdus-Salaam, J.)          |
| People v Ruiz                  | App Div, 1st Dept: 2015 NY Slip Op 88711(U) (NY)    | denied 2/24/16 (Pigott, J.)                |
| People v Russell (Jeffery)     | 4th Dept: 133 AD3d 1199 (Wayne)                     | denied 2/22/16 (Stein, J.) (Appeal No. 1)  |
| People v Russell (Jeffery)     | 4th Dept: 133 AD3d 1201 (Wayne)                     | denied 2/22/16 (Stein, J.) (Appeal No. 2)  |

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| People v Salazar             | 1st Dept: 132 AD3d 418 (Bronx)                          | denied 2/23/16<br>(Stein, J.)                       |
| People v Salce               | 1st Dept: 127 AD3d 416 (Bronx)                          | denied 2/26/16<br>(Abdus-Salaam,<br>J.)             |
| People v Saldana             | 1st Dept: 134 AD3d 444 (NY)                             | denied 2/25/16<br>(Fahey, J.)                       |
| People v Santana             | 1st Dept: 133 AD3d 547 (NY)                             | denied 2/16/16<br>(Stein, J.)                       |
| People v Santiago            | 2d Dept: 132 AD3d 1015 (Westchester)                    | denied 2/1/16<br>(Pigott, J.)                       |
| People v Serrano (Juan)      | App Div, 1st Dept: 2014 NY Slip Op<br>90409(U) (NY)     | denied<br>reconsideration<br>2/24/16<br>(Fahey, J.) |
| People v Serrano (Noel)      | 1st Dept: 133 AD3d 445 (NY)                             | denied 2/4/16<br>(Fahey, J.)                        |
| People v Shaw                | 4th Dept: 133 AD3d 1312 (Oswego)                        | denied 2/24/16<br>(Pigott, J.)                      |
| People v Skinner             | 1st Dept: 133 AD3d 411 (NY)                             | denied 2/22/16<br>(Fahey, J.)                       |
| People v Slade               | 4th Dept: 133 AD3d 1203 (Monroe)                        | denied 2/24/16<br>(Pigott, J.)                      |
| People v Smith<br>(Everton)  | 4th Dept: 126 AD3d 1528 (Erie)                          | denied 2/26/16<br>(Abdus-Salaam,<br>J.)             |
| People v Smith<br>(Kenneth)  | 4th Dept: 121 AD3d 1568 (Monroe)                        | denied 2/16/16<br>(Rivera, J.)                      |
| People v Smith (Roni)        | 1st Dept: 132 AD3d 511 (NY)                             | granted 2/1/16<br>(Stein, J.)                       |
| People v Smith (Sentell)     | 1st Dept: 133 AD3d 548 (NY)                             | withdrawn<br>2/29/16<br>(Fahey, J.)                 |
| People v Sulaiman            | 2d Dept: 134 AD3d 860 (Nassau)                          | denied 2/25/16<br>(Fahey, J.)                       |
| People v Sulsona             | 2d Dept: 134 AD3d 861 (Queens)                          | denied 2/25/16<br>(Pigott, J.)                      |
| People v Swift               | App Div, 4th Dept: 2015 NY Slip Op<br>84775(U) (Cayuga) | dismissed 2/16/16<br>(Rivera, J.)                   |
| People v Tauzard             | 2d Dept: 132 AD3d 914 (Queens)                          | denied 2/23/16<br>(Rivera, J.)                      |
| People v Tavares             | 1st Dept: 134 AD3d 436 (Bronx)                          | denied 2/24/16<br>(Fahey, J.)                       |
| People v Taylor (Devon)      | 2d Dept: 133 AD3d 897 (Kings)                           | denied 2/24/16<br>(Fahey, J.)                       |
| People v Taylor (Kalila)     | 2d Dept: 133 AD3d 621 (Suffolk)                         | denied 2/23/16<br>(Rivera, J.)                      |
| People v Taylor (Paul)       | 3d Dept: 134 AD3d 1165 (Essex)                          | denied 2/25/16<br>(Pigott, J.)                      |
| People v Taylor<br>(Winfred) | 2d Dept: 134 AD3d 739 (Suffolk)                         | denied 2/19/16<br>(Stein, J.)                       |

## MEMORANDA

1151

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|--------------------------------|-------------------------------------------------------|-----------------------------------------|
| People v Tayo                  | 1st Dept: 133 AD3d 499 (Bronx)                        | denied 2/24/16<br>(Pigott, J.)          |
| People v Thomas<br>(George)    | 1st Dept: 134 AD3d 509 (NY)                           | denied 2/25/16<br>(Fahey, J.)           |
| People v Thomas (John)         | 1st Dept: 132 AD3d 423 (NY)                           | denied 2/23/16<br>(Rivera, J.)          |
| People v Thomas<br>(Orlando)   | 1st Dept: 133 AD3d 478 (Bronx)                        | denied 2/16/16<br>(Stein, J.)           |
| People v Thompson              | App Div, 2d Dept: 2015 NY Slip Op<br>90440(U) (Kings) | dismissed 2/25/16<br>(Fahey, J.)        |
| People v Turner                | 1st Dept: 126 AD3d 654 (NY)                           | denied 2/26/16<br>(Abdus-Salaam,<br>J.) |
| People v Valentin              | 1st Dept: 132 AD3d 499 (NY)                           | granted 2/23/16<br>(Fahey, J.)          |
| People v Vasquez               | 2d Dept: 131 AD3d 1076 (Queens)                       | denied 2/23/16<br>(Rivera, J.)          |
| People v Vaughn                | 1st Dept: 132 AD3d 456 (NY)                           | denied 2/1/16<br>(Pigott, J.)           |
| People v Velez                 | App Term, 1st Dept: 49 Misc 3d 141(A)<br>(NY)         | denied 2/23/16<br>(Rivera, J.)          |
| People v Viera                 | 2d Dept: 133 AD3d 622 (Kings)                         | denied 2/1/16<br>(Pigott, J.)           |
| People v Ward                  | 2d Dept: 121 AD3d 1026 (Queens)                       | denied 2/18/16<br>(Rivera, J.)          |
| People v Wesley                | 2d Dept: 134 AD3d 964 (Kings)                         | denied 2/29/16<br>(Pigott, J.)          |
| People v Wesley-Rosa           | 2d Dept: 134 AD3d 964 (Kings)                         | denied 2/29/16<br>(Pigott, J.)          |
| People v Williams<br>(Delvin)  | 1st Dept: 134 AD3d 439 (NY)                           | denied 2/25/16<br>(Pigott, J.)          |
| People v Williams<br>(Kaliek)  | 1st Dept: 134 AD3d 499 (NY)                           | denied 2/25/16<br>(Fahey, J.)           |
| People v Williams<br>(Kerron)  | 2d Dept: 134 AD3d 745 (Kings)                         | denied 2/24/16<br>(Pigott, J.)          |
| People v Williams<br>(Michael) | App Div, 4th Dept, 11/30/15 (Monroe)                  | dismissed 2/17/16<br>(Stein, J.)        |
| People v Williams<br>(Shawn)   | 4th Dept: 132 AD3d 1327 (Monroe)                      | denied 2/23/16<br>(Rivera, J.)          |
| People v Williams<br>(Taroy)   | 4th Dept: 132 AD3d 1291 (Monroe)                      | denied 2/23/16<br>(Rivera, J.)          |
| People v Williams<br>(Tatiana) | 1st Dept: 132 AD3d 608 (NY)                           | denied 2/23/16<br>(Rivera, J.)          |
| People v Williams<br>(Walter)  | 1st Dept: 132 AD3d 608 (NY)                           | denied 2/23/16<br>(Rivera, J.)          |
| People v Williams<br>(Willie)  | 2d Dept: 132 AD3d 785 (Queens)                        | denied 2/1/16<br>(Pigott, J.)           |
| People v Wojecich              | 1st Dept: 133 AD3d 557 (NY)                           | denied 2/25/16<br>(Pigott, J.)          |

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| People v Woodward    | 4th Dept: 126 AD3d 1401 (Oswego) | denied 2/26/16<br>(Abdus-Salaam, J.) |
| People v Yanez-Mejia | 2d Dept: 133 AD3d 801 (Nassau)   | denied 2/25/16<br>(Pigott, J.)       |

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

**Decisions of Appellate Division Justices \***

(February 1, 2016 through February 29, 2016)

|                  |                                     |                                |
|------------------|-------------------------------------|--------------------------------|
| People v Francis | 2d Dept: 132 AD3d 893 (Westchester) | granted 2/9/16<br>(Balkin, J.) |
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[48 NE3d 497, 28 NYS3d 355]

In the Matter of MING TUNG et al., Appellants, v CHINA BUDDHIST ASSOCIATION et al., Respondents.

Decided February 18, 2016

**SUMMARY**

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 13, 2014. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Geoffrey D. Wright, J.; op 2012 NY Slip Op 33698[U] [2012]), entered in a proceeding pursuant to CPLR article 78, which had granted the petition to the extent of invalidating respondent China Buddhist Association's May 2011 meeting and directed that another general meeting be held with petitioners included; (2) vacated the order; and (3) dismissed the petition. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as reversed by the decision and order of this Court, a disposition of the appeal properly made?"

Petitioners, excommunicated members of respondent China Buddhist Association, commenced a CPLR article 78 proceeding seeking a judgment directing respondent to hold an annual membership meeting, as required by respondent's bylaws, the appointment of a receiver to determine the names and addresses of all members of respondent eligible to vote, and a vote regarding respondent's future.

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\* Includes only applications that were granted.

The Appellate Division concluded that the issues raised were not secular in nature, but religious, and could not be resolved by the application of neutral principles of law.

*Matter of Ming Tung v China Buddhist Assn.*, 124 AD3d 13, affirmed.

#### HEADNOTE

**Religious Corporations and Associations — Judicial Review — Issues Incapable of Resolution by Application of Neutral Principles of Law**

In a CPLR article 78 proceeding brought by excommunicated members of respondent religious corporation seeking a judgment directing respondent to hold an annual membership meeting, as required by respondent's bylaws, the appointment of a receiver to determine the names and addresses of all members of respondent eligible to vote, and a vote regarding respondent's future, an order of the Appellate Division which reversed an order of the Supreme Court granting the petition to the extent of invalidating a certain general meeting held by respondent and directing that another general meeting be held with petitioners included, and which dismissed the petition, was affirmed for the reasons stated by the Appellate Division majority. The Appellate Division majority concluded that the issues raised were not secular in nature, but religious, and could not be resolved by the application of neutral principles of law.

#### APPEARANCES OF COUNSEL

*Alexander Palmer Kelly*, New York City, for appellants.

*Capell Barnett Matalon & Schoenfeld LLP*, New York City (*Joseph Milano* of counsel), for respondents.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order of the Appellate Division affirmed, without costs, for the reasons stated by Justice Judith J. Gische at the Appellate Division, First Department (124 AD3d 13 [2014]), and certified question not answered upon the ground that it is unnecessary.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

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[48 NE3d 497, 28 NYS3d 355]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY-  
MOND LEACH, Appellant.

Argued January 12, 2016; decided February 23, 2016

**SUMMARY**

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 5, 2014. The Appellate Division affirmed a judgment of the Orange County Court (Jeffrey G. Berry, J.), which had convicted defendant, upon his plea of guilty, of attempted grand larceny in the third degree.

*People v Leach*, 115 AD3d 677, affirmed.

**HEADNOTE**

**Crimes — Appeal — Preservation of Issue for Review — Voluntariness of Guilty Plea**

Defendant's challenge to the voluntariness of his guilty plea was not preserved for review by the Court of Appeals, regardless of the validity of his appeal waiver, and the narrow exception to the preservation requirement did not apply.

**APPEARANCES OF COUNSEL**

*Feldman and Feldman*, Uniondale (*Steven A. Feldman* of counsel), for appellant.

*David M. Hoover*, District Attorney, Middletown (*Elizabeth L. Schulz* and *Andrew R. Kass* of counsel), for respondent.

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Regardless of the validity of defendant's appeal waiver, his challenge to the voluntariness of his guilty plea is unpreserved for appellate review (*see People v Peque*, 22 NY3d 168, 182 [2013]). Contrary to defendant's contention, the narrow exception to the preservation requirement does not apply in this case (*see People v Lopez*, 71 NY2d 662, 666 [1988]).

RIVERA, J. (concurring). I concur in the result, but write separately to address the invalidity of defendant's postplea waiver, obtained at defendant's postplea, non-contemporaneous sentencing proceeding. The issue is preserved, and the propriety of these types of waivers is likely to evade our review,

when, as here, a defendant challenges the severity of a sentence in the Appellate Division, but completes the sentence prior to a decision from this Court. The fact that the Appellate Division previously rejected waivers obtained in the course of this same sentencing procedure, but found defendant's waiver valid in this case makes plain the confusion surrounding the possible effect of a court's postplea explanation of a defendant's appellate rights on the validity of the waiver.

A "waiver of the right to appeal is effective only so long as the record demonstrates that it was made knowingly, intelligently and voluntarily" (*People v Lopez*, 6 NY3d 248, 256 [2006]). "An appellate waiver meets this standard when a defendant has 'a full appreciation of the consequences' of such waiver" (*People v Bradshaw*, 18 NY3d 257, 264 [2011], quoting *People v Seaberg*, 74 NY2d 1, 11 [1989]). As the Court has made clear, "[t]he record must establish that the defendant understood that the right to appeal is separate and distinct from those rights automatically forfeited upon a plea of guilty—the right to remain silent, the right to confront one's accusers and the right to a jury trial" (*Lopez*, 6 NY3d at 256). Therefore, a waiver is ineffective where the court mischaracterizes the nature of the right to appeal (*People v Billingslea*, 6 NY3d 248, 257 [2006] [decided with *People v Lopez*]), commingles appellate rights with rights that survive a plea (*Lopez*, 6 NY3d at 256), and engages in a colloquy consisting of a one-word response to whether the defendant understood the conditions of the plea (*id.* at 257; *People v Ramos*, 7 NY3d 737 [2006]), or where defendant, notwithstanding a written waiver, "never orally confirmed that [defendant] grasped the concept of the appeal waiver and the nature of the right [defendant] was forgoing" (compare *Bradshaw*, 18 NY3d at 267, and *People v DeSimone*, 80 NY2d 273, 283 [1992], with *Ramos*, 7 NY3d 737).

Here, the record fails to establish defendant made a knowing, intelligent, and voluntary waiver of his appellate rights because during the plea colloquy the court made but two passing references to the waiver of the right to appeal, neither of which distinguished his appellate rights in a manner sufficient to establish his "full appreciation of the consequences" of relinquishing his right to appeal (*Bradshaw*, 18 NY3d at 264). After explaining the rights forfeited by the plea, the court informed defendant that the sentence agreed to was contingent upon defendant "keep[ing] promises to the Court and to the People," specifically that between the plea and sentencing dates, defendant not violate the law or get arrested, cooperate

with probation during the presentence investigation, and that he return as scheduled for sentencing. In the context of this explanation about the postplea requirements, the court told defendant “[y]ou must waive and give up your right to appeal.” The court then asked as a general matter whether the defendant understood the “plea promise,” to which defendant responded “[y]es.” After further colloquy, which confirmed defendant was pleading guilty to the charges and understood he was giving up his trial rights, the court asked if defendant had spoken with his attorney “about the facts of this case, your plea of guilty, the charge you’re pleading guilty to, *your waiver of right to appeal*, the possible sentence that could be imposed upon you, any legal defenses you have to the charges . . . .” (Emphasis added.) Defendant replied in the affirmative.

The court’s “fleeting references” to the right to appeal at the plea hearing, bundled with the postplea conditions imposed by the court and its questions regarding defendant’s discussions with counsel about all matters of importance to the case, were inadequate to ensure a reviewing court that “defendant comprehended the nature of the waiver of appellate rights” (*see Lopez*, 6 NY3d at 256; *Bradshaw*, 18 NY3d at 261 [the court “made fleeting references to defendant’s appeal waiver”]).

Nevertheless, the People argue that defendant’s waiver is knowing, intelligent, and voluntary because the court explained defendant’s right to appeal during the sentencing procedure. According to the record, at the sentencing hearing held a month after defendant pleaded guilty, after pronouncing sentence the court directed the court clerk to read defendant his right to appeal, and defendant signed a written waiver. Only then did the court proceed to explain defendant’s appellate rights and inquire as to whether he understood those rights. Contrary to the People’s position, under our law, a postplea colloquy at a sentencing hearing, conducted after defendant has considered the options presented and chosen to plead guilty based on an understanding of the avenues available to the defendant, cannot serve as record basis for establishing the validity of the waiver of the right to appeal.

“It is the trial court’s responsibility, ‘in the first instance,’ to determine ‘whether a particular [appellate] waiver satisfies these requirements’” (*Bradshaw*, 18 NY3d at 264, quoting *People v Callahan*, 80 NY2d 273, 280 [1992]). In order for a trial court’s inquiry to be meaningful, by logic and reason, it must be part of the colloquy in which a court engages prior to



accepting a defendant's plea (*id.* at 265). It would make little sense, and serve only to encourage the filing of a motion to vacate the plea on the ground that defendant did not appreciate the consequences of the waiver, if a court confirmed, after the fact, whether the defendant understood the nature of the rights relinquished. Thus, a court complies with its obligation to ensure that the waiver is knowing, intelligent, and voluntary when a court adequately explains to defendant the "separate and distinct" right to appeal (*Lopez*, 6 NY3d at 256), and "at least prior to the completion of the plea proceeding, [the court] . . . assure[s] itself that defendant adequately understood the right that [defendant] was forgoing" (*Bradshaw*, 18 NY3d at 265). Here, the court's explanation at sentencing came too late to satisfy the court's obligations. While the content of the court's advisement was correct, its timing deprived defendant of the right to know and consider all the terms of the plea bargain prior to his decision to plead guilty.

Notably, the Appellate Division, Second Department, in a recent line of cases has held invalid waivers made during this same type of sentencing proceeding (*People v Gil*, 109 AD3d 484, 484 [2d Dept 2013] [court did not explain the right to appeal "until the date the defendant was sentenced, more than a month after the defendant pleaded guilty, and only after the sentence was actually pronounced"]; *People v Finnegan*, 112 AD3d 847 [2d Dept 2013] [same]; see also *People v Ingram*, 118 AD3d 722 [2d Dept 2014] [the People conceded that the defendant's waiver of right to appeal was invalid], citing *Finnegan*, 112 AD3d 847, and *Gil*, 109 AD3d 484; *People v Crosby*, 131 AD3d 1179 [2d Dept 2015] [waiver invalid, and reviewed, on the merits, defendant's excessive sentence claim], citing *Finnegan*, 112 AD3d 847, and *Gil*, 109 AD3d 484; *People v Dunbar*, 134 AD3d 851 [2d Dept 2015] [waiver invalid], citing *Finnegan*, 112 AD3d 847, and *Gil*, 109 AD3d 484). That conclusion is a correct application of our case law. However, to the extent the Appellate Division's determination that defendant's waiver was valid may be based, not on the record made at the sentencing hearing, but on the plea proceeding colloquy, the court's conclusion was incorrect for the reasons I have stated.

Although the waiver was invalid, defendant's sole claim raised on appeal to this Court is, for the reasons stated by the majority, unpreserved. Therefore, the Appellate Division should be affirmed.

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Judge RIVERA concurs in result in a separate concurring opinion; Chief Judge DiFIORE and Judge GARCIA taking no part. Order affirmed, in a memorandum.

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## DIGEST-INDEX

### ABUSE OF PROCESS.

*See* PROCESS; TORTS.

### ACCOUNTS AND ACCOUNTING.

*See, also*, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

### ACTIONS.

*See, also*, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

### ADMINISTRATIVE LAW.

COLLATERAL ESTOPPEL.

1. Workers' Compensation Board's Finding as to Lack of Causal Relationship Did Not Preclude Subsequent Personal Injury Action.—In a Labor Law and common-law negligence action alleging that plaintiff was injured when he fell from a ladder while working on an addition to a home, defendant general contractor was not entitled to summary judgment dismissing the complaint as against him on the ground of collateral estoppel based on a prior workers' compensation proceeding in which the Workers' Compensation Board concluded that plaintiff lacked credibility and that no accident had occurred as alleged by him. The record was inadequate to determine, as a matter of law, whether the issue of the occurrence of an accident was addressed and decided in the workers' compensation proceeding. Therefore, defendant failed to meet his burden of establishing that the doctrine of collateral estoppel barred plaintiff's action against him. *Ridge v Gold*, 26 NY3d 1069.

### ADMINISTRATORS.

*See* EXECUTORS AND ADMINISTRATORS.

### AGENCY.

*See* BROKERS; INSURANCE; PRINCIPAL AND AGENT.

### ALIMONY.

*See* HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

### ANNULMENT OF MARRIAGE.

*See* MARRIAGE.

### APPEAL.

*See, also*, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Practical Impact on Defendant.—In a criminal prosecution wherein the trial court resentenced defendant to adjudicate him a second violent felony offender but reimposed its initial punishment, and the Appellate Division modified the sentence only to the extent of reducing the terms of imprisonment as a matter of discretion in the interest of justice and otherwise affirmed the sentence, defendant's appeal challenging the second violent felony offender adjudication was not moot notwithstanding that the sentence he received would be legal even if he was

**APPEAL—Cont'd**

sentenced as a second felony offender rather than a second violent felony offender. If defendant's second violent felony offender adjudication remained based on the lower courts' interpretation of the statutes, he could theoretically be adjudicated a persistent violent felony offender based on that prior adjudication should he quickly recidivate upon his release from his current incarceration. Thus, even though the trial court did not change the period of incarceration upon the second violent felony offender adjudication, a practical impact flowed therefrom. *People v Thompson*, 26 NY3d 678.

**2. Dismissal of Proceeding.**—In a proceeding seeking a preliminary injunction pending arbitration, an order of the Appellate Division, which reversed an order and judgment of the Supreme Court preliminarily enjoining respondents from implementing any termination or revocation of "Release Time" leave for the individual petitioners pending resolution of arbitration proceedings commenced by petitioner Patrolmen's Benevolent Association of the City of New York, Inc., vacated the judgment, denied the petition and dismissed the proceeding, was reversed, and the proceeding remitted to Supreme Court with directions to dismiss the proceeding upon the ground of mootness. *Matter of Patrolmen's Benevolent Assn. of the City of N.Y., Inc. v City of New York*, 26 NY3d 1044.

**3. Rent-Controlled Status of Apartment — Apartment Vacated by Tenant.**—Petitioner landlord's appeal from an order of the Appellate Division, which had reversed a judgment granting petitioner's application to annul a determination of respondent State Division of Housing and Community Renewal that respondent tenant's apartment was exempt from high-rent/high-income rent deregulation, was rendered moot by respondent tenant having vacated the rent-controlled apartment, pursuant to a stipulation of settlement with petitioner, and the exception to the mootness doctrine was not applicable. *Matter of RAM I LLC v New York State Div. of Hous. & Community Renewal*, 26 NY3d 1068.

**COURT OF APPEALS.**

**4. Matters Reviewable — Challenge to Resentence as Second Violent Felony Offender.**—In a criminal prosecution wherein the trial court resentenced defendant to adjudicate him a second violent felony offender but reimposed its initial punishment, and the Appellate Division modified the resentence only to the extent of reducing the terms of imprisonment as a matter of discretion in the interest of justice and otherwise affirmed the resentence, defendant's appeal challenging the second violent felony offender adjudication based on the lower courts' use of the resentencing date for his prior conviction, rather than the original sentencing date, as controlling for purposes of the sentencing statute's 10-year look-back period was reviewable by the Court of Appeals. The issue whether defendant was properly resentenced as a second violent felony offender turned on the interpretation of Penal Law §§ 70.04 and 60.01, which was a question of law (*see* CPL 470.35 [1]). *People v Thompson*, 26 NY3d 678.

**5. Matters Reviewable.**—Where petitioner challenged the validity and potential application of certain regulations of the Board of Parole addressing risks and needs assessments and related matters (*see* 9 NYCRR 8002.3 [a]) that the Board promulgated after its determination denying petitioner's request for parole release, none of petitioner's statutory and regulatory claims were reviewable by the Court of Appeals. The Board had not had an opportunity to consider petitioner's arguments, and given the impact that a determination of petitioner's claims would have in his and future cases, the more prudent course was to leave the propriety of the regulations to be raised in the first instance before the Board. *Matter of Linares v Evans*, 26 NY3d 1012.

**MATTERS REVIEWABLE.**

**6. Order Adverse to Appellant — Modified Resentence.**—The Court of Appeals did not lack jurisdiction under CPL 450.90 (1) to hear defendant's appeal challenging his adjudication as a second violent felony offender from an Appellate Division order which modified the trial court's resentence only to the extent of reducing the terms of imprisonment as a matter of discretion in the interest of justice and

**APPEAL—Cont'd**

otherwise affirmed the resentence. CPL 450.90 (1) provides that “[a]n order of an intermediate appellate court is adverse to the party who was the appellant in such court when it affirms the judgment, sentence or order appealed from . . . . An appellate court order which modifies a judgment or order appealed from is partially adverse to each party.” Here, the Appellate Division order modified the resentence, but otherwise affirmed the resentence, including the adjudication of defendant as a second violent felony offender. That affirmance created adversity. *People v Thompson*, 26 NY3d 678.

**7. Issue Not Preserved.**—The Court of Appeals lacked power to review either the Appellate Division’s exercise of its discretion to reach the issue of the timeliness under CPLR 3212 (a) of defendants’ summary judgment motion, or the issue itself, as the issue was not preserved in Supreme Court. *Bennett v St. John’s Home*, 26 NY3d 1033.

**PRESERVATION OF ISSUE FOR REVIEW.**

**8. Challenge to Waiver of Appearance at Sex Offender Risk Level Classification Hearing.**—Defendant failed to preserve the challenge to his waiver of appearance at a hearing to determine his risk level classification under the Sex Offender Registration Act. At the hearing, defense counsel provided the court with a waiver of appearance executed by defendant, agreed to proceed in defendant’s absence, and did not raise any objection to the validity of the waiver. Moreover, this was not one of the rare cases in which preservation is not required. *People v Poleun*, 26 NY3d 973.

**REMITTITUR.**

**9.** In a holdover proceeding, the Appellate Division order, which, upon remittitur from the Court of Appeals, dismissed the proceeding as moot, was affirmed. *Branic Intl. Realty Corp. v Pitt*, 26 NY3d 937.

**ARBITRATION.**

*See, also*, INSURANCE.

**FEDERAL ARBITRATION ACT.**

**1. Agreements Involving Interstate Commerce — Commercial Real Estate.**—The Federal Arbitration Act (FAA), which provides that an arbitration provision in “a contract evidencing a transaction involving commerce . . . shall be valid, irrevocable, and enforceable” (9 USC § 2), applied to the three agreements underlying plaintiffs’ malpractice action—each of which contained an arbitration provision—as the agreements concerned ownership of and investment in commercial properties. The term “involving commerce” was meant to be the functional equivalent of “affecting commerce,” which typically signals Congress’s intent to invoke the full extent of its powers under the Commerce Clause. The ultimate purpose of the agreements was to authorize participation in the business of commercial real estate, and that was what the entities did. In determining whether the FAA applies, the emphasis is meant to be on whether the particular economic activity at issue affects interstate commerce. *Cusimano v Schnurr*, 26 NY3d 391.

**MATTERS ARBITRABLE.**

**2. Enforceability of Workers’ Compensation Insurance Payment Agreements and Arbitration Clauses Contained Therein.**—The enforceability of workers’ compensation insurance Payment Agreements entered into between appellant insurer and three California-based employers, and the arbitration clauses contained therein, were required to be submitted to arbitration. Attacks on the validity of a contract as a whole, as distinct from attacks on the validity of the arbitration clause itself, are to be resolved by the arbitrator in the first instance, not by a federal or state court. Where the parties, through delegation clauses, agree to arbitrate gateway questions of arbitrability, such clauses are enforceable where there is clear and unmistakable evidence that the parties intended to arbitrate arbitrability issues. Courts treat an arbitration clause as severable from the contract in which it appears and enforce it according to its terms unless the party resisting arbitration

**ARBITRATION—Cont'd**

specifically challenges the enforceability of the arbitration clause itself. This rule of severability extends to delegation clauses, which are severable from larger arbitration provisions. Thus, where a contract contains a valid delegation to the arbitrator of the power to determine arbitrability, such clause will be enforced absent a specific challenge to the delegation clause. Here, the Payment Agreements contained arbitration clauses requiring that disputes arising out of the Agreements, if not resolved internally, be submitted to arbitration before a panel of arbitrators with experience in the insurance industry. The parties agreed that the arbitrators would “have exclusive jurisdiction over the entire matter in dispute, including any question as to its arbitrability.” The crux of the insureds’ challenge to the arbitration provisions was that the insurer’s failure to file the Payment Agreements in accordance with the California Insurance Code rendered unenforceable the Payment Agreements and, only by extension, the arbitration provisions. The insureds did not specifically direct any challenge to the delegation clauses, which were valid as the parties clearly and unmistakably agreed to arbitrate arbitrability. *Matter of Monarch Consulting, Inc. v National Union Fire Ins. Co. of Pittsburgh, PA*, 26 NY3d 659.

**WAIVER OF RIGHT TO ARBITRATE.**

**3. Participation in Litigation — Prejudice.**—Plaintiffs waived the right to arbitrate their claims arising under three commercial agreements governed by the Federal Arbitration Act, since plaintiffs did not move to compel arbitration until after they had vigorously pursued their litigation strategy for approximately one year, and defendants suffered prejudice as a result. A litigant may not compel arbitration when its use of the courts is clearly inconsistent with its later claim that the parties were obligated to settle their differences by arbitration. Generally, when addressing waiver, courts should consider the amount of litigation that has occurred, the length of time between the start of the litigation and the arbitration request, and whether prejudice has been established. The desire for arbitration only arose after Supreme Court made plain its view that plaintiffs’ claims were vexatious and largely time-barred. Additionally, plaintiffs had expressly represented to Supreme Court that they did not want to go to arbitration. Plaintiffs’ behavior was indicative of blatant forum-shopping and, under such circumstances, both substantive prejudice and prejudice due to excessive cost and time delay had been established. *Cusimano v Schnurr*, 26 NY3d 391.

**ARTICLE 78 PROCEEDING.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**ATTORNEY AND CLIENT.****MALPRACTICE.**

**1. Commercial Mortgage-Backed Securities — Advising Client Regarding Securitization Trust.**—Defendant law firm was entitled to summary judgment dismissing plaintiffs’ legal malpractice cause of action alleging that defendant failed to provide appropriate legal advice and perform necessary due diligence concerning whether a series of plaintiffs’ securitized commercial mortgage loans qualified as real estate mortgage investment conduit (REMIC) trusts under federal tax regulations, where defendant demonstrated that it exercised the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession in advising plaintiffs how to satisfy the REMIC 80% test and relying on plaintiffs’ representations in issuing an opinion that the securitization was REMIC-qualified. The testimony from several of plaintiffs’ employees that they did not know how to apply the REMIC 80% test showed that some employees did not understand REMIC principles, not that defendant failed to provide appropriate legal advice or refused to answer plaintiffs’ questions about REMIC qualification. Moreover, defendant submitted evidence that it was plaintiffs’ responsibility to review the securitization appraisals, that defendant advised plaintiffs that it would not independently verify the accuracy of plaintiffs’ representations and warranties unless asked to do so, and that plaintiffs did not make any such request.

**ATTORNEY AND CLIENT—Cont'd**

The record made clear that the parties understood that plaintiffs, pursuant to their own directives, were responsible for securing the appraisals; reviewing whether, based on those appraisals, the loans complied with the 80% test; and confirming the veracity and accuracy of plaintiffs' warranties as set forth in the mortgage loan purchase and sale agreement. Rather than establish that triable issues of fact existed, plaintiffs' evidence showed that the parties—sophisticated business entities in the securitization field—held similar views that the appraisal provided sufficient confidence that the property was REMIC-qualified. *Nomura Asset Capital Corp. v Cadwalader, Wickersham & Taft LLP*, 26 NY3d 40.

**BANKS AND BANKING.**

*See, also*, **BILLS, NOTES AND CHECKS.**

**BILLS, NOTES AND CHECKS.**

*See, also*, **BANKS AND BANKING.**

**CERTIORARI.**

*See* **PROCEEDING AGAINST BODY OR OFFICER.**

**CHIROPRACTORS.**

*See* **LICENSES; PHYSICIANS AND SURGEONS.**

**CHURCHES.**

*See* **RELIGIOUS CORPORATIONS AND ASSOCIATIONS.**

**CITIES.**

*See* **MUNICIPAL CORPORATIONS.**

**CIVIL RIGHTS.**

**FEDERAL CIVIL RIGHTS CLAIM.**

**1. Municipal Defendants — Governmental Policy or Custom Causing Violation of Constitutional Rights.**—In an action arising out of plaintiff's arrest for murder and the subsequent dismissal of the criminal proceeding, the lower courts properly granted defendant municipality and its police department summary judgment dismissing plaintiff's federal civil rights claims under 42 USC § 1983. A plaintiff can proceed to trial against governmental defendants on claims under 42 USC § 1983 only if the record discloses a triable issue of fact as to whether an official policy or custom of the government itself caused a violation of the plaintiff's constitutional rights. The evidence did not support an inference that defendants had a widespread custom of arresting people in violation of their constitutional rights, nor was there any proof that such a policy caused the allegedly wrongful arrest and prosecution of plaintiff. The police department's practice of incentivizing arrests via a multifactor evaluation did not in itself amount to a practice of promoting arrests without probable cause. Moreover, even if plaintiff had established the existence of a municipal practice of promoting arrests without probable cause in homicide cases, no facts were alleged establishing that any particular policy in effect at the time of plaintiff's arrest was the cause of the detectives' decision to arrest her. *De Lourdes Torres v Jones*, 26 NY3d 742.

**CIVIL SERVICE.**

*See, also*, **ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS**, and other specific titles.

**CLUBS.**

*See* **ASSOCIATIONS.**

**CONDEMNATION.**

*See* **EMINENT DOMAIN.**



**CONFLICT OF LAWS.****LAW GOVERNING CONTRACT ACTIONS.**

**1. New York Choice-of-Law Provision — New York Substantive Law Applies.—** The rule that where parties include a New York choice-of-law clause in a contract, such a provision demonstrates the parties' intent that courts not conduct a conflict-of-laws analysis (*see IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310, 312 [2012]), extends to contracts that do not fall under General Obligations Law § 5-1401, and obviates the application of both common-law conflict-of-laws principles and statutory choice-of-law directives, unless the parties expressly indicate otherwise. Accordingly, the New York law to be applied in an action to dispose of proceeds from retirement and death benefit plans providing that they "shall be governed by and construed in accordance with the laws of . . . New York" should not include EPTL 3-5.1 (b) (2), which provides that "[t]he intrinsic validity, effect, revocation or alteration of a testamentary disposition of personal property, and the manner in which such property devolves when not disposed of by will, are determined by the law of the jurisdiction in which the decedent was domiciled at death." The fact that the legislature may have made a substantive decision to codify the rule, or had a substantive public policy reason for placing the former common-law rule within a statute, does not elevate or transform this conflict-of-laws directive into a statement of substantive law. Logic dictates that, by including a choice-of-law provision in their contracts, the parties intended for only New York substantive law to apply. Applying New York's statutory conflict-of-laws principles, even if doing so results in the application of the substantive law of another state, would contravene the primary purpose of including a choice-of-law provision in a contract. Such an interpretation would also interfere with, and ignore, the parties' intent, contrary to the basic tenets of contract interpretation. *Ministers & Missionaries Benefit Bd. v Snow*, 26 NY3d 466.

**CONSTITUTIONAL LAW.****EX POST FACTO LAW.**

**1. New York False Claims Act.—**Retroactive application of the New York False Claims Act (FCA) (State Finance Law § 187 *et seq.*) to impose damages and civil penalties against defendant wireless telecommunications service provider for "knowingly mak[ing] . . . a false record or statement material to" its obligation to pay sales tax with respect to the portion of its flat-rate monthly charge arbitrarily allocated to interstate and international calls (State Finance Law § 189 [1] [g]) was not barred by the Ex Post Facto Clause of the United States Constitution (US Const, art I, § 10). The penalty scheme does not impose an affirmative disability or restraint, and monetary penalties like those imposed by the FCA have not historically been viewed as punishment. Also, the FCA does not regulate conduct that was already a crime, and the penalty scheme may be rationally connected to the nonpunitive purposes of allowing the government to be made whole. Finally, given the compensatory, nonpunitive aims of the statute, the penalties are not unduly excessive. *People v Sprint Nextel Corp.*, 26 NY3d 98.

**CONTEMPT.****CIVIL CONTEMPT.**

**1. Effect of Party's Invocation of Right against Self-Incrimination.—**In a matrimonial action in which defendant was held in civil contempt for failing to comply with an order requiring him to deposit in escrow the proceeds of the sale of real property that was the subject of a prior equitable distribution determination in favor of plaintiff, Supreme Court did not violate defendant's constitutional rights in drawing a negative inference from his invocation at the contempt hearing of his Fifth Amendment right against self-incrimination with respect to questions regarding the location of the proceeds, where defendant failed to request to bifurcate the hearing so plaintiff's criminal contempt allegations would be considered first. A negative inference may be drawn in the civil context when a party invokes the right against self-incrimination. Defendant's invocation of the



**CONTEMPT—Cont'd**

privilege did not relieve him of his burden to present adequate evidence of his financial inability to comply with the order so as to avoid civil contempt liability. Moreover, because defendant failed to request to bifurcate, he could not complain that Supreme Court erred in drawing negative inferences specifically allowed by the law. *El-Dehdan v El-Dehdan*, 26 NY3d 19.

2. Lawful Court Order.—In a matrimonial action, plaintiff satisfied her burden in support of her motion for civil contempt by establishing that defendant violated a lawful, clear mandate of the court requiring defendant to deposit in escrow the proceeds of the sale of real property that was the subject of a prior equitable distribution determination in favor of plaintiff, of which defendant had knowledge, and that such violation resulted in prejudice to plaintiff's rights. Defendant's counsel stipulated that defendant was previously served with the order and admitted that defendant had not complied. Additionally, defendant's conduct denied plaintiff equitable distribution in accordance with the determination awarding her title to the real property. The unambiguous directive in the order, describing the property and the exact amount of the proceeds, and directing defendant to immediately deposit those funds with counsel, left no doubt as to its requirements and time frame, and, therefore, constituted a lawful order of the court, clearly expressing an unequivocal mandate that was in effect. Plaintiff was not required to establish that defendant wilfully disobeyed the order, as wilfulness is not an element of civil contempt. Rather, civil contempt is established, regardless of the contemnor's motive, when disobedience of the court's order defeats, impairs, impedes, or prejudices the rights or remedies of a party. Moreover, defendant failed to proffer evidence of his inability to pay. *El-Dehdan v El-Dehdan*, 26 NY3d 19.

**CONTRACTS.**

*See, also*, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

**COUNTIES.**

*See, also*, MUNICIPAL CORPORATIONS.

**COURT OF CLAIMS.**

*See* STATE.

**CRIMES.**

*See, also*, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

**ACCUSATORY INSTRUMENT.**

1. Waiver of Right to Prosecution by Information.—Defendant did not impliedly waive his right to prosecution by information when his counsel, outside defendant's presence, replied "Yes" in response to the court's question during an appearance on an unrelated matter of whether counsel waived "the reading of the rights and charges, but not the rights thereunder" for "all [of her] cases before the court" that day. A waiver of the mandated reading of the right does not by itself constitute a waiver of the procedural right to be tried on information. However, waiver and consent may be implied if the circumstances compel the conclusion that the defendant, competently represented by counsel, acquiesced in the prosecution of the charge against him or her on a misdemeanor complaint. Waiver of the right must be knowing and intelligent. Counsel's statement in open court that she waived only the reading of the rights, but not "the rights thereunder" could not serve as a waiver of defendant's procedural right to be tried on information, as it specifically preserved defendant's right to prosecution by information. Regardless, nothing in the record indicated that in the wake of counsel's statement defendant acted af-

**CRIMES—Cont'd**

firmatively to waive his right, or that he acquiesced in the prosecution on a misdemeanor complaint. Moreover, several days after arraignment the People filed superseding instruments and supporting depositions. Accordingly, by all appearances, defendant was prosecuted by information. *People v Hatton*, 26 NY3d 364.

**APPEAL.**

**2. Preservation of Issue for Review — Admission of Proof of Prior Bad Acts.**—In the prosecution of defendant for offenses arising from an incident in which he fired multiple gunshots at a group of men who were chasing and attempting to hit his friend, killing one person and injuring two others, wherein defendant pursued an extreme emotional disturbance defense claiming that he suffered from post-traumatic stress disorder due to an altercation in which he was stabbed eight times during a fight with two individuals, defendant's challenge to the admissibility of testimony concerning his assault of a restaurant worker at a time prior to when he was stabbed was unpreserved or waived at trial. The trial court offered to strike the testimony of the officer who arrested defendant for the assault after the testimony revealed that the officer lacked personal knowledge of the events preceding the physical altercation. However, defense counsel chose, instead, to cross-examine the officer and never moved for a mistrial on the ground that the prejudice caused by the evidence was incurable. *People v Israel*, 26 NY3d 236.

**3. Matters Reviewable — Challenge to Sufficiency of Plea Allocation — Waiver of Constitutional Rights.**—The preservation requirement applies to a challenge to the validity of a guilty plea, whether based on the court's failure to mention the constitutional rights waived by the defendant in entering the plea—the right to a trial by jury, the right to confront one's accusers and the privilege against self-incrimination—or some other alleged defect in the allocution, depending on the particular circumstances of the case. Though a defendant generally must move to withdraw a guilty plea or file a motion to vacate the judgment of conviction in order to preserve a claim that the plea is invalid, a narrow exception to the preservation requirement exists where the particular circumstances of a case reveal that the defendant had no actual or practical ability to object to an alleged error in the taking of the plea that was clear from the face of the record. Accordingly, in three separate prosecutions where defendants faced a practical inability to move to withdraw their pleas, their claims that the trial courts failed to mention the constitutional rights they were waiving were reviewable on direct appeal despite the fact that none of them moved to withdraw his plea or vacate the judgment of conviction. *People v Conceicao*, 26 NY3d 375.

**4. Extension of Time for Taking Appeal — Coram Nobis Relief Beyond One-Year Statutory Grace Period.**—Defendants' applications in separate prosecutions for writs of error coram nobis seeking leave to file late notices of appeal beyond the one-year grace period provided in CPL 460.30 were correctly denied where defendants failed to show that their attorneys were unconstitutionally ineffective for neglecting to advise them of their right to appeal from their convictions entered upon guilty pleas. Though an appellate court is not categorically barred by the time limit imposed in CPL 460.30 from considering a coram nobis application to pursue an untimely appeal where defense counsel has failed to comply with a timely request to file a notice of appeal and the defendant demonstrates that the omission could not reasonably have been discovered within the one-year statutory grace period, granting such relief to defendants here would broaden the rule to apply to any case where a notice of appeal had not been filed within one year and 30 days of conviction, thereby abrogating CPL 460.30. Significantly, neither defendant claimed that he requested that his attorney file a notice of appeal and that his attorney failed to comply with that request, and the only evidence proffered in support of defendants' contention that they were not apprised of their appellate rights was self-serving affidavits. The records as a whole revealed that defendants knew about their right to appeal. Nor did defendants make any showing that they took steps toward discovering the omission or explain why years passed before they sought coram nobis relief. The records supported the conclusion that defendants had no intention of appealing, and their desire to quickly dispose of the matters at

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the time of their guilty pleas was consistent with their highly favorable pleas. *People v Rosario*, 26 NY3d 597.

**5. Preservation of Issue for Review — Challenge to Legality of Second Felony Offender Determination.**—In a criminal prosecution in which defendant agreed to a plea deal which included treating him as a second felony offender based on a prior out-of-state conviction, defendant failed to preserve his argument that the prior conviction was not equivalent to any New York felony on his direct appeal from the judgment of conviction. Defendant failed to argue at or before sentencing that the out-of-state conviction could not qualify as a predicate felony. *People v Jurgins*, 26 NY3d 607.

**6. Preservation of Issue for Review — Challenge to Legality of Second Felony Offender Determination.**—In a criminal prosecution in which defendant agreed to a plea deal which included treating him as a second felony offender based on a prior out-of-state conviction, defendant's argument that the prior conviction was not equivalent to any New York felony was preserved for review inasmuch as it was raised in his CPL 440.20 motion to set aside his sentence. A CPL 440.20 motion is the proper vehicle for raising a challenge to a sentence as unauthorized, illegally imposed or otherwise invalid as a matter of law, and a determination of second felony offender status is an aspect of the sentence. Raising the predicate felony sentencing issue in a CPL 440.20 motion serves the goals and purposes of the preservation rule by permitting the parties to present their arguments on the issue in the trial court, creating a record for appellate review, and allowing the trial court the first opportunity to correct any error. *People v Jurgins*, 26 NY3d 607.

**7. Appellate Division Review Power — Reliance on Record to Discern Predicate for Trial Court's Evidentiary Ruling.**—The Appellate Division did not exceed its authority under CPL 470.15 (1) in relying on the trial court's proffer colloquy with counsel to understand the context of the court's ruling admitting rebuttal testimony intended to establish that a defense witness lied and had a motive to fabricate. CPL 470.15 (1) is a legislative restriction on the Appellate Division's power to review issues either decided in an appellant's favor, or not ruled upon, by the trial court. Thus, the statute bars the Appellate Division from affirming a judgment, sentence or order on a ground not decided adversely to the appellant by the trial court. The trial court determined that testimony in contravention of the defense witness's statement that she was defendant's friend was admissible as "proper rebuttal." Defendant's challenge to that ruling required the Appellate Division to consider whether the People's articulated purpose—to establish the lack of a friendship relationship—was permissible given the defense witness's testimony. Thus, the Appellate Division had to determine whether the purported lie had a particular meaning given the defense witness's testimony on direct and cross-examination. Where a trial court does not identify the predicate for its ruling, the Appellate Division acts appropriately in considering the import of the trial judge's stated reasoning. Unlike the case where the Appellate Division renders a decision on grounds explicitly different from those of the trial court, or on grounds that were clearly resolved in a defendant's favor, the Appellate Division here affirmed the evidentiary ruling on the ground relied on by the trial court, namely to establish the defense witness lied that she and defendant were merely friends, as well as the unspoken, record-supported inferences that could be drawn from that testimony. *People v Nicholson*, 26 NY3d 813.

**8. Preservation of Issue for Review — Testimony Regarding Prior Bad Acts — No Request for Limiting Instruction.**—Defendant's claim that the trial court in his sexual abuse prosecution committed reversible error by failing to provide a limiting instruction to the jury regarding evidence of his prior violent actions, which was relevant to explain the victim's delayed disclosure of the abuse and was limited to her personal observations and experiences, was unpreserved for review because defendant failed to make a specific request for such an instruction. Where the trial court reserves decision on a defendant's motion to dismiss, the preservation rules do not bar review of a defendant's claim. Here, the court did not admit the testimony contingent on its instruction to the jury, nor did the court otherwise

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state at any point that it would give a limiting instruction. Instead, the Judge ruled that he was allowing the victim's testimony on the prior bad acts to explain her delayed disclosure, and "if necessary" he could provide an appropriate limiting instruction. Since counsel never asked for such instruction, there was no request for the trial court to reserve judgment on, no claim of trial error for the court to review, and no opportunity for the court to grant the relief sought. *People v Nicholson*, 26 NY3d 813.

**9. Preservation of Issue for Review — Trial Court's Handling of Substantive Jury Notes.**—An order of the Appellate Division which had reversed, on the law, a judgment convicting defendant of various crimes, based on Supreme Court's handling of three jury notes sent during deliberations, was reversed and the case remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court, for reasons stated in *People v Nealon* (26 NY3d 152 [2015]): where counsel has meaningful notice of a substantive jury note because the court has read the precise content of the note into the record in the presence of counsel, defendant, and the jury, the court's failure to discuss the note with counsel before recalling the jury is not a mode of proceedings error. *People v Sydoriak*, 26 NY3d 1015.

**10. Preservation of Issue for Review — Voluntariness of Guilty Plea.**—Defendant's challenge to the voluntariness of his guilty plea was not preserved for review by the Court of Appeals, regardless of the validity of his appeal waiver, and the narrow exception to the preservation requirement did not apply. *People v Leach*, 26 NY3d 1153.

**ARREST.**

**11. Arraignment without Delay — Applicability of Statutory Arraignment Requirement.**—The requirement of CPL 120.90 (1) that, upon arresting a defendant for any offense pursuant to an arrest warrant, a police officer must without unnecessary delay bring the defendant before the local criminal court in which the warrant is returnable for arraignment does not, by the statute's plain terms, apply to a defendant who has not yet been arrested on the warrant. Thus, in a consolidated prosecution arising out of three different burglaries, the People were not subject to the statutory arraignment requirement relating to the second burglary where defendant, who was already in custody at the time a warrant issued for his arrest on the second burglary, was not arrested thereon. Only police officers may execute an arrest warrant (*see* CPL 120.10 [1]), and correction officers are peace officers, not police officers (*see* CPL 1.20 [33]; 2.10 [25]). Even accepting that correction officers informed defendant of his arrest and attempted to arrest him, they could not have legally done so. *People v Small*, 26 NY3d 253.

**12. Arraignment without Delay — Reasonableness of Prearrest Delay.**—In a consolidated prosecution arising out of three different burglaries, it could not be said that a prearrest delay relating to the second burglary was unreasonable under the circumstances where defendant, who was already in custody at the time a warrant issued for his arrest on the second burglary, was not arraigned thereon over a weekend. The People did not violate the requirement of CPL 120.90 (1) that the defendant be arraigned without "unnecessary delay" by failing to arraign him between Friday and Monday. No specific time span is universally considered reasonable or per se unreasonable in bringing a defendant before the local criminal court. Moreover, because defendant was already detained on another charge, and his arrest on the second burglary was authorized by a warrant, any prearrest delay did not implicate his constitutional rights. Defendant would have been in custody over the weekend regardless of whether he was arraigned on the second burglary as he was scheduled to appear in court on Monday for a grand jury proceeding on the third burglary. *People v Small*, 26 NY3d 253.

**COLLATERAL ESTOPPEL.**

**13. Evidence of Defendant's Use of Razor Blade — Prior Acquittal on First-Degree Robbery Charges.**—At defendant's second trial, in which he was tried only for second-degree burglary after having been acquitted of first-degree burglary

**CRIMES—Cont'd**

charges involving the use or threatened use of a dangerous instrument at his first trial, the doctrine of collateral estoppel did not apply to bar the People from introducing evidence that defendant threatened one of the burglary victims with a razor blade. The doctrine of collateral estoppel applies in criminal prosecutions to bar relitigation of issues resolved in a defendant's favor at an earlier trial. However, the rigid application of collateral estoppel sometimes gives way to society's interest in ensuring the correctness of criminal prosecutions. If it becomes apparent that collateral estoppel cannot practicably be followed if a necessary witness is to give truthful testimony, then the doctrine should not be applied. Here, the practical difficulties of applying collateral estoppel outweighed the otherwise sound reasons for preventing repetitive litigation. The victims would have had to materially alter their testimony and mislead the jury in order to omit reference to the razor blade. If not permitted to mention the razor blade, the victims would have had to state that defendant pushed them into their apartment and threatened to hurt one of the victims simply by grabbing her from behind, without a weapon. That victim would not have been able to explain how defendant threatened her or what he threatened to do. That the victim did not tell the 911 operator about the razor blade did not mean she could omit it from her testimony as the 911 call was a hurried and frightened description of the emergency and, at the time of the call, defendant was not wielding a weapon because he had apparently been restrained by the other victim and his nephew. *People v Ortiz*, 26 NY3d 430.

**CONFESSION.**

**14. Voluntariness of Confession — Prearrest Delay.**—In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, a compelling case existed that the police were intentionally dilatory in delaying defendant's arraignment by more than 28 hours in violation of CPL 140.20 (1), but it could not be said, based on the totality of the circumstances and as a matter of law, that his confession was involuntary. Nor was the record devoid of support for the Appellate Division's determination of the underlying factual questions regarding defendant's detainment and interrogation in favor of upholding the hearing court's denial of his suppression motion. As there is no per se "ongoing investigation" exception to the clear statutory mandate that a person subject to a warrantless arrest be arraigned without unnecessary delay, delay for investigatory purposes is one factor to consider in assessing the voluntariness of a confession. Here, given the inordinate length of time between defendant's arrest and arraignment and the unsupported claims of an investigatory need to continue the questioning following his arrest, the record lacked support for a finding that the delay was necessary. Nevertheless, defendant was not subjected to the type of deprivations and psychological pressure characteristic of cases where a coercive environment impacted the voluntariness of a confession. Though defendant spent most of the time in a windowless room, his basic human needs were provided for; the interrogations were intermittent with breaks; and he was informed of his rights early during the interrogation process. *People v Jin Cheng Lin*, 26 NY3d 701.

**15. Voluntariness of Confession — Understanding of *Miranda* Rights.**—In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, there was record support for the lower courts' determinations that defendant, while not totally fluent in English, understood the import of his *Miranda* rights, provided only in English, and knowingly waived them, and the fact that the opposite conclusion was just as plausible did not provide a basis for concluding that the lower courts erred as a matter of law. Defendant's confession thus could not be deemed involuntary on that ground. The detectives who interrogated defendant testified that they spoke to him in English and he responded in kind, that he had no difficulty communicating in English and that he never "articulated an inability to comprehend the nature or substance of what was being said." One of the detectives testified that he read defendant his rights in English from a preprinted *Miranda*



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warning sheet and that defendant did not request clarification or express any misunderstanding of the rights. Moreover, some of defendant's statements were written by his own hand in English, albeit with not insignificant grammatical errors. Finally, the People presented evidence that defendant went to school in the United States for seven years, that during a prior arrest on an unrelated matter he was provided *Miranda* warnings in both English and Cantonese and that he spoke English with an intake agent after his arraignment and with a correction officer during his subsequent detention. *People v Jin Cheng Lin*, 26 NY3d 701.

**CONTROLLED SUBSTANCES.**

**16. Drug Factory Presumption of Knowing Possession.**—The trial court in defendant's prosecution for criminally possessing cocaine properly granted the People's request at defendant's nonjury trial that it consider the drug factory presumption contained in Penal Law § 220.25 (2), where the evidence of packaged and loose drugs, paraphernalia and a razor blade in plain view was sufficient to establish that drugs were being "package[d] or otherwise prepare[d] for sale," permitting the conclusion that defendant, who was in close proximity to the drugs, knowingly possessed them. The presumption was intended to address the issue of proof of knowing possession by those who were supervising or participating in the preparation of drugs for resale but who did not have personal physical possession of the drugs when the police lawfully entered the premises. A specific intent on the part of the defendant to "unlawfully mix, compound, package or otherwise prepare for sale" a controlled substance need not be shown; all that is required is that the "circumstances evinc[e]" such an intent (Penal Law § 220.25 [2]). When police entered the apartment of defendant's former girlfriend to execute a search warrant, defendant was observed running to the bathroom from the kitchen, where packaged and loose cocaine, baggies, and a razor blade were found in open view directly across from the entrance door. Defendant's former girlfriend admitted that the items were in plain view, and that she was in the process of "moving" the cocaine that she was "[p]robably" going to sell. While there was not a vast quantity of cocaine found, the evidence presented at trial supported an inference of more than mere intent to use or sell. *People v Hogan*, 26 NY3d 779.

**17. Criminal Possession of Marihuana — Sufficiency of Accusatory Instrument — "Public Place" Element.**—The accusatory instrument charging defendant with criminal possession of marihuana in the fifth degree failed to allege sufficient facts to establish the "public place" element of Penal Law § 221.10 (1). Since defendant waived prosecution by information, the sufficiency of the accusatory instrument was assessed under the standard applicable to a misdemeanor complaint. Under that standard, the complaint must allege "facts of an evidentiary character supporting or tending to support the charges" (CPL 100.15 [3]), and the factual allegations must "provide reasonable cause to believe that the defendant committed the offense charged" (CPL 100.40 [4] [b]). Given the absence of factual allegations describing a public place within the definition of Penal Law § 240.00 (1) where defendant was located when he was observed holding a bag of marihuana, and the accusatory instrument's reliance otherwise on conclusory statements that did no more than track the language of Penal Law § 221.10 (1), the complaint failed to meet the reasonable cause requirement and warranted dismissal. *People v Afilal*, 26 NY3d 1050.

**18. Criminal Possession of Controlled Substance — Sufficiency of Information.**—The information charging defendant with criminal possession of a controlled substance in the seventh degree, which described the circumstances surrounding defendant's possession of alleged drug residue, the appearance of the residue, and the officer's experience in identifying controlled substances, was facially sufficient. To meet the jurisdictional standard for facial sufficiency, a misdemeanor complaint need only set forth facts that establish reasonable cause to believe that the defendant committed the charged offense. In addition to satisfying the reasonable cause requirement, an information must also set forth nonhearsay allegations which, if true, establish every element of the offense charged and the defendant's commission thereof. Here, the information contained adequate allegations that the officer

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had the requisite training and experience to recognize the substance in defendant's possession as a controlled substance and that the officer reached his conclusion about the nature of the substance based on its appearance and placement within a favored apparatus of drug users, a glass pipe. That the substance was a burnt residue did not dictate a different result, since an information's description of the characteristics of a substance combined with its account of an officer's training in identifying such substances, the packaging of such substance and the presence of drug paraphernalia, can support the inference that the officer properly recognized the substance as a controlled substance. *People v Smalls*, 26 NY3d 1064.

**CRIMINAL TRESPASS.**

**19. Lobby of Public Housing Building — Facial Sufficiency of Information Charging Second-Degree Criminal Trespass.**—The misdemeanor information charging defendant with criminal trespass in the second degree (Penal Law § 140.15 [1]) based on his presence in the lobby of a public housing building was facially sufficient. The information sufficiently alleged that defendant knowingly entered and remained unlawfully in a dwelling, stating that a police officer observed him in the lobby of an apartment building, beyond the vestibule and a posted “No Trespassing” sign. Moreover, defendant admitted he did not reside at the building and could not identify a resident who had invited him onto the premises. Those allegations established every element of second-degree criminal trespass and provided reasonable cause to believe defendant had committed that offense. *People v Barnes*, 26 NY3d 986.

**20. Lobby of Public Housing Building — Second-Degree Criminal Trespass.**—Defendant, who was observed in the lobby of a public housing building beyond the vestibule and a posted “No Trespassing” sign, and was neither a tenant nor an invited guest, was properly charged with criminal trespass in the second degree, a class A misdemeanor, which is committed when a person “knowingly enters or remains unlawfully in a dwelling” (Penal Law § 140.15 [1]). The word “public” in the phrase “public housing” refers to ownership, not access, and not all property owned by the government is “open to the public.” Moreover, certain areas of publicly-owned buildings may be restricted from public use by a locked door or a front desk, much like the common areas of privately-owned buildings. The presence of a “No Trespassing” sign may also indicate that the common area of a publicly-owned building is not open to the public. Thus, it is possible for a person to enter or remain in a publicly-owned dwelling without license or privilege to do so. Since there is no ambiguity in the language of Penal Law § 140.15 (1), and defendant did not suggest that such an interpretation would lead to an absurd or unreasonable result, there was no need to consult the legislative history of the third-degree criminal trespass statute. *People v Barnes*, 26 NY3d 986.

**DISCLOSURE.**

**21. Failure to Disclose Exculpatory Material.**—Defendant was deprived of his right to a fair trial for attempted murder by the prosecution's failure to disclose evidence supporting defendant's third-party culpability defense, as the evidence against defendant was far from overwhelming and therefore there was a reasonable possibility that the verdict would have been different if the information had been disclosed. There was no physical evidence tying defendant to the shooting and only one out of the five eyewitnesses identified defendant as the perpetrator. The evidence that the third party was arrested in close proximity to the time of the offense for possessing weapons and ammunition, including the type of ammunition used in the shooting, was plainly favorable to the defense. Such information would have added a little more doubt to the jury's view of the evidence, and it was reasonably possible that a little more doubt would have been enough. *People v Negrón*, 26 NY3d 262.

**EVIDENCE.**

**22. Evidence of Eyewitness's Murder.**—In a bribery prosecution arising out of defendant's payment to three teenaged girls after they recanted their prior identifications of defendant's brother as the shooter in a murder investigation, the

**CRIMES—Cont'd**

trial court's decision to admit evidence of the murder of a fourth eyewitness, with which defendant was not involved but which caused the girls to reveal defendant's actions to police, was not an abuse of discretion. The evidence of the second murder showed the state of mind of the girls and provided an explanation as to why they abandoned their recantations and told police about their deal with defendant. It also explained why the girls were placed in protective custody prior to the trial, and allowed the jury to have all of the relevant facts before it to decide whether to credit defense counsel's arguments or the girls' testimony concerning the charges against defendant. While possible prejudice could arise from the testimony in that the jury might link defendant to the second murder, that prejudice was minimized by the court's limiting instruction, which made clear that defendant had not been charged with causing the death of the fourth eyewitness. In addition, the prosecutor had stated plainly in his opening statement and summation that there was no evidence that defendant was involved. *People v Harris*, 26 NY3d 1.

**23. Declaration against Interest That Exculpates Defendant** — Supportive Evidence Establishing Reasonable Possibility of Trustworthiness.—In a prosecution for driving while intoxicated, the statement by an unavailable witness that she, not defendant, was driving the vehicle in question when it collided with a parked car was sufficiently reliable to have been admitted into evidence as a declaration against interest, since the statement was corroborated by a trial witness's testimony that he saw a young woman driving defendant's car shortly before the accident occurred. Before a declaration against interest is admissible, there must be some evidence, independent of the declaration itself, which fairly tends to support the facts asserted therein. Where a declaration exculpates the defendant, supportive evidence is sufficient if it establishes a reasonable possibility that the statement might be true. It is irrelevant whether the court believes the statement to be true; if the proponent of the statement is able to establish the possibility of trustworthiness, it is the function of the jury alone to determine whether the declaration is sufficient to create reasonable doubt of guilt. Accordingly, that defendant was seen driving the car at the time of the accident presented a credibility issue for the jury. Further, defendant and the unavailable witness had no previous relationship that would provide a motive to fabricate. *People v Soto*, 26 NY3d 455.

**24. Declaration against Interest — Declarant's Awareness That Statement was against Penal Interest.**—In a prosecution for driving while intoxicated, the statement by an unavailable witness that she, not defendant, was driving the vehicle in question when it collided with a parked car and that she fled the scene should have been admitted into evidence as a declaration against interest, since the record demonstrated that the witness was aware that the statement was adverse to her penal interest at the time she made it. Seconds after she made the statement to the defense investigator, the witness asked if she could get into trouble and asked for an attorney. Moreover, the trial court failed to apply the proper standard when it ruled that the statement was not sufficiently against the witness's penal interest. Although leaving the scene of an accident that caused property damage constitutes a mere traffic violation, there is no requirement that a statement against penal interest involve a particularly serious crime. The record was replete with evidence regarding the witness's awareness of the potential criminality of her actions; she verbalized her concern that she would get in "trouble" as a result of her actions of driving the vehicle during the accident and fleeing the scene, and she repeatedly requested legal advice. That she also worried how her parents would react further demonstrated her understanding of the consequences, rather than exhibited her lack of comprehension. *People v Soto*, 26 NY3d 455.

**25. Hearsay — Defendant's Handwritten Notes.**—In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, the trial court did not abuse its discretion by refusing to admit into evidence at trial excerpts from handwritten notes prepared by defendant during the first day of questioning at the precinct. To the extent the excerpts where defendant claimed he was "imprisoned for the whole day" and that



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is how “American police do” were offered for their truth—to establish his confinement—the statements were inadmissible hearsay, and they did not contain complaints to anyone within the meaning of the prompt complaint exception. Even as evidence of defendant’s state of mind, the statements were of limited probative value because they were written based on defendant’s experience the first day of the interrogation, when he was not a suspect and before he was permitted to go home, saw his family and rested. The statements did not shed light on how defendant was treated when he returned to the precinct the next day or provide information about his state of mind at the time of his confession and other inculpatory statements. *People v Jin Cheng Lin*, 26 NY3d 701.

**26. Hearsay — Videotaped Interview of Defendant.**—In a murder prosecution arising from defendant’s confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, the trial court did not abuse its discretion by refusing to admit into evidence at trial a videotape of the failed attempt by an Assistant District Attorney to interview defendant following his confession. Notwithstanding that evidence concerning the voluntariness of defendant’s confession was relevant as the confession was a key piece of the People’s evidence establishing his guilt, it was undisputed that the videotape was hearsay and thus inadmissible unless it came within one of the hearsay exceptions. Though defense counsel represented to the court that he intended to introduce the videotape for the nonhearsay purpose of establishing defendant’s appearance after the interrogation in response to the People’s admission of his booking photograph, defense counsel declined the court’s offer to admit a still photograph from the videotape, which would have served defendant’s purpose of presenting the jury with evidence of his physical appearance and also avoided any potential confusion or misdirection created by the jury’s consideration of defendant’s linguistic skills based on the audio component of the video. *People v Jin Cheng Lin*, 26 NY3d 701.

**27. Document Covered by Parties’ Stipulation of Admissibility — Timeliness of Hearsay Objection.**—The trial court in defendant’s prosecution for participating in a scheme to defraud mortgage lenders did not abuse its discretion in admitting into evidence a document, which had been deemed admissible pursuant to the parties’ pretrial stipulation containing a loan officer’s handwritten note that defendant verbally confirmed certain false information, where defense counsel did not raise a hearsay objection to the receipt of the note and a witness’ testimony referencing it until the following day of trial and after receipt of considerable unobjected-to testimony respecting the notation. While the court might have exercised its discretion differently, its decision not to revisit the issue of the notation’s admissibility could not under the circumstances be characterized as an abuse of discretion. Although the stipulation was not irreversibly binding, it was at least presumptively enforceable and defendant offered no plausible excuse for failing earlier to seek an exception from its coverage. Moreover, receipt of the extrajudicial statement did not result in a denial of defendant’s constitutional right of confrontation, as the notation was not testimonial hearsay. *People v Gary*, 26 NY3d 1017.

**FORCIBLE TOUCHING.**

**28. Facial Sufficiency of Accusatory Instrument.**—The accusatory instrument charging defendant with forcible touching based on the allegation that he “approached the complainant and smacked her about the buttocks,” which caused her “to become alarmed and annoyed,” was facially sufficient. “A person is guilty of forcible touching when such person intentionally, and for no legitimate purpose, forcibly touches the sexual or other intimate parts of another person for the purpose of degrading or abusing such person; or for the purpose of gratifying the actor’s sexual desire,” without the victim’s consent (Penal Law § 130.52). When done with the relevant mens rea, any bodily contact involving the application of some level of pressure to the victim’s sexual or intimate parts qualifies as a forcible touch within the meaning of Penal Law § 130.52. Thus, the information’s assertion that defendant “smacked the buttocks” of the complainant adequately al-

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leged that defendant applied the statutorily required pressure to effectuate contact with a part of the complainant's body commonly accepted within society as sexual or intimate in nature. The reasonable inferences to be drawn from the allegations were that defendant initiated the conduct and took the complainant by surprise, and that she did not acquiesce to defendant's actions. Moreover, defendant's criminal purpose could be inferred from the complainant's lack of consent and the intimate nature of the act. By ignoring the complainant's right to be free from unwanted intimate contact, defendant disregarded the complainant's autonomy and personhood. That he did so on a public street, in the presence of an eyewitness, suggested that he was unconcerned by the public display of his actions, and the humiliation evoked by such conduct. *People v Hatton*, 26 NY3d 364.

**HARMLESS AND PREJUDICIAL ERROR.**

**29. Due Process Violation during Sex Offender Registration Act Risk Level Hearing.**—At a hearing to determine defendant's Sex Offender Registration Act risk level, the hearing court committed harmless error when, in violation of defendant's due process rights, it relied, in part, upon grand jury minutes that were not disclosed to the defense to determine the appropriate score for the risk factor for continuing course of sexual misconduct. There was overwhelming, unchallenged evidence in the form of the case summary, the criminal court complaint and defendant's own confession, which provided the requisite clear and convincing evidence supporting the assessment of points for a continuing course of sexual misconduct and which had been properly disclosed to defendant. *People v Baxin*, 26 NY3d 6.

**30. Wade Hearing Denied — Independent Source for In-Court Identification of Defendant.**—In the prosecution of defendant for assaulting the complainant on a city bus, the trial court's error in denying defendant's requests for a *Wade* hearing to determine the suggestiveness of the prosecutor's pretrial display to the complainant of defendant's arrest photograph was harmless, as there was record support for the court's alternative finding of an independent source for the complainant's in-court identification of defendant. The complainant testified that, two months after the incident, she saw defendant at a hospital by chance and recognized her as the assailant. She then called the police, and, when they arrived, she pointed out defendant as the woman who previously attacked her on the bus. She further testified that viewing the photograph did not affect her memory of the assailant. *People v Marshall*, 26 NY3d 495.

**IDENTIFICATION OF DEFENDANT.**

**31. Display of Defendant's Photograph during Trial Preparation.**—The trial-preparation exception recognized in *People v Herner* (85 NY2d 877 [1995]), where the Court of Appeals held that a pretrial display of a photograph of the lineup at which the identifying witness had identified the defendant constituted trial preparation and not an identification procedure subject to the notification requirement of CPL 710.30, and the procedural mechanism designed to determine its application to a particular case, are inconsistent with New York's approach to judicial scrutiny of potentially unconstitutionally suggestive pretrial identifications. There is no reason to encumber the courts with an additional pre-*Wade* hearing. Instead, upon a defendant's motion, a court must hold a formal pretrial hearing to determine whether the police or prosecutor conducted an out-of-court identification procedure that exposed the witness to the defendant's identity in an unduly suggestive manner. The People bear the initial burden to establish a lack of any undue suggestiveness, but the defendant bears the ultimate burden of proving that the procedure was unduly suggestive. If the court finds no undue suggestiveness, the motion is denied and the People may admit the identification at trial. If the court finds the procedure to have been unduly suggestive, and the People have failed to establish by clear and convincing evidence the existence of an independent source for the identification, the motion is granted. In that case, the pretrial identification is suppressed and an in-court identification tainted by the prior identification procedure precluded. *People v Marshall*, 26 NY3d 495.

**32. Improper Bolstering of Identification Evidence.**—In the prosecution of defendant for attempted robbery and assault, the testimony of the police detective at

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trial that, after getting descriptions of the perpetrator from the witnesses, he carried out further investigation with information beyond the descriptions, which generated one suspect, namely defendant, did not state or imply that anyone made an identification. Thus, the testimony did not violate the evidentiary rule that, in the context of eyewitness identification, the testimony of a third party to the effect that the witness identified a defendant as the perpetrator on some prior occasion is generally inadmissible. *People v Holley*, 26 NY3d 514.

**33. Lineup.**—In the prosecution of defendant for attempted robbery and assault, there was record support for the Appellate Division decision upholding the lineup in which the fillers ranged in age from 10 years younger than defendant to 25 years older and weighed 20 to 90 pounds more than defendant. The Appellate Division found that any differences between defendant and the other participants, including an age disparity not fully reflected in the participants' actual appearances, and a weight disparity that was minimized by having the participants seated, was not so noticeable as to single defendant out. A numerical age difference existing between a defendant and the fillers in a lineup, without more, is not sufficient to create a substantial likelihood that the defendant would be singled out. Moreover, there was record support for the determination that the disparity in weight was minimized. *People v Holley*, 26 NY3d 514.

**34. Photographic Array — Failure to Preserve Record of Photographs Shown — Presumption of Suggestiveness.**—The failure of police to preserve a photographic array shown to an identifying witness gives rise to a rebuttable presumption that the array was suggestive, i.e., that the People have failed to meet their initial burden of going forward to establish the lack of any undue suggestiveness in a pretrial identification procedure. The People may rebut the presumption by means of testimony detailing the procedure used to safeguard against suggestiveness. *People v Holley*, 26 NY3d 514.

**35. Photographic Array — Failure to Preserve Record of Photographs Shown Using Computer-Generated Array — Rebuttable Presumption of Suggestiveness.**—In the prosecution of defendant, who was arrested on charges of attempted robbery and assault after he was identified by an eyewitness who viewed a photo array generated by a computer photo manager system based on criteria entered by the detective, the People rebutted the presumption that the photo array was unduly suggestive based on the fact that the police did not preserve the photographic array that was shown to the witness. The failure of police to preserve a photographic array shown to an identifying witness gives rise to a rebuttable presumption that the array was suggestive, i.e., that the People have failed to meet their initial burden of going forward to establish the lack of any undue suggestiveness in a pretrial identification procedure. The People may rebut the presumption by means of testimony detailing the procedure used to safeguard against suggestiveness. Here, the detective who generated the photo array and showed it to the eyewitness testified that he did not consider defendant a suspect before showing the photograph, and that the eyewitness viewed about 100 photographs and consistently identified only defendant. While the detective did not include any weight range into the system, despite being told by the victims that the man was "skinny," there was support in the record for the finding that the detective entered enough information about the perpetrator's physical features to ensure that the photo manager system would generate a fair selection of photos rather than an array in which defendant's image would stand out as markedly different. *People v Holley*, 26 NY3d 514.

**36. Photographic Array — Requirement to Preserve Record of Photographs Shown.**—The requirement that police preserve a photographic array shown to an identifying witness applies to both photo books and computer-generated photo arrays. A detective who shows an identifying witness a book of photographs must preserve the photographs that were shown, together with their arrangement in the book, and must keep some record of the order in which the pages were displayed. Similarly, a detective who shows a witness photographs on a computer-assisted system must carry out whatever steps are necessary to ensure that he or she can recreate in some way during a suppression hearing the display of the photographs

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in the precise arrangement and order in which they were shown to the witness. This requirement falls within the category of preserving evidence as required by the law protecting the defendant's right to a fair trial. *People v Holley*, 26 NY3d 514.

**INFORMATION.**

**37. Jurisdictional Validity — Sufficiency of Factual Allegations.**—The information charging defendant with petit larceny for his unauthorized use of an illegally-obtained key to allow undercover transit police officers to enter a subway station through an emergency exit gate in exchange for money, thereby depriving the New York City Transit Authority (NYCTA), as the owner, of its property, adequately alleged all the elements of a larceny and was therefore jurisdictionally valid. Penal Law § 155.00 (5) defines ownership broadly and codifies the common-law rule that ownership is not limited to the title owner of the property. Rather, it is enough that the person have a right to possession of the property superior to that of the thief. The NYCTA did not voluntarily transfer the key that defendant used to sell entrance to the subway system or receive a set price for it. The NYCTA was the rightful owner of the key because it had a right of possession of the key superior to that of defendant, who had no right of possession whatsoever. Nor did defendant have any possessory right or lawful expectation with respect to the business generated from the use of the key. *People v Matthew P.*, 26 NY3d 332.

**INSTRUCTIONS.**

**38. Justification Defense — Initial Aggressor Exception — Supplemental Instruction in Defense-of-Another Scenario.**—In a murder prosecution arising after defendant stabbed and killed the victim while defending his brother during a fight between the victim, defendant's brother and defendant's girlfriend that allegedly started at the victim's home in defendant's absence, while the portions of the standard criminal jury instruction that the trial court read to the jury regarding the "initial aggressor exception" to the justification defense were accurate in themselves, the charge, taken as a whole, was confusing and misleading under the circumstances. The court did not go on to explain the manner in which the initial aggressor rule applies when a defendant intervenes in an ongoing struggle to protect a third party who the defendant reasonably believes is being unlawfully beaten. The jury should have been charged that, in the context of the case, the initial aggressor rule meant—in sum and substance—that, if defendant, as the intervenor, somehow initiated or participated in the initiation of the original struggle or reasonably should have known that his brother, as the person being defended, initiated the original conflict, then justification was not a defense. If defendant had nothing to do with the original conflict and had no reason to know who initiated the first conflict, then the defense was available. The failure to give such a supplemental instruction was not harmless because the evidence did not overwhelmingly demonstrate that defendant was involved in the initiation of the physical confrontation, that he was the first to use deadly physical force or that he had reason to know who initiated the original conflict. *People v Walker*, 26 NY3d 170.

**39. Circumstantial Evidence Charge Not Required — Both Direct and Circumstantial Evidence of Guilt.**—The trial court in defendant's larceny prosecution was not required to provide a circumstantial evidence charge to the jury, as a surveillance video showing defendant rifling through and then walking off with the victim's purse constituted direct evidence of his guilt, and the proof against defendant therefore consisted of both direct and circumstantial evidence. A trial court must grant a defendant's request for a circumstantial evidence charge when the proof of the defendant's guilt rests solely on circumstantial evidence. Defendant's statement to a prosecution witness that he did not have the purse but could get it constituted circumstantial evidence, inasmuch as the statement merely included inculpatory facts from which the jury may or may not have inferred guilt. However, the surveillance video was direct evidence of the taking element of a larceny, inasmuch as it required no inference to conclude that defendant exercised dominion and control over the purse, however temporary, in a manner wholly

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inconsistent with the victim's continued rights as the owner. The fact that defendant offered the jury an alternative explanation of his behavior, one inconsistent with larcenous intent, did not change the character of the evidence from direct to circumstantial. A particular piece of evidence is not required to be wholly dispositive of guilt in order to constitute direct evidence, so long as it proves directly a disputed fact without requiring an inference to be made. *People v Hardy*, 26 NY3d 245.

**40. Adverse Inference Charge — Police Failure to Electronically Record Custodial Interrogation.**—The common law does not require a court to issue an adverse inference instruction against the People at trial based solely on the police's failure to electronically record the custodial interrogation of a defendant. A permissive adverse inference instruction typically serves as either a penalty for the government's violation of its statutory and constitutional duties or its destruction of material evidence, or an explanation of logical inferences that may be drawn regarding the government's motives for failing to present certain evidence at trial. There exists no legal duty which may be breached by the failure to make an electronic recording of an interrogation. Moreover, where the police do not create an electronic recording of an interrogation in the first instance, they do not know the contents of the potential recording or whether those contents will be material at trial, and there is no deliberate destruction of potentially material evidence that would warrant the deterrent of an adverse inference instruction. Furthermore, the natural inference about a party's motives in declining to call a particular witness, which supports a missing witness instruction, is an inference that does not typically apply in cases where the police decline to record an interrogation. Defendant, whose interrogation was not recorded due to the lack of recording equipment at the police station where he was questioned, failed to demonstrate any unique factor in his case that might have permitted or compelled the court to issue an adverse inference instruction in the exercise of its discretion. As a result, the trial court did not abuse its discretion or otherwise err, as a matter of law, by refusing to deliver an adverse inference charge. *People v Durant*, 26 NY3d 341.

**JURORS.**

**41. Meaningful Notice to Counsel of Substantive Jury Inquiry — Mode of Proceedings Error — Preservation Requirement.**—The trial court in defendant's robbery prosecution did not commit a mode of proceedings error by failing to first read substantive jury notes into the record and discuss them with counsel outside the presence of the jury before recalling the jury, where the court nonetheless read the precise contents of the notes into the record in the presence of counsel, defendant and the jury before providing its response. CPL 310.30 requires a trial court to provide "notice to both the people and counsel for the defendant" of a substantive jury inquiry. The court's notice to counsel must be meaningful, which means notice of the actual specific content of the jurors' request. This is because counsel cannot participate effectively or adequately protect the defendant's rights if this specific information is not given. In most cases, meaningful notice is best satisfied by adhering to the procedure set forth in *People v O'Rama* (78 NY2d 270 [1991]). When the court fails to provide counsel with meaningful notice of the precise content of a substantive juror inquiry, a mode of proceedings error occurs, and reversal is therefore required even in the absence of an objection. Here, the trial court deviated from the *O'Rama* procedure by failing to discuss the notes and the court's intended response with counsel before recalling the jury, but that deviation did not constitute a mode of proceedings error. By reading the notes verbatim into the record in the presence of counsel and the jury, the trial court complied with its core responsibility to give counsel meaningful notice of the jury's notes. Thus, counsel was required to object in order to preserve a claim of error for appellate review. *People v Nealon*, 26 NY3d 152.

**42. Jury Inquiry — Failure to Provide Substantial Portion of Requested Evidence.**—The trial court in defendant's murder prosecution abused its discretion in declining to provide, in response to a request from the deliberating jury "to see" the benefits offered to two key prosecution witnesses for their cooperation, a



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readback of testimony regarding benefits they had received outside the context of a written cooperation agreement between the People and one of the witnesses, and by suggesting that the written agreement was the only evidence relevant to the jury's inquiry. In determining whether a trial court abused its discretion and committed reversible error in fashioning an answer to the jury's inquiry, the factors to be evaluated are the form of the jury's question, which may have to be clarified before it can be answered; the particular issue of which inquiry is made; the information actually given and the presence or absence of prejudice to the defendant. The form of the jury's inquiry here reflected its desire to examine the evidence of benefits conferred upon both witnesses, and that evidence necessarily included both the written cooperation agreement and the witnesses' testimony about the advantages of their cooperation with the People. The jurors' expressed wish "to see" the pertinent evidence did not undermine the note's otherwise clear request for the entirety of the evidence of benefits conferred upon the witnesses. Since the issue about which the jury inquired was essential to its ability to judge the credibility of the sole witnesses to identify defendant as the shooter, the court abused its discretion by withholding a highly significant portion of what the jury had asked for regarding an essential issue at trial. Moreover, the combination of the court's failure to give the jury necessary information and its inaccurate follow-up remarks prejudiced the defense. *People v Taylor*, 26 NY3d 217.

**43. Selection of Jury — Challenge for Cause Where Juror Offers Innocent Explanations for Untruthfulness.**—The trial court in a burglary prosecution did not err in denying defendant's for-cause challenge to a prospective juror who, during voir dire, offered innocent explanations for untruthfulness, where there was no showing of a substantial risk that any predispositions would affect the juror's ability to discharge his responsibilities. The prospective juror's natural willingness to entertain ethically benign explanations for untruthfulness did not bespeak utter credulity in the face of sworn averment; it did not reasonably raise a red flag that he possessed a state of mind that was likely to preclude him from rendering an impartial verdict. Nothing said by the prospective juror cast significant doubt on his ability to follow the standard jury instructions respecting a juror's obligation to judge whether a witness is telling the truth, and whether any falsehood is deliberate. *People v Harris*, 26 NY3d 321.

**44. Trial Court's Failure to Respond in Any Way to Substantive Jury Inquiry — Reversal Required.**—In an assault prosecution wherein the People introduced into evidence several recordings of telephone calls that defendant made while he was in jail awaiting trial, the trial court's failure to inform counsel of two notes sent by the jurors during deliberations requesting to see the transcripts of the phone calls that included Spanish-to-English translations they were given while they were listening to the tape recordings, or respond to the jury in any way before the jury ultimately found defendant guilty, required reversal. The jury's request to see the transcripts did not merely require the ministerial actions of informing the jury that none of the items they requested were in evidence. Inasmuch as a significant portion of defendant's conversations were conducted in Spanish, the jury could not be expected to understand the recordings without the aid of the transcripts. Moreover, the trial court expressly invited the jurors to ask for the transcripts during deliberations and told them the procedure by which they could see the transcripts, which involved reassembling the jury in the courtroom. Thus, the jury's requests for the transcripts required a substantive response. *People v Mendez*, 26 NY3d 1004.

**KIDNAPPING.**

**45. Attempt— Legal Sufficiency of Evidence — Actus Reus.**—In a prosecution for attempted second-degree kidnapping (Penal Law §§ 110.00, 135.20) and a related crime premised upon defendant's interactions with a 10-year-old victim that culminated in an invitation to his apartment, legally sufficient evidence existed that defendant came dangerously near to abducting the victim. Focusing on the steps defendant took to accomplish the kidnapping, rather than on the actions or disposition of the particular child victim, a rational factfinder could have

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concluded that, in attempting to complete the crime through the child victim's acquiescence (Penal Law §§ 135.00 [1] [b]; [2] [a]; 135.20), defendant had moved beyond mere preparation to the point that his conduct was potentially and immediately dangerous. The People presented evidence that defendant repeatedly tried to convince the victim to accompany him on various outings as she walked home alone from school. Defendant arrived at the victim's apartment unannounced and uninvited and asked if she was ready to go to the movies. He was dressed up for the occasion; he somehow had circumvented the buzzer system used to gain access to the apartments inside the building; and the hardware store where he worked, which was located in the building, was closed. Five days later, defendant approached the victim while she was alone in the building's stairwell, came within two or three feet of her and attempted to give her the keys to his apartment. When she refused, he asked her three times if she was sure, and then told her to meet him later if she changed her mind. Though the steps remaining to accomplish the kidnapping were within the victim's control, completion of a crime must not be solely within the power of the defendant for the evidence of an attempt to be legally sufficient. *People v Denson*, 26 NY3d 179.

**46. Attempt — Legal Sufficiency of Evidence — Intent.**—In a prosecution for attempted second-degree kidnapping (Penal Law §§ 110.00, 135.20) and a related crime premised upon defendant's interactions with a 10-year-old victim that culminated in an invitation to his apartment, legally sufficient evidence existed that defendant had the requisite intent to abduct the victim, that is, to prevent her liberation by secreting or holding her in a place where she was not likely to be found (Penal Law §§ 135.00 [2] [a]; 135.20). The victim's mother testified that she did not know defendant's name or where defendant's apartment was located until after she contacted the police, and defendant did not dispute that his apartment was a place where the victim was unlikely to be found. Moreover, defendant engaged in increasingly bizarre and frightening behavior toward the victim, and his prior sodomy conviction, arising from his sexual abuse of his stepdaughter, was probative of his intent in inviting the victim to his apartment. Finally, the People's expert opined at trial that, with his invitation, defendant was attempting to isolate the victim in order to groom her for a sexual encounter. *People v Denson*, 26 NY3d 179.

**MANSLAUGHTER.**

**47. Recklessly Causing Death of Another Person — Unborn Fetus.**—A woman cannot be convicted of manslaughter for reckless conduct that she engaged in while pregnant that caused injury to the fetus *in utero* where the child was born alive but died as a result of that injury days later. Accordingly, defendant could not be convicted of manslaughter in the second degree (Penal Law § 125.05 [1]) for the death of her child six days after being delivered by an emergency caesarean section following defendant's motor vehicle accident, which allegedly occurred because defendant, driving under the influence of a prescription drug and alcohol, without a seat belt and more than 20 miles per hour in excess of the speed limit, entered the oncoming lane of traffic and hit another car head on, causing injury to defendant's 34-week-old fetus. In enacting Penal Law § 125.05 (1), which defines a person as "a human being who has been born and is alive," and Penal Law § 125.15 (1), which defines second-degree manslaughter as recklessly causing the death of another "person," the legislature did not intend to hold pregnant women criminally responsible for conduct with respect to themselves and their unborn fetuses unless such conduct is done intentionally. Where the legislature has decided to criminalize a pregnant woman's conduct toward her unborn fetus, it has clearly established statutory prohibitions against such conduct and has determined that the punishment for intentional conduct is no greater than a misdemeanor. The legislature did not intend to impose greater punishment on pregnant women for their alleged reckless conduct toward a fetus than for their intentional conduct. Moreover, had defendant not consented to the caesarean section and her fetus died *in utero*, she could not have been prosecuted under the manslaughter statute because the fetus would not have fallen under the definition of a "person." *People v Jorgensen*, 26 NY3d 85.

**CRIMES—Cont'd****PLEA OF GUILTY.**

**48. Sufficiency of Allocution — Waiver of Constitutional Rights.**—The failure during a plea allocution to recite the constitutional rights waived by the defendant in entering the guilty plea—the right to a trial by jury, the right to confront one's accusers and the privilege against self-incrimination—does not automatically invalidate an otherwise voluntary and intelligent plea. Where the record as a whole affirmatively shows that the defendant intentionally relinquishes those rights, the plea will be upheld. Accordingly, searching the records in three separate prosecutions, where one defendant pleaded guilty to a non-criminal offense that carried no consequences other than a fine, his attorney actively litigated the case, the court adjourned the matter so that he could consider the plea and he stated on the record that he had enough time to discuss the plea with his attorney, the record as a whole established defendant's understanding and waiver of his constitutional rights. The record in another case similarly reflected a knowing and voluntary plea where, represented by the same attorney, defendant filed numerous pretrial motions and actively litigated the case, and the record confirmed that defendant was aware of his right to a trial and made the decision to plead guilty after consulting with counsel. Both defendants, through their attorney, also waived a more detailed allocution that might have entailed discussion of the waived constitutional rights. By contrast, where the totality of the circumstances revealed that the final defendant did not have an opportunity to discuss the plea with his attorney or consider its consequences, his plea was invalid. The record contained no discussion of any of the circumstances surrounding defendant's plea or the rights he waived, nor did it indicate whether defendant spoke with his attorney before entering the plea. *People v Conceicao*, 26 NY3d 375.

**49. Validity.**—Defendant's guilty plea was knowing, voluntary and intelligent and constituted a valid waiver of his constitutional rights where the record demonstrated that defendant understood the consequences of his plea, including that he was waiving his right to trial and to challenge evidence against him, and that he discussed both the plea and his sentence with counsel. During the plea, defense counsel stated initially that defendant authorized him to enter a guilty plea and that he had discussed with defendant that any arrests during defendant's conditional discharge period would place him at risk of arrest and 90 days' jail time. The judge then directly addressed defendant and asked specifically whether defendant had discussed the plea and sentence with his lawyer, whether he was pleading voluntarily and of his own free will, and whether defendant understood that he was giving up his right to a trial and to hearings on the search and seizure evidence. Defendant answered "yes" to each and every question. *People v Sougou*, 26 NY3d 1052.

**50. Validity.**—Defendant's guilty plea was knowing, voluntary and intelligent and constituted a valid waiver of her constitutional rights where the court's inquiry and defendant's responses established that defendant waived her right to trial and fully comprehended the plea. At the plea proceeding, counsel stated that she was authorized to enter a plea of guilty on defendant's behalf. The judge addressed defendant and asked whether she wanted to enter a plea of guilty to harassment, a violation and not a crime, and whether she understood that by pleading guilty she was giving up her right to trial. Defendant responded affirmatively to the court's inquiries, and also stated that no one had forced her to enter the plea. Defense counsel emphasized that the plea was to a violation, not a crime, and that it would not add to her criminal record. Defendant thus understood that by pleading guilty she avoided any further enhancement of her existing criminal record. *People v Sougou*, 26 NY3d 1052.

**51. Validity.**—Defendant's guilty plea to promoting prostitution was valid where the record as a whole affirmatively demonstrated that he knowingly, intelligently and voluntarily waived his constitutional rights. A guilty plea is not invalid solely because the trial court failed to recite a defendant's constitutional rights under *Boykin v Alabama* (395 US 238 [1969]). Although defendant was initially charged with a felony, defendant pleaded guilty to a misdemeanor in exchange for a fine.



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He discussed the plea with his attorney for two days and personally confirmed that he was pleading guilty of his own free will because he was guilty of the charge. Moreover, the court ensured that defendant was aware of any potential immigration consequences and also that the conviction would add to his criminal record. *People v Pellegrino*, 26 NY3d 1063.

**POSSESSION OF WEAPON.**

**52. Gravity Knife — Sufficiency of Accusatory Instrument — Locking “Automatically” in Place.**—An accusatory instrument alleging possession of a gravity knife in violation of Penal Law § 265.01 (1) was sufficient where it stated that the police officer tested the knife and determined that it “locks automatically in place,” notwithstanding the absence of an express statement that the knife was “locked in place by means of a button, spring, lever or other device” (Penal Law § 265.00 [5]) as set forth in the statutory definition of a gravity knife. By stating that a knife, once opened, “locks automatically in place,” an accusatory instrument conveys to a defendant that his or her knife was observed to lock in an open position, rather than merely having a bias towards remaining open, and to lock by means of a built-in device, rather than manually. A mechanism that locks itself by means of such a device is naturally described as locking “automatically.” Moreover, because of the use of the generic term “device” in Penal Law § 265.00 (5), there can be no requirement that an officer specify any particular kind of mechanism on the knife that causes it to lock in place. Here, defendant could not justifiably claim that the language used in the accusatory instrument impaired his basic rights to fair notice sufficient to enable preparation of a defense and to prevent double jeopardy. A reasonable defendant would have understood that the prosecution would be required to prove that his knife, once opened, locked without further manual action. *People v Sans*, 26 NY3d 13.

**53. Gravity Knife — Sufficiency of Accusatory Instrument — Application of Centrifugal Force.**—An accusatory instrument alleging possession of a gravity knife in violation of Penal Law § 265.01 (1) sufficiently alleged that the knife’s blade was “released from the handle or sheath . . . by the force of gravity or the application of centrifugal force” (Penal Law § 265.00 [5]) as set forth in the statutory definition of a gravity knife where the instrument specified that the police officer tested the knife and determined that it opened “with centrifugal force.” Based upon that allegation, it could reasonably be inferred that the officer flicked the knife open with his wrist. In any event, the officer’s failure to specify the precise motion he used to open the knife did not prevent defendant from preparing his defense or avoiding double jeopardy. *People v Sans*, 26 NY3d 13.

**54. Gravity Knife — Sufficiency of Accusatory Instrument — Police Officer Expertise in Identifying Gravity Knife.**—An accusatory instrument alleging possession of a gravity knife in violation of Penal Law § 265.01 (1) sufficiently pleaded that the police officer exercised his expertise by testing the knife and determining that it opened and locked in the manner proscribed by the gravity knife statute. As a general principle, when an allegation involves a conclusion drawn by an officer that involves the exercise of professional skill or experience, some explanation concerning the basis for that conclusion must be evident from the accusatory instrument. In an accusatory instrument alleging possession of a gravity knife, there is no mandate that the officer recite that he or she has training and experience in identifying gravity knives or expressly state the origin of his or her skills in that area. Rather, the officer is required to explain the basis of his or her conclusion that the defendant’s knife was a gravity knife. *People v Sans*, 26 NY3d 13.

**PROOF OF OTHER CRIMES.**

**55. Extreme Emotional Disturbance Defense.**—In the prosecution of defendant for offenses arising from an incident in which he fired multiple gunshots at a group of men who were chasing and attempting to hit his friend, killing one person and injuring two others, wherein defendant pursued an extreme emotional disturbance defense claiming that he suffered from post-traumatic stress disorder (PTSD) due to a 2005 altercation in which he was stabbed eight times during a fight with two individuals, the trial court properly allowed the prosecutor to

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inquire, during cross-examination of defense witnesses, about a 2002 incident in which defendant reacted with violence to a verbal insult to his mother. Evidence of uncharged criminal conduct or bad acts that are probative of a defendant's state of mind may be admissible if the defendant "opens the door" to such evidence by putting in issue his state of mind at the time of the commission of the charged crime. However, a defense such as extreme emotional disturbance opens the door to rebuttal evidence only to the extent that the proffered evidence has a natural tendency to disprove the defendant's specific claim. Here, the crux of the extreme emotional disturbance claim was that defendant, a previously nonviolent person, was suffering from PTSD as a result of the 2005 stabbing incident and that his actions in firing into the group were attributable to his PTSD. By raising this defense and presenting testimony regarding his personality and behavior before the stabbing, defendant put in issue some aspects of his character and personal history. The 2002 altercation had a logical and natural tendency to disprove defendant's specific claim that he was an otherwise peaceful person who reacted with violence only because his PTSD was triggered by the circumstances in which the shooting took place. Moreover, the court's decision to allow the incident to be explored on cross-examination rather than through rebuttal witnesses was not improper inasmuch as defendant's direct examinations of the relevant witnesses opened the door to questions about specific acts that undermined their testimony about defendant's character prior to the stabbing. *People v Israel*, 26 NY3d 236.

**56. Extreme Emotional Disturbance Defense.**—In the prosecution of defendant for offenses arising from an incident in which he fired multiple gunshots at a group of men who were chasing and attempting to hit his friend, killing one person and injuring two others, wherein defendant pursued an extreme emotional disturbance defense claiming that he suffered from post-traumatic stress disorder (PTSD) due to a 2005 altercation in which he was stabbed eight times during a fight with two individuals, the trial court erred in allowing evidence of a 2010 incident in which defendant broke an inmate telephone and threatened a correction officer. Evidence of uncharged criminal conduct or bad acts that are probative of a defendant's state of mind may be admissible if the defendant "opens the door" to such evidence by putting in issue his state of mind at the time of the commission of the charged crime. However, a defense such as extreme emotional disturbance opens the door to rebuttal evidence only to the extent that the proffered evidence has a natural tendency to disprove the defendant's specific claim. The key dispute at trial was whether defendant was suffering from PTSD at the time of the shooting and whether, when he fired the weapon, he was acting under the influence of that disorder. While evidence of defendant's disproportionately violent reaction to mild provocation prior to the stabbing incident was directly relevant to an assessment of the effects of the stabbing on his state of mind, the same materiality did not apply to defendant's misbehavior three years after the shooting for which he was being tried. The evidence of the 2010 incident did not tend to prove or disprove that defendant was acting under the influence of PTSD when he fired his weapon. Nevertheless, the error was harmless in light of the trial court's limiting instructions, the overwhelming proof, and the fact that there was no significant probability that the jury would have acquitted defendant but for the admission of the testimony relating to the 2010 incident. *People v Israel*, 26 NY3d 236.

**PROOF OF PRIOR CONVICTIONS.**

**57. Prior Sex Crime Probative of Intent in Attempted Kidnapping Prosecution.**—In a prosecution for attempted second-degree kidnapping (Penal Law §§ 110.00, 135.20) and a related crime premised upon defendant's interactions with a 10-year-old victim that culminated in an invitation to his apartment, it could not be said that the trial court abused its discretion as a matter of law in admitting evidence of defendant's prior sodomy conviction, arising from his sexual abuse of his stepdaughter, to prove his intent on the attempted kidnapping charge. The People met their initial burden to demonstrate that defendant's prior conviction was relevant to his intent through their expert witness, who testified at the hearing that defendant's behavior toward the victim closely resembled his pattern of

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behavior toward his stepdaughter and demonstrated that he was attempting to be alone with the victim and to groom her for a sexual relationship. The reason defendant invited the victim to his apartment was important in determining whether he intended to abduct her, that is, to prevent her liberation by secreting or holding her there (Penal Law §§ 135.00 [2] [a]; 135.20). Turning to the court's discretionary evaluation of whether the evidence's probative value exceeded its potential for prejudice, defendant's expert agreed that there were similarities between defendant's two victims and that his behavior demonstrated, among other things, the "possibility of repetition." Importantly, upon questioning by the court, defendant's expert testified that there were "differences between simple propensity and repetition per se" and that one could infer "the probability of what [defendant's] motivation is and the probability of what his goals are" from the repetition of his behavior. *People v Denson*, 26 NY3d 179.

**RIGHT TO COUNSEL.**

**58. Effective Representation — Third-Party Culpability Evidentiary Standard.**—Defendant did not receive meaningful representation and his right to a fair trial was compromised because his trial attorney failed to object to the court's use of the incorrect "clear link" standard when evaluating defendant's request to offer evidence that a third party had committed the shooting for which defendant had been charged, as a determination that the evidence was admissible would have been permissible had the court conducted the proper analysis. Third-party culpability evidence should be evaluated in accordance with ordinary evidentiary principles—by balancing probative value against the potential for undue prejudice, delay and confusion. There was no evidence establishing that the third party actually committed the shooting. However, he did bear a general resemblance to the description of the perpetrator, lived in the same building and was arrested in close proximity to the time of the offense for possessing weapons and ammunition, including the type of ammunition used in the shooting, under circumstances evincing a consciousness of guilt. Such evidence could not be classified as remote or disconnected from the crime at issue. Moreover, trial counsel provided an affidavit stating that he had done no research on third-party culpability, was unaware of the correct legal standard and had no excuse or strategic explanation for the lapse in representation. *People v Negron*, 26 NY3d 262.

**59. Effective Representation — Failure to Object to Certain Prosecutor Summation Statements.**—In the prosecution of defendant for various sex offense charges arising from alleged incidents involving two children, defendant's trial counsel was not ineffective for failing to object to certain comments made during the prosecutor's summation, in which the prosecutor mischaracterized expert testimony and stated, without supporting evidence, that defendant abused the children because he was drunk. Notwithstanding that many of the statements were objectionable, defense counsel lodged 30 objections during the prosecutor's summation, 15 of which were sustained. Moreover, the court's curative instructions ameliorated any potential prejudice to him. *People v Ambers*, 26 NY3d 313.

**60. Effective Representation — Failure to Seek Dismissal of Time-Barred Charges.**—In the prosecution of defendant for various sex offense charges arising from alleged incidents involving two children, defendant's trial counsel was not ineffective for failing to seek dismissal of the time-barred charges of endangering the welfare of a child. The failure to raise a defense as clear-cut and completely dispositive as a statute of limitations, in the absence of a reasonable explanation for it, is hard to reconcile with a defendant's constitutional right to the effective assistance of counsel. However, the possibility exists that counsel may have a reasonable explanation for the failure, such as where the time-barred charge is a lesser crime than the remaining counts in the accusatory instrument, allowing the jury to reach a compromise verdict. Here, while seeking dismissal of the endangering the welfare of a child counts would have eliminated those charges, defendant would have still faced remaining charges of rape and course of sexual conduct against a child. Defendant's counsel may have strategically decided to allow the lesser charges of endangering the welfare of a child to remain in order to allow the

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jury to convict defendant of that crime rather than the greater charges. Given that a conviction of some kind was not unlikely in the face of the children's account of events, counsel had a sound basis to give the jury an opportunity to convict defendant of a misdemeanor rather than a felony. Moreover, there was no indication that counsel did not want a lesser offense charged to the jury. *People v Ambers*, 26 NY3d 313.

**61. Effective Representation — Failure to Raise Statute of Limitations Defense.**—In a prosecution in which defendant was charged with burglary and petit larceny 1½ years after expiration of the applicable statutory period for the petit larceny charge, defense counsel's failure to have the time-barred count dismissed deprived defendant of the effective assistance of counsel. There could have been no strategic purpose for failing to raise the statute of limitations as against the petit larceny charge. The charge's submission was objectively incapable of enabling any compromise verdict, much less the particular compromise verdict sought by trial counsel. In light of the DNA evidence proving the trespass component of the charged burglary, a finding of guilt on the petit larceny count would as a practical matter have dictated a finding of guilt on the burglary count as well. Accordingly, the defense strategy was not, and could not reasonably have been, to contend that defendant had merely committed petit larceny, but that he had done no more than trespass. It was completely inconsistent with this line of defense to allow the petit larceny count to remain in the indictment, since so doing operated to preclude the compromise verdict counsel sought convicting defendant only of trespass. An unreasonable omission to raise a clear-cut defense completely dispositive of a charge for which the defendant was ultimately convicted should not be subsumed within the "totality" of the representation for purposes of determining the availability of relief for ineffective assistance. *People v Harris*, 26 NY3d 321.

**62. Effective Representation.**—Defendant did not establish that he did not receive effective assistance of counsel in his prosecution for sexually abusing a nine-year-old girl, where he failed to demonstrate the absence of strategic or other legitimate explanations for counsel's revelation to prospective jurors about the child's inadmissible, prior out-of-court identification of defendant; failure to object to police testimony regarding the identification; and failure to respond or object to multiple instances of prosecutorial misconduct. By questioning prospective jurors about their reactions to the child's identification of defendant some time after the assault rather than on the same day, counsel sought to ensure selection of jurors receptive to his mistaken identification defense and his arguments about the existence of reasonable doubt of defendant's guilt based on the child's error. Given that the defense hinged on the jurors' belief that the child was mistaken about defendant, and that the prospective jurors were inclined to believe the child, sight unseen, counsel did not fail to employ a legitimate trial strategy by putting in question the child's identification at the earliest possible opportunity. Similarly, a police investigator's testimony that the child identified defendant almost three weeks after the assault supported counsel's argument that the child made an honest, even understandable, mistake given the lapse of time. Moreover, the prosecutor's summation remarks were not so egregious that counsel's failure to object rendered his overall representation constitutionally defective and did not detract from the theory of the defense. *People v Wragg*, 26 NY3d 403.

**63. Advocate-Witness Rule.**—In the prosecution of defendant for second-degree burglary, the trial court erred when it permitted the People to introduce at trial a statement made by defense counsel at arraignment that conflicted with defendant's trial testimony, but then denied counsel's request to withdraw. Pursuant to the advocate-witness rule, a lawyer must withdraw from representation when it becomes apparent that he or she must testify on behalf of her own client. Defendant testified that the alleged burglary victims had actually come after him with a kitchen knife. However, at arraignment, counsel had stated that the complainants had gone after defendant with a razor blade. After reviewing her notes from the arraignment, counsel realized that she had misspoken at the arraignment and that defendant had told her that the complainants had come after him with a

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knife rather than a razor blade. The trial court denied counsel's request to withdraw or for a mistrial, but agreed to allow counsel to introduce a stipulation as to what she would say if asked about the statement and read the stipulation aloud to the jury. However, the stipulation violated the advocate-witness rule and deprived defendant of his right to conflict-free counsel. The prosecutor sought to use the statement to attack defendant's credibility, and in doing so, caused defendant's advocate to become his adversary. Moreover, the only way for defense counsel to rehabilitate her client's credibility was to impugn her own, moments before she would argue for her client's innocence in summation. Thus, the trial court should have granted counsel's request to withdraw or declared a mistrial. *People v Ortiz*, 26 NY3d 430.

**64. Disqualification — Conflict of Interest — Representation by Public Defense Organization of Defendant and Potential Witness.**—Where defendant and a possible witness against him were in separate prosecutions arising from a single incident represented by different attorneys from the same public defense organization, the Appellate Division erred in holding that the trial court abused its discretion by relieving defendant's assigned counsel due to the potential conflict of interest. The trial court appropriately balanced defendant's countervailing rights to counsel of his choosing and to effective assistance of counsel, based on the information it had at the time, and reasonably concluded that counsel could not effectively represent defendant due to the organization's representation of the witness and the duty of loyalty counsel's supervisors asserted toward that former client. Prior to defendant's trial, counsel's supervisors determined that there was a potential or actual conflict that prevented counsel from investigating the witness, attempting to locate him, calling him as a witness at trial or cross-examining him if he was called by the People. Even if the institutional representation of the witness did not, in and of itself, present a conflict because knowledge of a large public defense organization's current and former clients is typically not imputed to each attorney employed thereby, the conflict was created by the conditions imposed by counsel's supervisors. Though defendant indicated his willingness to waive the conflict under those conditions, almost immediately thereafter he said that he wanted the witness to be called as a witness at trial. Those competing statements did not clearly demonstrate a knowing waiver, and the trial court could properly decide that it would not accept a waiver under the circumstances. *People v Watson*, 26 NY3d 620.

**65. Effective Representation.**—In a murder prosecution arising after defendant shot and killed his former longtime lover and her romantic partner, defendant did not sustain his burden to establish that his attorney failed to provide meaningful representation, notwithstanding that counsel did not object to references at trial to defendant's post-arrest silence or provide certain audio recordings to defendant's expert witness for trial preparation. Counsel was not ineffective for failing to object to the references during the testimony and prosecutor's summation to defendant's silence, which the People used to challenge defendant's credibility regarding possible fabrication of his extreme emotional disturbance (EED) defense, given that the evidence was overwhelming that defendant did not labor under an EED at the time of the murders. Moreover, it could not be said on the record that defense counsel lacked a strategic reason for permitting the testimony of defendant's silence without objection. The testimony in part supported defendant's EED defense as the police officers testified that defendant discussed his suicidal intentions after the killings. Likewise, the representation was not rendered ineffective by counsel's failure to provide to defendant's expert the audio recordings of the 911 call made by defendant's former lover and the voice messages that defendant left on the victims' cellular telephones close in time to the shootings. Counsel provided the expert with the transcripts of those recordings and then made a strategic choice to proceed with the expert's favorable opinion based on those transcripts. *People v Pavone*, 26 NY3d 629.

**66. Effective Representation — Admission of Victim's Prior Consistent Statements.**—Defendant was not deprived of the effective assistance of counsel in his sexual abuse prosecution by his trial counsel's failure to oppose as improper bolster-



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ing the admission of the victim's statements of prior disclosures of the abuse to various individuals, as such testimony was properly admitted into evidence as background information to complete the narrative of how defendant came to be investigated. The testimony of the victim's mother, sister and principal and two police officers included nonspecific statements that the victim had made a disclosure and described what steps they took after hearing the disclosure. Nonspecific testimony about a child-victim's reports of sexual abuse does not constitute improper bolstering when offered for the relevant, nonhearsay purpose of explaining the investigative process and assisting in the completion of the narrative of events which led to the defendant's arrest. The testimony of the witnesses fulfilled these legitimate nonhearsay purposes, and defense counsel's objections ensured that the witnesses did not specifically repeat what the victim told them. The testimony of the People's expert witness as to the victim's specific allegations of sexual abuse explained why the victim was examined by the witness and why the normal results of the physical examination did not indicate that the victim had not been subjected to sexual abuse. Moreover, defense counsel was not ineffective for failing to object to the prosecutor's summation comments referencing the testimony of the witnesses to whom the victim had disclosed. Defense counsel may have made a strategic choice not to object during summation given that the witnesses were not able to testify to the specifics of the victim's allegations. She may have felt that such an objection would not be worthwhile given the limited testimony elicited from the witnesses. *People v Gross*, 26 NY3d 689.

**67. Effective Representation — Failure to Call Expert Witness.**—Defendant was not deprived of the effective assistance of counsel in his sexual abuse prosecution by his trial counsel's failure to call an expert witness to testify regarding the absence of physical evidence supporting the victim's allegations of painful anal rape and that the alleged conduct should have resulted in lasting physical trauma which could be detected years later. Defendant failed to provide a proper foundation for the courts to consider the studies allegedly supporting his argument, as he did not include an affidavit by a medical expert explaining the conclusions of the studies or how those conclusions supported his contentions. Moreover, defendant's trial counsel articulated reasons for not calling an expert witness, and those reasons were arguably legitimate. *People v Gross*, 26 NY3d 689.

**68. Effective Representation — Failure to Facilitate Defendant's Appearance before Grand Jury.**—The decision regarding whether a criminal defendant will testify before the grand jury is a strategic one requiring the expert judgment of counsel, and the refusal to timely facilitate a defendant's appearance before the grand jury does not, per se, amount to ineffective assistance of counsel. Accordingly, defense counsel's failure to consult with defendant before advising the district attorney's office that he would not have defendant testify because he "didn't see the benefit to it, only the harm" did not deprive defendant of the effective assistance of counsel. A prospective defendant has no constitutional right to testify before the grand jury; rather, the right to testify before the grand jury is a limited statutory right. Whether to exercise that right is a decision that requires the expert judgment of counsel because it involves weighing the possibility of a dismissal, which, in counsel's judgment may be remote, against the potential disadvantages of providing the prosecution with discovery and impeachment material, making damaging admissions, and prematurely narrowing the scope of possible defenses—quintessential matters of strategy. The various risks and benefits that must be considered render the decision an appropriate one for the lawyer, not the client. Counsel stated his strategy on the record and, even if counsel had not done so, defendant had shown no prejudice. *People v Hogan*, 26 NY3d 779.

**69. Effective Representation.**—Defendant was not deprived of the effective assistance of counsel in his prosecution for sexually abusing his daughter, as none of counsel's alleged failures, considered independently or in combination, supported a conclusion that he was ineffective based on the totality of the representation under the New York State Constitution or that his performance was deficient and prejudiced defendant under the federal standard. Although the testimony of the victim's mother regarding defendant's prior bad acts arguably exceeded the court's

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ruling permitting such testimony solely from the victim, the jury heard from the victim about the specific incidents, and the mother's testimony about the events did not relate to the sexual abuse. Moreover, during defense counsel's summation, he sought to use the mother's testimony to defendant's advantage to support his argument that the victim lied. Thus, defendant failed to demonstrate that counsel lacked a strategic use for the testimony. Additionally, because the Court of Appeals has held that Child Sexual Abuse Accommodation Syndrome (CSAAS) is recognized within the scientific community and the expert testified generally about CSAAS, and not about its application to the victim or her specific allegations of sexual abuse, there was no apparent failure in defense counsel's choice not to call his own expert to rebut the People's expert witness. *People v Nicholson*, 26 NY3d 813.

**70. Effective Representation — Failure to Present Expert Testimony to Support Crux of Defense.**—On a CPL 440.10 motion to vacate defendant's conviction of assault in the first degree and endangering the welfare of a child in connection with injuries sustained by a seven-month-old infant in her care, a hearing was necessary to resolve defendant's ineffective assistance of counsel claim as defendant established that there were sufficient questions of fact as to whether counsel had an adequate explanation for his failure to pursue certain lines of defense on cross-examination or for his failure to call an expert on defendant's behalf. At trial, the People theorized that the infant suffered from shaken baby syndrome (SBS) and called 13 medical professionals in support of their case, nine of whom testified as expert witnesses, while defense counsel presented no expert testimony to contradict the SBS diagnosis. Defendant's CPL 440.10 proffer included statements from two experts, who described additional lines of inquiry that would likely have been advantageous to the defense but were not pursued at trial. Moreover, defendant submitted an affidavit from her sister, wherein she indicated that counsel asserted that he would not call an expert at trial because it would be "pointless" to do so in light of the number of experts being called by the People. While it is exceedingly rare that a defense attorney's strategic decision not to present expert testimony amounts to ineffective assistance of counsel, where, as here, casting doubt on the prosecution's medical proof is the crux of the defense, a decision that it would be futile to call an expert based solely on the volume of expert testimony presented by the People is not a legitimate or reasonable tactical choice. *People v Caldavado*, 26 NY3d 1034.

**RIGHT TO REMAIN SILENT.**

**71. Due Process Violation — Use of Defendant's Post-Arrest Silence to Impeach Extreme Emotional Disturbance Defense.**—In a prosecution arising after defendant shot and killed his former longtime lover and her romantic partner, in which defendant's post-arrest silence was used to challenge his credibility regarding possible fabrication of his extreme emotional disturbance, an Appellate Division order affirming defendant's conviction of murder in the first degree and criminal possession of a weapon in the second degree was affirmed. *People v Pavone*, 26 NY3d 629.

**SENTENCE.**

**72. Due Process — Imposition after Trial of Harsher Sentence than Rejected Plea Offer — Presumption of Vindictive Sentencing Inapplicable.**—A presumption of vindictive sentencing—applicable under the Due Process Clause of the New York State Constitution where a defendant successfully appeals an initial conviction and is re-tried, convicted and given a greater sentence than that imposed after the initial conviction—does not apply when a defendant rejects a plea offer, proceeds to trial for the first time and is given a harsher sentence than the plea offer. Thus, in a prosecution arising from defendant's sexual abuse of a six-year-old child, defendant's sentencing comported with due process where he rejected a plea offer of 10 years' probation for second-degree rape and, after being tried and convicted by a jury of first-degree rape and related crimes, was sentenced to 10 to 20 years' imprisonment. The policy concerns underlying the presumption—that criminal defendants should not be penalized for exercising their right to appeal—are not implicated in the rejected plea offer context. Given that the quid pro quo of the bargaining process will almost necessarily involve offers to moderate sentences

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that ordinarily would be greater, it is also to be anticipated that sentences handed out after trial may be more severe than those proposed in connection with a plea. Here, the court warned defendant before he rejected the plea offer that he would not receive as lenient a sentence should he be found guilty after trial, and the court imposed a lawful sentence based upon defendant's and the victim's sentencing statements and the heinous nature of the crimes. Additionally, the plea offer would have required defendant to plead guilty to a class D felony, whereas defendant was convicted after trial of a class B violent felony offense for which the court could not have legally imposed the probationary sentence offered with respect to the plea, and defendant's rejection of the plea offer required the victim to testify at trial. *People v Martinez*, 26 NY3d 196.

**73. Second Violent Felony Offender — Extension of 10-Year Limitation on Predicate Violent Felony Offenses — Incarceration without Reason.**—Where a period of incarceration has been deemed unlawful and unsupported by evidence, notwithstanding that the conviction underlying the incarceration period has not been invalidated or vacated, the incarceration period does not extend the 10-year limitation on predicate violent felony offenses that governs second violent felony offender adjudications (*see* Penal Law § 70.04 [1] [b] [iv]) as it does not qualify as a period of time during which the defendant was incarcerated “for any reason” (Penal Law § 70.04 [1] [b] [v]). The statutory phrase “for any reason” means that a period of incarceration will not be excluded from the 10-year calculation if it was “without reason” or “patently unjustified.” Thus, where a habeas court did not vacate defendant's conviction for a parole violation occurring between his prior violent felony offense and his current conviction but did grant his immediate release from confinement after determining that “the evidence did not support” his incarceration, the period of time defendant was incarcerated on the parole violation conviction could not be used to extend the 10-year limitation. That the habeas court granted defendant's immediate release based on a lack of evidence indicated that defendant was “imprisoned without reason.” *People v Small*, 26 NY3d 253.

**74. Resentence — Drug Law Reform Act — Exclusion Offenses.**—Upon defendant's motion pursuant to the Drug Law Reform Act of 2009 (L 2009, ch 56 [codified in relevant part at CPL 440.46]) to be resentenced on a conviction for criminal sale of a controlled substance in the third degree, defendant's first-degree robbery convictions—crimes committed by defendant during the two-month period following his commission of the drug offense for which he sought resentencing—were not “exclusion offenses” under CPL 440.46 (5) (a) because the offenses underlying the robbery convictions occurred after, not prior to, the drug offense. CPL 440.46 (5) (a) defines an “exclusion offense” as “a crime for which the person was previously convicted within the preceding ten years, excluding any time during which the offender was incarcerated for any reason between the time of commission of the previous felony and the time of commission of the present felony.” Given the provision's references to a “previous” felony and the “present” felony, the wording of the statute indicates that exclusion offenses must have been committed before the drug offense for which resentencing is sought, notwithstanding the seeming anomaly that a violent felony committed days after the drug offense cannot count as an exclusion offense, while the same violent felony committed prior to the drug offense could be an exclusion offense. *People v Golo*, 26 NY3d 358.

**75. Resentence — Drug Law Reform Act — Opportunity to be Heard.**—Upon defendant's motion pursuant to the Drug Law Reform Act of 2009 (L 2009, ch 56 [codified in relevant part at CPL 440.46]) to be resentenced on a conviction for criminal sale of a controlled substance in the third degree, the lower courts erred in deciding the resentencing motion without giving defendant an opportunity to be heard on the merits of the application. The Drug Law Reform Act of 2009 states that, on a defendant's application for resentencing, “[t]he court shall offer an opportunity for a hearing and bring the applicant before it” (L 2004, ch 738, § 23; CPL 440.46 [3]). That language is mandatory, contrasting with permissive statutory language authorizing a hearing on the issues of eligibility and sentencing. *People v Golo*, 26 NY3d 358.

**76. Second Child Sexual Assault Felony Offender — Filing Predicate Offender Statement after Commencement of Trial.**—Defendant was properly sentenced as a



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second child sexual assault felony offender pursuant to Penal Law § 70.07 on his conviction for sexually abusing a nine-year-old girl, even though the People filed their predicate offender statement required by CPL 400.19 (2), which provides that the “statement may be filed by the prosecutor at anytime before trial commences,” after the commencement of trial and before sentencing. Penal Law § 70.07 contains no limiting language in its sentencing provisions. The explicit language in Penal Law § 70.07 (1) states that a person convicted of a felony offense for sexual assault against a child, who has a predicate felony conviction for child sexual assault, “must be sentenced” in accordance with Penal Law § 70.07 sentencing provisions. The applicable time for invoking the procedures contained in CPL 400.19 does not change the import of the mandatory language in Penal Law § 70.07, which subjects this category of offenders to legislatively promulgated enhanced sentences. Furthermore, the specific language in CPL 400.19 (2) permits filing of the statement before commencement of a trial. It does not prohibit filing afterwards, and before sentencing. Interpreting CPL 400.19 as giving prosecutors discretion to seek enhanced sentencing only when that discretion is exercised prior to trial would mandate enhanced sentencing for every sex offender except those whose victims are children. The legislature, concerned with public safety and punishment of repeat offenders, would not grant discretion to prosecutors to avoid higher sentences for perpetrators of sex crimes against a particularly vulnerable class of victims. *People v Wragg*, 26 NY3d 403.

**77. Challenge to Legality — Waiver.**—In a criminal prosecution in which defendant agreed to a plea deal which included treating him as a second felony offender based on a prior out-of-state conviction, defendant did not waive his argument that the prior conviction was not equivalent to a New York felony, notwithstanding that he did not challenge the predicate felony after the plea colloquy during which he was advised only that he could challenge it on the grounds that he was either not the person named or that the conviction was unconstitutionally obtained. Waiver cannot be accomplished through silence. Thus, defendant’s statements that he was not challenging the predicate felony information on the two grounds delineated by the court clerk did not constitute waiver of other, unmentioned grounds. *People v Jurgins*, 26 NY3d 607.

**78. Second Felony Offender — Prior Out-of-State Conviction.**—In a criminal prosecution in which defendant pleaded guilty to first-degree robbery and was sentenced as a second felony offender based on a prior Washington, D.C. conviction for attempt to commit robbery, the prior out-of-state conviction was not a proper basis for the predicate felony offender adjudication. A prior out-of-state conviction qualifies as a predicate felony conviction if it involved an offense which is the equivalent of a New York felony (Penal Law § 70.06 [1] [b] [i]). Courts generally should consider only the statutes defining the relevant crimes, but courts must consider the underlying allegations when the foreign statute renders criminal several different acts, some of which would constitute felonies and others of which would constitute only misdemeanors or no crime if committed in New York. The analysis requires the court to distinguish between the specific criminal acts required by the penal statute and the various ways in which the statutory crime may be committed. Here, the Washington, D.C. statute provided that, “[w]hoever by force or violence, whether against resistance or by sudden or stealthy seizure or snatching, or by putting in fear, shall take from the person or immediate actual possession of another anything of value, is guilty of robbery” (DC Code § 22-2801). A taking “by sudden or stealthy seizure or snatching” would not be considered a robbery or other felony in New York. The Washington, D.C. crime can be committed in different ways and the phrase “sudden or stealthy seizure or snatching” does not describe separate criminal acts required by the statute in addition to the use of “force or violence.” Thus, the statute indicates that a person can be convicted of the foreign crime without committing an act that would qualify as a felony in New York. *People v Jurgins*, 26 NY3d 607.

**79. Second Violent Felony Offender — Predicate Conviction — 10-Year Look-Back Period — Controlling Sentencing Date.**—In a criminal prosecution in which defendant was resentenced as a second violent felony offender based on a prior

**CRIMES—Cont'd**

conviction for which his original sentencing date was more than 10 years prior to the commission of current felonies but his resentencing date for that conviction was within those 10 years, the lower courts erred in determining that the controlling date of sentence for the prior conviction was the date of resentencing. A second violent felony offender adjudication can only be predicated on a previous violent felony conviction for which sentence was imposed not more than 10 years before commission of the present felony (Penal Law § 70.04 [1] [b] [ii], [iv]). Upon his prior conviction of a class B violent felony, defendant was originally sentenced to a period of probation. After violating that probation, he was resentenced to a prison term. The period of probation was imposed as part of a revocable sentence, which is a tentative punishment in that it may be altered or revoked (Penal Law § 60.01 [2] [a], [b]). For all other purposes, however, a revocable sentence “shall be deemed to be a final judgment of conviction,” and where “the part of the sentence that provides for probation is revoked, the court must sentence [a defendant] to imprisonment or to [a] sentence of imprisonment and probation” (§ 60.01 [2] [b]; [4]). The reference to the “part” of the sentence suggests that the substitution of a different punishment does not constitute a new sentence, but rather a replacement of the original, conditional penalty reflected in the sentence. Thus, to revoke a penalty of probation does not equate to annulling a sentence. Moreover, notwithstanding the use of the verb “sentence,” the punishment imposed upon the revocation of a period of probation has been characterized as a resentencing, which is not defined as a sentence for the purpose of calculating the 10-year look-back period. Where, as here, two constructions of Penal Law §§ 70.04 and 60.01 are plausible, the one more favorable to defendant should be adopted. *People v Thompson*, 26 NY3d 678.

**80. Mandatory Surcharge — Resentencing Motion Required for Court to Defer Payment.**—In a criminal prosecution in which defendant was sentenced to a term of incarceration longer than 60 days, defendant could seek relief from the mandatory surcharge imposed under Penal Law § 60.35 by way of a motion to resentencing pursuant to CPL 420.10 (5), as the court lacked authority at sentencing to consider defendant’s request to defer payment of the surcharge. The relevant statutes prohibit judicial waiver of a mandatory surcharge, require collection of any unpaid amounts from an inmate’s funds as of the moment of confinement and throughout the period of incarceration, and provide for deferral under limited circumstances, namely an inability to pay that is not solely due to incarceration. CPL 420.30 (3) provides that “[i]n no event shall a mandatory surcharge . . . be remitted.” Thus, the legislature was clear in communicating its intent to restrain the judiciary from discharging a person’s obligation to pay the statutorily imposed amount. CPL 420.40 “governs the deferral of the obligation to pay . . . and financial hardship hearings relating to mandatory surcharges” (CPL 420.40 [1]). The procedural mechanism of CPL 420.40 does not provide for a time frame in which a person may seek to defer the mandatory surcharge. However, a person subject to a mandatory surcharge, which includes those persons sentenced to confinement in excess of 60 days, and who is unable to pay the surcharge may apply for resentencing, pursuant to CPL 420.10 (5), at any time after the initial sentence has been imposed. The resentencing provision further states that a court “shall not determine that the defendant is unable to pay . . . solely because of such defendant’s incarceration” (CPL 420.10 [5]). Thus, CPL 420.40 and 420.10 together permit any person with an unpaid mandatory surcharge to request a deferral by moving at any time for resentencing pursuant to CPL 420.10 (5), even during a period of incarceration. *People v Jones*, 26 NY3d 730.

**81. Motion to Set Aside Sentence — Denial of Motion without Hearing.**—The Appellate Division did not abuse its discretion when it affirmed the trial court’s decision to deny, without a hearing, defendant’s CPL 440.20 motion to set aside his sentence alleging that he was 15 years old at the time of the underlying offense and therefore should have been sentenced as a juvenile delinquent not as an adult. Under CPL 440.30 (4), a court may deny a CPL 440.20 motion without a hearing where an allegation of fact essential to support the motion is “conclusively refuted by unquestionable documentary proof,” or “contradicted by a court record or other

**CRIMES—Cont'd**

official document” and “there is no reasonable possibility that such allegation is true” (CPL 440.30 [4] [c], [d]). The People provided “unquestionable documentary proof” from the Peruvian government that defendant, who was born in Peru, was 16 at the time of the murder, effectively refuting any reasonable possibility that defendant’s claims were accurate. Moreover, the court was not required to credit defendant’s evidence of fraud that was self-serving and uncorroborated, nor allegations that the records provided by the Peruvian government were forgeries created by defendant’s grandparents. *People v Chu-Joi*, 26 NY3d 1105.

**SEX OFFENDERS.**

**82. Sex Offender Registration Act — Hearing to Determine Risk Level — Due Process.**—At a hearing to determine the Sex Offender Registration Act (SORA) risk level of defendant, who had pleaded guilty to one count of sodomy in satisfaction of a six-count indictment alleging that he had sexually abused his stepdaughter on multiple occasions, defendant’s due process rights were violated when the hearing court relied, in part, upon grand jury minutes that were not disclosed to the defense to determine the appropriate score for the risk factor for continuing course of sexual misconduct. In order to satisfy due process concerns, a sex offender must be afforded prehearing discovery of the documentary evidence relating to his or her proposed risk level adjudication. The Correction Law expressly entitles an offender to documents relied upon by the Board of Examiners of Sex Offenders in reaching a risk level recommendation. Although it does not expressly entitle the offender to materials submitted by the District Attorney in meeting its burden of facts supporting a risk level determination by clear and convincing evidence, the same due process concerns are presented in that context. Notwithstanding the State’s general policy of keeping grand jury proceedings secret, the absence of disclosure means that a defendant cannot formulate any meaningful argument against one that the prosecutor postulates is supported by the minutes. Although grand jury minutes are not required to be disclosed in every SORA proceeding as a matter of course, in determining whether due process requires disclosure, courts should keep in mind that the use of minutes against a defendant for SORA purposes presents a very strong countervailing interest in support of disclosure. *People v Baxin*, 26 NY3d 6.

**83. Sex Offender Registration Act — “Number of Victims” Risk Factor — Level of “Sexual Conduct” Considered.**—Defendant was properly assessed 30 points under risk factor 3 of the Sex Offender Registration Act (SORA) Guidelines for three or more victims even though his contact with the third victim, which involved defendant touching himself and discussing sexual matters with the child during webcam chats, did not constitute a SORA level offense. Given that the Guidelines do not mention a SORA level offense in risk factor 3, but instead address the more general term “sexual conduct,” the conduct does not have to amount to a SORA level offense in order to be considered in assessing a defendant’s risk of reoffending. Furthermore, the child could still be a victim under risk factor 3 even though defendant and the child were not in the same room, but were communicating through a webcam. *People v Izzo*, 26 NY3d 999.

**84. Sex Offender Registration Act — “Relationship with Victim” Risk Factor — Maturity of Sex Offender Considered.**—Defendant should not have been assessed 20 points under risk factor 7 of the Sex Offender Registration Act Guidelines for grooming his victims, since there was no clear and convincing evidence that he purposefully “groomed” his victims for the primary purpose of victimizing them, or, aside from grooming, had any relationship with the victims that would count for factor 7. Unrebutted expert evidence showed that defendant was significantly lacking in sexual and social maturity, had difficulty in understanding and interpreting social cues, functioned socially at the level of a young teenager of roughly the same age as his victims, and would be unable to maintain appropriate relationships with young women of his chronological age. *People v Izzo*, 26 NY3d 999.

**TRIAL.**

**85. Mistrial — Denial of Mistrial Motions.**—The trial court in defendant’s larceny prosecution, having received notes from the deliberating jury on two occa-

**CRIMES—Cont'd**

sions stating that they were unable to reach a unanimous verdict, did not abuse its discretion as a matter of law in refusing to grant defendant's requests for a mistrial and instead delivering charges pursuant to *Allen v United States* (164 US 492 [1896]). Although the trial was not lengthy, at each of the two junctures the circumstances indicated that further deliberations might be fruitful, and neither of the jury's notes was indicative of a hopeless deadlock. Moreover, the trial court's procedures were not coercive. The court's *Allen* charges were appropriately balanced and informed the jurors that they did not have to reach a verdict and that none of them should surrender a conscientiously held position in order to reach a unanimous verdict. *People v Hardy*, 26 NY3d 245.

**86. Mistrial — Consent of Defendant.**—Defendant, having refused to substitute an alternate juror when one juror was found unable to serve and having requested a partial verdict on the one count on which the jury had indicated it had reached a verdict, implicitly consented to a mistrial on two of three counts by requesting a partial verdict and by saying nothing about the court's plans for retrial. *Matter of Gentil v Margulis*, 26 NY3d 1027.

**UNLAWFUL SEARCH AND SEIZURE.**

**87. Police-Initiated Approach and Request for Information — Apartment Building Enrolled in Trespass Affidavit Program.**—In a prosecution for unlawful possession of a razor blade arising out of defendant's arrest for criminal trespass in the lobby of an apartment building that was enrolled in the Manhattan branch of the trespass affidavit program (TAP), a police assistance solicitation program rooted in tenant protection, the record supported the lower courts' determinations that the police had an objective credible reason to approach and request information from defendant, and thus to begin the encounter that culminated in his arrest and the seizure of the razor blade. The record reflected that the encounter occurred in a private space restricted by signage and a lock, and that police assistance in combating trespassing had been sought through the building's enrollment in the TAP. The coupling of defendant's presence in the building with the private and protected nature of that location supported the police intrusion giving rise to what became the seizure. Under the circumstances, a police officer could have identified a trespasser only by requesting information. *People v Barksdale*, 26 NY3d 139.

**88. Clothing Openly Visible on Floor of Hospital Room in Clear Plastic Bag.**—A police officer's warrantless seizure of a clear plastic bag containing defendant's clothes, which was resting on the floor of a hospital room a short distance away from the hallway where defendant was on a stretcher being treated for a gunshot wound, was unconstitutional and the clothes were improperly admitted at defendant's trial for criminal possession of a weapon. Under the plain view exception to the Fourth Amendment's warrant requirement, if the sight of an object gives the police probable cause to believe that it is the instrumentality of a crime, the object may be seized without a warrant if three conditions are met: the police are lawfully in the position from which the object is viewed; the police have lawful access to the object; and the object's incriminating nature is immediately apparent. Here, the evidence adduced at the suppression hearing showed that the officer who seized the clothes knew defendant to have been shot, and that defendant awaited treatment at the hospital in clothes different from those he wore at the time of the shooting. However, the evidence did not show that, before the seizure, the officer knew that entry and exit wounds were located on an area of defendant's body that would have been covered by the clothes defendant wore at the time of the shooting. Nor was there any other indicium that could have given rise to a reasonable belief that the shooting had affected defendant's clothes. Thus, there was no record support for the lower courts' conclusion that the investigating officer had probable cause to believe that defendant's clothes were the instrumentality of a crime. *People v Sanders*, 26 NY3d 773.

**VACATUR OF JUDGMENT OF CONVICTION.**

**89. Retroactive Application of New Rule of Federal Constitutional Criminal Procedure — Finality of Judgment.**—Where a defendant does not take a timely direct appeal from a judgment of conviction, and does not move for leave to file a

**CRIMES—Cont'd**

late notice of appeal pursuant to CPL 460.30 (1), the judgment becomes final 30 days after sentencing—the last day that he or she has an inviolable right to file a notice of appeal pursuant to CPL 460.10 (1) (a)—for purposes of determining whether a new rule of federal constitutional criminal procedure applies retroactively in a state postconviction collateral review proceeding. Accordingly, upon defendant's CPL 440.10 challenge to a judgment convicting him of felony assault on the ground that his attorney failed to inform him of the deportation consequences of his guilty plea under the new rule of federal constitutional criminal procedure announced in *Padilla v Kentucky* (559 US 356 [2010]), the judgment became final 30 days after defendant was sentenced—and before *Padilla* was decided—as he neither filed a timely notice of appeal nor moved pursuant to CPL 460.30 (1) for leave to file a late notice of appeal. Inasmuch as *Padilla* does not apply retroactively in state postconviction collateral review proceedings to judgments that became final before it was decided, defendant's *Padilla* claim was not cognizable on his CPL 440.10 motion to vacate the judgment. To extend the date of finality of judgments by CPL 460.30 (1)'s one-year grace period would in practice be to provide broader retroactive application to the *Padilla* rule than provided by the United States Supreme Court; it would also result in uncertainty in the finality of judgments in many procedural situations. *People v Varenga*, 26 NY3d 529.

**WITNESSES.**

**90. Expert Witness — Child Sexual Abuse Accommodation Syndrome — Testimony Concerning Delayed Reporting.**—The trial court in defendant's prosecution for sexually abusing his daughter properly admitted expert testimony on Child Sexual Abuse Accommodation Syndrome (CSAAS) for the legitimate purpose of countering the inference that the victim was not credible because she disclosed the abuse 10 years after the first sexual assault. CSAAS expert testimony is appropriate to assist the jury in assessing a victim's credibility by explaining victims' behavior that the factfinder might not understand, such as why victims may accommodate abusers and why they wait before disclosing the abuse. Defendant failed to demonstrate that the members of the empaneled jury held an appropriate understanding of CSAAS. During voir dire, not every prospective juror affirmatively responded to questions regarding behavior associated with CSAAS, and there was no consistent juror viewpoint discernable from voir dire, since those who responded to questioning provided a variety of reasons for why they would not be shocked or surprised by a child's delay in disclosure. Even if the responses from certain prospective jurors reflected a basic appreciation of some of the behaviors described by CSAAS, that did not translate into a high level of comprehension of the dynamics of sexually and physically abusive relationships within a family which are generally not as familiar to the lay juror. Thus, the expert's testimony, grounded in his professional knowledge and training, provided relevant information outside the ken of the jurors. *People v Nicholson*, 26 NY3d 813.

**91. Rebuttal Testimony Demonstrating Witness's Bias and Motive to Fabricate.**—In a criminal prosecution in which the People introduced rebuttal testimony intended to demonstrate a romantic relationship between defendant and a defense witness, who testified that she and defendant were friends "but that's it," the Appellate Division's conclusion that such testimony was proper rebuttal permitting the inference that the witness was biased and had a motive to fabricate was supported by the record. On cross-examination, the prosecutor elicited testimony from the witness that while defendant was in jail she visited him almost once a week, and initially spoke with him daily by telephone. She also admitted that she spoke with him about the case, and knew about the charges against him, and admitted that she cared for him. This testimony suggested that her interest in defendant was more than platonic and that they had a close and intimate relationship. The prosecutor's pointed question about whether the witness reentered defendant's life upon his divorce eventually led to her testimony that she was friends with defendant all along, even when he was married, and that they were friends at the time of trial. The People's proffer in support of the rebuttal testimony that she was not a friend thus aligned with the prosecutor's cross-examination that sought to demonstrate that the defense witness and defendant were romantically involved.

**CRIMES—Cont'd**

Moreover, the People had much to gain by presenting evidence that permitted an inference of a romantic relationship between defendant and the witness. By demonstrating that the witness was intentionally mischaracterizing her relationship with defendant, the prosecutor could argue that she harbored a bias more significant than a friendship, and one that would lead to fabrication of testimony under oath. *People v Nicholson*, 26 NY3d 813.

**DEBTOR AND CREDITOR.**

*See* ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

**DECEDENTS' ESTATES.**

*See* ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

**DENTISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**DEPOSITIONS.**

*See* DISCLOSURE.

**DISCONTINUANCE.**

*See* DISMISSAL AND NONSUIT.

**DISCOVERY AND INSPECTION.**

*See* DISCLOSURE.

**DIVORCE.**

*See* HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

**DOUBLE JEOPARDY.**

*See* CRIMES.

**ELDER LAW.**

*See* HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

**EMPLOYMENT RELATIONSHIPS.**

*See, also*, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

**EVIDENCE.**

*See, also*, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

**LOSS OR DESTRUCTION OF EVIDENCE.**

1. Spoliation Sanctions — Culpable State of Mind — Negligence.—Upon an appeal to the Court of Appeals from an Appellate Division order reversing the trial court's grant of plaintiff lessors' motion for the imposition of a trial adverse inference instruction as a spoliation sanction against defendants, related entities that had purchased lessee, for their failure to preserve certain electronically stored information (ESI) in lessee's possession, the record evidence comported more with the factual determination of the Appellate Division that defendants' culpable state of mind in failing to preserve the ESI constituted ordinary negligence. The failure of defendants to institute a "litigation hold" relating to the ESI did not amount to



**EVIDENCE—Cont'd**

gross negligence per se, as the trial court held, and the Appellate Division properly considered a number of factors in reaching its ultimate holding that defendants' conduct was not grossly negligent. Plaintiffs did not adduce evidence that any steps were taken to defeat the lessee's computer backup system in the months leading up to the computer crashes that resulted in the loss of much of the ESI, nor did plaintiffs claim that defendants themselves caused the crashes. Moreover, lessee was represented by its own counsel when defendants were brought into the litigation, and there was no evidence that defendants had reason to believe that lessee's counsel was not providing lessee adequate advice concerning ESI preservation. Defendants adequately responded to all of plaintiffs' discovery demands directed at them, thus negating any inference that defendants were reckless relating thereto. Finally, notwithstanding the fact that defendants had exercised practical control over lessee, the record evidence indicated that lessee and defendants were separate entities, with each possessing their own offices, staff, operations and computer systems. *Pegasus Aviation I, Inc. v Varig Logistica S.A.*, 26 NY3d 543.

**2. Spoliation Sanctions — Relevance.**—Upon an appeal from a trial court order granting plaintiff lessors' motion for the imposition of a trial adverse inference instruction as a spoliation sanction against defendants, related entities that purchased lessee out of a foreign bankruptcy, for their failure to preserve certain electronically stored information (ESI) in lessee's possession that was the subject of discovery demands in an action arising from lessee's default on the parties' leases, the Appellate Division erred in determining that plaintiffs had not attempted to make a showing that the ESI was relevant to plaintiffs' claims against defendants and in choosing to conduct its own analysis of the relevance issue without taking into account plaintiffs' arguments in that regard, which were contained in their appellate brief. Although the Appellate Division possesses the authority to make findings of fact that is as broad as the trial court, where it all but ignored plaintiffs' arguments concerning the relevance of the evidence, the matter was remitted to the trial court for a determination as to whether the negligently destroyed ESI was relevant to plaintiffs' claims against defendants and, if so, what sanction, if any, was warranted. *Pegasus Aviation I, Inc. v Varig Logistica S.A.*, 26 NY3d 543.

**3. Spoliation Sanctions — Standard for Imposing Spoliation Sanctions.**—A party that seeks sanctions for spoliation of evidence must show that the party having control over the evidence possessed an obligation to preserve it at the time of its destruction, that the evidence was destroyed with a culpable state of mind and that the destroyed evidence was relevant to the moving party's claim or defense such that the trier of fact could find that the evidence would support that claim or defense. Where the evidence is determined to have been intentionally or wilfully destroyed, its relevancy is presumed. If the evidence is determined to have been negligently destroyed, however, the party seeking spoliation sanctions must establish that the destroyed evidence was relevant to the party's claim or defense. *Pegasus Aviation I, Inc. v Varig Logistica S.A.*, 26 NY3d 543.

**4. Spoliation Sanctions — Trial Adverse Inference Instruction.**—Upon an appeal from a trial court order granting plaintiff lessors' motion for the imposition of a trial adverse inference instruction as a spoliation sanction against defendants, related entities that purchased lessee out of a foreign bankruptcy, for their failure to preserve certain electronically stored information in lessee's possession that was the subject of discovery demands in an action arising from lessee's default on the parties' leases, the Appellate Division erroneously stated that the imposition of a trial adverse inference charge would be "tantamount to granting plaintiffs summary judgment" against defendants where plaintiffs sought to hold defendants liable for lessee's conduct on an alter ego theory. Adverse inference charges have been found to be appropriate even in situations where, as here, the evidence was negligently destroyed, and a trial adverse inference instruction sanction would not be akin to granting summary judgment to plaintiffs on their alter ego claim since such a charge is permissive and can be appropriately tailored by the trial court. *Pegasus Aviation I, Inc. v Varig Logistica S.A.*, 26 NY3d 543.

**SCIENTIFIC EVIDENCE.**

**5. Failure to Use Generally Accepted Principles and Methodologies — Causation of Plaintiff's Injuries by *In Utero* Exposure to Unleaded Gasoline Vapor.**—In a

**EVIDENCE—Cont'd**

personal injury action in which plaintiff, who was born with severe mental and physical disabilities, claimed that his injuries were caused by his *in utero* exposure to unleaded gasoline vapor caused by a defective fuel hose in his mother's vehicle, the courts below properly precluded two of plaintiff's expert witnesses from testifying at trial as to causation inasmuch as they did not rely on generally accepted principles and methodologies in concluding that plaintiff was exposed to a sufficient concentration of gasoline vapor to cause his injuries. In toxic tort cases, it is necessary for a causation expert to establish that the plaintiff was exposed to sufficient levels of a toxin to have caused his or her injuries, and to do so through methods found to be generally accepted as reliable in the scientific community. One of plaintiff's experts was prepared to testify that plaintiff's mother inhaled 1,000 parts per million (ppm) of gasoline vapor based on the fact that she experienced symptoms of acute toxicity during exposure, and that in controlled studies, at least a 1,000 ppm concentration was required for such symptoms to occur immediately. While controlled studies are scientifically valid and can be used to measure symptoms in response to a given exposure, the studies cited here did not support the inverse approach employed by plaintiff's expert in this case—working backwards from reported symptoms to divine an otherwise unknown concentration of gasoline vapor. And the expert did not identify any study, report, article or opinion that admitted or employed such a methodology. Moreover, the expert's methodology was fundamentally different from the true odor threshold analysis that has been admitted in other toxic tort cases. Had the expert applied the true odor threshold methodology, the only conclusion she could have reached was that plaintiff was exposed to at least one ppm of unleaded gasoline. Plaintiff failed to show that a "symptom-threshold" methodology, unlike the odor threshold methodology, has been generally accepted in the scientific community. *Sean R. v BMW of N. Am., LLC*, 26 NY3d 801.

**EXAMINATION BEFORE TRIAL.**

*See* DISCLOSURE.

**FILIATION PROCEEDINGS.**

*See* CHILDREN BORN OUT OF WEDLOCK.

**FORMER ADJUDICATION.**

*See* JUDGMENTS.

**FORMER JEOPARDY.**

*See* CRIMES (DOUBLE JEOPARDY).

**FRATERNAL ORDERS.**

*See* ASSOCIATIONS.

**GAS AND OIL.**

*See, also,* PUBLIC UTILITIES.

**GRAND JURY.**

RIGHT TO APPEAR BEFORE GRAND JURY.

1. Applicability of Statutory Notice Requirement.—The requirement of CPL 190.50 (5) (a) that the People give notice to a person of an upcoming grand jury proceeding against him or her and accord the person a reasonable time to exercise his or her right to appear as a witness does not, pursuant to the statute's plain language, apply where the person has not yet "been arraigned in a local criminal court" on the offense to be presented at the proceeding. Accordingly, in a consolidated prosecution arising out of three different burglaries, the People were not statutorily required to give defendant notice that they would be presenting evidence of the second burglary at a grand jury proceeding scheduled on the third



**GRAND JURY—Cont'd**

burglary where defendant had not yet been arraigned on the felony complaint for the second burglary. *People v Small*, 26 NY3d 253.

**GUARANTEE.**

*See* SURETYSHIP AND GUARANTEE.

**HOTELS.**

*See* INNKEEPERS.

**HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.**

*See, also*, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

**IMMIGRATION.**

*See* ALIENS.

**INCAPACITATED AND MENTALLY DISABLED PERSONS.****INVOLUNTARY COMMITMENT.**

1. Petition for Writ of Habeas Corpus — Challenge to Procedure by Which Patient Retained.—Mental Hygiene Law § 33.15, which allows patients involuntarily committed under Mental Hygiene Law article 9 to seek a writ of habeas corpus when they are being held pursuant to a court order but believe they have sufficiently recovered to be released, does not preclude use of the common-law writ of habeas corpus available through CPLR article 70 for those patients whose detention is challenged for reasons other than their recovery. Accordingly, petitioner Mental Hygiene Legal Service was entitled to bring a CPLR article 70 habeas corpus proceeding seeking the immediate release of an article 9 patient on the ground that he was being illegally detained as a result of respondent hospital's failure to timely apply for court authorization of its continued involuntary retention of the patient. Nothing in the plain language of Mental Hygiene Law § 33.15 purports to limit the availability of the common-law writ in Mental Hygiene Law proceedings. Reading section 33.15 as governing all habeas corpus proceedings brought by article 9 patients would effectively eliminate the availability of the writ for patients wishing to challenge the procedural methods by which they have been involuntarily retained and to obtain release from an unlawful detention. By failing to seek continued retention, thereby prompting the patient to seek a writ of habeas corpus based on the facility's inaction, respondent would be able to shift the burden of proof to the patient to demonstrate his or her fitness in order to obtain release pursuant to section 33.15. The legislature did not intend an interpretation of section 33.15 that would render meaningless significant procedural due process protections provided in Mental Hygiene Law article 9. *People ex rel. DeLia v Munsey*, 26 NY3d 124.

**INDEMNITY.****CONTRACTUAL INDEMNIFICATION.**

1. Environmental Remediation Costs — Limitation of Indemnification to Measures Required by Law.—The particular language of a letter from the Department of Environmental Conservation (DEC) notifying plaintiff indemnitee that it was a potentially responsible party for a site's environmental contamination was sufficiently coercive and adversarial as to have "required" plaintiff to take action "under or in connection with any Environmental Law" within the meaning of an indemnification clause contained in an agreement relating to the sale of real property abutting the site as the letter threatened litigation and imminent adverse legal and financial consequences pursuant to the ECL. Plaintiff was thus entitled to contractual indemnification for environmental losses incurred as a result of DEC's investigation and remediation of the site. The letter stated that it pertained to an "Urgent Legal Matter," indicated that a prompt reply was "necessary" and set

**INDEMNITY—Cont'd**

forth the consequences that would flow from plaintiff's refusal to act. Regardless of whether plaintiff was designated a potentially responsible party or a responsible party, the letter demanded either a consent order or payment, and any language indicating that plaintiff's response was voluntary had to be read in terms of those demands. Additionally, the circumstances surrounding the execution of the indemnification clause included the parties' awareness that the purchaser of the property risked incurring substantial expenses, and that the seller accordingly deposited a large sum in escrow to cover at least a portion of those potential expenses. The seller's attorneys began cooperating with DEC shortly after the letter was received, and only ceased to do so when their negotiations proved unsuccessful—indicating that the seller viewed the letter as requiring action. *Remet Corp. v Estate of Pyne*, 26 NY3d 58.

**INFANTS.**

*See, also*, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles.

**INSURANCE.**

*See, also*, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

**DUTY TO DEFEND AND INDEMNIFY.**

**1. Bad Faith.**—In an action commenced by plaintiff insurer against defendant county insured after plaintiff defended and settled on defendant's behalf an underlying civil rights class action challenging defendant's policy to strip-search all arrestees admitted into its jail regardless of the type of crime committed, defendant failed to meet the high burden of demonstrating that plaintiff acted in bad faith by not challenging the underlying class certification and reaching a settlement that made defendant liable—through individual deductible payments—for all the damages recovered by the underlying plaintiff arrestee class members. Under the terms of the parties' insurance policies—providing coverage for personal injury arising out of defendant's law enforcement activities—plaintiff had discretion to investigate and settle any claim or suit commenced against defendant, and there was no indication from the record that plaintiff's conduct constituted a gross disregard of defendant's interests. Plaintiff hired competent attorneys to defend defendant in the underlying action and played an active role in the settlement negotiation. *Selective Ins. Co. of Am. v County of Rensselaer*, 26 NY3d 649.

**LIABILITY INSURANCE.**

**2. Construction of Policy — Allocation of Counsel Fees.**—In an action commenced by plaintiff insurer against defendant county insured after plaintiff defended and settled on defendant's behalf an underlying civil rights class action challenging defendant's policy to strip-search all arrestees admitted into its jail regardless of the type of crime committed, counsel fees arising from the underlying action were properly charged only to the named underlying plaintiff arrestee class member. It was undisputed that the parties' insurance policies—providing coverage for personal injury arising out of defendant's law enforcement activities—were silent as to how counsel fees would be allocated in class actions. The policies were therefore ambiguous as to whether such fees should be allocated ratably among the deductibles owed for each underlying plaintiff arrestee class member because each allegedly improper strip search constituted a separate and distinct "occurrence" or whether the fees should be attributed only to the named underlying plaintiff arrestee class member because there was one defense team for all class members. Because both interpretations were reasonable, the courts below correctly interpreted the policies' language in favor of defendant—the insured. *Selective Ins. Co. of Am. v County of Rensselaer*, 26 NY3d 649.

**3. Construction of Policy — Meaning of "Occurrence" in Determining Deductible Owed.**—In an action commenced by plaintiff insurer against defendant county

**INSURANCE—Cont'd**

insured after plaintiff defended and settled on defendant's behalf an underlying civil rights class action challenging defendant's policy to strip-search all arrestees admitted into its jail regardless of the type of crime committed, defendant owed a separate deductible to plaintiff for each of the underlying plaintiff arrestee class members as the plain language of the parties' insurance policies—providing coverage for personal injury arising out of defendant's law enforcement activities—indicated that each allegedly improper strip search constituted a separate and distinct "occurrence" subject to a single deductible payment. The policies' definition of "occurrence"—"an event, including continuous or repeated exposure to substantially the same general harmful conditions, which results in . . . 'personal injury' . . . by any person or organization and arising out of the insured's law enforcement duties"—was not ambiguous. The policies' language made clear that they covered personal injuries to an individual person as a result of a harmful condition. The definition did not permit the grouping of multiple individuals who were harmed by the same condition, unless that group was an organization, which was not the case here where the harm each underlying plaintiff arrestee class member experienced was as an individual. Though the policies' definition of "occurrence" specifically described four large-scale events that might constitute a single occurrence, none of the listed circumstances encompassed a civil class action suit based upon a common policy. *Selective Ins. Co. of Am. v County of Rensselaer*, 26 NY3d 649.

**REGULATION OF INSURERS.**

**4. McCarran-Ferguson Act — Application of Federal Arbitration Act to Workers' Compensation Insurance Payment Agreements Not Reverse Preempted.**—The McCarran-Ferguson Act (15 USC § 1011 *et seq.*), which limits congressional preemption of state laws in the regulation of the business of insurance, did not reverse preempt the Federal Arbitration Act (FAA) (9 USC § 1 *et seq.*) with respect to workers' compensation insurance Payment Agreements, which were entered into between appellant insurer and three California-based employers and contained clauses requiring that disputes arising thereunder be submitted to arbitration, in light of a California statute requiring workers' compensation insurers to file copies of their policies, endorsements and forms with the California regulating authorities. The McCarran-Ferguson Act applies if the federal statute in question does not specifically relate to insurance, the state law at issue was enacted to regulate the business of insurance, and the federal statute at issue would invalidate, impair, or supersede the state law (*see* 15 USC § 1012 [b]). Here, as the first two tests of the prong were satisfied, the application of the McCarran-Ferguson Act turned on whether application of the FAA would "invalidate, impair, or supersede" the California statute. Although the term "impair" broadens the reach of the McCarran-Ferguson Act beyond federal statutes that directly conflict with a state law regulating insurance, when application of the federal law would not frustrate any declared state policy or interfere with a State's administrative regime, the McCarran-Ferguson Act does not preclude its application. At the time the Payment Agreements were executed, California law did not prohibit, limit, or regulate the use or form of arbitration clauses in workers' compensation insurance contracts. The purpose of California's filing rule was to ensure that the insurance documents complied with the California Insurance Code and accompanying regulations, none of which pertained to the use or form of arbitration provisions. Nor would application of the FAA interfere with the State's administrative regime. The arbitrators could competently determine whether the Payment Agreements and their arbitration provisions are enforceable under California law despite the fact that they were not filed with the state. Moreover, the California regulating authorities could pursue an enforcement action against the insurer based on its failure to comply with the filing statute. *Matter of Monarch Consulting, Inc. v National Union Fire Ins. Co. of Pittsburgh, PA*, 26 NY3d 659.

**INTELLECTUAL PROPERTY LAW.**

*See* COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

**INTEREST.****PREJUDGMENT INTEREST.**

1. Retaliatory Personnel Action Claim under Whistleblower Law.—Prejudgment interest is recoverable in actions commenced pursuant to Civil Service Law § 75-b, the state whistleblower statute, as an overall view of the comprehensive package of remedies listed in Labor Law § 740 (5), including undefined “compensation” and “remuneration,” demonstrates that the legislature sought to make whistleblowing plaintiffs whole, and awarding prejudgment interest would serve that purpose. Accordingly, in an action challenging retaliatory personnel action taken against plaintiff city employee after he reported that his defendant superiors engaged in misconduct, plaintiff was properly awarded back pay with interest. Under Labor Law § 740 (5), applicable to public employees not subject to an arbitration or collective bargaining agreement, the remedies available to employees who bring claims for retaliation include “the compensation for lost wages, benefits and other remuneration” (Labor Law § 740 [5] [d]). The remedies in Labor Law § 740 (5) are not as limited as in statutes where prejudgment interest has been deemed unavailable, and section 740 (5) provides courts with discretion to determine what is considered “compensation” and “remuneration.” Here, by demoting plaintiff rather than awarding him a planned promotion and significant raise, defendants deprived him of access to what would have been a higher salary for a period of over 10 years. Awarding back pay with interest would serve to make plaintiff whole. *Tipaldo v Lynn*, 26 NY3d 204.

**INTERVENTION.**

*See* PARTIES.

**JUDGMENTS.**

*See, also*, EXECUTION, and other specific titles.

**JUDICIAL NOTICE.**

*See* EVIDENCE.

**LABOR.**

*See, also*, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

**WHISTLEBLOWER LAW.**

1. Good Faith Effort to Report to Appointing Authority.—In an action commenced pursuant to Civil Service Law § 75-b, the state whistleblower statute, the court must use discretion in determining whether the overall actions of the plaintiff employee constituted a good faith effort to first report the alleged misconduct to the “appointing authority” as required by section 75-b (2) (b), giving attention to the employee’s practical inability to do so in cases where the appointing authority is the one engaging in the alleged misconduct. Thus, in an action challenging retaliatory personnel action taken against plaintiff city employee after he reported that his defendant superiors—the “appointing authorities” under the statute—awarded a contract to an acquaintance in violation of the city’s public bidding rules, an overall view of plaintiff’s actions demonstrated good faith compliance with the statutory reporting requirement where he reported the misconduct to his immediate supervisors and thereafter to the Inspector General. Under the particular circumstances, strict compliance with the reporting requirement of section 75-b (2) (b) would not have served the purpose of the statute. Plaintiff believed that defendants were on notice of the alleged misconduct based on his and other employees’ expression of concern about the contract award and refusal to approve it, and after defendants’ subsequent solicitation of bids followed by the issuance of a backdated memorandum claiming that the process needed to be expedited. Additionally, in view of the requirement—set forth in a mayoral executive order and plaintiff’s employee handbook—that employees disclose misconduct to the Inspec-

**LABOR—Cont'd**

tor General directly and without undue delay or face possible termination of employment, it could not be said that plaintiff lacked “good faith” in reporting to his immediate supervisors only one or two business days before reporting to the Inspector General. *Tipaldo v Lynn*, 26 NY3d 204.

**LANDLORD AND TENANT.**

*See, also*, NEGLIGENCE (MAINTENANCE OF PREMISES).

**LIBEL AND SLANDER.**

*See, also*, NEWSPAPERS, and other specific titles.

**LICENSES.**

*See, also*, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

**LITTORAL RIGHTS.**

*See* ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

**MANDAMUS.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**MARRIAGE.****PRENUPTIAL AGREEMENT.**

1. Validity and Enforceability in Estate Proceeding — Omission of Statement of Parties' Assets and Liabilities.—In a proceeding pursuant to SCPA 1001 to obtain letters of administration on the ground that petitioner was the surviving spouse of the decedent, Surrogate's Court properly denied petitioner's motion for summary judgment dismissing objectant's claim against the estate based on the prenuptial agreement between petitioner and the decedent. Petitioner did not make a prima facie showing that the prenuptial agreement she and the decedent signed was invalid and unenforceable insofar as it omitted a statement of the parties' assets and liabilities. Petitioner testified that she was aware when the agreement was executed that the statement was absent, and that, at the time, the decedent's finances “didn't matter” to her. Moreover, the record did not contain any indication that the decedent attempted to conceal or misrepresent the nature or extent of his assets. *Matter of Fizzinoglia*, 26 NY3d 1031.

**MASTER AND SERVANT.**

*See* EMPLOYMENT RELATIONSHIPS.

**MEDICAL REPORTS.**

*See* DISCLOSURE.

**MOTELS.**

*See* INNKEEPERS.

**MUNICIPAL CORPORATIONS.**

*See, also*, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

**ZONING.**

1. Use of Property in Transition When Rezoned — Vested Right — Reliance.—Petitioners had no vested right to develop certain real property under zoning regulations in effect prior to the rezoning of their property pursuant to Local Law

**MUNICIPAL CORPORATIONS—Cont'd**

No. 3 (2006) of Town of Newburgh. An owner of real property can acquire a common-law vested right to develop the property in accordance with prior zoning regulations when, in reliance on a legally issued permit, the landowner effects substantial changes and incurs substantial expenses to further the development and the landowner's actions relying on the valid permit are so substantial that the municipal action results in serious loss rendering the improvements essentially valueless. Here, it was not reasonable for petitioners to rely on a December 2007 conditional final site plan approval of the development, in carrying out any substantial actions furthering the development. The Town Planning Board had repeatedly warned petitioners of the proposed rezoning, and the December 2007 approval itself, which included a statement of the new zoning status of the property, did not engender expectations to the contrary. Furthermore, while petitioners challenged the rezoning in court, petitioners must have been cognizant of the potential for an eventual legal ruling that the Local Law was in fact valid. Nor did limited permits, authorizing petitioners to demolish a single-family residence, remove certain water tanks and their foundation, conduct clearing and grading, and erect signs on the property, amount to approval of petitioners' proposed development. *Matter of Exeter Bldg. Corp. v Town of Newburgh*, 26 NY3d 1129.

**NEGLIGENCE.**

*See, also*, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

**EMERGENCY DOCTRINE.**

**1. Appropriateness of Summary Judgment.**—In an action arising from a collision between a municipal bus and a sedan, the order of the Appellate Division which granted the motion of defendants bus company and bus driver for summary judgment based on the emergency doctrine defense was reversed, and the motion denied. On the record, whether the emergency doctrine precluded liability presented a question of fact and, therefore, summary judgment for defendants was inappropriate. *Green v Metropolitan Transp. Auth. Bus Co.*, 26 NY3d 1061.

**FORESEEABILITY.**

**2. Trespasser Drowning at Pier Not Foreseeable.**—In an action arising out of plaintiff's decedent's death from drowning in a river after trespassing onto one of defendant's piers by scaling a locked gate while intoxicated, the Appellate Division properly concluded, under the circumstances presented, that the decedent's actions were not foreseeable. *Abraham v Chelsea Piers Mgt., Inc.*, 26 NY3d 963.

**MAINTENANCE OF PREMISES.**

**3. Trip and Fall — Applicability of Trivial Defect Doctrine.**—The trivial defect doctrine—grounded on the fundamental principle that, if a defect is so slight that no careful or prudent person would reasonably anticipate any danger from its existence, and yet an accident occurs that is traceable to the defect, there is no liability—is not limited to municipal defendants or cases involving accidents on sidewalks. The principle is equally applicable to private landlords and municipalities, and the doctrine has been applied to defects on stairways, including those that are inside privately owned buildings. *Hutchinson v Sheridan Hill House Corp.*, 26 NY3d 66.

**4. Trip and Fall — Notice of Defective Condition.**—In a personal injury action commenced by plaintiff after she tripped and fell while descending a stairway when her foot “got caught” on “a big clump in the middle of the stair”—a protrusion of some sort in the step tread—that had “been painted over,” defendants failed to meet their burden to make a prima facie showing that they neither created nor had notice of the defect as a matter of law. The deposition testimony left significant doubt as to who painted the stairway, when it was painted, and whether the “clump” was visible and apparent and existed for a sufficient length of time prior



**NEGLIGENCE—Cont'd**

to the accident to permit defendants' employees to discover and remedy it. *Hutchinson v Sheridan Hill House Corp.*, 26 NY3d 66.

**5. Trip and Fall — Trivial Defect — Inconclusive Record.**—Summary judgment should not be granted to the defendant in an action arising out of a trip and fall on an allegedly trivial defect on a sidewalk or stairway where the dimensions of the defect are unknown and the photographs and descriptions in the record are inconclusive. Accordingly, in a personal injury action commenced by plaintiff after she tripped and fell while descending a stairway when her foot "got caught" on "a big clump in the middle of the stair"—a protrusion of some sort in the step tread—that had "been painted over," the summary judgment record, which included deposition testimony and indistinct photographs, but no measurements of the alleged defect, was deemed inconclusive and could not support a ruling of triviality as a matter of law. Without evidence of the dimensions of the "clump," it was not possible to determine whether it was the kind of physically small defect to which the trivial defect doctrine applies. Defendants thus failed to meet their initial burden of making a prima facie showing of entitlement to judgment as a matter of law, and the burden did not shift to plaintiff to establish the existence of a material triable issue of fact. *Hutchinson v Sheridan Hill House Corp.*, 26 NY3d 66.

**6. Trip and Fall — Trivial Defect — Location of Defect on Walking Surface.**—In deciding whether the defendant in an action arising out of a trip and fall on an allegedly trivial defect on a sidewalk or stairway has met its burden of showing prima facie triviality, a court must—except in unusual circumstances—avoid interjecting the question whether the plaintiff might have avoided the accident simply by placing his or her feet elsewhere. Accordingly, in a personal injury action commenced by plaintiff after he fell while descending a stairway as he stepped on the part of a step tread's nosing projecting over the riser below where there was a missing piece or "chip," the Appellate Division erred in concluding that the defect was trivial as a matter of law because the "chip" was "not on the walking surface." Plaintiff's expert explained that, when descending a stairway, a human foot can make contact with the end of the nosing such that the walking surface of a step tread extends to the nosing. In the photograph in the record of a foot positioned next to the "chip," the toe of the shoe extended across and over the nosing in a way that did not appear forced or unnatural. Even if there were room on the step for a person to place his or her foot behind the defect, it would not follow as a matter of law that the defect was "not on the walking surface." After examining all the pertinent facts and circumstances, including that the step tread had a missing piece, of irregular shape, 3¼ inches in width and at least one-half inch in depth, on the nosing of the step tread, where a person might step, and that the record contained an expert affidavit explaining the necessity for step treads to be of uniform horizontal depth, a material triable issue of fact existed regarding triviality. *Hutchinson v Sheridan Hill House Corp.*, 26 NY3d 66.

**7. Trip and Fall — Trivial Defect — Review of Summary Judgment Motion.**—The defendant in an action arising out of a trip and fall on an allegedly trivial defect on a sidewalk or stairway cannot prevail on a summary judgment motion solely on the basis of the dimensions of the defect, and the reviewing court is obliged to consider all the specific facts and circumstances presented in order to determine triviality. Accordingly, in a personal injury action commenced by plaintiff after his foot "caught" on a metal object protruding from the sidewalk and he fell, the defect was deemed trivial as a matter of law where the object, protruding only about a quarter of an inch above the sidewalk, was in a well-illuminated location approximately in the middle of the sidewalk and in a place where a pedestrian would not be obliged by crowds or physical surroundings to look only ahead. The object stood alone and was not hidden or covered in any way so as to make it difficult to see or to identify as a hazard. Its edge was not jagged and the surrounding surface was not uneven. Moreover, the characteristics of the object enumerated by plaintiff in seeking to show a triable issue of fact in opposition to defendant's prima facie showing of triviality—the abruptness of the projecting edge, the alleged irregularity of its shape, and its rigidity and firm insertion into the sidewalk—were not dispositive, being true of many contours in a sidewalk, and the

**NEGLIGENCE—Cont'd**

test was not whether the defect was capable of catching a pedestrian's shoe. *Hutchinson v Sheridan Hill House Corp.*, 26 NY3d 66.

**SIDEWALKS.**

**8. Liability of Abutting Landowner.**—In an action to recover damages for injuries plaintiff sustained when he tripped on an expansion joint that abutted the individual defendants' property as he traversed along a sunken sidewalk flag, the majority of which abutted the neighboring property owned by the moving defendant, summary judgment should not have been granted to the moving defendant as there were factual questions as to whether it breached its duty to maintain the sidewalk flag abutting its property and, if so, whether that breach was a proximate cause of plaintiff's injuries. Although the moving defendant did not have a duty to remedy any defects in front of the individual defendants' property, Administrative Code of the City of New York § 7-210 (a) imposed a duty on the moving defendant to maintain the sidewalk abutting its premises in a reasonably safe condition. Moreover, the plain language of section 7-210 (b) provides that the moving defendant may be held liable for injuries where its failure to maintain its sidewalk was a proximate cause of those injuries. Most of the sunken sidewalk flag that plaintiff traversed abutted the moving defendant's property, and plaintiff claimed that the moving defendant's sidewalk flag had sunk lower than the expansion joint upon which plaintiff allegedly tripped. Thus, the moving defendant failed to meet its burden of demonstrating entitlement to judgment as a matter of law. *Sangaray v West Riv. Assoc., LLC*, 26 NY3d 793.

**9. Liability of Abutting Landowner.**—To the extent that *Montalbano v 136 W. 80 St. CP* (84 AD3d 600 [1st Dept 2011]) and other cases interpreting Administrative Code of the City of New York § 7-210 can be interpreted as holding that only the landowner whose property abuts the defect in the sidewalk upon which the plaintiff trips may be held liable, they should no longer be followed for that premise. Section 7-210 (b), by its plain language, does not restrict a landowner's liability for accidents that occur on its own abutting sidewalk where the landowner's failure to comply with its duty to maintain its sidewalk in a reasonably safe condition constitutes a proximate cause of a plaintiff's injuries. *Sangaray v West Riv. Assoc., LLC*, 26 NY3d 793.

**NEGOTIABLE INSTRUMENTS.**

*See* **BILLS, NOTES AND CHECKS.**

**NEWSPAPERS.**

*See, also*, **LIBEL AND SLANDER**, and other specific titles.

**OPTICIANS.**

*See* **LICENSES; PHYSICIANS AND SURGEONS.**

**OPTOMETRISTS.**

*See* **LICENSES; PHYSICIANS AND SURGEONS.**

**PARENT, CHILD AND FAMILY.**

*See, also*, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles.

**CUSTODY.**

**1. Grandparents' Standing Based on Extended Disruption of Custody — Parent-Child Contact during Child's Residence with Grandparents.**—Grandparents may demonstrate standing to seek custody based on extraordinary circumstances where the child has lived with the grandparents for a prolonged period of time, even if the child had contact with, and spent time with, a parent while the child lived with the grandparents. Domestic Relations Law § 72 (2) does not create new rights for grandparents, but clarifies a method by which grandparents may exercise those



**PARENT, CHILD AND FAMILY—Cont'd**

rights, and defines an alternative type of extraordinary circumstance applicable only to grandparents—specifically, an extended disruption of custody—in view of their special status. There is no explicit statutory reference to contact or the lack thereof between the parent and child. Rather, the quality and quantity of contact are factors to be considered in the context of the totality of the circumstances when determining whether the parent voluntarily relinquished care and control of the child, and whether the child actually resided with the grandparents for the required “prolonged” period of time. To give meaning to the separate statutory avenue of establishing standing, Domestic Relations Law § 72 (2) must be available for a grandparent even if the parent has had some contact with the child during the requisite 24-month period. To hold otherwise would not only conflict with the legislature’s intent, but would also deter grandparents from promoting a relationship between the parent and the child while the child resides with them, contrary to this state’s public policy of encouraging and strengthening parent-child relationships. *Matter of Suarez v Williams*, 26 NY3d 440.

**2. Grandparents’ Standing Based on Extraordinary Circumstances — Extended Disruption of Mother’s Custody.**—Petitioner grandparents established their standing to seek custody of respondent mother’s child, who began living with petitioners within days of his birth and for nearly 10 years thereafter, by demonstrating the extraordinary circumstance of an extended disruption of respondent’s custody. Domestic Relations Law § 72 (2) sets forth three “elements” required to demonstrate the extraordinary circumstance of an “extended disruption of custody”: a 24-month separation of the parent and child, which is identified as “prolonged”; the parent’s voluntary relinquishment of care and control of the child during such period; and the residence of the child in the grandparents’ household. In signing three documents, each giving petitioners permission to make decisions regarding the child, respondent freely signed over virtually all decision-making rights indefinitely—she did not limit the permission to times when she was unavailable—demonstrating her intent that petitioners permanently assume the parental responsibility of caring for the child. Respondent could have expressly revoked or limited her written permission, but she never did so. The evidence therefore supported Family Court’s finding that respondent voluntarily relinquished care and control of the child for more than 24 months, even though she had regular contact and visitation with him. Respondent allowed petitioners to assume control over, and responsibility for the care of, the child while he resided with them for a prolonged period of years, during which she assumed the role of a noncustodial parent in virtually every way. As respondent effectively transferred custody of the child to petitioners for a prolonged period of time, the circumstances rose to the level of extraordinary. *Matter of Suarez v Williams*, 26 NY3d 440.

**3. Modification.**—In a child custody matter, an order of the Appellate Division, which affirmed a Family Court order modifying a prior order of custody and visitation, was affirmed. Record evidence existed to support the affirmed findings of fact upon which the modification of the child custody award was predicated. *Matter of Cisse v Graham*, 26 NY3d 1103.

**PAROLE.****DENIAL.**

**1. Judicial Review.**—An order of the Appellate Division, which affirmed a judgment dismissing petitioner’s application, in a proceeding pursuant to CPLR article 78, to review a determination of the Board of Parole denying his request for parole release, was affirmed. *Matter of Olmosperez v Evans*, 26 NY3d 1014.

**PARTIES.****STANDING.**

**1. Environmental Quality Review — Injury Different in Kind from Public at Large.**—In a proceeding challenging respondent Village’s actions under the State Environmental Quality Review Act in entering into an agreement for the sale of

**PARTIES—Cont'd**

water from the Village's drinking water supply and a lease agreement for construction of a water transloading facility for transportation of the water by train, the Appellate Division erred in determining that petitioner individual, who lived one-half block from the railroad line and a block and a half from the transloading facility, lacked standing. In land use matters, for standing purposes, a plaintiff must show that it would suffer direct harm, injury that is in some way different from that of the public at large. While the harm alleged must be specific to the individuals who allege it, it need not be unique. The number of people who are affected by the challenged action is not dispositive of standing, and standing rules should not be applied in an overly restrictive manner where the result would be to completely shield a particular action from judicial review. Here, the Appellate Division, in reasoning that because other residents also lived along the train line, petitioner did not suffer noise impacts different from his neighbors, applied an overly restrictive analysis of the requirement to show harm different from that of the public at large and effectively insulated the Village's actions from any review. Petitioner's allegation about noise caused by the increased train traffic keeping him up at night, even without any express differentiation between the train noise running along the tracks and the noise from the transloading facility, would be sufficient to confer standing. Moreover, based on his allegations and his proximity to the facility, it could be concluded that he was hearing noise both from the facility and the trains running along the tracks. *Matter of Sierra Club v Village of Painted Post*, 26 NY3d 301.

**PATERNITY PROCEEDINGS.**

*See* CHILDREN BORN OUT OF WEDLOCK.

**PHYSICAL EXAMINATIONS.**

*See* DISCLOSURE.

**PHYSICIANS AND SURGEONS.****MALPRACTICE.**

**1. Duty Owed to Third Parties to Warn Patient of Medication Impairing Ability to Safely Operate Motor Vehicle.**—Where a medical provider has administered to a patient medication that impairs or could impair the patient's ability to safely operate an automobile, the medical provider has a duty to third parties to warn the patient of that danger. Consequently, in plaintiffs' action to recover damages for injuries sustained in a motor vehicle accident that occurred minutes after the nonparty driver of the other vehicle was discharged from defendant hospital, where she was administered an opioid narcotic pain-killer and a benzodiazepine drug intravenously by defendant medical professionals, defendants owed a duty to plaintiffs to warn the driver that such medication either impaired or could impair her ability to safely operate an automobile. A critical consideration in determining whether a duty exists is whether the defendant's relationship with either the tortfeasor or the plaintiff places the defendant in the best position to protect against the risk of harm. The responsibility of care is assigned to the person or entity that can most effectively fulfill that obligation at the lowest cost. To take the affirmative step of administering the medication at issue without warning the driver about the disorienting effect of those drugs was to create a peril affecting every motorist in her vicinity. Defendants were the only ones who could have provided a proper warning of the effects of that medication. *Davis v South Nassau Communities Hosp.*, 26 NY3d 563.

**PLEADING.****AMENDMENT.**

**1. Merit of Proposed Additional Claim.**—In plaintiffs' action to recover damages for injuries sustained in a motor vehicle accident that occurred after defendant medical professionals administered medication to the nonparty driver of the other

**PLEADING—Cont'd**

vehicle without warning her that such medication either impaired or could impair her ability to safely operate an automobile, Supreme Court properly denied plaintiffs' request to serve an amended complaint asserting a claim that defendants negligently caused the driver to become "medically intoxicated and cognitively impaired," and that she caused the accident because of that impairment. Leave to amend a pleading should be freely granted in the absence of prejudice to the nonmoving party where the amendment is not patently lacking in merit. A complaint sounds in medical malpractice rather than ordinary negligence where the challenged conduct constitutes medical treatment or bears a substantial relationship to the rendition of medical treatment by a licensed physician to a particular patient. Inasmuch as the "medical intoxication" of which plaintiffs complained in the proposed new cause of action bore a substantial relationship to the medical treatment administered by defendants, plaintiffs' claims against defendants sounded in medical malpractice, rather than in negligence. Thus, the proposed cause of action lacked merit. *Davis v South Nassau Communities Hosp.*, 26 NY3d 563.

**PODIATRISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**POLITICAL PARTIES.**

*See* ELECTIONS.

**PRINCIPAL AND AGENT.**

*See, also*, BROKERS; INSURANCE, and other specific titles.

**PRISONS AND PRISONERS.****DISCIPLINE OF INMATES.**

**1. Failure to Provide Written Explanation of Decision on Inmate's Request to Call Witness.**—Remittal for a rehearing, rather than expungement of respondent's determination finding petitioner inmate guilty of violating prison disciplinary rules, was an appropriate remedy for respondent's failure to provide petitioner with written notice of whether his request to call a witness had been denied and why, where the record was clear that respondent failed to comply with Department of Corrections and Community Supervision (DOCCS) regulations, but unclear as to whether respondent violated petitioner's constitutionally protected due process rights. Inmates are entitled to the minimum requirements for procedural due process under the Federal Due Process Clause, which include an inmate's right in a disciplinary proceeding to call witnesses in the inmate's defense, so long as permitting the inmate to do so will not be unduly hazardous to institutional safety or correctional goals. That right is codified in DOCCS regulations, which also require that DOCCS provide a written statement explaining the reasons for the denial of a witness (7 NYCRR 254.5 [a]). Refusal to provide a witness is not an automatic due process violation because DOCCS retains the right to deny any witnesses that would be unduly hazardous to institutional safety or correctional goals. Under these circumstances, where respondent clearly violated the regulation, but where the Court cannot determine if respondent violated the due process requirements recognized by the United States Supreme Court, no interplay between section 254.5 and the Federal Constitution mandated expungement. *Matter of Teixeira v Fischer*, 26 NY3d 230.

**2. Possessing Loose Postage Stamps in Law Library.**—Respondent's determination in an inmate disciplinary hearing finding petitioner guilty of violating a prison rule prohibiting possession of loose postage stamps in the law library was supported by substantial evidence. Petitioner conceded that he was in possession of the stamps. Although he claimed that he did not violate the facility provision because he was found to be in possession of the loose stamps outside the library premises, prison rules state explicitly that inmates who attempt "to violate institutional rules of conduct . . . [are] punishable to the same degree as violators

**PRISONS AND PRISONERS—Cont'd**

of such rules . . . [and] may be cited for attempts . . . whether or not the text of an actual rule contains such term[ ]” (7 NYCRR 270.3 [b]). Petitioner testified during the hearing that he was carrying the loose stamps while on his way to the law library. Thus, by his own admission, he was guilty of an attempt to violate the provision, and as a consequence the rule itself. Furthermore, whether petitioner was aware that he was in violation of a restriction on loose stamps was irrelevant because the rule applies regardless of the inmate’s intent. *Matter of Bottom v Annucci*, 26 NY3d 983.

**PROHIBITION.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**PSYCHIATRISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**PUBLIC OFFICERS.**

*See, also*, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

**RAILROADS.**

*See, also*, CARRIERS.

**REAL ESTATE BROKERS.**

*See* BROKERS.

**REAL PROPERTY.**

*See* ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

**RELIGIOUS CORPORATIONS AND ASSOCIATIONS.****JUDICIAL REVIEW.**

1. Issues Incapable of Resolution by Application of Neutral Principles of Law.—In a CPLR article 78 proceeding brought by excommunicated members of respondent religious corporation seeking a judgment directing respondent to hold an annual membership meeting, as required by respondent’s bylaws, the appointment of a receiver to determine the names and addresses of all members of respondent eligible to vote, and a vote regarding respondent’s future, an order of the Appellate Division which reversed an order of the Supreme Court granting the petition to the extent of invalidating a certain general meeting held by respondent and directing that another general meeting be held with petitioners included, and which dismissed the petition, was affirmed for the reasons stated by the Appellate Division majority. The Appellate Division majority concluded that the issues raised were not secular in nature, but religious, and could not be resolved by the application of neutral principles of law. *Matter of Ming Tung v China Buddhist Assn.*, 26 NY3d 1152.

**RESCISSION.**

*See* CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

**RESIDENCE.**

*See* DOMICILE.

**RES JUDICATA.**

*See* JUDGMENTS.

**RETIREMENT AND PENSION BENEFITS.**

*See* CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

**RIPARIAN RIGHTS.**

*See* ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

**SALES.**

*See, also,* CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

**SCHOOLS.**

*See, also,* CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

**SEPARATION.**

*See* HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

**SLANDER.**

*See* LIBEL AND SLANDER.

**SOCIAL SERVICES.****PUBLIC ASSISTANCE.**

1. Reimbursement from Lottery Winnings — Work Experience Program Participant “Employee” under Federal Fair Labor Standards Act.—In a CPLR article 78 proceeding challenging respondent’s retention of one half of petitioner’s lottery prize winnings as reimbursement for public assistance benefits he received in exchange for work performed for the City of New York through its Work Experience Program (WEP), petitioner was an employee of the City within the meaning of the Federal Fair Labor Standards Act (FLSA) entitled to the protection of its minimum wage provisions. To determine whether an individual qualifies as an employee under the FLSA, a court must look to the economic reality, not the technical concepts, of the relationship. Under the “economic reality” test, the relevant factors include whether the alleged employer had the power to hire and fire the employees, supervised and controlled employee work schedules or conditions of employment, determined the rate and method of payment, and maintained employment records. The City had the power to hire and fire WEP workers, and the City and its WEP agencies supervised and controlled the work schedule of the workers. Furthermore, the City and its agencies maintained the employment records of the WEP workers. While the Social Services Law, not the WEP agencies or the City, determined the rate and method of payment of WEP workers, that is one factor, and the economic reality test encompasses the totality of the circumstances. Petitioner’s work was no different from the janitorial services performed by salaried City employees at many offices and other locations. His benefits were compensation, given in exchange for his work—even if some of those benefits were not paid in cash—and he was entirely dependent on those benefits for years. Accordingly, petitioner was entitled to minimum wage for his hours worked as a participant in the WEP program, and respondent could not retroactively deprive him of a minimum wage by recouping the funds through petitioner’s lottery prize. *Matter of Carver v State of New York*, 26 NY3d 272.

2. Assignment of Child Support Rights — Distribution of Excess Child Support Payments.—The determination of respondent State and City public assistance administrators that petitioner was not entitled to distribution of child support payments collected by the City, pursuant to petitioner’s assignment of her right thereto relating to her son (*see* Social Services Law § 158 [5]), after the son was deemed

**SOCIAL SERVICES—Cont'd**

eligible to receive Supplemental Security Income (SSI) and thus ineligible for public assistance was not arbitrary, capricious or erroneous as a matter of law. Under any calculation proposed by petitioner, the City had not yet collected child support arrears accrued before the son was deemed ineligible for public assistance that exceeded the unreimbursed public assistance benefits that petitioner's family received. Though a recipient of public assistance must assign to the State and local social services district his or her right to child support (*see* Social Services Law § 158 [5]), he or she is entitled to any support payments that exceed the total amount of unreimbursed public assistance received (18 NYCRR 347.13 [f] [3]). The assignment terminates with respect to current support rights upon a determination by the social services district that the recipient is no longer eligible for public assistance, at which time the district may collect only those support payments that already accrued but have not yet been paid (*see* Social Services Law § 158 [5]). Here, that the Social Security Administration (SSA) made the son's SSI retroactive did not change the date of the City's determination that he was ineligible for public assistance—the date the statute defines as the operative time for terminating the assignment of current support. SSA also reimbursed the City for public assistance benefits it paid on behalf of the son during the period he was granted SSI retroactively, and respondents properly credited SSA's reimbursement check towards the total public assistance provided to petitioner's family before the son was deemed ineligible therefor. Even with that credit, there was no excess. *Matter of Hawkins v Berlin*, 26 NY3d 417.

**SPORTING EVENTS.**

*See* THEATRES AND SHOWS.

**STATUTE OF FRAUDS.**

*See* CONTRACTS; FRAUDS, STATUTE OF.

**STATUTE OF LIMITATIONS.**

*See* LIMITATION OF ACTIONS.

**STATUTES.**

FEDERAL PREEMPTION.

1. Sales Tax on Fixed Mobile Telecommunications Charges.—Tax Law § 1105 (b) (2) unambiguously imposes a tax on all voice services sold for a fixed periodic charge, including interstate and international calls, and is not preempted by the Federal Mobile Telecommunications Sourcing Act (MTSA) (4 USC § 116 *et seq.*). The MTSA establishes a uniform “sourcing” rule for state taxation of mobile telecommunications services: the only state that may impose a tax is the state of the customer's place of primary use. The MTSA bundling provision expressly opens by respecting and incorporating state authority, rather than restricting it, and anticipates disaggregation only of charges “not otherwise subject . . . to [state] taxation.” Because the Tax Law imposes a tax on the entire amount of the fixed monthly charge for voice services, there is no exemption for any interstate and international component that would trigger section 123 (b)'s exception. *People v Sprint Nextel Corp.*, 26 NY3d 98.

**SUBPOENA.**

*See* WITNESSES.

**SUMMONS.**

*See* PROCESS.

**SYNAGOGUES.**

*See* RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

**TAXATION.**

SALES AND USE TAXES.

1. Knowingly Making False Statements Material to Sales Tax Obligation.—In a civil tax enforcement action, the People stated a cause of action under the New



**TAXATION—Cont'd**

York False Claims Act (State Finance Law § 187 *et seq.*) by alleging that defendant wireless telecommunications service provider arbitrarily allocated a percentage of its flat-rate monthly charge to interstate and international calls, failed to collect sales tax on that portion of the charge, and “knowingly ma[de] . . . a false record or statement material to” its obligation to pay sales tax (State Finance Law § 189 [1] [g]). The complaint contained allegations about agency guidance and industry compliance with the Attorney General’s position that Tax Law § 1105 (b) (2) requires the payment of sales taxes on the full amount of fixed periodic charges for wireless voice services, defendant’s prior payment of the proper amount of sales tax and its undisclosed reversal of its practices, and explicit warnings that defendant received from the state tax department that defendant’s sales tax practice was illegal. *People v Sprint Nextel Corp.*, 26 NY3d 98.

**TORTS.****FALSE IMPRISONMENT.**

**1. False Arrest — Probable Cause.**—Defendants were not entitled to summary judgment dismissing plaintiff’s false arrest and imprisonment claim stemming from her arrest for murder and the subsequent dismissal of the criminal proceeding, since triable questions of fact existed regarding whether plaintiff was unlawfully arrested without probable cause. To prevail on such a cause of action, a plaintiff must demonstrate that the defendant intended to confine the plaintiff, that the plaintiff was conscious of the confinement, that the plaintiff did not consent to the confinement and that the confinement was not privileged. An act of confinement is privileged if it stems from a lawful arrest supported by probable cause. The information known to the detectives prior to plaintiff’s arrest, excluding her alleged confession, did not conclusively demonstrate that the detectives had probable cause to arrest plaintiff as a matter of law. The assessment of plaintiff’s performance during the polygraph examination did not eliminate any possible factual dispute regarding whether the test results raised the detectives’ suspicion to the level of probable cause, as the “[i]nconclusive” preliminary results at most exhibited her willingness to lie to the police in general and not her concealment of her commission of the murder. Moreover, when viewed in the light most favorable to plaintiff, the inconsistencies between the crime scene evidence and plaintiff’s confession, as well as plaintiff’s account of defendant detectives’ invention of the confession, revealed that the detectives knew that the confession was false and that therefore it could not have reasonably contributed to their suspicion of plaintiff. *De Lourdes Torres v Jones*, 26 NY3d 742.

**MALICIOUS PROSECUTION.**

**2. Detectives’ Suppression Hearing Testimony as Basis for Liability.**—Defendant detectives’ suppression hearing testimony that plaintiff’s allegedly false confession to murder was voluntary, as opposed to their transmission of the confession to prosecutors, could not on its own result in liability for the commencement or continuation of the murder prosecution for purposes of her malicious prosecution claim. As a matter of historically-rooted public policy, a witness cannot be liable for malicious prosecution based on his or her false testimony at a trial or pretrial proceeding. This rule has been extended to eliminate liability arising from a police officer’s false testimony at a suppression hearing. However, while the defendant detectives’ suppression hearing testimony could not serve as a separate act of commencement or continuation, it was relevant evidence that they had a malicious state of mind in creating and transmitting plaintiff’s falsified confession. The test is whether the plaintiff can make out the elements of his or her claim without resorting to the testimony. If the claim exists independently of the testimony, it is not “based on” that testimony; conversely, if the claim requires the testimony, the defendant enjoys absolute immunity. Given the strong public policy against liability based on testimony in judicial proceedings, defendants could not, based on the record, be subjected to potential liability for their testimony at the suppression hearing alone. But because plaintiff relied on evidence independent of the suppression hearing testimony, defendants could not invoke absolute immunity. *De Lourdes Torres v Jones*, 26 NY3d 742.

**TORTS—Cont'd**

3. Probable Cause.—Defendants were not entitled to summary judgment dismissing plaintiff's malicious prosecution claim arising out of her arrest and indictment for murder and the subsequent dismissal of the criminal proceeding, as there existed triable questions of fact regarding whether defendant detectives improperly commenced the prosecution against plaintiff and participated in the prosecution out of malice. Because it was undisputed that the detectives who participated in the alleged creation of plaintiff's confession also had it sent to the District Attorney's Office, those detectives knew or should have known that their submission of plaintiff's unequivocal admission to killing the victim would cause prosecutors to bring a criminal proceeding against plaintiff, and consequently, the detectives' role in commencing the prosecution, coupled with plaintiff's testimony about the falsity of the confession, yielded a triable issue of fact on the commencement element of her malicious prosecution claim. Additionally, because evidence that a police officer lacked probable cause to believe that the plaintiff committed a crime and provided a falsified confession to prosecutors can rebut the presumption of probable cause arising from an indictment, the evidence that the detectives did not have probable cause to believe that plaintiff had killed the victim, made a fake confession, attributed the confession to plaintiff and gave it to prosecutors could, if credited, overcome the presumption of probable cause arising from plaintiff's indictment. And, since evidence of bad faith conduct in an infirm prosecution can also support an inference of malice, that evidence further generated a triable issue of fact as to whether the detectives maliciously commenced the criminal proceedings against plaintiff. *De Lourdes Torres v Jones*, 26 NY3d 742.

**TOWNS.**

See MUNICIPAL CORPORATIONS.

**UNFAIR COMPETITION.**

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

**VENDOR AND PURCHASER.**

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

**VETERANS.**

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**VILLAGES.**

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**WELFARE.**

See SOCIAL SERVICES.

**WILLS.**

ELECTIVE SHARE OF SURVIVING SPOUSE.

1. Burden as to Enforceability of Prenuptial Agreement.—In a proceeding pursuant to SCPA 1001 to obtain letters of administration on the ground that petitioner was the surviving spouse of the decedent, Surrogate's Court properly granted objectant's motion for judgment as a matter of law under CPLR 4401 based on the prenuptial agreement between petitioner and the decedent. Petitioner failed to present prima facie proof that a fact-based, particularized inequality existed between the decedent and herself at the time that they executed the prenuptial agreement, or meet her resulting burden of proof that the agreement was the product of fraud, duress, overreaching, or other inequitable conduct by the decedent. *Matter of Fizzinoglia*, 26 NY3d 1031.



**WITNESSES.**

*See, also,* CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

**ZONING.**

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- 5511 (Permissible appellant and respondent). *Matter of Martha S. (Linda M.S.)*, 26 NY3d 941; *Matter of Li Rong Gao v Perfect Team Corp.*, 26 NY3d 1048; *Matter of Beatrice R.H. (Dean E.H.)*, 26 NY3d 1077.
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- 5513 (b) (Time to move for permission to appeal). *Matter of Robinson (Commissioner of Labor)*, 26 NY3d 953; *Matter of Baez v Brown*, 26 NY3d 981; *Matter of Lewis v New York City Health & Hosps. Corp.*, 26 NY3d 1058; *Ramos v Weber*, 26 NY3d 1127; *Stokoe v E-Lionheart, LLC*, 26 NY3d 1140.
- 5513 (d) (Time to take appeal, cross-appeal or move for permission to appeal; additional time where service of judgment or order and notice of entry served by mail or overnight delivery service). *Matter of Lewis v New York City Health & Hosps. Corp.*, 26 NY3d 940.
- 5514 (a) (Extension of time to take appeal or to move for permission to appeal; alternate method of appeal). *Matter of Lewis v New York City Health & Hosps. Corp.*, 26 NY3d 1058.
- 5601 (Appeals to Court of Appeals as of right). *Korelis v Conriv Realty Corp.*, 26 NY3d 951; *Pope v City of New York*, 26 NY3d 953; *Matter of Parris (Commissioner of Labor)*, 26 NY3d 1023; *Matter of Golub*, 26 NY3d 1094; *Matter of Golub*, 26 NY3d 1095; *Matter of Pickering v Car Win Constr., Inc.*, 26 NY3d 1139.
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- 5601 (b) (1) (Appeals to Court of Appeals as of right; constitutional grounds). *Matter of Loehr v Administrative Bd. of the Cts. of the State of N.Y.*, 25 NY3d 1058.
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420.30 (3) (Remission of fines, restitution or reparation; restrictions). *People v Jones*, 26 NY3d 730.

420.40 (Deferral of mandatory surcharge; financial hardship hearings). *People v Jones*, 26 NY3d 730.

420.40 (1) (Deferral of mandatory surcharge; financial hardship hearings; applicability). *People v Jones*, 26 NY3d 730.

440.20 (Motion to set aside sentence; by defendant). *People v Jurgins*, 26 NY3d 607.

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440.30 (4) (d) (Motion to vacate judgment and to set aside sentence; procedure; denial of motion without hearing; allegation contradicted by court record or other official document). *People v Chu-Joi*, 26 NY3d 1105.

440.46 (Postjudgment motions; motion for resentencing; certain controlled substance offenders). *People v Golo*, 26 NY3d 358.

440.46 (3) (Postjudgment motion; motion for resentencing; certain controlled substance offenders; proceedings on and determination of motion). *People v Golo*, 26 NY3d 358.

440.46 (5) (a) (Postjudgment motion; motion for resentencing; certain controlled substance offenders; exclusion offense). *People v Golo*, 26 NY3d 358.

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§ 740 (5) (d) (Retaliatory personnel action by employers; prohibition; relief). *Tipaldo v Lynn*, 26 NY3d 204.

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Art VI, § 5 (b) (2) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Schmid v Knauer*, 26 NY3d 954.

Art VI, § 22 (Commission on Judicial Conduct; membership; organization and procedure; review by Court of Appeals; discipline of judges). *Diaz v New York State Commn. on Jud. Conduct*, 26 NY3d 949.

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§ 60.01 (4) (Sentences; authorized dispositions; generally). *People v Thompson*, 26 NY3d 678.

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§ 70.04 (1) (b) (Sentence of imprisonment for second violent felony offender). *People v Thompson*, 26 NY3d 678.

§ 70.04 (1) (b) (iv) (Sentence of imprisonment for second violent felony offender; predicate violent felony offense; 10-year limitation). *People v Small*, 26 NY3d 253.

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- 2004, ch 738, § 23 (Drug Law Reform Act of 2004). *People v Golo*, 26 NY3d 358.
- 2009, ch 56 (Drug Law Reform Act of 2009). *People v Golo*, 26 NY3d 358.

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- § 158 (5) (Safety Net Assistance Program; eligibility; assignment of support rights). *Matter of Hawkins v Berlin*, 26 NY3d 417.

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- § 187 *et seq.* (New York False Claims Act). *People v Sprint Nextel Corp.*, 26 NY3d 98.
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- § 1105 (b) (2) (Imposition of sales tax; receipts from sale of mobile telecommunications service). *People v Sprint Nextel Corp.*, 26 NY3d 98.

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- 4 USC § 116 *et seq.* (Mobile Telecommunications Sourcing Act). *People v Sprint Nextel Corp.*, 26 NY3d 98.

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- 4 USC § 123 (b) (Mobile Telecommunications Sourcing Act; scope; additional taxable charges). *People v Sprint Nextel Corp.*, 26 NY3d 98.
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CUMULATIVE ERRATA TABLE**

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|--------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|
| 1. <b>19 NY2d 159</b> (Thrasher v United States Liab. Ins. Co.)                                              | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's.                                                         |
| 2. <b>33 NY2d 846</b> (Petrie v Chase Manhattan Bank)                                                        | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr.                                                         |
| 3. <b>35 NY2d 179</b> (Matter of Lutfy v Gangemi)                                                            | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy.                                                                   |
| 4. <b>45 NY2d 233</b> (Simonds v Simonds)                                                                    | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive.                                                        |
| 5. <b>53 NY2d 499</b> (Weinberg v D-M Rest. Corp.)                                                           | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066.                                                   |
| 6. <b>54 NY2d 137</b> (People v Baldi)                                                                       | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful.                                                                             |
| 7. <b>64 NY2d 966</b> (Slatt v Slatt)                                                                        | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufacturers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 8. <b>66 NY2d 667</b> (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.)                              | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713.                                                                  |
| 9. <b>69 NY2d 601</b> (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table.                                                          |

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| 10. <b>75 NY2d 927</b> (Matter of David T.)                                           | At 75 NY2d 929, line 20, change effect to defect.                                                                                                                                                                                                 |
| 11. <b>77 NY2d 806</b> (Dowd v Ahr)                                                   | Change denied to granted in the result column of the motion for leave to appeal table.                                                                                                                                                            |
| 12. <b>80 NY2d 1030</b> (People v Sallito)                                            | Change the title entry from Salito to Sallito.                                                                                                                                                                                                    |
| 13. <b>85 NY2d 139</b> (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led.                                                                                                                                                                                    |
| 14. <b>88 NY2d 41</b> (Town of Orangetown v Magee)                                    | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.                                                                                                                                              |
| 15. <b>88 NY2d 400</b> (People v Huston)                                              | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].                                                                                                                                                                |
| 16. <b>93 NY2d 382</b> (BDO Seidman v Hirshberg)                                      | At 93 NY2d 391, line 25, change former employer to former employee.                                                                                                                                                                               |
| 17. <b>1 NY3d 174</b> (People v Taylor)                                               | At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840). |
| 18. <b>1 NY3d 541</b> (People v Sanchez)                                              | In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).                                                                                                                                  |
| 19. <b>4 NY3d 739</b> (Matter of Peter R. [Stacey R.])                                | Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.                                                                                                                                                                                 |
| 20. <b>4 NY3d 857</b> (People v Smith [DeJesus])                                      | Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).                                                                                                                                                                   |

## Errata

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|---------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------|
| 21. <b>5 NY3d 864</b> (Matter of Kadeem W.)                                                                   | At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition. |
| 22. <b>6 NY3d 427</b> (People v Boyer)                                                                        | At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.                                                                 |
| 23. <b>7 NY3d 703</b> (Matter of Park v Kapica)                                                               | Change the page number of the reported below citation from 802 to 801.                                                           |
| 24. <b>8 NY3d 944</b> (People v Charriez)                                                                     | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).                             |
| 25. <b>9 NY3d 923</b> (People v Jacobs)                                                                       | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.                                                       |
| 26. <b>11 NY3d 875</b> (People v Ford)                                                                        | On line 5 of the Summary, change Bronx County to New York County.                                                                |
| 27. <b>13 NY3d 511</b> (Matter of Goldstein v New York Urban Dev. Corp.)                                      | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].                                 |
| 28. <b>18 NY3d 667</b> (People v Rodriguez)                                                                   | At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.                                            |
| 29. <b>21 NY3d 1043</b> (People v Mackey-Meggs)                                                               | Change defendant's name in title from Mackey-Meggs to Marquan M.                                                                 |
| 30. <b>22 NY3d 648</b> (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) | At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.                                       |

31. **23 NY3d 455** (People v Golb)
- At 23 NY3d 461, in second full paragraph the email address “newsmedia.ucla.edu” should read “newsmedia@ucla.edu”
- At 23 NY3d 461, in third full paragraph the email address “steve.goransongmail.com” should read “steve.goranson@gmail.com”
- At 23 NY3d 462, in the first paragraph the email address “frank.cross2gmail.com” should read “frank.cross2@gmail.com”
- At 23 NY3d 462, in the second full paragraph the email address “larry.schiffmangmail.com” should read “larry.schiffman@gmail.com”
- At 23 NY3d 463, in the second full paragraph the email address “seidel.jonathangmail.com” should read “seidel.jonathan@gmail.com”
32. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik)
- At 23 NY3d 668, footnote 3, last sentence on page should read . . . . For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor . . . .
33. **24 NY3d 294** (People v Silva)
- At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.